

G.A. Copy

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
PRESENTATION FORM

Writ Appeal NO: 1508 / 2024

Serial No.....

Bangalore District

Advocate

SHIVA SHANKAR C

Advocate

No.3&4, 16th Cross,
Akshyanagar 2nd Stage,
Ramamurthynagar,
Bangalore-560016

KAR.3708/2004

Between

Sri.Sohanlal Joshi

And

The State of Karnataka and anr

(M:6361300825) Email: SHANKARAMB@gmail.com.

Sl.No	Description of paper Presented	Court fee affixed on the paper
1	On the Memo of Writ Appeal	
2	On the Memo of Appeal	
3	On Vakalath	
4	On certified Copies	
5	On IA.No.....for	
6	On process fee	
7	On Copy application	
8		
9		
10		

Number of copies furnished

Other side served

Presented by

Advocate for petitioner/

Appellant/respondent

Advocate's Clerk


04/10/2024

Received paper with
Court - fee lales as above

Date: 03.10.2024..... Bangalore
clerk

Receiving

**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(CIVIL APPELLATE JURISDICTION)**

**W.A.No. /2024
IN
W.P.No.18606/2024**

BETWEEN

Sri.Sohanlal Joshi

APPELLANT

AND

State of Karnataka &Ors.

RESPONDENT

INDEX

Sl.N o.	Particulars	Page Nos.
1.	Synopsis	1 - 6
2.	Memorandum of Writ Appeal	7 - 19
3.	Certified copy of the impugned order dated 26.9.2024 in WP 18606/2024	20 - 52
4.	Memorandum of writ petition.	53 - 64
5.	Verifying Affidavit	65 - 66
6.	ANNEXURE- A: The copy of the sale deed	67 - 76
7.	ANNEXURE- B : Copy of the tax demand register issued by the Gantigenahalli Gram panchayath	77 - 78
8.	Typed copy of Annexure-B	- 79 -
9.	ANNEXURE- C : copy of the sanctioned plan issued by the Gantigenahalli Gram panchayath	- 80 -

10. ANNEXURE-D : the coy of the katha certificate issued by the BBMP	- 81 -
11. Typed copy of Annexure-D	- 82 -
12. ANNEXURE-E: The copy of the electricity bill	- 83 -
13. ANNEXURE-F: Copy of the Aadhar of the appellant	- 84 -
14. ANNEXURE-G: The copy of the Voter ID	- 85 -
15. ANNEXURE-H: The copy of the order dated 10.1.2023 with Translation Copy.	86 - 93
16. ANNEXURE-J: The copy of the interim order dated 30.1.2023 in WP 2074/2023	94 - 97
17. ANNEXURE-K: The copy of the final order dated 23.6.2023 in WP 2074/2023	98 - 100
18. ANNEXURE-L: Copy of the letter dated 5.7.2024 written by 2 nd respondent to police	101 - 102
19. Typed copy of Annexure L	103 - 105
20. ANNEXURE-M To M8 Photographs	106 - 114
21. Statement objection filed by the Respondent No.4 in W.P no 18606/2024	115 - 124
22. Affidavit	125 - 126
23. ANNEXURE-R1: The copy of the judgement and decree dated 31.7.2021	127 - 173
24. ANNEXURE-R2: The copy of the sale deed dated 20.1.1996	174 - 181
25. ANNEXURE-R3: The copy of the sale deed dated 20.1.1996	182 - 189
26. ANNEXURE-R4: The copy of the sale deed dated 20.1.1996	190 - 196

27.	ANNEXURE-R5: The copy of the sale deed dated 23.11.2016	197 - 207
28.	ANNEXURE-R6: The copy of the sale deed dated 23.11.2016	208 - 220
29.	ANNEXURE-R7: The copy of the sale deed, dated 23.11.2016	221 - 233
30.	ANNEXURE-R8: The copy of the RTC in relation to Sy No.33	234 - 236
31.	ANNEXURE-R9: The copy of the sale deed dated 29.6.1995	237 - 245
32.	ANNEXURE-R10: The copy of the sale deed dated 29.6.1995	246 - 255
33.	ANNEXURE-R11: The copy of the sale deed dated 14.07.1997	256 - 263
34.	ANNEXURE-R12: The copy of the sale deed dated 14.07.1997	264 - 269
35.	ANNEXURE-R13: The copy of the sale deed dated 31.12.2019	270 - 285
36.	ANNEXURE-R14: The copy of the sale deed dated 20.11.2023	286 - 307
37.	ANNEXURE-R15: The copy of the RTC extract pertaining to the property bearing Sy No.34	308
38.	VAKALATH	309
39.	MEMO	310
40.	I A for stay along with affidavit	311 - 315

Place: Bangalore

Date: 03.10.2024

Advocate for Appellants
(Shiva Shankar.C)

}

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
(Civil Appellate Jurisdiction)

W.A.No. /2024

BETWEEN;

Sri. Sohanlal Joshi

Petitioner/appellant

And,

The State of Karnataka
& others

Respondents /Respondents

SYNOPSIS

DATE	EVENT
1.2.2006	The appellant purchased the sites bearing No.123,124 in Sy No.33/4 of Kenchanahalli Village, Yelahanka New Town, Bangalore and constructed building by obtaining sanctioned plan from Gantgenahalli gram panchayath.
10.1.2023	The respondent No.2 passed order to demolish/vate the occupants in Sy No.33/1, 33/3, 33/5, 34/2, 34/3 of Kenchanahalli Village, Yelahanka New Town, Bangalore.
30.1.2023	By interim order in WP 2074/2023 stayed the order dated 10.1.2023
23.6.2023	This Hon'ble court dismissed the WP 2074/2023 on the undertaking submission was made by the

	HCGP representing the 2 nd respondent herein that the impugned order will be implemented only against the persons who are party to the proceedings before the 2 nd respondent and not against those who are not a party to the proceedings and also submitted that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing
26.9.2024	This Hon'ble Court dismissed the writ petition in W.P.No.18606/2024

BRIEF FACTS

That the appellant is the owner of the property bearing Site No.123, 124, formed in Sy. No.33, now Sy.No.33/4, situated at Kenchanahalli Village, Yelahanka Hobli, Bangalore, hereinafter referred to as Schedule Property, having purchased the same by virtue of registered sale deed dated 1.2.2006 from its erstwhile owners. When the schedule property was purchased it was within the jurisdiction of Gantigenahalli Grama Panchayat. The name of the Appellant was entered in the katha records of Gantigenahalli Grama Panchayat. The Appellant obtained sanctioned plan from the Gantigenahalli Grama Panchayat and constructed the building in the Schedule Property and has been in possession and enjoyment of the same. The layout was formed in Sy. No.33 and 34 of Kenchanahalli Village and all the sites were sold and the respective purchasers are in possession of the same. The layout has been fully developed and all the purchasers have put up construction in their respective sites and have been in possession. Since most of the sites were purchased by Ex-Defense Personnel, the layout has been named as Sainik Vihar Layout. In the said layout electricity department has given electricity connection, BWSSB has given water and

3

sewage connection and the layout has been developed with all amenities. Now the schedule property comes within the jurisdiction of BBMP, the BBMP has issued katha certificate. The copies of the electricity bill, Aadhaar, Voter ID show that the Appellant is in possession and enjoyment of the Schedule Property.

It is submitted that when this being some land grabbers tried to knock of the entire Sy.No.33 and 34 of Kenchanahalli Village, by harassing the site owners in one or the other way. When this being the 4th respondent herein filed a suit in O.S.No. 10/2019 against 125 site owners in respect of Sy.No.33 and 34 of Kenchanahalli Village. Later the said suit was withdrawn. When this being on 23.1.2023 a member of a press approached the residents of Sy.No.33 and 34 of Kenchanahalli Village and informed that there is a demolition drive. The representatives of the residents of Sainik Vihar approached the 2nd respondent and came to know about the order passed by the 2nd respondent on 10.1.2023 in ALN(Y)R/10/2022-23, which does not reveal the correct address of the respondents 3 and 4. It is submitted that while passing the order dated 10.1.2023, the 2nd respondent has not issued any notice to the owners of the sites in Sy.No.33 and 34 of Kenchanahalli Village.

It is submitted that immediately the Sainik Vihar Site/House Owners Welfare Association approached this Hon'ble Court and filed W.P.No.2074/2023 to quash the order dated 10.1.2023 passed by 2nd respondent. This Hon'ble Court considering the urgency in the matter was pleased to stay the order dated 10.1.2023 passed by the 2nd respondent by order dated 30.1.2023. It is submitted that while passing the interim order this Hon'ble Court considered that the impugned order has been passed without issuing notice to the owners and grave injustice will be caused to each of the individual site owners. It is submitted that subsequently when the writ petition came up before this Hon'ble Court, this Hon'ble Court held that the association which filed the writ petition is not the owner of the property and if any person aggrieved by the said order are at liberty to challenge the same and also a submission was made by the HCGP representing the 2nd respondent herein that the impugned order will be implemented only against the persons who are party to the proceedings before the 2nd respondent and

not against those who are not a party to the proceedings and also submitted that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing. Based on such submissions and undertaking given by HCGP, the writ petition was dismissed.

It is submitted that the Appellant and other site owners of the layout formed in Sy.No.33 and 34 were in the impression that as per the undertaking given by the 2nd respondent before this Hon'ble Court, notice will be given to them before taking any action. When this being on 9.7.2024 the association members received a message that the 2nd respondent has given a letter to the police to give protection to vacate the entire Sy.No.33 and 34 as it is an unauthorized layout. Immediately the representatives of the association have obtained a copy of the letter dated 5.7.2024 written by the 2nd respondent to the police to give protection to vacate the occupants of sy. No.33 and 34. The same has been forwarded to all the residents by the association. On receiving the said letter the Appellant came to know that the respondent No.2 in collusion with respondents 3 and 4 who have no right, title or interest over the property is trying to demolish the entire Buildings in Sy.No.33 and 34 and handover vacant possession to respondent No.4. It is submitted that actually the schedule property is in Sy.No.33/4, but illegally the revenue authorities have been showing the schedule property in Sy. No.33/5 and trying to evict/vacate the Appellant from schedule property.

It is submitted that the impugned order passed by the 2nd respondent is against the principles of natural justice and against law. The 3rd respondent who has approached the 2nd respondent has got nothing to do with the said property and that to against the 4th respondent who is not even in possession of any portion of Sy.No.33 and 34 of Kenchanahalli Village. It is submitted that no notice was issued to the Appellant before passing the impugned order. The Appellant is aggrieved by the act of the 1st respondent as per impugned order vide Annexure H and having no other alternative efficacious remedy, the Appellant is filed the Writ Petition No.18606/2024.

It appellant brought to the notice the learned single judge that the appellant herein has filed O.S.No.25493 of 2007 before

5

the Competent Civil Court against one Abdul Rafeeq Ahmed and the said suit came to be decreed by judgment and decree dated 08.02.2008 and therefore, the appellant has established his right in respect of the subject site and accordingly, sought for interference of this Court, The learned single judge failed to appreciate these reports and in a blatant manner held that the petitioners in W.P.No.17208 of 2024 have filed suits in OS No.125 of 2020 and OS No. 126 of 2020, seeking relief of declaration and consequential relief of permanent injunction against the defendants therein and the said suits are pending consideration before the Trial Court. Disputed question of facts are involved in these writ petitions, with regard to the relief claimed by the parties. Therefore, it is well settled proposition of law that, when there are disputed question of facts are involved in a case, this Court cannot exercise its jurisdiction under Article 226 of the Constitution of India. In that view of the matter, W.P.No.13659 of 2024, W.P.No.18606 of 2024, W.P.No.19011 of 2024 and W.P.No.19012 of 2024 are liable to be dismissed as the petitioners herein have to establish their right in respect of the subject sites before the competent civil court in terms of the judgment and decree dated 31.07.2021 in OS No.665 of 2007 and connected suits.

The respondent No.4 herein who is petitioner in W.P 17208/2024 have filed OS No.10 of 2019, challenging the Sale Deeds executed in favour of the appellant herein and others and the said suit came to be withdrawn as per order dated 18.01.2020 with liberty to file fresh suit on the same cause of action and till date the respondent No.4 has not filed any suit against the appellant herein and same has reached finality. Thereafter, the respondent No.4 who is petitioner in W.P.No.17208 of 2024 have filed suits in OS No.125 of 2020 and OS No.126/2020 for the relief of declaration in which the appellant is not a party. The learned Single Judge failed to appreciate this fact and erroneously dismissed the writ petition preferred by the appellant and allowed the writ petition of the respondent no.4.

The relief claimed by the appellant is that the respondent No.2 has no jurisdiction to pass the impugned order as the respondent No.2 has no jurisdiction as the same is not a revenue land. When this being the case, the learned single

could not to have come to the conclusion that the respondent No. 4 has purchased the land as aper the sale deeds and the respondent-Thasildar, rightly taken decision to remove such encroachments after providing fair opportunity of hearing to the parties concerned.

Aggrieved by the Judgment dated 26.09.2024, in W.P.No.18606/2024, the appellant have filed this Writ Appeal before this Hon'ble Court. Hence, this appeal.

Place: Bangalore

Date:03.10.2024


Advocate for Appellant
(Shiva Shankar.C)

7

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
(Civil Appellate Jurisdiction)
(Memorandum of Writ Appeal under Section 4 of the Karnataka
High Court Act)

W.A. No. / 2024

IN

W.P.No.18606/2024

BETWEEN

Rank of the parties

In W.P.No.18606/In this Appeal

Mr.Sohanlal Joshi
Aged about 54 years
S/o. Late Dallaram Joshi
R/at No.123, 124,
Sainik Vihar Layout,
Kenchamahall,
Yellahanika New Town
Bengaluru 560064.

Petitioner / Appellant

AND:

1. State of Karnataka
Department of Revenue
Vidhana Southa
Dr. BRAmbedkar Veedhi,
Bangalore 550 001
Rep. by its Secretary

Respondent No.1/Resp. No.1

2. The Tahsildar
Bangalore North Taluk,
Yelahanka Upanagara,
Bengaluru 550 064.

Respondent No.2/Resp. No.2

3. Ramesh
Aged about 40 years
S/o Not Known to petitioner
R/at. A Sector,
Yellahanka New Town
Yelahanka, Begaluru 560 064

Respondent.No.3/Resp No.3

2

4. Mr.Azmath Ulla Khan
S/o.Ibrahim Khan
Aged about 43 years
R/at.No. 17/A, H Cross Road,
Bismilah Nagar
Bengaluru 560 029

Respondent.No.4/Resp No.4

**MEMORANDUM OF WRIT APPEAL FILED UNDER SECTION
4 OF THE KARNATAKA HIGH COURT ACT, 1961**

The Appellants respectfully beg to submit as under;

1. That the address of the Appellants for the purpose of service of summons, notice etc from this Hon' ble Court is that of his counsel Shiva Shankar. C Advocates, office at No.3 & 4, 1st Floor, 16th Cross, Akshyanagar, Bangalore-560016.
2. The address of the Respondents for the same purpose is as stated in the cause-title.
3. Aggrieved by the order dated 26.09.2024, passed by the learned Single Judge in W.P.No.18606/2024, dismissing the writ petition filed by the petitioner, the Appellant herein present this Memorandum of Writ Appeal challenging the said Judgment dated 26.09.2024, a copy of which is produced herein along with this appeal memo, on the following facts and grounds that may be urged at the appropriate stage.

BRIEF FACTS OF THE CASE

4. That the appellant is the owner of the property bearing Site No.123, 124, formed in Sy. No.33, now Sy.No.33/4, situated at Kenchanahalli Village, Yelahanka Hobli, Bangalore, hereinafter referred to as Schedule Property, having purchased the same by virtue of registered sale deed dated 1.2.2006 from its erstwhile owners. When the schedule property was purchased it was within the jurisdiction of Gantigenahalli Grama Panchayat. The name of the Appellant was entered in the katha records of Gantigenahalli Grama Panchayat. The Appellant obtained sanctioned plan from the Gantigenahalli Grama Panchayat and constructed the building in the Schedule Property and has been in possession and enjoyment of the same. The layout was formed in Sy. No.33 and 34 of Kenchanahalli Village and all the sites were sold and the respective purchasers are in possession of the same. The layout has been fully developed and all the purchasers have put up construction in their respective sites and have been in possession. Since most of the sites were purchased by Ex-Defense Personnel, the layout has been named as Sainik Vihar Layout. In the said layout electricity department has given electricity connection, BWSSB has given water and sewage connection and the layout has been developed with all amenities. Now the schedule property comes within the jurisdiction of BBMP, the BBMP has issued katha certificate. The copies of the electricity bill,

Aadhaar, Voter ID show that the Appellant is in possession and enjoyment of the Schedule Property.

5. It is submitted that when this being some land grabbers tried to knock of the entire Sy.No.33 and 34 of Kenchanahalli Village, by harassing the site owners in one or the other way. When this being the 4th respondent herein filed a suit in O.S.No. 10/2019 against 125 site owners in respect of Sy.No.33 and 34 of Kenchanahalli Village. Later the said suit was withdrawn. When this being on 23.1.2023 a member of a press approached the residents of Sy.No.33 and 34 of Kenchanahalli Village and informed that there is a demolition drive. The representatives of the residents of Sainik Vihar approached the 2nd respondent and came to know about the order passed by the 2nd respondent on 10.1.2023 in ALN(Y)R/10/2022-23, which does not reveal the correct address of the respondents 3 and 4. It is submitted that while passing the order dated 10.1.2023, the 2nd respondent has not issued any notice to the owners of the sites in Sy.No.33 and 34 of Kerichanahalli Village.
6. It is submitted that immediately the Sainik Vihar Site/House Owners Welfare Association approached this Hon'ble Court and filed W.P.No.2074/2023 to quash the order dated 10.1.2023 passed by 2nd respondent. This Hon'ble Court considering the urgency in the matter was pleased to stay the order dated 10.1.2023 passed by the

2nd respondent by order dated 30.1.2023. It is submitted that while passing the interim order this Hon'ble Court considered that the impugned order has been passed without issuing notice to the owners and grave injustice will be caused to each of the individual site owners. It is submitted that subsequently when the writ petition came up before this Hon'ble Court, this Hon'ble Court held that the association which filed the writ petition is not the owner of the property and if any person aggrieved by the said order are at liberty to challenge the same and also a submission was made by the HCGP representing the 2nd respondent herein that the impugned order will be implemented only against the persons who are party to the proceedings before the 2nd respondent and not against those who are not a party to the proceedings and also submitted that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing. Based on such submissions and undertaking given by HCGP, the writ petition was dismissed.

7. It is submitted that the Appellant and other site owners of the layout formed in Sy.No.33 and 34 were in the impression that as per the undertaking given by the 2nd respondent before this Hon'ble Court, notice will be given to them before taking any action. When this being on 9.7.2024 the association members received a message that the 2nd respondent has given a letter to the police to

give protection to vacate the entire Sy.No.33 and 34 as it is an unauthorized layout. Immediately the representatives of the association have obtained a copy of the letter dated 5.7.2024 written by the 2nd respondent to the police to give protection to vacate the occupants of sy. No.33 and 34. The same has been forwarded to all the residents by the association. On receiving the said letter the Appellant came to know that the respondent No.2 in collusion with respondents 3 and 4 who have no right, title or interest over the property is trying to demolish the entire Buildings in Sy.No.33 and 34 and handover vacant possession to respondent No.4. It is submitted that actually the schedule property is in Sy.No.33/4, but illegally the revenue authorities have been showing the schedule property in Sy. No.33/5 and trying to evict/vacate the Appellant from schedule property.

8. It is submitted that the impugned order passed by the 2nd respondent is against the principles of natural justice and against law. The 3rd respondent who has approached the 2nd respondent has got nothing to do with the said property and that to against the 4th respondent who is not even in possession of any portion of Sy.No.33 and 34 of Kenchanahalli Village. It is submitted that no notice was issued to the Appellant before passing the impugned order. The Appellant is aggrieved by the act of the 1st respondent as per impugned order vide Annexure H and

having no other alternative efficacious remedy, the Appellant is filed the Writ Petition No.18606/2024.

9. It appellant brought to the notice the learned single judge that the appellant herein has filed O.S.No.25493 of 2007 before the Competent Civil Court against one Abdul Rafeeq Ahmed and the said suit came to be decreed by judgment and decree dated 08.02.2008 and therefore, the appellant has established his right in respect of the subject site and accordingly, sought for interference of this Court, The learned single judge failed to appreciate these reports and in a blatant manner held that the petitioners in W.P.No.17208 of 2024 have filed suits in OS No.125 of 2020 and OS No. 126 of 2020, seeking relief of declaration and consequential relief of permanent injunction against the defendants therein and the said suits are pending consideration before the Trial Court. Disputed question of facts are involved in these writ petitions, with regard to the relief claimed by the parties. Therefore, it is well settled proposition of law that, when there are disputed question of facts are involved in a case, this Court cannot exercise its jurisdiction under Article 226 of the Constitution of India. In that view of the matter, W.P.No.13659 of 2024, W.P.No.18606 of 2024, W.P.No.19011 of 2024 and W.P.No.19012 of 2024 are liable to be dismissed as the petitioners herein have to establish their right in respect of the subject sites before the competent civil court in terms of the judgment and

decree dated 31.07.2021 in OS No.665 of 2007 and connected suits.

10. The respondent No.4 herein who is petitioner in W.P 17208/2024 have filed OS No.10 of 2019, challenging the Sale Deeds executed in favour of the appellant herein and others and the said suit came to be withdrawn as per order dated 18.01.2020 with liberty to file fresh suit on the same cause of action and till date the respondent No.4 has not filed any suit against the appellant herein and same has reached finality. Thereafter, the respondent No.4 who is petitioner in W.P.No.17208 of 2024 have filed suits in OS No.125 of 2020 and OS No.126/2020 for the relief of declaration in which the appellant is not a party. The learned Single Judge failed to appreciate this fact and erroneously dismissed the writ petition preferred by the appellant and allowed the writ petition of the respondent no.4.

11. The relief claimed by the appellant is that the respondent No.2 has no jurisdiction to pass the impugned order as the respondent No.2 has no jurisdiction as the same is not a revenue land. When this being the case, the learned single could not to have come to the conclusion that the respondent No. 4 has purchased the land as aper the sale deeds and the respondent-Thasildar, rightly taken decision to remove such encroachments after providing fair opportunity of hearing to the parties concerned.

- 15
12. Aggrieved by the Judgment dated 26.09.2024, in W.P.No.18606/2024, which suffers from various legal infirmities, the Appellant is preferring the above appeal on the following, amongst other grounds, that may be urged at the appropriate stage.

GROUND

- a. The impugned order of the learned single judge is against law, facts and circumstances of the case and hence, liable to be set aside.
- b. The learned Single Judge has arrived at an erroneous conclusion that that the respondent No. 4 has purchased the land as per the sale deeds and the respondent- Thasildar, rightly taken decision to remove such encroachments after providing fair opportunity of hearing to the parties concerned which is contrary to the records.
- c. The learned Single Judge has failed to notice that the respondent no.2 Thasildar has not provided any optinity to the appellant and any other site owners submission was made by the HCGP representing the 2nd respondent herein that the impugned order will be implemented only against the persons who are party to the proceedings before the 2nd respondent and not against those who are not a party to the proceedings and also submitted that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing and hence, impugned order is bad in law and liable to be set aside.

- d. Admittedly, there is nothing on record to establish that the Respondent No.2 Thasildar has provided an opportunity to the site owners. Learned Single Judge failed to appreciate this aspect of the matter in the right perspective.
- e. The issue with regard the establishment of rights before the civil court will also apply to the respondent No.4, mere filling the OS No.125/2020 and 126/2020 the respondent is not entitle to implement the order of respondent No.2 and the learned single judge has over looked the same and dismissed the WP 18606/2024.
- f. The Learned Single Judge failed to appreciate that the appellant herein has filed O.S.No.25493 of 2007 before the Competent Civil Court against one Abdul Rafeeq Ahmed and the said suit came to be decreed by judgment and decree dated 08.02.2008 and therefore, the appellant has established his right in respect of the subject site. Therefore, the learned Single Judge could not have dismissed the writ petition filed by the appellant.
- g. The Learned single judge failed to appreciate the fact that respondent No.2 thasildar dehors the power under Section 192A table 5 of Karnataka Lande Revenue act from the persons who are in possession of land without any title.
- h. The learned single judge has failed to consider that at any rate the thasildar has no jurisdiction to resume the land from the possession of the appellant even if his

17

possession is unlawfull. It is for the title holder to seek appropriate remedies before the civil court to get possession of the land which he is entitled. Therefore, impugned order is liable to be set aside.

- i. The learned single judge has not taken into account the argument placed before the court with regard to the nature of the land has held by the division bench in WP 40157/2014(GM-CPC) that if a property whether it is an agricultural land or a non agricultural land were to come within the ambit of municipal limit/city corporation limits the Karnataka Land Revenue Act cease to operate in respect of such land and hence, the impugned order is illegal and liable to be set aside.
- j. The learned Single Judge failed to take note of the fact that the appellant is not a party to the proceeding before the respondent No.2, Thasildar who has given undertaking before this Hon'ble Court that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing. It is submitted that after disposal of the writ petition, notice is not issued to the Appellant nor opportunity of hearing is given to him and as such the action of the 2nd respondent again implementing the order dated 10.1.2023 is contrary to the law and the same is able to be quashed. Without considering this aspect the learned single judge, has come to the conclusion that order passed by the respondent is

legal and hence, impugned order is not sustainable in law and hence liable to be set aside.

- k. The learned Single Judge, while passing the impugned order made contradictory observation. In one breath the learned Single Judge, observes appellant and other connected Writ petitions filed against the respondent No.4 the matter is of the Civil nature and the petitioner has to establish his right over the suit schedule property, in a manner known to law and where as the in case of the respondent No.4 the learned single Judge beyond the jurisdiction has hold the respondent has purchased the land as per the sale deeds and for the respondent No.4 the establishing the rights over the properties will not apply.
- l. Viewed from every angle, the impugned order of the learned Single Judge suffers from gross errors and legal infirmities and liable to be interfered with by this Hon'ble Court in exercise of its appellate jurisdiction.
- m. The appellants herein seek leave of this Hon'ble court to urge additional grounds at the time of hearing.
- n. The appeal is in time.

PRAYER

WHEREFORE, the Appellant pray that this Hon'ble Court may be pleased to:

- I. Allow the above writ appeal and

- II. Consequently set aside the judgment passed in W.P.No.18606/2024 dated 26.09.2024, and allow the Writ petition No 18606/2024 by Issue a writ in the nature of certiorari and quash the order dated 10.1.2023 passed by the respondent No.2 in ALN(Y)R/10/2022- 23 vide Annexure H, in the interest of justice;
- III. Grant such other order or direction as may be deemed fit in the facts and circumstances of the above case.

LIST OF AUTHORITIES NIL

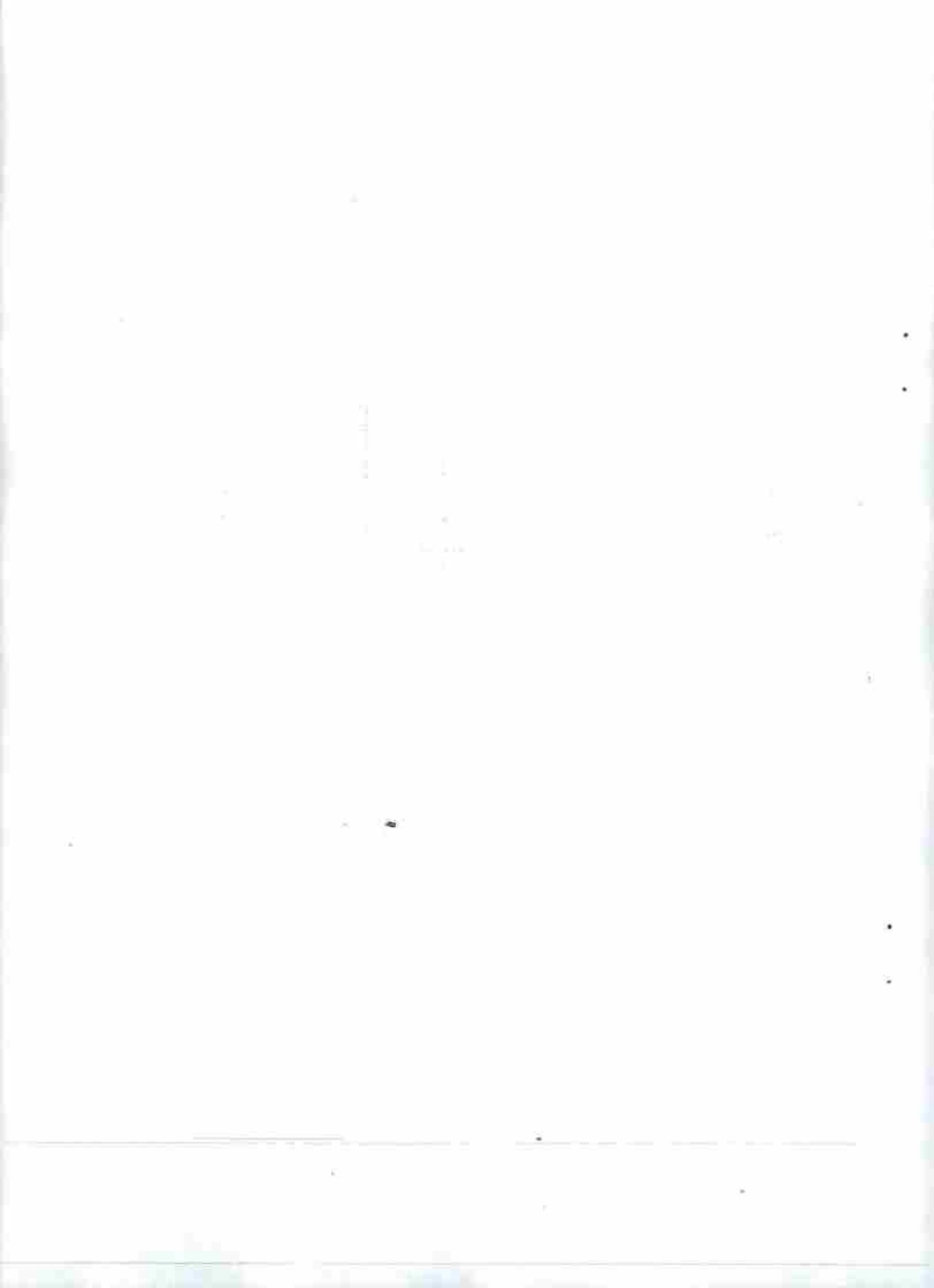
Place: Bengaluru

Date :03.10.2024


Advocate for Appellants
(Shiva Shankar.C)

ADDRESS FOR SERVICE

SRI. C.SHIVA SHANKAR
ADVOCATE
No.3 & 4, 16th Cross,
Akshyanagar,
Bangalore-560016
Ph No: +91 6361300825
Email Id : shankarmbl@gmail.com



44318/24

(90)

munsammy munda

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 26TH DAY OF SEPTEMBER, 2024

BEFORE

THE HON'BLE MR. JUSTICE E.S.INDIRESH

WRIT PETITION NO.13659 OF 2024

C/W

WRIT PETITION NOS.17208 OF 2024, 18606 OF 2024,

19011 OF 2024 & 19012 OF 2024

IN WP NO.13659 OF 2024

BETWEEN

RADHIKA K.B.
W/O MR. P.N. BALAJI
AGED ABOUT 45 YEARS
R/AT NO.NS3/C, 14TH WARD
OFFICIAL COLONY
OPP. KENDRIYA VIDYALAYA
HOSAPETE
KARNATAKA-583 225.

...PETITIONER

(BY SRI. JAYAKUMAR S. PATIL, SENIOR COUNSEL FOR
SRI. VENKATESH MURTHY G.R., ADVOCATE)

AND

1. THE STATE OF KARNATAKA
REVENUE DEPARTMENT
M.S. BUILDING
DR. B.R. AMBEDKAR VEEDHI
BENGALURU-560 001.
REPRESENTED BY ITS SECRETARY.

TAHSILDAR
BENGALURU



This Certified copy contains.....33 pages
And Copying charges with of ₹...97... is
Received

(21)

2

YELAHANKA TALUK
BENGALURU.

3. THE DEPUTY COMMISSIONER
BENGALURU URBAN DISTRICT
KANDAYA BHAVAN
K.G. ROAD
BENGALURU-560 009.
4. AZMATLLA KHAN
S/O IBRAHIM KHAN
AGED MAJOR
KENCHENAHALLI VILLAGE
YELAHANKA HOBLI
YELAHANKA,
BENGALURU.

...RESPONDENTS

(BY SRI. HANMANTHRAY LAGALI, AGA FOR R1 TO R3;
SRI. ABHINAV R., ADVOCATE FOR R4)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH THE
NOTICE DATED 01.08.2023 BEARING NO.ALN(Y)CR/10/2022-23
ISSUED BY THASILDAR WHICH IS PRODUCED THASILDAR
HERETO AS ANNEXURE-A AND ETC.

IN WP NO.17208 OF 2024

BETWEEN:

1. SRI. AZMATH ULLAH KHAN
S/O LATE IBRAHIM KHAN
AGED ABOUT 36 YEARS
C/O NO.295, I MAIN
OPP: VIS CO-OP BANK
BSK 3RD STAGE
BENGALURU-560 085.

G. VENKATARAMANA
BY G.C.K. SOMAYAJI



AGED ABOUT 59 YEARS
NO.295, I MAIN
VIDYAPEETA ROAD
BSK 3RD STAGE
BENGALURU-560 085.

3. UMAVENKAT
W/O G. VENKATARAMANA
AGED ABOUT 56 YEARS
NO.295, I MAIN
VIDYAPEETA ROAD
BSK 3RD STAGE
BENGALURU-560 085.

...PETITIONERS

(BY SRI. D.R. RAVISHANKAR, SENIOR COUNSEL FOR
SRI. SARVANA S., ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REPT. BY ITS PRINCIPAL SECRETARY
REVENUE DEPARTMENT
M.S. BUILDING
DR. B.R. AMBEDKAR VEEDHI
BENGALURU - 560 001.
2. DEPUTY COMMISSIONER BANGALORE URBAN
CAUVERY BHAVAN
K.G. ROAD
BENGALURU-560 009.
3. DEPUTY COMMISSIONER OF POLICE
BENGALURU NORTH
BENGALURU - 560 001.
4. TAHSILDHAR
NES OFFICE ROAD
SUGAPPA LAYOUT
EAST COLONY
KALAHANKA
BENGALURU - 560 064.



5. STATION HOUSE OFFICER
YELAHANKA NEW TOWN POLICE STATION
BENGALURU - 560 064.
6. ASSISTANT COMMISSIONER OF POLICE
YELAHANKA NEW TOWN
BENGALURU-560 064.
7. MRS. LALITHA KUMARI
W/O K.P. PALAKSHA
AGED ABOUT 57 YEARS
R/AT SRIRANGA NILAYA
4TH WARD, TANK ROAD, RAJIPURA
DODDABALLAPURA, BANGALORE RURAL
BENGALURU-561 203.
8. MR. SHIVARAJ M.
S/O MUNINARAYANAPPA
AGED ABOUT 33 YEARS
R/AT FLAT NO.1700/14
C-BLOCK, 27TH CROSS
7TH MAIN, SAHAKARANAGARA
BENGALURU-560 092.
9. SARAVANANA K.
S/O SRI C. KATHIRVEL
AGED ABOUT 48 YEARS
NO.31/A GROUND FLOOR
VASANTHA NILAYAM, 5TH 'A' CROSS
SHANBOUGH LAYOUT
DODDAREKUNDI
BENGALURU - 560 037.
10. MOHAMMED TAZIM RAWAT
S/O MAJOR ATEEQ MOHAMMED
AGED ABOUT 51 YEARS
I FLOOR, MUKUND APARTMENT
PALM GRAND ROAD
VICTORIA LAYOUT
BENGALURU - 560 047.

11. SMT. VEENA H.
W/O LATE NARAGANAPPA.,



AGED ABOUT 36 YEARS
16/7 SESHADRI NILAYA
HALLAPANAHALLI HOSKOTE TALUK
BENGALURU RURAL
BENGALURU-562 114.

12. N. SONNAPPA
S/O LATE NARAGAPPA
AGED ABOUT 66 YEARS
KUNDANA VILLAGE
DEVANAHALLI
BENGALURU RURAL
BENGALURU.
13. P. CHANDRASHEKHAR
S/O LATE PURUSHOTHAM NANDA
AGED ABOUT 47 YEARS
NO.23/1, FLAT NO.E2, 2ND FLOOR
LOTUS HEIGHTS, 3RD MAIN ROAD
SULTAN PALYA MAIN ROAD
NEAR SBI, R.T. NAGAR
BENGALURU - 560 032.
14. MS. GOWHAR UNNISA
D/O SYED ABDUL RAHAMAN
AGED ABOUT 58 YEARS
NO.12-1-2H, T.B. CROSS
T.B. EXTENTION
RAMANAGARAM-562 159.
15. SHAZIA SULTANA
W/O JAVEEDULLA KHAN
AGED ABOUT 41 YEARS
NO.39, DOOR NO.003,
HOSUR ROAD
SENAN TOWN
BENGALURU-560 046.
16. MR. SOHAN LAL JOSHI
S/O LATE DALARAM JOSHI
AGED ABOUT 64 YEARS
AT NO.123, 124
SANNIK VIHAR LAYOUT
KENCHANAHALLI



YELAHANKA NEW TOWN
BENGALURU-560 064.

17. BABY MISHRA
W/O RAJGURU
AGED ABOUT 50 YEARS
R/AT NO.247/217
SAINIK VIHAR 40, KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.
18. THYAGARAJULU
S/O SRI. K. DORAISWAMY NAIDU
AGED ABOUT 60 YEARS
R/AT NO.140, SAINIK VIHAR 40
KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU-560 064.
19. MR. VENKARARATNAM NAIDU
S/O LATE MARAKONDA NAIDU
AGED ABOUT 73 YEARS
R/AT 137, 138,
SAINIK VIHAR 40, KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.
20. P. GEETHA
W/O NEERAJAKSHILU NAIDU
AGED ABOUT 51 YEARS
R/AT NO.107
SAINIK VIHAR 40, KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.
21. R. VANITHA
W/O LATE R. RAVI
AGED ABOUT 50 YEARS
R/AT NO.100, 103
SAINIK VIHAR 40, KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.



22. K. SRIDHAR
S/O K. CHENNIALA NAIDU
AGED ABOUT 58 YEARS
NO.108, 108A
SAINIK VIHAR 40, KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.
23. LINDON JOHSON
S/O JOHN WILSON
AGED ABOUT 50 YEARS
R/AT 143/144
SAINIK VIHAR 40, KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.
24. PURUSHOTHAM NAIDU
S/O LATE PARIJATHAMA
AGED ABOUT 58 YEARS
NO.106, SAINIK VIHAR 40,
KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.
25. R. NAGARAJ
S/O LATE RAMA NAIDU
AGED ABOUT 66 YEARS
NO.105A, SAINIK VIHAR 40,
KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU - 560 064.

RESPONDENTS

(BY SRI. HANMANTHRAY LAGALI, AGA FOR R1 TO R6;
SRI. JAYAKUMAR S PATIL, SENIOR COUNSEL FOR
SRI. VENKATESH MURTHY G.R. ADVOCATE FOR R7 TO R15;
SMT. PRAMILA NESARGI, SENIOR COUNSEL FOR
SRI. MAHESH KUMAR JOSHI, ADVOCATE FOR R16 TO R25)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO DIRECT



THE RESPONDENT NO.4 TO ENSURE STRICT IMPLEMENTATION OF ITS DIRECTION VIDE NO.ALN(Y)R/10/2022-23 DATED 10.01.2023 AND VIDE NO.ALN (Y)R/10/2022-23 DATED 20.01.2023 AS PER ANNEXURE F AND ANNEXURE-G WITH IMMINENT EFFECT IN THE ENDS OF JUSTICE.

IN WP NO.18606 OF 2024

BETWEEN

MR. SOHANLAL JOSHI
S/O LATE DALARAM JOSHI
AGED ABOUT 64 YEARS
R/AT NO.123, 124,
SAINIK VIHAR LAYOUT
KENCHANAHALLI
YELAHANKA NEW TOWN
BENGALURU-560 064.

PETITIONER

(BY SMT. PRAMILA NESARGI, SENIOR COUNSEL FOR
SRI. MUNISWAMY GOWDA S.G., ADVOCATE)

AND

1. THE STATE OF KARNATAKA
DEPARTMENT OF REVENUE
VIDHANA SOUDHA
DR. B.R. AMBEDKAR VEEDHI
BENGALURU - 560 001.
REPRESENTED BY ITS
SECRETARY
2. THE THASILDAR
BANGALORE NORTH TALUK
YELAHANKA UPANAGARA
BENGALURU-560 064.
3. RAMESH
S/O NOT KNOWN TO THE PETITIONER
AGED ABOUT 40 YEARS
WAT A SECTOR



YELAHANKA NEW TOWN
YELAHANKA
BENGALURU-560 064.

4. MR. AZMATH ULLA KHAN
S. IBRAHIM KHAN
AGED ABOUT 43 YEARS
R/AT NO.17/A, H CROSS ROAD
BISMILAH NAGAR
BENGALURU-560 029.

..RESPONDENTS

(BY SRI. HANAMANTH RAY LAGALI, AGA FOR R1 AND R2;
SRI. RAGHAVA PARTHASARTHY AND
SRI VIVEK RAVI PRAKASH, ADVOCATE FOR R3;
SRI. ABHINAV R., ADVOCATE FOR R4)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH THE
ORDER DATED 10.01.2023 PASSED BY THE RESPONDENT NO.2
IN ALN(Y)R/10/2022-23 VIDE ANNEXURE-H AND ETC.

IN WP NO.19011 OF 2024

BETWEEN

MRS. C. PARIMALA
W/O LATE SHIVANNA
D/O LATE CHANNAKRISHNAPPA
AGED ABOUT 39 YEARS
R/AT HOUSE NO.235
6TH MAIN ROAD
SAINIK VIHAR LAYOUT
KENCHANAHALLI, YELAHANKA
BENGALURU-560 064.

...PETITIONER

(BY SRI. SHIVANANDA D.S., ADVOCATE)

AND

1. THE TAHASILDAR
BENGALURU NORTH TALUK
YELAHANKA UPANAGARA
BENGALURU-560 064.



2. AZMATH ULLA KHAN
S/O IBRAHIM KHAN
AGED ABOUT 43 YEARS
R/AT NO.17/A, H CROSS ROAD
BISMILLA NAGAR
BENGALURU-560 029.
3. G. VENKATARAMANA
S/O LATE G.C.K.SOMAYAJI
AGED ABOUT 59 YEARS
R/AT NO.295, "PADMAKALA"
1 MAIN, VIDYAPEETHA ROAD
BSK III STAGE
BENGALURU-560 085.

....RESPONDENTS

(BY SRI. HANAMANTH RAY LAGALI, AGA FOR R1;
SRI. D.R. RAVISHANKAR, SENIOR COUNSEL FOR
SRI. SARAVANA S., ADVOCATE FOR R2 AND R3)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH THE IMPUGNED ORDER DATED 10.01.2023 IN NO.ALN(Y)R/10/2022-23 PASSED BY THE 1ST RESPONDENT AS PER ANNEXURE-G BY ISSUE OF WRIT IN THE NATURE OF CERTIORARI OR ANY OTHER WRIT, ORDER OR DIRECTION AS THE CASE MAY BE.

IN WP NO.19012 OF 2024**BETWEEN**

PRAMOD DHARMAPPA SHOBHA
S/O RAVIKANTH S.S. GOWDA
AGED ABOUT 34 YEARS
R/AT FLAT NO.C106
ARUN PATIOS APARTMENT
KENCHANAHALLI
YELAHANKA
BENGALURU-560 064.

...PETITIONER

(BY SRI. SHIVANANDA D.S., ADVOCATE)



AND

1. THE TAHASILDAR
BENGALURU NORTH TALUK
YELAHANKA UPANAGARA
BENGALURU-560 064.
2. AZMATH ULLA KHAN
S/O IBRAHIM KHAN
AGED ABOUT 43 YEARS
R/AT NO.17/A, H CROSS ROAD
BISMILLA NAGAR
BENGALURU-560 029.
3. G. VENKATARAMANA
S/O LATE G.C.K.SOMAYAJI
AGED ABOUT 59 YEARS
R/AT NO.295, "PADMAKALA"
I MAIN, VIDYAPEETHA ROAD
BSK III STAGE
BENGALURU-560 085.

....RESPONDENTS

(BY SRI. HANAMANTHRAY LAGALI, AGA FOR R1;
SRI. D.R. RAVISHANKAR, SENIOR COUNSEL FOR
SRI. SARAVANA S., ADVOCATE FOR R2 AND R3)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH THE IMPUGNED ORDER DATED 10.01.2023 IN NO.ALN(Y)R/10/2022-23 PASSED BY THE 1ST RESPONDENT AS PER ANNEXURE-J BY ISSUE OF WRIT IN THE NATURE OF CERTIORARI OR ANY OTHER WRIT, ORDER OR DIRECTION AS THE CASE MAY BE.

THESE WRIT PETITIONS HAVING BEEN RESERVED FOR ORDERS, COMING FOR PRONOUNCEMENT THIS DAY, **E.S. INDIRESH J.**, MADE THE FOLLOWING:

CORAM: HON'BLE MR. JUSTICE E.S.INDIRESH

CAV ORDER

(PER: HON'BLE MR. JUSTICE E.S.INDIRESH)



In these writ petitions, since common question of law and facts are involved and further, as the claim made by the parties is identical in nature and as such, by consent of learned counsel appearing for the parties, the writ petitions were heard together and disposed of by this common order.

2. In W.P.No.13659 of 2024, W.P.No.18606 of 2024, W.P.No.19011 of 2024 and W.P.No.19012, the petitioners have challenged the impugned order/notice dated 01.08.2023 and 10.01.2023, respectively, issued by the respondent-Thasildar, Yalahanka Hobli, Bengaluru, wherein, respondent-Thasildar, has ordered to vacate/remove the encroachment of land made by unauthorised residents, under Section 192A of Karnataka Land Revenue Act, 1964, as land in question was being used illegally for non-agriculture purposes. In W.P.No.17208 of 2024, the petitioners sought for implementation of the order dated 10.01.2023 passed by the respondent-Thasildar, Yalahanka Hobli, Bengaluru, being encroached by the persons, illegally and without any semblance of right, title and interest over the schedule land mentioned in the impugned order.

3. In W.P.No.13659 of 2024, it is the contention of the petitioner that, the petitioner has purchased two schedule sites,



from one S.K.Mayiappa as per registered Sale Deeds dated 27.07.2017 and 28.06.2017 (Annexures-C and D) and these two sites are carved out of Sy No.34 of Kenchenahallai Village, Yalahanka Hobli, Bengaluru. It is the case of the petitioner that, the aforementioned schedule sites are situate in a layout named as 'Sainik Vihar Layout'. It is the case of the petitioner that, the respondent No.2 has no jurisdiction to issue impugned notice to the petitioner as the schedule sites are within the jurisdiction of Bruhat Bengaluru Mahanagara Palike (for short, BBMP) and as such, the provisions of Karnataka Land Revenue Act, 1964 are not applicable to the case of the petitioner. Therefore, the petitioner has challenged the notice dated 01.08.2023 (Annexure-A) and the undated notice (Annexure-B) issued by the respondents, contending that the impugned notices issued by the respondent-Thasildar, are not sustainable under law.

4. In W.P.No.17208 of 2024 it is contended by the petitioners that the land bearing Sy.No.33/1 to an extent of 02 acres, 10 guntas and land bearing Sy.No.33/3 to an extent of 02 acres and land bearing Sy.No.33/5 to an extent of 01 acre, 33 guntas, totally an extent of 06 acres, 13 guntas originally belonged to one Mariyappa and the said petitioner No.1 had purchased the aforementioned properties as per the registered



Sale Deeds produced at Annexures-A1, A2 and A3. Petitioner Nos.2 and 3 have purchased the land bearing Sy. No.33/5 to an extent of 01 acre 33 guntas, from petitioner No.1 as per registered Sale Deed dated 20.11.2023 (Annexure-B) and the remaining extent of land bearing Sy. No.33/1, measuring 02 acres, 10 guntas and land bearing Sy.No.33/3 measuring 02 acres, whereby, petitioner No.1 has executed registered General Power of Attorney dated 17.06.2022 in favour of petitioner No.2, authorizing the petitioner No.2 to look after the entire affairs of the land. It is the contention of the petitioners that, the erstwhile owner of the property-Mariyappa died on 14.07.2010. It is stated by the petitioners that, one Saleem has forged General Power of Attorney of late Mariyappa and as such, created dubious sale deed in respect of fifteen persons and they have filed suit in OS No.665 of 2007 and connected suits against the vendor of the petitioners and the said suits came to be dismissed and same has reached finality. It is also stated by the petitioners that, the petitioners have filed O.S.No.125 of 2020 on the file of Trial Court against some of the defendants therein, who are interfering with the peaceful possession of the suit schedule property as per Annexure-E, seeking declaration with consequential relief of injunction. It is further averred in the



petition that, petitioners have brought to the notice of the respondent No.2-jurisdictional Deputy Commissioner, complaining about unauthorised encroachment and as such, the respondent No.2 has issued an order dated 04.01.2022, directing the respondent No.4-Thasildar, to take action against unauthorised encroachment made in respect of the suit schedule properties. In turn, the respondent No.4-Thasildar, has addressed letters to the Joint Commissioner, Yelahanka Sub-Division, respondent No.5-Station House Officer and the Executive Engineer, BESCOM, Yelahanka to provide police protection to remove illegal encroachments made by persons, who have no right or interest over the schedule properties. It is further stated in the petition that, when the order of respondent-revenue authority was sought to be implemented, an association of persons by name "Sainik Vihar Site/House Owners Welfare Association" have filed W.P. No.2074/2023, seeking quashing of the order dated 10.01.2023 (Annexure-F) and this Court, by order dated 23.06.2023, dismissed the petition (Annexure-H). It is further averred in the writ petition that there has been continuous interference by the encroachers and as such, the petitioners have approached respondent Nos.4 and 5 to take action against encroachers and also filed a complaint in NCR



dated 30.05.2024 and an endorsement dated 30.05.2024 was issued by the Sub Inspector of Police stating that the dispute is of civil in nature and directed the petitioner to approach the competent civil court (Annexures-J and K). Feeling aggrieved by the same, the petitioners have presented this writ petition on the ground that the respondent No.4-Thasildar, is not ensuring strict implementation of its order dated 10.01.2023 (Annexure-F) and as such, seeking relief of issuing writ of mandamus to the respondent No.4-Thasildar, to implement the order dated 10.01.2023. In this writ petition impleading applications have been filed by the applicants, claiming to be the members of the aforementioned Society/Welfare Association and the said applications in I.A.2/2024, IA No.3/2024, IA No.4/2024 and IA No.5/2024 are allowed and private respondents are opposing the implementation of the order dated 10.01.2023, impugned in remaining connected writ petitions.

5. In W.P.No.18606 of 2024, petitioner claims to be the owner of the site bearing Nos.123 and 124 carved out in Sy.No.33 (New Sy.No.33/4) of Kenchenahalli Village, Yalahanka Hobli, Bengaluru, having purchased the same as per registered Sale Deed dated 01.02.2006 (Annexure-A). It is the case of the petitioner that, the sites in the same vicinity are sold to Ex-



defense personnel and layout has been formed in the name of 'Sainik Vihar Layout' and these sites are within the jurisdiction of BBMP. It is further stated in the writ petition that, the respondent No.4 herein has filed suit in O.S. No.10 of 2019 against 125 site owners in respect of the Sy Nos.33 and 34 of Kenchenahalli Village and later, the said suit was withdrawn. It is also stated in writ petition that, the petitioner came to know about the impugned notice/order dated 10.01.2023 (Annexure-H) and being aggrieved by the same, the petitioner has presented this writ petition challenging the impugned notice/order 10.01.2023 (Annexure-H) passed by respondent No.2-Thasildar.

6. In W.P.No.19011 of 2024, petitioner contends that the land bearing Sy Nos.33 and 34 of Kenchenahalli Village, Yelahanka Hobli, Bengaluru North Taluk was originally belong to one Gopal Rao and T.S. Venkataram. Thereafter, one S.K. Maiyappa claims to be the owner of aforementioned properties, having purchased the same from said Gopala Rao and T.S. Venkataram. It is further submitted that, site bearing No.22 measuring 30X40 sq.ft., was formed in Sy Nos.33 and 34 of Kenchenahalli Village, Yalahanka Hobli and same was purchased the petitioner from one Mohammed Asif Ali Khan through



registered Sale Deed dated 08.06.2023 (Annexure-A) and the petitioner is in possession of schedule site and constructing house. It is the case of the petitioner that, at the instance of respondent-authorities, JCB is used to demolish the houses constructed in the said layout formed in Sy Nos. 33 and 34 and petitioner is also one among the owners of the site in the layout. Therefore, petitioner has challenged the impugned notice/order dated 10.01.2023 (Annexure-G) issued by the respondent No.1- Thasildar, on the ground that the respondent No.1 has no jurisdiction to issue the impugned notice/order.

7. In W.P.No.19012 of 2024, petitioner claims to be the owner of the site bearing No.235, measuring 30X40 sq.ft., formed in Sy Nos.33 and 34 of Kenchenahalli Village, Yalahanka Hobli, Bengaluru as per registered Sale Deed dated 27.01.2022 (Annexure-A). It is also the case of the petitioner that the petitioner is paying tax to BBMP and is in possession of the schedule site as the petitioner has constructed house in the schedule property. The petitioner came to know about the notice dated 10.01.2023 (Annexure-J) when some miscreants have brought JCB to demolish houses formed in Sy.Nos.33 and 34 of Kenchenahalli Village and feeling aggrieved by the same, the petitioner has presented this writ petition challenging the



impugned notice/order dated 10.01.2023 issued by respondent-
Thasildar.

8. In these set of writ petitions, except W.P.No.17208 of 2024, the petitioners in remaining writ petitions have purchased the respective sites and have built house. In W.P. No.17208 of 2024, the petitioners urging that they have purchased land to an extent of 06 acres, 13 guntas in Sy Nos.33/1, 33/3 and 33/5 from its erstwhile owner-S.K. Mariyappa.

9. I have heard Sri. D.R. Ravishankar, learned Senior Counsel appearing on behalf of Sri. Saravana S., for the petitioners in W.P.No.17208 of 2024 and respondent Nos.2 and 3 in W.P.No.19011 of 2024, and in W.P.No.19012 of 2024; Sri. Jayakumar S. Patil, learned Senior Counsel appearing on behalf of Sri. Venkatesh Murthy G.R, for the petitioner in W.P.No.13659 of 2024 and respondent Nos. 7 to 15 in W.P.No.17208 of 2024; Sri. Abhinav R., learned counsel appearing for the respondent No.4 in W.P.No.13659 of 2024 and in W.P.No.18606 of 2024; Smt. Pramila Nesargi, learned Senior Counsel appearing on behalf of Sri. Muniswamy Gowda S.G. for the petitioner in W.P.No.18806 of 2024 and for respondent Nos. 16 to 25 in



W.P.No.17208 of 2024; Sri. Shivananda D.S., learned counsel appearing for the petitioner in W.P.No.19011 of 2024 and in W.P.No.19012 of 2024; Sri. Raghava Parthasarathy and Sri. Vivek Ravi Prakash, learned counsel appearing for the respondent No.3 in W.P.No.18606 of 2024 and Sri. Hanamanthray Lagali, learned Additional Government Advocate appearing for the respondent-Government.

10. Sri. D.R.Ravishankar, learned Senior Counsel appearing for the petitioners in W.P.No.17208 of 2024 and for the respective respondents in other writ petitions argued that the originally the land bearing Sy Nos.33 and 34 of Kenchenahalli village, Yalahanka Hobli, Bengaluru, belongs to one S.K.Mariyappa, and he died intestate leaving behind his wife and son, namely, Smt. Gowri and Sri. Manoj, who stated to have sold the sites in favour of one Ramlal Sharma. He also argued that one Mohammed Salim, had formed a residential layout, including the sites in question claimed by the petitioners in the remaining writ petitions, illegally. The owners of said sites have filed various suits namely, OS No.665 of 2007 and connected suits and the said suits came to be dismissed on 31.07.2021 on merits (Annexure-D). Referring to paragraphs 53, 54 and 55 of the judgment of the Trial Court passed in OS



No.665 of 2007 and connected suits, learned Senior Counsel argued that, the Trial Court dismissed the suits as the relief of injunction simpliciter is not maintainable and directed the plaintiffs therein to file suit for declaration with consequential relief of injunction. Till Today, the plaintiffs in the said suits claim to be the owners of the sites formed in the schedule property, but have not filed the suit seeking relief of declaration and therefore, he contended that, the writ petitions herein are not maintainable under Article 226 of Constitution of India. It is also the submission of the learned Senior Counsel that, the Trial Court has given a finding at paragraph 59 of its judgment referred to in the above suit that, the plaintiffs have not produced any material relating to their possession in respect of the suit schedule properties and therefore, as the plaintiffs therein, are the petitioners in the remaining writ petitions, cannot maintain the writ petitions, seeking writ of certiorari, challenging the order dated 10.01.2023 passed by respondent- Thasildar. It is also submitted by the learned Senior Counsel that, the petitioners in W.P.No.17208 of 2024, claim right over the suit schedule properties in terms of the registered Sale Deeds produced at Annexure-A and B series and same would establish their ownership in respect of the subject land and as



such, the petitioners in W.P.No.17208 of 2024, have approached this court, seeking implementation of the order dated 10.01.2023 passed by respondent-Thasildar, as the private respondents and the persons claiming through the private respondents in the W.P.No.17208 of 2024 are interfering with the suit schedule properties of the petitioners and therefore, he sought to justify the order dated 10.01.2023 (Annexure-F) in W.P.No.17208 of 2024 passed by the respondent-Thasildar, Yalahanka Hobli, Bangalore Urban District. Referring to the provisions contained under the Karnataka Land Revenue Act, 1964, Sri. D.R.Ravishankar, learned Senior Counsel submitted that, the petitioners have approached the jurisdictional Deputy Commissioner, complaining about unauthorised encroachment in respect of the subject land and pursuant to the same, the Deputy Commissioner by order dated 04.01.2022 directed the Thasildar, to take action against unauthorised encroachment and Thasildar, after conducting enquiry, taken steps to clear unauthorised and illegal encroachment. It is also the submission made by the learned Senior Counsel by referring to Section 96 and 192-A of the Karnataka Land Revenue Act, 1964, that, it is the duty of the State to safeguard the right of the petitioners and their property and therefore, the impugned order dated



10.01.2023 has been passed to curb the infringement of Article 300A of the Constitution of India and therefore, being the Statutory Authorities, it is the duty of the respondent-authorities to safeguard the interest of the petitioners and therefore, seeks writ of mandamus to the respondent No.4-Thasildar, to implement the order dated 10.01.2023 and incidental orders. Emphasising on these aspects, Sri. D.R.Ravishankar, learned Senior Counsel further submitted that the as the petitioners in other connected writ petitions have not established their right in respect of the subject land, and therefore, they cannot maintain the writ petitions as a tool to seek declaration by this court. In this regard, to support his contention, learned Senior Counsel refers to the judgment of the Hon'ble Supreme Court in the case of **Ayaaubkhan Noorkhan Pathan vs. State of Maharashtra and others** reported in **(2013) 4 SCC 465** and argued that, the connected writ petitions are maintainable before this Court, in view of the judgment passed in OS No.665 of 2007 and connected suits.

11. Nextly, it is contended by Sri. D.R.Ravishankar, learned Senior Counsel that, both the petitioners and the contesting private respondents claiming right in respect of the subject land, based on the sale deeds. However, the petitioners



in W.P.No.17208 of 2024 are claiming their right through one Shamsundar R. Bathija, who had purchased the schedule land from S.K. Mariyappa as per registered Sale Deed dated 20.01.1996 and subsequently, the said Shamsundar R.Bathija sold the lands to the petitioners, and as such, the Sale Deeds of the petitioners in W.P.No.17208 of 2024 are much prior to the Sale Deeds referred to by the petitioners in remaining writ petitions and as per law, the registered Sale Deed executed earlier, prevail over the registered Sale Deeds sought to be relied upon by the petitioners in the remaining writ petitions at the later stage and in this regard, he places reliance on the judgment of the Hon'ble Supreme Court in the case of **Umadevi Nambiar vs. Thamarasseri Roman Catholic Diocese represented by its Procurator Devssia's son Rev. Father Joseph Kappil** reported in **(2022) 7 SCC 90** and in the case of **Padhiyar Prahladji Chenaji (deceased) through legal representatives vs. Maniben Jagmalbhai (deceased) through legal representatives and others** reported in **(2022) 12 SCC 128** and accordingly, sought for interference of this Court to issue writ of mandamus to the respondent-authorities to remove the encroachments/illegal interference made by the petitioners in the connected writ petitions.



12. Sri. Jayakumar S. Patil, learned Senior Counsel appearing for the petitioner in W.P.No.13659 of 2024 and respondents in W.P.No.17208 of 2024, argued that, the W.P.No.17208 of 2024 is not maintainable on the ground that, the petitioners therein have filed O.S.No.125 of 2020 and O.S.No.126 of 2020, seeking relief of declaration and same is pending consideration before the Trial Court and as civil disputes are pending consideration before the Trial Court, no writ of mandamus could be issued against the respondent-authority as sought for by the petitioners in W.P.No.17208 of 2024.

13. Nextly, by referring to paragraph 3 of the order dated 23.06.2023 in W.P.No.2074 of 2023, it is contended by Sri. Jayakumar S. Patil, learned Senior Counsel that, this Court has recorded the undertaking given by the learned High Court Government Pleader to implement the order dated 10.01.2023 against the persons who are party to the proceedings before the respondent No.1 (Thasildar) therein and therefore, contended that, on these two counts, the writ petition in W.P.No.17208 of 2024 is not maintainable before this Court and no relief could be granted to the petitioners therein. It is also the submission of the learned Senior Counsel by referring to prayer made in



W.P.No.17208 of 2024 as well as prayer made in the suits referred to above that, as per the provisions contained under Karnataka Town and Country Planning Act, 1961, the revenue authorities have no jurisdiction to interfere with the schedule lands and only the Planning Authority is empowered to set right the things, if the parties are claiming their right in respect of the subject land and therefore, he places reliance on the order of this Court dated 10.12.2021 in W.P.No.40157 of 2014 and argued that, the relief sought for by the petitioners in W.P.No.17208 of 2024 is required to be rejected.

14. It is the submission of Smt. Pramila Nesargi, learned Senior counsel appearing for the petitioner in W.P.No.18606 of 2024 and for respondent Nos.16 to 25 in W.P.No.17208 of 2024 that order dated 10.01.2023 is nonest and the petitioner herein has filed O.S.No.25493 of 2007 before the Competent Civil Court against one Abdul Rafeeq Ahmed and the said suit came to be decreed by judgment and decree dated 08.02.2008 and therefore, the petitioner has established his right in respect of the subject site and accordingly, sought for interference of this Court. In this regard, Sri.D.R.Ravi Shankar, learned Senior Counsel appearing on behalf of respondent No.3 and Sri. Annav R., learned counsel appearing for respondent No.4,



in chorus submitted that, the suit filed by the petitioner in O.S.No.25493 of 2007 seeking permanent injunction and the said decree dated 08.02.2008 is an *ex-parte* decree against one Abdul Rafeeq Ahmed, and as the said suit concluded in the year 2008, however, the schedule property has been sold by Sri.S.K.Mariyappa in favour of Sri.Shamsundar R. Bathija on 20.01.1996 much prior to the purchase of the subject site by the petitioner in W.P.No.18606 of 2024 and therefore the writ petition itself is not maintainable. In addition to this Sri.Abhinav R., learned counsel appearing respondent No.4, by referring to the prayer made in the writ petition submits that the prayer itself is not maintainable seeking writ of mandamus as the matter is of the Civil nature and the petitioner has to establish his right over the suit schedule property, in a manner known to law. In that view of the matter, he has sought for dismissal of the writ petitions.

15. Emphasising on these aspects, Sri. R. Abhinav, learned counsel appearing for the respondent No.4 places reliance on the judgment in the case of **Central Council for Research in Ayurvedic Sciences and another vs. Bikartan Das and others** reported in **2023 SCC Online SC 996** and argued that, the W.P.No.18606 of 2024 is liable to be dismissed



as no ground has been made for interference of this Court to protect the civil rights of the parties.

16. Sri. Hanamanthray Lagali, learned Additional Government Advocate appearing for the respondent-Government sought to justify the impugned notice/order passed by the respondent-Thasildar and accordingly, prays for dismissal of the writ petitions.

17. In the light of the submission made by the learned counsel appearing for the parties, the core question to be answered in these writ petitions is whether the order dated 10.01.2023 passed by the Thasildar, Yelahanka Taluk, is just and proper ? The petitioners in W.P.No.17208 of 2024 urge that, the petitioners therein claiming their right from their erstwhile owner Shamsundar R. Bathija, who had purchased the land in question from S.K.Mariyappa as per registered Sale Deed dated 20.01.1996. It is also the case of the petitioners in W.P.No. 13659 of 2024, W.P.No.18606 of 2024, W.P.No.19011 of 2024 and W.P.No.19012 of 2024 that, they had purchased the schedule property from the same vendor S.K.Mariyappa. It is also forthcoming from the averments made in the writ petitions that, one 'Sainik Vihar Layout' has been formed in Sy Nos.33



and 34 of Kenchenahalli village, Yalahanka Hobli, Bengaluru and from the said housing society, petitioners claim title. It also to be mentioned that, the said 'Sainik Vihar Site/House Owners Welfare Association' has filed W.P.No.2074 of 2023, challenging the order dated 10.01.2023 passed by the Thasildar, Yalahanka Hobli, Bengaluru North Taluk and said writ petition came to be dismissed on 23.06.2023. It is the submission of Sri. Jayakumar S. Patil, learned Senior Counsel appearing for the petitioner in W.P.No.13659 of 2024 that, unless the said order is reviewed or clarified, the relief sought for by the petitioners in W.P.No.17208 of 2024 is not maintainable. In the backdrop of the matter, I have carefully examined the prayer made in the W.P.No.17208 of 2024. The petitioners sought for implementation of the order dated 10.01.2023 passed by the Thasildar, Yalahanka, Bengaluru North Taluk. It is the grievance of the petitioners in W.P.No.17208 of 2024 that, the petitioners in the other writ petitions have filed various suits in OS No.665 of 2007 and connected suits, which came to be dismissed on 31.07.2021. In the judgment passed in the said suits, the Trial Court at paragraphs 53 to 55 had given a finding that, the plaintiffs herein, who are the petitioners in the connected writ petitions have to establish that their sites have been carved out of land



bearing Sy Nos.33 and 34 of Kenchenhalli Village. The Trial Court also given a finding that, the plaintiffs have not established their possession in respect of the subject sites and therefore, dismissed the suits for bare injunction and directed the plaintiffs to file a suit for declaration with consequential relief of injunction. Undisputedly, except the petitioner in W.P.No.17208 of 2024, the petitioners in the remaining writ petitions have not produced any material before this court stating that, they have preferred suit seeking relief of declaration in respect of the subject sites. At this juncture, I am of the view that, arguments advanced by Sri.Jayakumar S. Patil, learned Senior Counsel, with regard to necessity of clarification or review of the order dated 23.06.2023 in W.P.No.2074 of 2023 cannot be accepted on the sole ground that, the writ petition filed by the petitioner therein is dismissed as the petitioner-Society therein has no *locus-standi* to challenge the order dated 10.01.2023 passed by respondent-Thasildar, and also in view of disputed of question of facts and law are involved. On the other hand, the petitioners in W.P.No.17208 of 2024 have filed OS No.10 of 2019, challenging the Sale Deeds executed in favour of the petitioners, who are parties in the other writ petitions and the said suit came to be withdrawn as per order dated 18.01.2020



with liberty to file fresh suit on the same cause of action and same has reached finality. Thereafter, the petitioners in W.P.No.17208 of 2024 have filed suits in OS No.125 of 2020 and OS No. 126 of 2020, seeking relief of declaration and consequential relief of permanent injunction against the defendants therein and the said suits are pending consideration before the Trial Court. Disputed question of facts are involved in these writ petitions, with regard to the relief claimed by the parties. Therefore, it is well settled proposition of law that, when there are disputed question of facts are involved in a case, this Court cannot exercise its jurisdiction under Article 226 of the Constitution of India. In that view of the matter, W.P.No.13659 of 2024, W.P.No.18606 of 2024, W.P.No.19011 of 2024 and W.P.No.19012 of 2024 are liable to be dismissed as the petitioners herein have to establish their right in respect of the subject sites before the competent civil court in terms of the judgment and decree dated 31.07.2021 in OS No.665 of 2007 and connected suits. Hence, I do not find any merit in these writ petitions.

18. Insofar as W.P.No.17208 of 2024, petitioners are the purchasers of the land as per the Sale Deeds produced at Annexures A and B Series. It is also forthcoming from the order



(51)

dated 10.01.2023 passed by the Thasildar, wherein an observation has been made with regard to dismissal of the suits in OS No.665 of 2007 and connected suits and that apart, as the occupants have encroached the portion of land in question and converted the agriculture land to non-agriculture purpose, illegally, and as such, the respondent-Thasildar, rightly taken decision to remove such encroachments after providing fair opportunity of hearing to the parties concerned. Therefore, I am of the view that, in the event, if writ of mandamus is not issued to the respondent-Thasildar to implement the order dated 10.01.2023, the legal right of the petitioners in W.P.No.17208 of 2024 will be jeopardized/infringed. Therefore, I find force in the submission made by the learned Senior Counsel, Sri. D.R.Ravishankar appearing for the petitioners in W.P.No.17208 of 2024. In the result, I pass the following:

ORDER

- i) W.P.No.17208 of 2024 is hereby allowed and Writ of mandamus is issued to respondent No.4- Thasildar, Yalahanka, Bengaluru, to implement the order/notice dated 10.01.2023;
- ii) W.P.No.13659 of 2024, W.P.No.18606 of 2024, W.P.No.19011 of 2024 and W.P.No.19012 of 2024



52

33

are hereby dismissed and liberty is reserved to the petitioners therein to establish their right in respect of the subject land/sites before the competent civil court, in terms of the finding recorded by the Trial Court in OS No.665 of 2007 and connected suits, if so advised.

No order as to costs.

SD/-
(E.S. INDIRESH)
JUDGE

TRUE COPY

n.m. Sadasani 30/9/24

Section Officer
High Court of Karnataka
Bengaluru - 560 001



- The date on which the application was made 16/9/24
- b) The date on which charges and additional Charges if any are called for 27/9/24
- c) The date on which charges and additional Charges if any are deposited/Paid 28/9/24
- d) The date on which the copy is ready 30/9/24
- e) The date of notifying that the copy is ready For delivery 30/9/24
- f) The date on which the applicant is required to appear on or before 4/10/24
- g) The date on which the copy is delivered to the Applicant 7/10/24
- h) Examined by 7/10/24

124
53

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

(Original Jurisdiction)

W.P.No. 18606 /2024 (KLR-RES)

BETWEEN:

Mr.Sohanlal Joshi
Aged about 64 years
S/o.Late Dalaram Joshi
R/at.No.123, 124,
Sainik Vihar Layout,
Kenchanahalli,
Yelahanka New Town
Bengaluru 560 064

Petitioner

AND

1. State of Karnataka
Department of Revenue
Vidhana Soudha
Dr. B.R.Ambedkar Veedhi,
Bangalore 560 001
Rep. by its Secretary
2. The Tahsildar
Bangalore North Taluk,
Yelahanka Upanagara,
Bengaluru 560 064
3. Ramesh
Aged about 40 years
S/o.Not Known to petitioner
R/at.A Sector,
Yelahanka New Town,
Yelahanka,
Begaluru 560 064

54

4. Mr.Azmath Ulla Khan
S/o.Ibrahim Khan
Aged about 43 years
R/at.No.17/A, H Cross Road,
Bismilah Nagar
Bengaluru 560 029

Respondents

**MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 &
227 OF THE CONSTITUTION OF INDIA**

The petitioner most humbly submits as follows:

1. That the petitioner is the owner of the property bearing Site No.123, 124, formed in Sy.No.33, now Sy.No.33/4, situated at Kenchanahalli Village, Yelahanka Hobli, Bangalore, hereinafter referred to as Schedule Property, having purchased the same by virtue of registered sale deed dated 1.2.2006 from its erstwhile owners. The copy of the sale deed is herewith produced as **Annexure-A**. When the schedule property was purchased it was within the jurisdiction of Gantigenahalli Grama Panchayat. The name of the petitioner was entered in the katha records of Gantigenahalli Grama Panchayat. The copy of the tax demand register is herewith produced as **Annexure-B**. The petitioner obtained sanctioned plan from the Gantigenahalli Grama Panchayat and constructed the building in the Schedule Property and has been

55

in possession and enjoyment of the same. The copy of the sanctioned plan is herewith produced as **Annexure-C**. The layout was formed in Sy.No.33 and 34 of Kenchanahalli Village and all the sites were sold and the respective purchasers are in possession of the same. The layout has been fully developed and all the purchasers have put up construction in their respective sites and have been in possession. Since most of the sites were purchased by Ex Defence Personnel, the layout has been named as Sainik Vihar Layout. In the said layout electricity department has given electricity connection, BWSSB has given water and sewage connection and the layout has been developed with all amenities. Now the schedule property comes within the jurisdiction of BBMP, the BBMP has issued katha certificate. The copy of the katha certificate is herewith produced as **Annexure-D**. The copies of the electricity bill, Aadhaar, Voter ID are herewith produced as **Annexure-E, F and G** to show that the petitioner is in possession and enjoyment of the Schedule Property.

2. It is submitted that when this being some land grabbers tried to knock of the entire Sy.No.33 and 34 of Kenchanahalli Village, by harassing the site owners in one or the other way. When this being the 4th respondent herein filed a suit in O.S.No.10/2019 against 125 site owners in respect of Sy.No.33 and 34 of Kenchanahalli Village. Later the said suit was withdrawn. When this being on 23.1.2023 a

member of a press approached the residents of Sy.No.33 and 34 of Kenchanahalli Village and informed that there is a demolition drive. The representatives of the residents of Sainik Vihar approached the 2nd respondent and came to know about the order passed by the 2nd respondent on 10.1.2023 in ALN(Y)R/10/2022-23, which does not reveal the correct address of the respondents 3 and 4. The copy of the order is herewith produced as **Annexure H**. It is submitted that while passing the order dated 10.1.2023, the 2nd respondent has not issued any notice to the owners of the sites in Sy.No.33 and 34 of Kenchanahalli Village.

3. It is submitted that immediately the Sainik Vihar Site/House Owners Welfare Association approached this Hon'ble Court and filed W.P.No.2074/2023 to quash the order dated 10.1.2023 passed by 2nd respondent. This Hon'ble Court considering the urgency in the matter was pleased to stay the order dated 10.1.2023 passed by the 2nd respondent by order dated 30.1.2023. The copy of the interim order dated 30.1.2023 is herewith produced as **Annexure J**. It is submitted that while passing the interim order this Hon'ble Court considered that the impugned order has been passed without issuing notice to the owners and grave injustice will be caused to each of the individual site owners. It is submitted that subsequently when the writ petition came up before this Hon'ble Court, this Hon'ble Court held that the association which filed the writ petition

57

is not the owner of the property and if any person aggrieved by the said order are at liberty to challenge the same and also a submission was made by the HCGP representing the 2nd respondent herein that the impugned order will be implemented only against the persons who are party to the proceedings before the 2nd respondent and not against those who are not a party to the proceedings and also submitted that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing. Based on such submissions and undertaking given by HCGP, the writ petition was dismissed. The copy of the order date 23.6.2023 is herewith produced as **Annexure-K**.

4. It is submitted that the petitioner and other site owners of the layout formed in Sy.No.33 and 34 were in the impression that as per the undertaking given by the 2nd respondent before this Hon'ble Court, notice will be given to them before taking any action. When this being on 9.7.2024 the association members received a message that the 2nd respondent has given a letter to the police to give protection to vacate the entire Sy.No.33 and 34 as it is an unauthorized layout. Immediately the representatives of the association have obtained a copy of the letter dated 5.7.2024 written by the 2nd respondent to the police to give protection to vacate the occupants of sy.No.33 and 34. The same has been

58

forwarded to all the residents by the association. The copy of the same is herewith produced as **Annexure-L**. On receiving the said letter the petitioner came to know that the respondent No.2 in collusion with respondents 3 and 4 who have no right, title or interest over the property is trying to demolish the entire Buildings in Sy.No.33 and 34 and handover vacant possession to respondent No.4. The photographs of the layout and the schedule property are herewith produced as **Annexure M**. It is submitted that actually the schedule property is in Sy.No.33/4, but illegally the revenue authorities have been showing the schedule property in Sy.No.33/5 and trying to evict/vacate the petitioner from schedule property.

5. It is submitted that the impugned order passed by the 2nd respondent is against the principles of natural justice and against law. The 3rd respondent who has approached the 2nd respondent has got nothing to do with the said property and that to against the 4th respondent who is not even in possession of any portion of Sy.No.33 and 34 of Kenchanahalli Village. It is submitted that no notice was issued to the petitioner before passing the impugned order. The petitioner is aggrieved by the act of the 1st respondent as per impugned order vide Annexure H and having no other alternative efficacious remedy, the petitioner is presenting this writ petition amongst following grounds. The petitioner has not filed any

other petition before this court or any other court on the same cause of action.

GROUND

6. That the order passed by the 2nd respondent vide Annexure H, is contrary to the law and materials on record and is an illegal exercise of jurisdiction vested in it and hence the same is liable to be set-aside.
7. It is submitted that the 2nd respondent has passed the impugned order without application of mind and without following the due procedure and the same is arbitrary and against to the principles of natural justice, hence liable to be quashed.
8. It is submitted that while passing the impugned order dated 10.1.2023, no notice was issued to the petitioner nor he was impleaded as a party to the said proceedings and as such it suffers from non-joinder of parties and hence liable to be quashed.
9. It is submitted that earlier when the writ petition was filed before this Hon'ble Court, a clear undertaking was given by the 2nd respondent that the impugned order will be implemented only against the persons who are parties to the proceedings and not

against those who are not a party to the proceedings before the 2nd respondent and now in utter violation of the undertaking given before this Hon'ble Court the 2nd respondent again trying to implement the same order against the persons who are not parties to the proceedings before him by taking the help of police.

10. It is submitted that even after disposal of the writ petition, no notice was issued by the 2nd respondent to the petitioner nor heard him.
11. It is submitted that further undertaking was given by the 2nd respondent before this Hon'ble Court that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing. It is submitted that after disposal of the writ petition, notice is not issued to the petitioner nor opportunity of hearing is given to him and as such the action of the 2nd respondent again implementing the order dated 10.1.2023 is contrary to the law and the same is liable to be quashed.
12. It is submitted that the 2nd respondent never visited the spot nor made any enquiries with regard to the persons in possession of Sy.No.33 and 34 of Kenchanahalli Village.

13. It is submitted that the BBMP has been collecting the taxes from the date the schedule property came within the jurisdiction of BBMP.
14. It is submitted that the entire property bearing Sy.No.33 and 34 has been developed and the purchasers are in possession of the same. Neither the 3rd respondent nor the 4th respondent is in possession of any portion of Sy.No.33 and 34 of Kenchanahalli Village.
15. It is submitted that the 2nd respondent has failed to consider that the property bearing Sy.No.33 and 34 of Kenchanahalli Village is a private land and not a Government Land. The 2nd respondent in collusion with 3rd and 4th respondents has been illegally helping them to take possession of the entire land by throwing the site owners out of the property forcibly.
16. It is submitted that the petitioner is living in the schedule property from the year 2006 by constructing the building and if he is evicted or the building is demolished the entire family of the petitioner will come to streets and they will be homeless.
17. It is submitted that the action of the 2nd respondent is nothing but a process of forceful eviction by taking law into their hands to help the 4th respondent.

18. Hence, from the above stated facts viewed from any angle the order of the 2nd respondent is erroneous, an illegal exercise of jurisdiction vested in it and is contrary to law and facts and hence liable to be quashed.

GROUND FOR INTERIM PRAYER

19. The petitioner is the owner of the schedule property and has been in possession and enjoyment from the year 2006. The 2nd respondent in collusion with the respondents 3 and 4 has passed the impugned order dated 10.1.2023. It is submitted that no notice was issued to the petitioner before passing the impugned order nor he was heard. In violation of the undertaking given before this Hon'ble Court, the 2nd respondent is again trying to implement the impugned order to harass the petitioner and other occupants with the help of the police. If the interim stay as prayed is not granted, the petitioner will be put to irreparable injury and hardship. On the other hand no prejudice will be caused to the respondents.

PRAYER

WHEREFORE it is prayed that this Hon'ble Court be pleased to:

63

- a) Issue a writ in the nature of certiorari and quash the order dated 10.1.2023 passed by the respondent No.2 in ALN(Y)R/10/2022-23 vide Annexure H.
- b) Issue a writ in the nature of Mandamus directing the 2nd respondent not to evict/demolish the existing building in the schedule property.
- c) Grant such other relief or consequential relief as this Hon'ble Court deems fit in the facts and circumstances of the case in the interest of justice and equity.

INTERIM PRAYER

Wherefore pending disposal of the above writ petition, stay the order dated 10.1.2023 passed by the respondent No.2 in ALN(Y)R/10/2022-23, and all further actions pursuant to the said order, in the interest of justice and equity.

SCHEDULE

All that piece and parcel of the residential house in site bearing Nos.123 and 124, Sainik Vihar Layout, Kenchanahalli Village, Yelahanka New Town, Bangalore 560064 measuring east to West 60 feet and north to south 40 feet and bounded on :

26
(64)

East by : Site No.125
West by : Main Road
North by : Site No.122 and 121
South by : 30 Feet Road

Bangalore
Dated:

Advocate for Petitioner
(S.G.Muniswamy Gowda)

Address for Service:

S.G.Muniswamy Gowda,
Advocate,
No.844-A, 2nd Floor,
100 Feet Road, Indiranagar,
Bangalore 560 038

65

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P.No. /2024

BETWEEN:

Mr.Sohanlal Joshi

Petitioner

AND

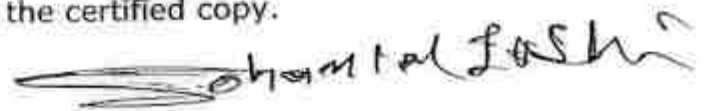
State of Karnataka and ors

Respondents

VERIFYING AFFIDAVIT

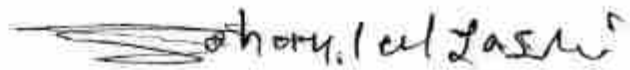
I, Sohanlal Joshi, aged about 64 years, S/o.Late Dalaram Joshi, R/at.No.123, 124, Sainik Vihar Layout, Kenchanahalli, Yelahanka New Town, Bengaluru 560 064, do hereby solemnly affirm and state on oath as follows:

1. I submit that I am the petitioner in the above petition and am well conversant with the facts and circumstances of the case. Hence I depose accordingly.
2. I submit that the averments made from para 1 to 19 of the accompanying application is true and correct to the best of my knowledge, information and belief.
3. I submit that the Annexures 'A' to 'G', 'J' to 'M' are true copies of the originals and Annexure 'H' is the certified copy.

 Sohanlal Joshi

(66)

I, the deponent above name hereby verify and declare that this is my name and signature and the contents of the affidavit are true to the best of my knowledge, information and belief.

 Shory Lal Lash

Deponent

Identified by me



Advocate
Bangalore

Dated:

No. of Corrections

ಈ ದಸ್ತಾವೇಜು ಹಾಗೆಯನ್ನು ಕರ್ನಾಟಕ ಸರ್ಕಾರದ
ಆದೇಶ ಸಂಖ್ಯೆ ಕರ್ 152 ಮುನ್ಸೀಮು 2003
ದಿನಾಂಕ 09-05-2003 ರಲ್ಲಿ ಕಾರ್ಯ ಮುದ್ರಿಸಲಾಗಿದೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ದಸ್ತಾವೇಜು ಹಾಳೆ
Document Sheet



ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ಬೆಲೆ: ರೂ. 2/-

ಈ ಹಾಳೆಯನ್ನು ಯಾವುದೇ ದಸ್ತಾವೇಜಿಗೆ ಉಪಯೋಗಿಸಬಹುದು.
This sheet can be used for any document

ದಸ್ತಾವೇಜನ್ನು ಬರೆದದ್ದಿನ ದಿನಾಂಕ
Date of execution

ಪಾವತಿಸಿದ ಒಟ್ಟು ಮುದ್ರಾಂಕ ನುಣ್ಣು ರೂ.
Total stamp duty paid Rs.

BNC T YLNC/12067 2005 2006 1-10
ABSOLUTE SALE DEED

THIS DEED OF ABSOLUTE SALE is made and executed on this the 1st
day of February, Two Thousand and Six (01-02-2006) at Bangalore BY:-

1. SMT. GOWRI,
W/o. Late S.K. Mariyappa,
Aged about 52 years,
2. SRI. MANOJ,
S/o. Late S.K. Mariyappa,
Aged about 32 years,

Both are Residing at : No.10,
4th Cross, 11th Main, 4th Stage,
Vijayanagar, Bangalore - 40.

REPRESENTED BY HIS GPA HOLDER :

SRI. MOHAMMED SALEEM,
S/o. Late Mohammed Fakruddin,
Aged about 34 years,
Residing at : No. 62,
2nd Cross, Kavalbyrasandra,
R.T. Nagar Post,
Bangalore - 32.

HEREINAFTER BE REFERRED TO AS THE "VENDOR" (which expression, unless
repugnant to the context shall mean and include his heirs, legal representatives,
administrators, successors, executors, assignees etc.,) of the **ONE PART :**

Mohamed Saleem

Mohamed Saleem 2/-



(68)

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರ ಕರ್ನಾಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ Sri.Sohanlal Joshi . ಇವರು 29900.00 ರೂಪಾಯಿಗಳನ್ನು ನಿಗದಿತ ಮುದ್ರಾಂಕ ಶುಲ್ಕವಾಗಿ ಪಾವತಿಸಿರುವುದನ್ನು
ದೃಢೀಕರಿಸಲಾಗಿದೆ

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಹಣದ ಪಾವತಿಯ ವಿವರ
ಇತರ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	29900.00	DD.No.096459, dt 31/01/2006, drawn on Syndicate Bank CAO Bangalore
ಒಟ್ಟು :	29900.00	

ಸ್ಥಳ : ಯಾಲಹಂಕಿ

ದಿನಾಂಕ : 01/02/2006

ಉಪ-ನೋಂದಣಿ ಮತ್ತು ಯುಕ್ತ ಅಧಿಕಾರಿ
ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
(ಯಾಲಹಂಕಿ)
ಯಾಲಹಂಕಿ, ಬೆಂಗಳೂರು.

ಈ ದಸ್ತಾವೇಜು ಹಾಕೆಯನ್ನು ಕರ್ನಾಟಕ ಸರ್ಕಾರದ
ಆದೇಶ ಸಂಖ್ಯೆ ಕರ್ 152 ಮುನ್ಸೀಫಮು 2003
ದಿನಾಂಕ 09-05-2003ರ ಪ್ರಕಾರ ಮುದ್ರಿಸಲಾಗಿದೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ದಸ್ತಾವೇಜು ಹಾಕೆ
Document Sheet



ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ಬೆಲೆ: ರೂ. 2/-

ಈ ಹಾಕೆಯನ್ನು ಯಾವುದೇ ದಸ್ತಾವೇಜಿಗೆ ಉಪಯೋಗಿಸಬಹುದು
This sheet can be used for any document

ದಸ್ತಾವೇಜನ್ನು ಪರಿಷ್ಕರಿಸಿದ ದಿನಾಂಕ
Date of execution

ಪಾವತಿಸಿದ ಒಟ್ಟು ಮುದ್ರಾಂಕ ಮೊತ್ತ ರೂ.
Total stamp duty paid Rs.

BNC U YLNK/12067 2005 2006 3-10

IN FAVOUR OF:-

SRI. SOHANLAL JOSHI,
S/o. Late Dalaramji Joshi,
Aged about 49 years,
Residing at: No. F-90,
2nd Floor, O.T.C. Road,
Nagarthpet,
Bangalore - 560 002.

HEREINAFTER BE REFERRED TO AS "**PURCHASER**" (which expression, unless repugnant to the context, shall mean and include his heirs, legal representatives, administrators, successors, executors, assignees etc.,) of the **OTHER PART,**

WITNESSETH:-

WHEREAS the Vendor above-named is the sole and absolute owner in possession and enjoyment of the immovable Property being a Residential Site bearing Nos.123 and 124, in V.P. Khatha No.33/123,124, situated at Kenchenahalli Village, Yelahanka Hobli, Bangalore North Taluk, which is morefully and particularly described in the schedule hereunder and hereinafter called the "**SCHEDULE PROPERTY**" and the same is the self acquired property of the Vendor having acquired the same through a Notary G.P.A. dated 20-06-1999, executed by Sri. Mohammed Saleem. Eversince from the date of acquisition the Vendor is in peaceful possession and enjoyment of the same thereof without any let or hindrance from any quarter whatsoever and has paid upto date taxes, cesses, etc., in respect of the Schedule Property.

Mohamed Saleem

Sohanlal Joshi

...3/-



70

70

YLNK/

12067

2005 2006

H-10

Print Date & Time : 01-02-2006 12:54:59 PM

ರಾಷ್ಟ್ರವೇಷ ಸಂಖ್ಯೆ : 12067

ಸಹಿ ರಜಸ್ವಾ ರ ಯಲಹಂಕ ರವರ ತಪ್ಪೇರಿಯಲ್ಲಿ ದಿನಾಂಕ 01-02-2006 ರಂದು 12:48:55 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ ಘಟನೆಯಾಗಿ

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ವೆ.
1	ನೋಂದಣಿ ಶುಲ್ಕ	3300.00
2	ಪ್ಯಾಶ್‌ಪೋಟ್ ಶುಲ್ಕ	300.00
	ಒಟ್ಟು :	3600.00

ಶ್ರೀ Sri.Sohanlal Joshi ಇವರಿಂದ ಹಾಜರಾದ ಮೊದಲಬ್ಬರು

ಹೆಸರು	ಫೋಟೋ	ಹೆಚ್ಚಿಟ್ಟುಕೊಂಡ ಗುರುತು	ಸಹಿ
ಶ್ರೀ Sri.Sohanlal Joshi			Sohanlal Joshi

Cella

ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಯಲಹಂಕ, ಬೆಂಗಳೂರು.

ಬಲೆದುಕೊಳ್ಳಲ್ಪಟ್ಟು ಒಪ್ಪಿರುವುದಾರೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಫೋಟೋ	ಹೆಚ್ಚಿಟ್ಟುಕೊಂಡ ಗುರುತು	ಸಹಿ
1	Sri.Sohanlal Joshi (ಬಲೆದುಕೊಂಡವರು)			Sohanlal Joshi
2	Smt.Gowri and Manoj rep by their GPA Holder Mohammed Saleem . (ಬಲೆದುಕೊಂಡವರು)			Mohamed Saleem

Cella

ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಯಲಹಂಕ, ಬೆಂಗಳೂರು.

41

ಈ ದಾಖಲೆಯು ಹಾಳೆಯನ್ನು ಕರ್ನಾಟಕ ಸರ್ಕಾರದ
ಅಧೀನ ಸಂಖ್ಯೆ 152 ನಿಯೋಮು 2003
ದಿನಾಂಕ 09-05-2003ರ ಪ್ರಕಾರ ಮುದ್ರಿಸಲಾಗಿದೆ

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ದಾಖಲೆಯ ಹಾಳೆ
Document Sheet



ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ಬೆಲೆ : ರೂ. 2/-

ಈ ಹಾಳೆಯನ್ನು ಯಾವುದೇ ದಾಖಲೆಗೆ ಉಪಯೋಗಿಸಬಹುದು
This sheet can be used for any document

ದಾಖಲೆಯನ್ನು ಉಪಯೋಗಿಸಿದ ದಿನಾಂಕ
Date of execution

ಪಾವತಿಸಿದ ಒಟ್ಟು ಮುದ್ರಾಂಕ ಮೊತ್ತ ರೂ.
Total stamp duty paid Rs.

2 T YLNK/12067 2005 2006 5-10

AND WHEREAS there is no impediment to the Vendor herein to alienate the afore-said property in any manner, as such the Vendor herein, as the absolute owner, to meet his legal neccessities and in order to put the sale proceeds for better investment has negotiated with the Purchaser above-named for sale of the schedule property with vacant physical possession free from all encumbrances, liens, demands charges, clogs, lispendens, tenancy claims, court attachments or claims of any kind whatsoever for a total sale consideration of Rs.3,30,000/- (Rupees Three Lakhs Thirty Thousand Only).

AND WHEREAS the Purchaser on the faith and assurances of the Vendor that the Schedule property is free from all encumbrance of whatsoever description has agreed to purchase the schedule property for the said sale consideration of Rs.3,30,000/- (Rupees Three Lakhs Thirty Thousand Only).

NOW THIS DEED OF ABSOLUTE SALE WITNESSETH AS FOLLOWS:

1. And whereas in pursuance of the Sale Agreement the Purchaser has paid the entire sale consideration amount of Rs.3,30,000/- (Rupees Three Lakhs Thirty Thousand Only) by way of CASH to the Vendor, in presence of herebelow attested witnesses.

Mohamed Saleem

Sohanlal Jha ...4/-

72

ಗುರ್ತಿನಲ್ಲಿದ್ದವರು

BNC 'U' YLNC/ 12067 2005 2006 6-10

ಕ್ರಮ ಸಂಖ್ಯೆ	ನಗರ ಮತ್ತು ವಿಳಾಸ	ಹೆಸರು
1	Nimola No.4, A Sector, Yelahanka New town, Bangalore	Nimola
2	Subramanaya No.145, Gurusaravboma Nagar, III Layout, Nayandahalli, Bangalore	Subramanaya

ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಯಲಹಂಕ, ಬೆಂಗಳೂರು.

1 ನೇ ಪುಟದ ರಚನೆಯು ಮೊದಲ YAN-1-12067-2005-06 ಅಗ ಎ.ಡಿ. ಮೊದಲ YAND167 ನೇ ಪುಟದಲ್ಲಿ ದಿನಾಂಕ 01-02-2006 ರಂದು ಸೇರಿಸಲಾಗಿದೆ ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು (ಯಲಹಂಕ)	
---	--

Designed and Developed by C-DAC, Bangalore

ಗಂಗಾಪ್ರಸಾದ್,
ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಯಲಹಂಕ, ಬೆಂಗಳೂರು.

ಈ ದಾಖಲೆಯು ಹಾಕಿಯನ್ನು ಕರ್ನಾಟಕ ಸರ್ಕಾರದ
ಅಧೀನ ಸಂಖ್ಯೆ ಕಂ. 152 ಮುನ್ಸೀಮು 2003
ದಿನಾಂಕ 09-05-2003ರಲ್ಲಿ ಕಾರ್ಯಮುಕ್ತವಾಗಿದೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ದಾಖಲಾತಿ ಪತ್ರ
Document Sheet



ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ಬೆಲೆ: ರೂ. 2/-

ಈ ಹಾಕಿಯನ್ನು ಯಾವುದೇ ದಾಖಲೆಗೆ ಉಪಯೋಗಿಸಬಹುದು
This sheet can be used for any document

ದಾಖಲೆಯನ್ನು ನಿರ್ದೇಶಿಸಿದ ದಿನಾಂಕ
Date of execution.

ಪಾವತಿಸಿದ ಒಟ್ಟು ಮುದ್ರಾಂಕ ಶುಲ್ಕ ರೂ.
Total stamp duty paid Rs.

BNC U YLNK/ 12067 2005 2006 7-10

2. Thus, the Vendor acknowledges the receipt of the full sale consideration of **Rs.3,30,000/-** (Rupees Three Lakhs Thirty Thousand Only) in presence of herebelow attested witnesses, in full final settlement of the sale consideration and the Vendor hereby sells, transfers all her right, title and interest in the said property and set-over the vacant possession of the schedule property to the Purchaser as Absolute Owner from hereon and forever.
3. The Vendor herein do hereby admits, acknowledges the receipt of the entire sale consideration in full and final settlement of the same and discharges the Purchaser of any liability towards the sale consideration of this contained herein.
4. The Vendor as absolute owner of the Schedule Property do hereby sells, transfers and assigns absolutely and forever UNTO and TO THE bonafide use and necessities of the Purchaser herein the Schedule Property with all the rights, liberties, privileges, benefits belonging to or usually held or attached to the Schedule Property TO HAVE, TO HOLD and TO ENJOY the Schedule Property by the Purchaser as Owner thereof from this day onwards FREE from all encumbrances with no let or hindrance from the Vendor or his predecessors-in-title immediate or remote or from any person or persons claiming through or under his or in trust for his or claiming any legal title thereto.

Mohamed Saleem

Mohamed Saleem

...5/-

74

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಆದೇಶ ಸಂಖ್ಯೆ 152 ಮುಂದೂಡು 2003
ದಿನಾಂಕ 09-05-2003ರ ಪ್ರಕಾರ ಮುದ್ರಿಸಲಾಗಿದೆ



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ದಾಖಲೆಮಾಹಿತಿ
Document Sheet

ಪೀಠೆ: ರೂ. 2/-

ಈ ಹಾಳೆಯನ್ನು ಯಾವುದೇ ದಾಖಲೆಗೆ ಉಪಯೋಗಿಸಬಹುದು
This sheet can be used for any document

ದಾಖಲೆಮಾಡುವ ದಿನಾಂಕ
Date of execution

ಪಾವತಿಸಿದ ಒಟ್ಟು ಮುದ್ರಾಂಕ ಶುಲ್ಕ ರೂ.
Total stamp duty paid Rs.

313 U, YLNK/ 512067 2005 2006 8-10

- The Vendor covenants with the Purchaser that he is entitled to lawfully convey the Schedule Property and that he has not done or been a party to any act or deed whereby she is prevented from conveying the Schedule Property or any part thereof in the manner herein appearing. The Purchaser herein is entitled to enter INTO and UPON the Schedule property and fully utilise the same for his bonafide use and necessities and derive profits thereof without any let or hindrance from the Vendor or any person or persons claiming through or under his or in trust for his.
- The Vendor further covenants with the Purchaser that he has not entered into any prior agreement of sale or alienated the Schedule Property hereby conveyed by way of Sale or Mortgage or otherwise to any third party or parties or is subject matter of any WILL or LAST TESTAMENT, TENANCY CLAIMS or COURT ATTACHMENTS under any legal proceedings and or has been offered as COLLATERAL SECURITY or SURETY and there are absolutely no claims, charges or otherwise on the Schedule Property.
- The Vendor covenants with the Purchaser that he will always REIMBURSE and INDEMNIFY the Purchaser, his heirs, successors or assigns against all losses and expenses incurred and damages sustained on account of any encumbrances claims, charges, demands, clogs, litigations, court attachments, hindrances, taxes, cesses, levies and interruptions of whatsoever kind and from whomsoever or on account of any defects in title, latent or patent which the Purchaser could otherwise discover in respect of the Schedule Property hereby conveyed.

Mohamed Saleem

Signature of the Purchaser

...6/-

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ದಿನಾಂಕ 09-03-2003ರ ಪ್ರಕಾರ ಮುಕ್ತಾಯಗೊಂಡಿದೆ.



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ದಸ್ತಾವೇಜು ಹಾಕು
Document Sheet

ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ಬೆಲೆ: ರೂ. 2/-

ಈ ಹಾಕೆಯನ್ನು ಯಾವುದೇ ದಸ್ತಾವೇಜಿಗೆ ಉಪಯೋಗಿಸಬಹುದು
This sheet can be used for any document

ದಸ್ತಾವೇಜನ್ನು ಬರೆದುಕೊಟ್ಟ ದಿನಾಂಕ
Date of execution

ಪಾವತಿಸಿದ ಒಟ್ಟು ಮುದ್ರಾಂಕ ಶುಲ್ಕ ರೂ.
Total stamp duty paid Rs.

BNC U) YLNK/ 12067 2005 2006 9-10

8. The Vendor further covenant with the Purchaser that he will always and at all reasonable time or times and upon any reasonable request execute every such lawful acts, deeds and things as shall or may be reasonably required for further and more perfectly assuring the title of the schedule property to the Purchaser herein.
9. The Vendor herein has this day handed over the physical possession of the Schedule Property to the Purchaser herein together with available original documents of the schedule property. The Purchaser too hereby confirms having taken the original documents pertaining to the title and physical vacant possession of the Schedule Property.

SCHEDULE PROPERTY HEREINABOVE REFERRED

ALL THAT PIECE AND PARCEL of Residential Vacant Site bearing Nos.123 and 124, in V.P. Khatha No.33/123,124, situated at Kenchenahalli Village, Yelahanka Hobli, Bangalore North Taluk, measuring East to West :: 60-0 Feet, North to South :: 40-0 Feet, Totally 2400 Sq.ft. and bounded on :-

East by	::	Site No. 125,
West by	::	Main Road,
North by	::	Site No. 122 & 121,
South by	::	30 Feet Road.

Mohamed Saleem

...7/-
Shanila/2006

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಆದೇಶ ಸಂಖ್ಯೆ ೧೨-೧೨-೨೦೦೩
ದಿನಾಂಕ ೦೯-೦೯-೨೦೦೩ರಲ್ಲಿ ಜಾರಿ ಮಾಡಲಾಗಿದೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ದಾಖಲೆ ಹಾಕಿ
Document Sheet



ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Registration and Stamps Department

ಬೆಲೆ: ರೂ. 2/-

76

ಈ ಹಾಳೆಯನ್ನು ಯಾವುದೇ ದಾಖಲೆಗೆ ಉಪಯೋಗಿಸಬಹುದು
This sheet can be used for any document

ದಾಖಲೆಯನ್ನು ಬರೆದ ದಿನಾಂಕ
Date of execution

ಒಟ್ಟು ಮುದ್ರಾಂಕ ಶುಲ್ಕ ರೂ.
Total stamp duty paid Rs.

BNC U, YLNK/12067 2005 2006/0-10

The Present Market value of the Schedule Property is Rs. 3,30,000/-
(Rupees Three Lakhs Thirty Thousand Only).

IN WITNESS WHEREOF the Vendor herein has set her hand and
appended her signature to this DEED OF ABSOLUTE SALE on the day, month
and year first hereinabove mentioned in the presence of the herebelow attested
witnesses.

WITNESSES:

1) Nimmala
NO. 4, A-Section
YNT. B'ave-64.

Mohamed Saleem
VENDOR

REPRESENTED BY GPA HOLDER

Shanival Lohi

PURCHASER

2) Subramanyam
(Subramanya)
NO. 145, C/O. Visayakumar.
Guru Shanabouma nagar.
ITI layout, Neysan Saheli
Mysore Road, B'ave-39.

DRAFTED BY
SHRINIVASA HANDE H. S.
DWL No. 1/94-55 B'ave.



$$2.25 \times 10^{-12} \text{ (meters}^3\text{)}$$

ಸಹಜವಲ್ಲ ನಿರ್ಧರಿಸಲಾಗಿರುತ್ತದೆ.

ವೆರಿಗನಳ ಟೇಡಿನ್ (ದಿಮ್ಯಾರಿನ್) ರೀಜಿಸ್ಟರ್

[illegible][illegible]

(79)

ನಮೂನೆ 12 ನಿಯಮ 45 (1)

ತೆರಿಗೆ ನಿರ್ಧರಣಾಪಟ್ಟಿ

ಗ್ರಾಮ : ಕೆಂಚೇನಹಳ್ಳಿ

2006-07 ನೇ ಸಾಲಿನಲ್ಲಿ ನಿರ್ಧರಿಸಲಾಗಿರುವ ತೆರಿಗೆಗಳ ಬೇಡಿಕೆ (ಡಿಮ್ಯಾಂಡ್)
ರಜಿಸ್ಟರ್

ಗಂಟಗಾನಳ್ಳಿ ಗ್ರಾಮ ಪಂಚಾಯತಿ ಬೆಂ.ಉ. ತಾಲ್ಲೂಕು ಬೆಂ ನಗರ ಜಿಲ್ಲೆ

ಕ್ರ. ಸಂ.	ನಿರ್ಧರಣಾ ಸಂಖ್ಯೆ	ಮಾಲೀಕ ಅಥವಾ ಅನುಭವದಾರರ ಹೆಸರು	ಭೂಮಿತೆರಿಗೆ	ಭೂಮಿತೆರಿಗೆ
	123	ಸೋಹನ್ ಲಾಲ್ ಜೋಶಿ		334-00
	&	ಲೇ: ದಲಾರಾಂ ಜಿ ಜೋಶಿ		103-00
	124			437-00

ನಕಲು

ಸಹಿ/-

ಕಾರ್ಯದರ್ಶಿ

ಗಂಟಗಾನಳ್ಳಿ ಗ್ರಾಮ ಪಂಚಾಯತಿ

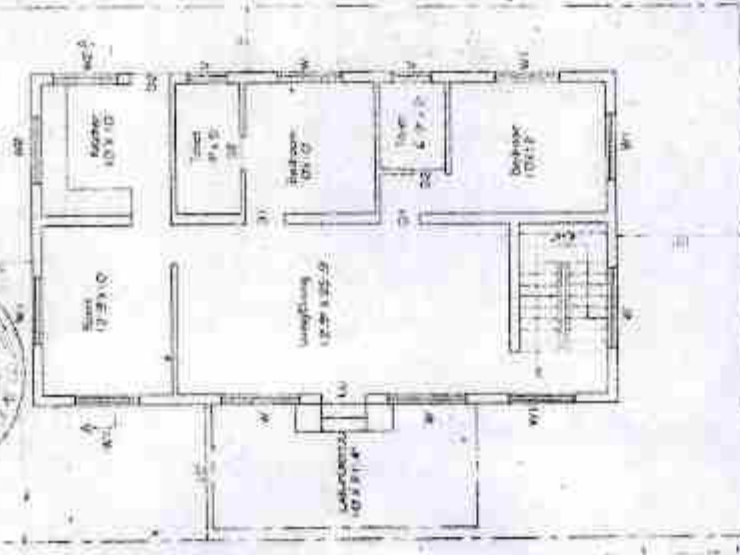
ಯಲಹಂಕ ಹೋಬಳಿ

ಬೆಂಗಳೂರು ಉಪ ತಾಲ್ಲೂಕು

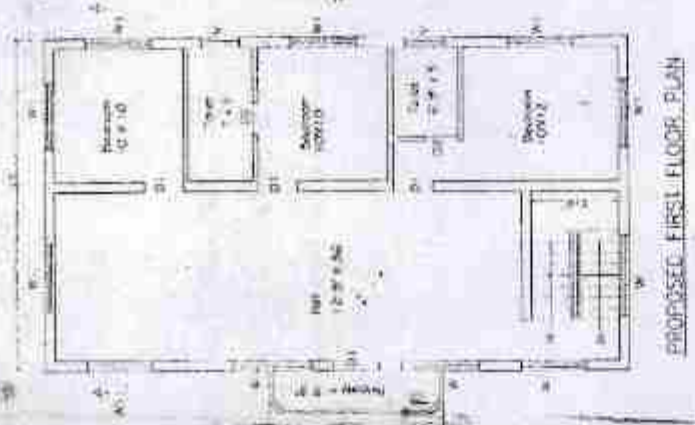
80 Annexure C



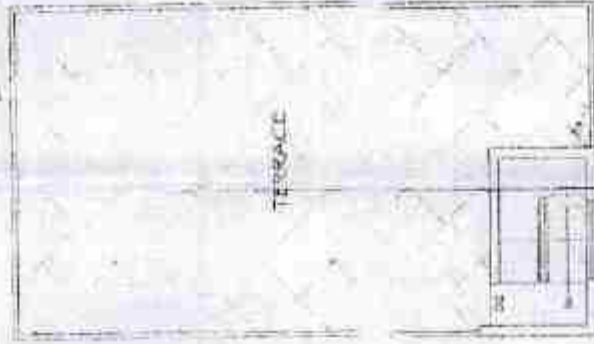
Ex P13



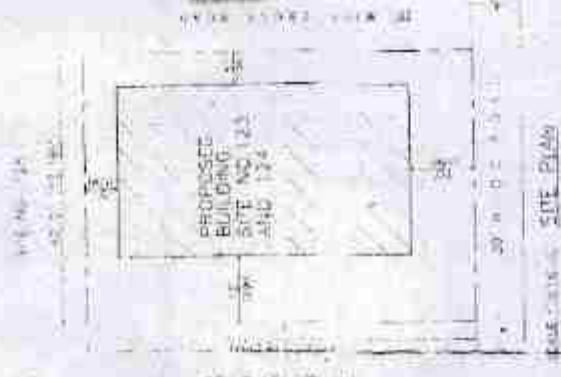
PROPOSED GROUND FLOOR PLAN



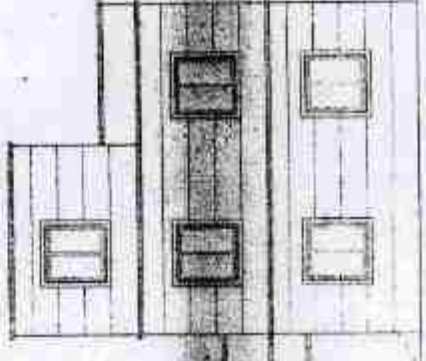
PROPOSED FIRST FLOOR PLAN



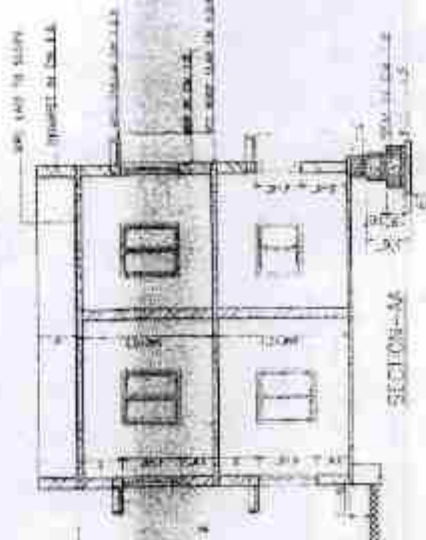
TERRACE FLOOR PLAN



SITE PLAN



FRONT ELEVATION



SECTION-M

This plan is approved

21/05/2024

Signature of the Engineer



NORTH

SCHEDULE OF OPENINGS

DOORS	1
WINDOWS	1
STAIR CASE	1

STAIR CASE DETAIL

STAIR CASE	1
------------	---

SCHEDULE OF AREAS

SITE AREA	2400.00 SFT (223.04 SQM)
BUILDING AREA	2180.875 SFT (202.65 SQM)
COVERED AREA	2180.875 SFT (202.65 SQM)
UNCOVERED AREA	2180.875 SFT (202.65 SQM)
TOTAL AREA	4361.75 SFT (405.69 SQM)

F.A.R. AREA

F.A.R. AREA	2180.875 SFT (202.65 SQM)
-------------	---------------------------

2250.00	2180.875	FAR=0.99
111.375	2400.00	COVERED = 46.87%

ENGINEERS SIGNATURE

S. S. Srinivasan

OWNERS SIGNATURE

S. S. Srinivasan

PROJECT

PROPOSED RESIDENTIAL BUILDING AT SITE NO. 123 & 124, V. V. KATHA NO. 33/123, 124, AT KENNEDY NAGAR, BANGALORE.

TITLE

SANCTION DRAWING

SCALE	DATE	REMARKS	DATE
1:100	21/05/2024		

CLASSIC ENGINEERS

18

12/10/04

(See Rule 11, Taxation Rules, 2008)

Q. 31

Sl. No. - A - 15 - ... 23612.

92-282 / 17-18

Sl. No.	Property No.	PID No. / Khatha	Name of Owner or Occupier	Property Details			Status of Occupancy		Usage		Category or Allegories & Zone of building as per UAV			Non charged vehicles slots (Non-Res)			No. of telecommu- nication tower		No. of Hoardings		Total annual UAV							
				Site Dimensions	Built up area	Vacant Land	Owner Occupied	Tenanted	Residential	Non Residential			Whitelists	Others	Residential	Non - Res	Residential	NR	Res	NR	Vacant Land	Excess Vacant	Parking in Non Res	Telecommunication tower	Hoarding	Total UAV	Signature	
223	102, 104	8008221088	Shri. Subhan Lal Joshi	2400 Sqft	600 Sqft	1800 Sqft	Owner				E - Zone	2017-18	2640=00	634=00	3274=00													
			Shri. Subhan Lal Joshi	2400 Sqft	600 Sqft	1800 Sqft	Owner																					
			Shri. Subhan Lal Joshi	2400 Sqft	600 Sqft	1800 Sqft	Owner																					

Digitized by Srujanika, Anandika, M.

Compare by

Copy of fee & receipt No. 100/-001846

Date of Issue 23-01-18

Heath

ಪರಮೇಶ್ವರ ಕೃಪೆಯಿಂದಾಗಿ
ಯಶಸ್ವಿಗಳಾಗಿ, ಬೆಂಗಳೂರು-ಹೈದರಾಬಾದ್

(53)

22

BRUHAT BANGALORE MAHANAGARA PALIKE

FORM-B PROPERTY REGISTER EXTRACT

(See Rule 11 Taxation Rules 2008)

Ward 02

Sl.No-A-15-23612

Register maintain for properties 'without
khatha/PID' NUMBERS DURING THE Block Period

ಪೊಡೇಶ್ವರಿ

PR/282/17-18

1.Sl No	223
2.Property No	123, 124
3.PID NO Khatha	ಕೆಂಚೇನಹಳ್ಳಿ
4.Name of owner or Occupier	Sir Sohan Lala Joshi s/o late Danaram j joshi
5.Site Dimensions	2400 ಚ.ಅ
6.Built up ares	600 ಚ.ಅ
7.Vacant land	1800 ಚ.ಅ
8.Owner occupied	Own
12.Category of Ategories & Zone of building as per UAV	E-ವಲಯ
13.wheaters	2017-18
14. others	2640-00
15.Residential	<u>634-00</u>
16. Non-Res	3274-00

Sd/-

ಸಹಾಯಕ ಕಂದಾಯ ಅಧಿಕಾರಿ

ಯಲಹಂಕ ಉಪ ವಿಭಾಗ

ಬಿಬಿಎಂಪಿ, ಬೆಂಗಳೂರು

(83)

Annexure E



ಕರ್ನಾಟಕ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಗಮ

ವಿದ್ಯುತ್ ಬಿಲ್ / ELECTRICITY BILL

GSTIN No: 29AACCB1412G1Z5

D/o AEE(Elc.) G7 YALAHANKA

Account Details

ಅರ್.ಬಿ.ಸಂಖ್ಯೆ / FIR No	YLG51805
ಖಾತೆ ಸಂಖ್ಯೆ / Acc Id	8826908000
ಮು.ಕ. ಸಂಕೇತ / M.R Code	14004162

ವೈಯಕ್ತಿಕ ವಿವರಗಳು / Personal Details

ಹೆಸರು ಮತ್ತು ವಿಳಾಸ / Name and Address

SHANLAL JOSHI, #124, KENCHENAHALLY YELAHANKA
BANGALORE

ಸಂಪರ್ಕ ವಿವರಗಳು / Connection Details

ಬಕಾತಿ / Tariff	LT1
ಮಂ. ಪ್ರಮಾಣ / Spec Load	1KW+OHP
ಗೃಹ ಬೆಳಕು / GJS Reg Date	14/07/2023
ಸರಾಸರಿ / Average (FY22-23)	151.25
ಅರ್ಹ / Entitlement Units	166.0

ಬಿಲ್ ವಿವರ / Billing Details

ಬಿಲ್ ಅವಧಿ / Bill Period	01/06/2024 - 01/07/2024
ರೀಡಿಂಗ್ ದಿನಾಂಕ / Reading Date	01/07/2024
ಬಿಲ್ ಸಂಖ್ಯೆ / Bill No	433319247010260

ಬಳಕೆಯ ವಿವರ / Consumption Detail

ಸಂಪರ್ಕಿತ ಮೂಲ / Pres. Rdg.	23532
ಹಿಂದಿನ ಮೂಲ / Prev. Rdg.	23311
ಮೂಲ ಸ್ಥಿರಾಂಶ / Constant	1
ಬಳಕೆ / Consumption (Units)	221
ಸರಾಸರಿ / Average	
ರೂಪಾಯಿ ಬೇಡಿಕೆ / Recorded MD	0KW
ಮಾರ್. ಗುಣಕ / Power Factor	1.0
ಸಂ. ಪ್ರಮಾಣ / Connected Load	0.0KW

ಬಳಸಿದ ಯೂನಿಟ್ ಬಿಲ್ ಮೊತ್ತ / Bill for Consumed Units

ನಿಗದಿತ ಶುಲ್ಕ / Fixed Charges (Unit, Rate, Amount)	
1.0 KW	120.00
ವಿದ್ಯುತ್ ಶುಲ್ಕ / Energy Charges (Unit, Rate, Amount)	
221.0	1303.90
ಇಂಧನ ಮೊದಲಾದ ಶುಲ್ಕ / FPPCA Charges (Unit, Rate, Amt)	
221.0	19.89
ತೆರಿಗೆ / Tax @ 9.0%	117.35

Additional Charges

ಪಿ ಎಫ್ ದಂಡ / PF Penalty	0.00
ತೆ.ಲೋ. ದಂಡ / Ex. Load/MD Penalty	0.00
ಬಡ್ಡಿ / Interest	2.60
ಇತರ / Others	0.00
ಕೊಡುಗೆ ಅಥವಾ ಕ್ರೆಡಿಟ್ / Debit or Credit	0.00
ಪ್ರಸ್ತುತ ಬೇಡಿಕೆ / Cur. Demand Payable	₹ 1563.74
ಬಾಕಿ / Appears	0.00
ಕೊಡುಗೆ ಮೊದಲಿನ ಬಡ್ಡಿ / Int. on Deposit (IOD)	-119.00
ಪಾವತಿಯ ಮೊತ್ತ / Net Payable	₹ 1445.00

ಪಾವತಿಗೆ ಕಡೆಯ ದಿನಾಂಕ / Due Date 15/07/2024

ASD to be paid: Rs.870 (ignore if paid)



8826908000#1445 01/07/2024 13:52 V11.8

(34)

Annexure F

 	 
ಭಾರತ ಸರ್ಕಾರ Government of India	ಮಾಹಿತಿ
ಭಾರತೀಯ ವಿಶಿಷ್ಟ ಗುರುತು ಪ್ರಾಧಿಕಾರ Unique Identification Authority of India	■ ಆಧಾರ್ ಗುರುತಿನ ಪ್ರಮಾಣವೇ ಪೂರೈಕೆಯಾಗಿದೆ. ■ ಸುರಕ್ಷಿತ ಕೃತಕ ಕೋಡ್/ಆನ್‌ಲೈನ್ XML/ಆನ್‌ಲೈನ್ ಕೃತಕ ಕೋಡ್ ಬಳಸಿ ಗುರುತನ್ನು ಪರಿಶೀಲಿಸಿ. ■ ಎಲೆಕ್ಟ್ರಾನಿಕ್ ಪ್ರಕ್ರಿಯೆ ಮೂಲಕ ಮುದ್ರಿತವಾದ ದಸ್ತಖತ್ತಿನ ದಾಖಲೆ ಇದಾಗಿದೆ.
ನೋಂದಣಿ ಸಂಖ್ಯೆ Enrolment No.: 4050/00167/09776	INFORMATION
To ಸೋಹಲ್ ರಾಮ್ ಜೋಷಿ Sohanlal Njoshi C/O: Dulla Ram Joshi No 123-124 Yelahanka Hobli Kenchanahalli Yelahanka Bangalore North Bengaluru Karnataka - 560064 9448248599	■ Aadhaar is a proof of identity, not of citizenship. ■ Verify identity using Secure QR Code/ Offline XML/ Online Authentication. ■ This is electronically generated letter.
Signature valid  	■ ಆಧಾರ್ ದೇಶದಾದ್ಯಂತ ಮಾನ್ಯತೆಯನ್ನು ಪಡೆದಿದೆ. ■ ಸುರಕ್ಷಿತವಾಗಿ ಪರಿಶೀಲಿಸಲು ಸರ್ಕಾರೀ/ನಾಗರಿಕ ಸೇವೆಗಳನ್ನು ಪಡೆಯಲು ಆಧಾರ್ ಸಹಾಯವಾಗಿದೆ. ■ ನಿಮ್ಮ ಮೊಬೈಲ್ ಸಂಖ್ಯೆ ಮತ್ತು ಇ-ಮೇಲ್ ಐಡಿ ಅನ್ನು ಆಧಾರ್ ನಲ್ಲಿ ನವೀಕರಿಸಿ. ■ ಆಧಾರ್ ಮತ್ತು ನಿಮ್ಮ ಸ್ಮಾರ್ಟ್ ಫೋನ್ ನಲ್ಲಿ ಕೊಂಡೊಯ್ಯಿರಿ - mAadhaar ಅಪ್ಲಿಕೇಷನ್ ಬಳಸಿ.
ನಿಮ್ಮ ಆಧಾರ್ ಸಂಖ್ಯೆ / Your Aadhaar No. : 5869 4347 0322 VID : 9166 2407 1995 9947 ನನ್ನ ಆಧಾರ್, ನನ್ನ ಗುರುತು	■ Aadhaar is valid throughout the country. ■ Aadhaar helps you avail various Government and non-Government services easily. ■ Keep your mobile number & email ID updated in Aadhaar. ■ Carry Aadhaar in your smart phone – use mAadhaar App.
 ಭಾರತ ಸರ್ಕಾರ Government of India   ಸೋಹಲ್ ರಾಮ್ ಜೋಷಿ Sohanlal Njoshi ಜನನ ದಿನಾಂಕ/DOB: 28/11/1958 ಲಿಂಗ/ GENDER: MALE 5869 4347 0322 VID : 9166 2407 1995 9947 ನನ್ನ ಆಧಾರ್, ನನ್ನ ಗುರುತು	 ಭಾರತೀಯ ವಿಶಿಷ್ಟ ಗುರುತು ಪ್ರಾಧಿಕಾರ Unique Identification Authority of India  ವಿವರ: ಸೋಹಲ್ ರಾಮ್ ಜೋಷಿ, ಸಂ 123-124, ದುಲ್ಲಾರಾಮ್ ಜೋಷಿ, ಕೆಂಚನಹಳ್ಳಿ ಯೆಲಾಂಕಾ, ಬೆಂಗಳೂರು ಉತ್ತರ, ಬೆಂಗಳೂರು, ಕರ್ನಾಟಕ - 560064 Address: C/O: Dulla Ram Joshi, No 123-124, Yelahanka Hobli, Kenchenahalli Yelahanka, Bangalore North, Bengaluru, Karnataka - 560064 5869 4347 0322 VID : 9166 2407 1995 9947 

Issue Date: 16/07/2019

Toll-free

1800 120 0123

1800 120 0123

www.uidai.gov.in

25

XTE3961182

150 / Address :
#123 Kanchanpalli Compound,
Kanchanpalli - 560004
#123 Kanchanpalli Yeshwanth,
Bangalore - 560004

Date: 07/07/2012

150

(Signature) of Regional Registration
Officer (50) - Bangalore (40-101), Commissioner

In case of change in address, please fill this form
and submit the form for including your name in
there in the change of address.

CLP-PT-2

(56)

Annexure II

ತಹಶೀಲ್ದಾರ್ ಹಾಗೂ ತಾಲ್ಲೂಕು ದಂಡಾಧಿಕಾರಿ ರವರ ನ್ಯಾಯಾಲಯ, ಯಲಹಂಕ
ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ

ಸಂಖ್ಯೆ:ಎಎಲ್‌ಎನ್(ವೈ)ಆರ್/10/2022-23

ದಿನಾಂಕ:10/01/2023

:-ಉಪಸ್ಥಿತರು:-

ಶ್ರೀ ಅನಿಲ್‌ಕುಮಾರ್ ಆರೋಲಿಕರ್
ತಹಶೀಲ್ದಾರ್ ಮತ್ತು ತಾಲ್ಲೂಕು ದಂಡಾಧಿಕಾರಿ
ಯಲಹಂಕ ತಾಲ್ಲೂಕು.

ಮೇಲ್ಕನವಿದಾರರು

ಎದುರುದಾರರು

ಶ್ರೀ ರಮೇಶ್

ಶ್ರೀ ಅಜ್ಜಕುಲ್ಲಾಖಾನ್
ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮ,
ಯಲಹಂಕ ಹೋಬಳಿ
ಯಲಹಂಕ.

ಪ್ರಸ್ತಾವನೆ.

ವಿಷಯ:- ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ 33/1, 33/3 ರಲ್ಲಿ 2.00 ಎ.ಗುಂ, 33/5 ರಲ್ಲಿ 1.33 ಎ.ಗುಂ, 34/2 ರಲ್ಲಿ 3.32 ಎ.ಗುಂ, 34/3 ರಲ್ಲಿ 0.08 ಎ.ಗುಂ ಜಮೀನುಗಳಲ್ಲಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ನಿರ್ಮಿಸಿರುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ:- ಸ್ಥಳೀಯ ಕಂದಾಯ ಅಧಿಕಾರಿಗಳ ವರದಿ ಸಂಖ್ಯೆ: ರಾ.ನಿ(ಯ-1)ಸಿಆರ್-311/2022-23, ದಿನಾಂಕ:10/11/2022.

ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ 33/1, 33/3 ರಲ್ಲಿ 2.00 ಎ.ಗುಂ, 33/5 ರಲ್ಲಿ 1.33 ಎ.ಗುಂ, 34/2 ರಲ್ಲಿ 3.32 ಎ.ಗುಂ, 34/3 ರಲ್ಲಿ 0.08 ಎ.ಗುಂ ಜಮೀನುಗಳಲ್ಲಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ನಿರ್ಮಾಣ ಮಾಡುತ್ತಿರುವುದಾಗಿ ಶ್ರೀ ಅಜ್ಜಕುಲ್ಲಾಖಾನ್ ಎಂಬುವವರು ಸರ್ಕಾರಕ್ಕೆ ದೂರು ಸಲ್ಲಿಸಿದ್ದು ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ:ಆರ್.ಡಿ/06/ಎಲ್.ಬಿ.ಬಿ/2021 ದಿನಾಂಕ: 04.10.2021 ಮತ್ತು ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಪತ್ರ ಸಂಖ್ಯೆ ಎಎಲ್‌ಎನ್/ವೈ/ಸಿಆರ್/12/20-21 ಪತ್ರದಲ್ಲಿ ದಿನಾಂಕ:04/01/2022 ಇವರ ದೂರಿನ ಬಗ್ಗೆ ನಿಯಮಾನುಸಾರ ಪರಿಶೀಲಿಸಿ ಅಗತ್ಯ ಕ್ರಮ ವಹಿಸುವಂತೆ ಸೂಚಿಸಲಾಗಿರುತ್ತದೆ.

ಈ ಬಗ್ಗೆ ಸ್ಥಳೀಯ ಕಂದಾಯ ಅಧಿಕಾರಿಗಳ ವರದಿ ಸಂಖ್ಯೆ: ರಾ.ನಿ(ಯ-1)ಸಿಆರ್-311/2022-23, ದಿನಾಂಕ:10/11/2022 ರಂತೆ ಸ್ಥಳೀಯ ಅಧಿಕಾರಿಗಳು ಪರಿಶೀಲನೆ ನಡೆಸಿ ವರದಿ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ ಸದರಿ ವರದಿಯಲ್ಲಿ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಲ್ಲಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ಆಗಿರುವುದಾಗಿ ಈ ಜಮೀನುಗಳು ಭೂ ಪರಿವರ್ತನೆ ಆಗಿರುವುದಿಲ್ಲವೆಂದು ಮತ್ತು ಈ ಜಮೀನುಗಳು ಶ್ರೀ ಅಜ್ಜಕುಲ್ಲಾಖಾನ್ ಎಂಬುವವರ ಹೆಸರಿನಲ್ಲಿ ಇದ್ದು ಈ ಜಮೀನುಗಳ ಬಗ್ಗೆ ಮಾನ್ಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಹಲವಾರು ದಾವೆಗಳು ವಜಾ ಆಗಿರುವುದಾಗಿ ವರದಿ ಮಾಡಲಾಗಿದೆ. ಅಲ್ಲದೇ

ಈ ಜಮೀನುಗಳಲ್ಲಿ ಭೂ ಪರಿವರ್ತನೆ ಇಲ್ಲದೇ ಸುಮಾರು ಜನರು ಮನೆಗಳನ್ನು ಕಟ್ಟಿಕೊಂಡು ವಾಸ ಇರುವುದಾಗಿ ಹಾಗೂ ರಸ್ತೆಗಳಿಗೆ ದಾಂಬರೀಕರಣ ಆಗಿದ್ದು ಕೆಲವು ಸ್ಟೆಕ್‌ಗಳಿಗೆ ಕಾಂಪೌಂಡ್ ನಿರ್ಮಾಣ ಮಾಡಿಕೊಂಡಿರುವುದಾಗಿ ಮತ್ತು ಈ ಜಮೀನುಗಳ ವಿಚಾರದಲ್ಲಿ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾವೆಗಳು ನ್ಯಾಯಾಲಯದ ಅಂತಿಮ ಆದೇಶದಂತೆ ನಿಯಮಾನುಸಾರ ಕ್ರಮ ಕೈಗೊಳ್ಳಬಹುದೆಂದು ವರದಿ ಮಾಡಲಾಗಿದೆ.

ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ದೂರುದಾರರಿಗೆ ವಿಚಾರಣೆಗಾಗಿ ನೋಟಿಸು ನೀಡಲಾಗಿ ಸದರಿ ದೂರುದಾರರು ದಿನಾಂಕ: 28/12/2022 ರಂದು ಹಾಜರಾಗಿರುತ್ತಾರೆ. ಈ ಜಮೀನುಗಳು ತಮಗೆ ಸೇರಿದ ಜಮೀನುಗಳಾಗಿದ್ದು ಈ ಜಮೀನುಗಳಲ್ಲಿ ಭೂ ಪರಿವರ್ತನೆ ಇಲ್ಲದೇ ಮತ್ತು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದಿಂದ ಬಡಾವಣೆ ಅನುಮತಿ ಪಡೆಯದೇ ಅನಧಿಕೃತವಾಗಿ ಮನೆಗಳನ್ನು ನಿರ್ಮಾಣ ಮಾಡಿಕೊಂಡಿರುವುದಾಗಿ ಇದರ ವಿರುದ್ಧ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ಆಕ್ಷೇಪಣೆ ಇರುವುದಿಲ್ಲವೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ. ಮುಂದುವರೆದು ಈ ಜಮೀನುಗಳ ವಿರುದ್ಧ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಹಲವು ಮೊಕದ್ದಮೆಗಳು ದಾಖಲಾಗಿದ್ದು ಎಲ್ಲ ಮೊಕದ್ದಮೆಗಳು ಇತ್ಯರ್ಥ ಆಗಿರುವುದಾಗಿ ಪ್ರಸ್ತುತ ಯಾವುದೇ ದಾವೆ ಪಾಕಿ ಇರುವುದಿಲ್ಲವೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ.

ಈ ಸಂದರ್ಭದಲ್ಲಿ ಶ್ರೀ ರಮೇಶ್ ಎಂಬುವವರು ಮತ್ತೊಂದು ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸಿ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಲ್ಲಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ಆಗಿದ್ದು ಇದನ್ನು ತೆಗೆಯುವಂತೆ ಅನೇಕ ಬಾರಿ ಮನವಿಗಳನ್ನು ಸಲ್ಲಿಸಿದರೂ ಸಹ ತೆರವುಗೊಳಿಸಿರುವುದಿಲ್ಲವೆಂದು, ಈ ಬಗ್ಗೆ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾಖಲಾಗಿದ್ದ ದಾವೆಗಳು ಇತ್ಯರ್ಥ ಆಗಿರುವುದರಿಂದ ಇವುಗಳನ್ನು ಪರಿಶೀಲಿಸಿ ಅನಧಿಕೃತ ಬಡಾವಣೆಯನ್ನು ತೆರವುಗೊಳಿಸಲು ಕ್ರಮ ಕೈಗೊಳ್ಳುವಂತೆ ಕೋರಿರುತ್ತಾರೆ.

ಸದರಿ ದಾವೆಗಳ ಸಂಖ್ಯೆ: OS.NO.665/2007 ಹಾಗೂ ಇತರೆ ದಾವೆಗಳನ್ನು ಒಟ್ಟುಗೂಡಿಸಿ OS.NO.648/2007, 650/2007, 651/2007, 652/2007, 654/2007, 658/2007, 660/2007, 795/2007, 796/2007, 797/2007, 798/2007, 800/2007, 801/2007 & 803/2007.

NO.1:- ರಾಮ್ ಲಾಲ್ ಕರ್ಮಾ ಹಾಗೂ ಇತರೆ 13(ಹದಿಮೂರು) ಜನರು ಅಬ್ದುಲ್ ರಫೀಕ್ ರ ಮೇಲೆ ಹೂಡಿವು ದಾವೆಗಳು ದಾಖಲೆಗಳು ಸರಿಯಲ್ಲದ ಕಾರಣ ದಿನಾಂಕ:31/07/2020 ರಂದು ವಜಾಗೊಂಡಿರುತ್ತವೆ.

NO.2:- ಸ.ನಂ 33 ಹಾಗೂ 34 ರಲ್ಲಿ ಹೂಡಲಾಗಿದ್ದ ಎಲ್ಲಾ ದಾವೆಗಳು ದಾಖಲಾತಿಗಳು ಸರಿಯಲ್ಲದ ಕಾರಣ ವಜಾಗೊಂಡಿರುತ್ತದೆ.

ಮೇಲೆ ಹೇಳಿದ ಎಲ್ಲಾ ದಾವೆಗಳು ವಿವಿಧ ಸಮಾಜ ಘಾತುಕ ವ್ಯಕ್ತಿಗಳಿಂದ ವಂಚನೆಗೊಳಪಟ್ಟ ವ್ಯಕ್ತಿಗಳು ಹೂಡಿದ್ದು ಸೃಷ್ಟಿಸಿದ ದಾಖಲಾತಿಗಳಾಗಿರುವುದರಿಂದ ವಜಾಗೊಂಡಿರುತ್ತದೆ. ಹಾಗೂ ಈ ಸಮಾಜ ಘಾತುಕ ವ್ಯಕ್ತಿಗಳ ಮೇಲೆ KLR ACT - SEC .192 'A' SUB CLAUSE : 5 ಅಡಿಯಲ್ಲಿ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ಈ ಹಿಂದೆ ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾಂತ್ರಿಕ ಸಹಾಯಕರು ಹಾಗೂ ಪದನಿಮಿತ್ತ ಭೂ ದಾಖಲೆಗಳ ಉಪನಿರ್ದೇಶಕರು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿ ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ ಬೆಂಗಳೂರು ನಗರ ರವರ ಆದೇಶ ಸಂಖ್ಯೆ ಚಿತಾಂಸ/ಭೂ.ನಿ/ಅಖೀಲು/04/2013-14, ದಿನಾಂಕ:31/12/2014 ರಂದು ಆದೇಶಿಸಿರುವುದು ಕಂಡುಬಂದಿರುತ್ತದೆ.

ಬೆಂಗಳೂರು ನಗರ ಪ್ರದೇಶದಲ್ಲಿ ವಿವಿಧ ರಿಯಲ್ ಎಸ್ಟೇಟ್ ಕಂಪನಿಗಳಿಂದ ಹಲವಾರು ವಂಚನೆಗಳು ಆಗಿರುವುದು ಕಂಡುಬಂದಿರುತ್ತದೆ ಉದಾ: ಪ್ರೇಮ್.ಜಿ.ಕೆ. ಗೃಹತೋಭ ಟಿ.ಜಿ.ಎಸ್ ಹಾಗೂ ಆರೆಂಜ್ ಪ್ರಾಪರ್ಟಿಸ್ ಮಾಡಿರುವ ವಂಚನೆಗಳನ್ನು ಗಮನದಲ್ಲಿರಿಸಿಕೊಂಡು ಈ ಮೇಲೆ ತಿಳಿಸಿದ ಕೃಷಿ ಭೂಮಿಯನ್ನು ಸಹ ಈಗಾಗಲೇ ಸಮಾಜ ಘಾತುಕ ವ್ಯಕ್ತಿಗಳು ದಾಖಲಾತಿಗಳನ್ನು ಸೃಷ್ಟಿಸಿ ಸಾರ್ವಜನಿಕರನ್ನು ಹಾಗೂ ಮೂಲ ಖಾತೆದಾರರನ್ನು ವಂಚಿಸಿದ್ದು ಮುಂದೆ

ಈ ರೀತಿ ಘಟನೆಗಳು ಮರುಕಳಿಸದಂತೆ ನೋಡಿಕೊಳ್ಳುವ ಸಲುವಾಗಿ ನಿರ್ಮಾಣವಾಗಿರುವ ಅನಧಿಕೃತ ಬಡಾವಣೆಯನ್ನು ತೆರವುಗೊಳಿಸಲು ಆದಕ್ಕೆ ತಗುಲುವ ವೆಚ್ಚವನ್ನು ಖಾತೆದಾರರಿಂದ ವಸೂಲಿ ಮಾಡಿ ಸರ್ಕಾರಿ ವಿಜ್ಞಾನಕ್ಕೆ ತುಂಬಬೇಕಾಗಿರುತ್ತದೆ.

-ಆದೇಶ:-

ಮೇಲ್ಕನವಿದಾರರ ಮನವಿಯನ್ನು ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ 33/1, 33/3 ರಲ್ಲಿ 2.00 ಎ.ಗುಂ, 33/5 ರಲ್ಲಿ 1.33 ಎ.ಗುಂ, 34/2 ರಲ್ಲಿ 3.32 ಎ.ಗುಂ, 34/3 ರಲ್ಲಿ 0.08 ಎ.ಗುಂ ಜಮೀನುಗಳಲ್ಲಿ ಬಡಾವಣೆಯಾಗಿದ್ದು ವ್ಯವಸಾಯೇತರ ಉದ್ದೇಶಕ್ಕೆ ನಿಯಮ ಬಾಹಿರವಾಗಿ ಬಳಸಿಕೊಂಡಿರುವುದು ಕಂಡುಬಂದಿರುವುದರಿಂದ ಸದರಿ ಬಡಾವಣೆಯನ್ನು ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ 1964 ರ ಕಲಂ 192-ಎ ರ ಟೇಬಲ್-5 ರ ಪ್ರಕಾರ ತೆರವುಗೊಳಿಸಲು ಆದೇಶಿಸಿದೆ.

ಈ ಮೇಲ್ಕಂಡ ಆದೇಶವನ್ನು ಉತ್ತರೇಖನ ನೀಡಿ, ಗಣಕೀಕರಿಸಿದ ಪ್ರತಿಯನ್ನು ಓದಿ ಪರಿಷ್ಕರಿಸಿ ದಿನಾಂಕ: 10-01-2023 ರಂದು ತೆರೆದ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಘೋಷಿಸಲಾಯಿತು.

ಸಹಾಯ
ತಹಶೀಲ್ದಾರ್
ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ
ಜಿಲ್ಲೆ
06/01/23

ತಹಶೀಲ್ದಾರ್
ಯಲಹಂಕ ತಾಲ್ಲೂಕು,
ಯಲಹಂಕ.
10/01/2023

Received
mmu
Date 11/01/23

(89)
Translated copy of Annexure #1

In the Court of Tahsildar and Taluk Magistrate, Yelahanka
Taluk, Bangalore Urban District

No. ALN(Y)CR/10/2022-23
10/01/2023

Date:

-: In presence of:-

Sri.Anil Kumar Arolkar,
Tahsildar and Taluk Magistrate
Yelahanka Taluk.

Appellant	Respondent
Sri.Ramesh	Sri.Azmathulla Khan, Kenchenahalli Village, Yelahanka Hobli, Yelahanka.

Preamble:-

Sub: Regarding unauthorised layout formed on land measuring 2.00 A.Gu in Sy.no.33/1, 33/3, 1.33 A.Gu in Sy.No.33/5, 3.32 A.Gu in Sy.No.34/2, 0.08 A.Gu in Sy.No.34/3 of Kenchenahalli * Viillage, Yalahanka Hobli, Yelahanka Taluk.

Ref: Report of the local Revenue Officer vide no. R.I. (Y-1)CR-311/2022-23, dated: 10.11.2022.

Sri.Azmathulla Khan have filed a complaint before the government alleging that unauthorised layout is being formed on land measuring 2.00 A.Gu in Sy.no.33/1, 33/3, 1.33 A.Gu in Sy.No.33/5, 3.32 A.Gu in Sy.No.34/2, 0.08 A.Gu in Sy.No.34/3 of Kenchenahalli Viillage, Yalahanka Hobli,

(96)

Yelahanka Taluk. Upon which in the government letter no.RD/06/LGB/2021, dated: 04.10.2021 and letter of the Deputy Commissioner, vide no. ALN/Y/CR/12/20-21, dated: 04.01.2022. it has been instructed to take action as per rules.

The local Revenue Officer vide report no. R.I. (Y-1)CR-311/2022-23, dated: 10.11.2022 undertook spot inspection and submitted a report in the said report it has been reported that there is unauthorised layout in the above lands and that these lands are not converted lands and that the same exists in the name of Sri.Azmathulla Khan and that various suits have been filed in the Civil Courts and the same have been disposed. Also it is submitted that several persons have constructed house and residing in the same without any land conversion and that there is asphaltting to the roads and compound has been constructed to few sites and that action may be taken as per the final orders in the suits before the civil court.

Enquiry notice was issued to the complainant wherein the complainant makes his presence on 28.12.2022. It is submitted that the said lands belongs to him and that the unauthorised houses have been constructed without

conversion and due permission from the competent authority to form layouts and that she have no objection in taking action against them for illegally constructing the houses. Various cases are filed before the Civil Courts regarding that lands and that all the cases are disposed off and presently there are no cases pending.

At that juncture one Sri.Ramesh submitted another petition alleging that there is unauthorised layouts in the above lands and even after filing various representations seeking eviction, the same has not been evicted and since the cases filed before the Civil courts have been disposed of for which requested to examine in this regard and evict the unauthorised layouts.

The said suits no. O.S.No.665/2007 and other suits were amalgamated as O.S.No.648/2007, 650/2007, 651/2007, 652/2007, 654/2007, 658/2007, 660/2007, 795/2007, 796/2007, 797/2007, 798/2007, 800/2007, 801/2007 & 803/2007.

No.1. The Suit filed by Ramlal Sharma and other 13 (thirteen) against Abdul Rafeeq has been disposed of on 13.07.2020 for the reasons that documents were not proper.

98

No.2. All suits filed on Sy.No.33 and 34 were disposed of for the reasons that the documents were not proper.

All the above documents were concocted and created documents by several anti-social elements to grab the properties for which the said suits were disposed of and in order to take action under Sub-Clause 5 of Section 192'A' of KLR Act it could be seen that the Technical Assistant to Deputy Commissioner and Ex-Officio Deputy Director of Land Records, office of the Deputy Commissioner, have passed order in DTA/DDLR/Appeal/04/2013-14, dated: 31.12.2014.

It could be seen that there are various cheatings by several real estate companies around the Bangalore Urban area. For ex: Prem.G.K, Gruhashobha T.G.S and Orange Properties has to be taken for consideration wherein various anti-social elements have created fake and concocted documents to grab agricultural lands and have cheated public and original khatedars and in order refrain from repentance of such occurrence it is very much necessary to take action to evict unauthorised layouts and to recover the expenses from

(93)

concerned khathedars and credit the same to government treasury

-:ORDER:-

For the foregoing reasons, it has come to know that the agriculture lands measuring 2.00 A.Gu in Sy.no.33/1, 33/3, 1.33 A.Gu in Sy.No.33/5, 3.32 A.Gu in Sy.No.34/2, 0.08 A.Gu in Sy.No.34/3 of Kenchenahalli Viillage, Yalahanka Hobli, Yelahanka Taluk has been illegally utilized for formation of layouts for which it has been ordered to take action under table-5 Section 192-A of Karnataka Land Revenue Act to evict the said layout.

This order dictated, typewritten copy revised and declared in the open court on 10-01-2023.

Sd/-
Tahsildar,
Yelahanka Taluk,
Yelahanka

(94)

Anneer J Intkigaz pagha

FORM III-A

8 FEB 2023 IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WRIT PETITION NO. 2074/ 2023 [KLR RES]

[Notice under Rule 13(a) proviso]

PETITIONER:

SAINIK VIHAR SITE / HOUSE OWNERS WELFARE ASSOCIATION,
NO 122, 9TH MAIN SAINIK VIHAR LAYOUT,
KENCHANAHALLI, YELAHANKA,
BENGALURU 560 064.
REP BY ITS PRESIDENT,
SRI T S SUJITH BABU,
S/O LATE SRIRAMULU.

By Sri: A.N MATTARA, ADV.,
Vs

RESPONDENTS:

1. THE TAHSILDAR,
BANGALORE NORTH TALUK,
YELAHANKA UPANAGARA,
BENGALURU.
2. RAMESH, A SECTOR,
YELAHANKA NEW TOWN,
YELAHANKA 560 064.
3. MR. AZMATH ULLA KHAN,
S/O IBRAHIM KHAN,
AGED 42 YEARS,
R/AT NO 17/A, H CROSS ROAD,
BISMILLAH NAGAR,
BENGALURU 560 029.

HCGP FOR R1.

Whereas, a Writ Petition filed by the above named petitioner under Article 226 & 227 of the constitution of India, as in the copy annexed hereunto, has been registered by this Court.

Notice is hereby given to you to appear in this court in person or through an Advocate duly instructed or through some one authorized by law to act for you in this case, at 10.30 A.M. in the forenoon within 10 days of the service of this notice to show cause why rule nisi should not be issued.

(..2)

This Certified copy contains... 4... pages
And Copying charges with of ₹. 200/-
Received



(95)

-2-

If you fail so to appear on the said date or any subsequent date to which the matter may be posted as directed by the Court, without any further notice, the petition will be dealt with, heard and decided on merits in your absence.

INTERIM ORDER
(Video Conferencing / Physical Hearing)

Pending issue of Rule nisi in the aforesaid Writ Petition it is hereby ordered by this Court on

MONDAY, THE 30TH DAY OF JANUARY 2023
BY THE HON'BLE MR. JUSTICE R. DEVDAS

as follows:

Learned Counsel for the petitioner-Association submits that the office objections including payment of court fee calculated on the number of members enrolled on the rolls of the Association who would get the benefit of the orders passed by this Court will be paid and all other office objections will be complied within a period of two weeks from today.

Accordingly, while permitting the learned Counsel for the petitioner to comply with the office objections within a period of two weeks from today, the learned HCGP is directed to take notice for respondent No.1.

Issue notice to respondents No.2 and 3.

Learned Counsel for the petitioner is directed to serve a copy of the petition along with Annexures on the learned HCGP.

Learned Counsel for the petitioner submits that although the first respondent-Tahsildar, Bangalore North Taluk, Yelahanka Upanagara, is aware of the fact that a layout has been formed in Sy.Nos.33/1, 33/3, 33/5, 34/2, 34/3 etc., which is known as 'Sainik Vihar Layout', Kenchanahalli, nevertheless, at the instance of the second respondent-Sri Ramesh who appears to have filed a

(..3)



96

-3-

dispute/appeal before the Tahsildar, against the third respondent Sri Azmath Ulla Khan, has proceeded to pass the impugned order dated 10.01.2023 at Annexure 'G' declaring that the layout has been formed without getting the land converted from agricultural to non-agricultural purposes and therefore, the Tahsildar has directed that all the constructions that have come up shall be removed forthwith.

Learned Counsel submits that it is clear from the impugned order has been passed without issuing notice to the petitioner be it Association or the individual site owners/apartment owners and if the Tahsildar is not stopped from executing the impugned order, grave injustice and irrevocable damage will be caused to each of the individual site owners/apartment owners.

Consequently, there shall be an ad-interim order of stay of the impugned order dated 10.01.2023 at Annexure 'G' and all further proceedings pursuant to the impugned order, till the next date of hearing.

Needless to observe that certified copy of this interim order shall not be issued till Court fee is paid.



// COPY //

8/2/23
(S.R. JAYASHREE)
ASSISTANT REGISTRAR
4/2/23

Sd/-
JUDGE



TRUE COPY

Section Officer
Hd: Court Secy, Bangalore

(97)

NOTE: Annexure-G to the writ petition is the copy of the impugned order dated: 10.01.2023 bearing Case No: A.L.N(Y)R/10/2022-23 passed by the 1st respondent.

8/12/23
(S.R. JAYASHREE)
ASSISTANT REGISTRAR
9/12/23
4/12/23

Free legal aid will be provided to SC/ST, Women, Child, Convicted/Prisoners, Industrial workmen, Mentally ill, Disabled etc., and also whose annual income is less than Rs.1,00,000/-.
The eligible persons may contact the Member Secretary, High Court Legal Services Committee or District Legal Services Authority or Taluka Legal Services Committee.

SMD

1. The date on which the application was
received 31/1/23
2. The date on which the order was made
.....
3. The date on which the order was
delivered
4. The date on which the order was
delivered 4/2/23
5. The date on which the order was
delivered 4/2/23
6. The date on which the order was
delivered 4/2/23
7. The date on which the order was
delivered 4/2/23
8. The date on which the order was
delivered 4/2/23
9. The date on which the order was
delivered 4/2/23
10. The date on which the order was
delivered 4/2/23

TRUE COPY

8/12/23
Section Officer
High Court of Karnataka
Bengaluru - 560 001

(98)

Annexure K



NC: 2023:KHC:21756
WP No. 2074 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 23RD DAY OF JUNE, 2023

BEFORE

THE HON'BLE MR JUSTICE M.I.ARUN

WRIT PETITION NO. 2074 OF 2023 (KLR-RES)

BETWEEN:

SAINIK VIHAR SITE/HOUSE OWNERS
WELFARE ASSOCIATION
(REGD. OF SOCIETY)
KARNATAKA SOCIETIES REGISTRATION ACT, 1960.
NO 122, 9TH MAIN, SAINIK VIHAR LAYOUT,
KENCHANAHALLI, YELAHANKA,
BENGALURU-560 064.
REP BY ITS PRESIDENT,
SRI T.S.SUJITH BABU,
S/O LATE SRIRAMULU.

...PETITIONER

(BY SRI. ABDUL NAZEER MATTARA, ADVOCATE)

AND:

1. THE TAHSILDAR,
BANGALORE NORTH TALUK,
YELHANKA UPANAGARA,
BENGALURU.
2. RAMESH,
A SECTOR,
YELAHANKA NEW TOWN,
YELAHANKA-560 064.
3. MR. AZMATH ULLA KHAN,
S/O IBRAHIM KHAN,
AGED ABOUT 42 YEARS,
R/AT NO.17/A, H CROSS ROAD,
BISMILAH NAGAR,
BENGALURU-560 029.

...RESPONDENTS

This Certified copy contains..... pages
And Copying charges with of ₹.....
Received



Digitally
signed by V
MAHESHA
BAI
Location:
High Court of
Karnataka

99



-2-

NC: 2023:KHC:21756
WP No. 2074 of 2023

(BY SRI. SESHU V., HCGP FOR R1;
SRI. VIVEK R., ADVOCATE FOR R2;
SRI. ASHOK HARNAHALI, SR.COUNSEL A/W
SRI. RAGHAVA PARTHASARATHY, ADVOCATE FOR R3)

THIS WP IS FILED UNDER ARTICLES 226 AND 227 OF CONSTITUTION OF INDIA PRAYING TO SET ASIDE/QUASH THE ORDER DATED 10.01.2023 PASSED BY RESPONDENT NO.1 IN ALN(Y)R/10/2022-23 OR ANNEXURE-G AND ETC.

THIS PETITION, COMING ON FOR ORDERS THROUGH PHYSICAL HEARING/VIDEO CONFERENCING, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

1. The petitioner is said to be a society of House Owners living in Sainik Vihar Association. Aggrieved by the order of respondent No.1, wherein, it has been ordered that 2 acres in Sy.No.33/1 and 33/3, 3 acres 32 guntas in Sy.No.34/2, 1 acre 33 guntas in Sy.No.33/5 and 8 guntas in Sy.No.34/3 are agricultural land and same has been used for non-agricultural purposes and hence, the same is ordered to be vacated, the instant writ petition is filed.

Admittedly, petitioner is not the owner of the property concerned. If any person is aggrieved by the said





order they are at liberty to challenge the same in the manner known to law.

3. Further, the learned HCGP for respondent No.1 upon instructions submits that the impugned order will be implemented only against the persons who are party to the proceedings and not against those who are not a party to the proceedings before respondent No.1. If anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an opportunity of hearing.

4. On the ground that the petitioner-Society has no *locus-standi*, and in the light of the undertaking given by the learned HCGP, the writ petition is hereby **dismissed**. In view of dismissal of the main petition, pending IAs. stand disposed of.

SD/-
JUDGE

TRUE COPY

Section Officer
High Court of Karnataka
Bengaluru - 560 001



- a) The date on which the application was made 26/04/2023
- b) The date on which charges and additional charges if any are due 26/04/2023
- c) The date on which charges and additional charges if any are received/ paid 26/04/2023
- d) The date on which the copy is ready 26/04/2023
- e) The date of notifying that the copy is ready for delivery 26/04/2023
- f) The date on which the applicant is required to appear on or before 01/08/2023
- g) The date on which the copy is delivered to the Applicant 28/7/23
- h) Examined by A

101

Annexure L



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಕರ್ನಾಟಕ ರೇವರು ಕಾರ್ಯಾಲಯ, ಮಿನಿವಿಡಿಗಾಂವ್, ಯಲಹಂಕ ಬೆಂಗಳೂರು-560064

Telephone : 080-28560696.

Fax : 080-28560763

Email: thasildarynk@gmail.com

ಸಂಖ್ಯೆ: ಎಲ್ ಎಸ್ (ಪ್ರೈ)ಆರ್/10/2022-23

ದಿನಾಂಕ: 05.07.2022

- 1) ಮಾನ್ಯ ಗುಂಟೆ ಆಯುಕ್ತರು,
ಯಲಹಂಕ ವಲಯ, ಬ್ಯಾಬರಾಯನಹಳ್ಳಿ
- 2) ಆರಕ್ಷಕ ಪುತ್ರ ನಿರೀಕ್ಷಕರು,
ಯಲಹಂಕ ಪೊಲೀಸ್ ಠಾಣೆ.
- 3) ಕಾರ್ಯಪಾಲಕ ಅಧೀಯಂತರು,
ಬೆಸ್ಸಾಂ ಇಂಧನ ಇಲಾಖೆ, ಯಲಹಂಕ ತಾಲ್ಲೂಕು

ಇಂಟಿಮಿಟರ ಪತ್ರ
ಯಲಹಂಕ ವಲಯ, ಬೆಸ್ಸಾಂ
ಸಂಖ್ಯೆ: ಎಲ್ ಎಸ್ 9/1/2022
ಬ್ಯಾಬರಾಯನಹಳ್ಳಿ, ಬೆಂಗಳೂರು

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ಸಂ.33/1, 33/3 ರಲ್ಲಿ 2-00 ಎಕರೆ, ಸರ್ವೆ ಸಂ.33/5 ರಲ್ಲಿ 1-33 ಎಗುಂಟೆ, ಸರ್ವೆ ಸಂ.34/2 ರಲ್ಲಿ 3-32 ಎಗುಂಟೆ, ಸರ್ವೆ ಸಂ.34/3 ರಲ್ಲಿ 0-08 ಗುಂಟೆ ಅನಧಿಕೃತವಾಗಿ ಬಡಾವಣೆ ನಿರ್ಮಿಸಿರುವುದನ್ನು ತೆರವು ಕಾರ್ಯಾಚರಣೆ ನಡೆಸಲು ಸೂಕ್ತ ಪೊಲೀಸ್ ಬಂದೋಬಸ್ತ್ ವ್ಯವಸ್ಥೆ ಕಲ್ಪಿಸುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ:- ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು, ಯಲಹಂಕ ರೆವರು ವರದಿ ಸಂಖ್ಯೆ: ರಾ.ನಿ(ಯ-1)ಆರ್-311/2022-23, ದಿನಾಂಕ:10/11/2022.

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ಸಂ.33/1, 33/3 ರಲ್ಲಿ 2-00 ಎಕರೆ, ಸರ್ವೆ ಸಂ.33/5 ರಲ್ಲಿ 1-33 ಎಗುಂಟೆ, ಸರ್ವೆ ಸಂ.34/2 ರಲ್ಲಿ 3-32 ಎಗುಂಟೆ, ಸರ್ವೆ ಸಂ.34/3 ರಲ್ಲಿ 0-08 ಗುಂಟೆ ಜಮೀನುಗಳಲ್ಲಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ನಿರ್ಮಾಣ ಮಾಡುತ್ತಿರುವುದಾಗಿ ಶ್ರೀ ಅಜ್ಜುಕುಲ್ಲಾವಾನ್ ಎಂಬುವವರು ಸರ್ಕಾರಕ್ಕೆ ದೂರು ಸಲ್ಲಿಸಿದ್ದು, ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ:ಆರ್.ಡಿ/06/ಎಲ್.ಜಿ.ಬಿ/2021 ದಿನಾಂಕ: 04.10.2021 ಮತ್ತು ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಪತ್ರ ಸಂಖ್ಯೆ:ಎಎಲ್.ಎಸ್/ಪ್ರೈ/ಆರ್/12/20-21 ಪತ್ರದಲ್ಲಿ ದಿನಾಂಕ:04/01/2022 ಇವರ ದೂರಿನ ಬಗ್ಗೆ ನಿಯಮಾನುಸಾರ ಪರಿಶೀಲಿಸಿ ಅಗತ್ಯ ಕ್ರಮ ವಹಿಸುವಂತೆ ಸೂಚಿಸಲಾಗಿರುತ್ತದೆ.

ತತ್ಸಂಬಂಧವಾಗಿ ಉಲ್ಲೇಖದಂತೆ ವರದಿ ಸಲ್ಲಿಸುವಂತೆ ಈ ಕಛೇರಿ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಪ್ರಕರಣ ದಾಖಲಿಸಿಕೊಂಡು ಪ್ರಸ್ತಾಪಿತ ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ಸಂ.33/1, 33/3 ರಲ್ಲಿ 2-00 ಎಕರೆ, ಸರ್ವೆ ಸಂ.33/5 ರಲ್ಲಿ 1-33 ಎಗುಂಟೆ, ಸರ್ವೆ ಸಂ.34/2 ರಲ್ಲಿ 3-32 ಎಗುಂಟೆ, ಸರ್ವೆ ಸಂ.34/3 ರಲ್ಲಿ 0-08 ಗುಂಟೆ ಜಮೀನುಗಳಲ್ಲಿ ಬಡಾವಣೆಯಾಗಿದ್ದು, ವ್ಯವಸಾಯದ ಉದ್ದೇಶಕ್ಕೆ ನಿಯಮ ಬಾಹಿರವಾಗಿ ಬಳಸಿಕೊಂಡಿರುವುದು ಕಂಡುಬಂದಿರುವುದರಿಂದ ಸದರಿ ಬಡಾವಣೆಯು ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ 1964 ರ ಕಲಂ 192-ಎ ರಂತೆ ಕಾನೂನು ಕ್ರಮ ಜರುಗಿಸುವುದು. ಮೇಲೆ ಸದರಿ ಅಕ್ರಮ ಬಡಾವಣೆಯನ್ನು ತೆರವುಗೊಳಿಸುವುದು ಸೂಕ್ತ ಎಂದು ಕಂಡು ಬಂದಿರುವುದರಿಂದ ಉಲ್ಲೇಖ (2) ರಂತೆ ಅಕ್ರಮದಾರರಿಗೆ ವಿಚಾರಣೆ ನಡೆಸಿ, ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿ ಅಕ್ರಮ ಬಡಾವಣೆ ತೆರವಿಗೆ ಆದೇಶಿಸಲಾಗಿರುತ್ತದೆ.

103

-2-

ಆದ್ದರಿಂದ ಮೇಲ್ಕಂಡ ಸರ್ವೆ ನಂಬರುಗಳ ಜಮೀನಿನಲ್ಲಿನ ಅಕ್ರಮ ಬಡಾವಣೆಯನ್ನು ತೆರವುಗೊಳಿಸಲು ದಿನಾಂಕ: 10.07.24 ರಂದು ನಿಗದಿಪಡಿಸಲಾಗಿರುತ್ತದೆ. ಸದರಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ತೆರವು ಕಾರ್ಯಾಚರಣೆ ಮಾಡುವ ವೇಳೆ ಯಾವುದೇ ರೀತಿಯ ಅಹಿತಕರ ಘಟನೆ ನಡೆಯದಂತೆ ಕಂದಾಯ ಇಲಾಖಾ ಸಿಬ್ಬಂದಿಯವರಿಗೆ ಮೊಲೀಸ್ ಇಲಾಖೆಯಿಂದ ಸೂಕ್ತ ಮೊಲೀಸ್ ಬಂದೋಬಸ್ತ್ ವ್ಯವಸ್ಥೆ ಕಲ್ಪಿಸಲು ಹಾಗೂ ಸದರಿ ದಿನಾಂಕದಂದು ಬಿ.ಬಿ.ಎಂ.ಪಿ ಇಲಾಖೆಯವರು ತಮ್ಮ ಸಿಬ್ಬಂದಿಯವರೊಂದಿಗೆ ಹಾಗೂ ಟೆಸ್ತಾಂ ಇಲಾಖೆಯವರು ತಮ್ಮ ಸಿಬ್ಬಂದಿಯವರೊಂದಿಗೆ ಸ್ಥಳದಲ್ಲಿ ಮುದ್ದು ಹಾಜರಿರಲು ಕೋರಿದೆ.

ತಮ್ಮ ವಿಶ್ವಾಸ.

ತಹಶೀಲ್ದಾರ್.

ಯಲಹಂಕ ಜಿಲ್ಲಾಧಿಕಾರಿ.

ಯಲಹಂಕ.

ಪ್ರತಿಯನ್ನು.

- 1) ಮಾನ್ಯ ಉಪ ಮೊಲೀಸ್ ಆಯುಕ್ತರು, ಈಶಾನ್ಯ ವಿಭಾಗ, ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ
- 2) ಮಾನ್ಯ ಸಹಾಯಕ ಮೊಲೀಸ್ ಆಯುಕ್ತರು, ಯಲಹಂಕ ಉಪ ವಿಭಾಗ
- 3) ಭೂಪಾಲಿಕೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರು, ಯಲಹಂಕ ರವರಿಗೆ ರವಾನಿಸುತ್ತಾ, ಮೇಲ್ಕಂಡ ದಿನಾಂಕದಂದು ಅನಧಿಕೃತ ಬಡಾವಣೆ ತೆರವು ಕಾರ್ಯಾಚರಣೆ ಸಮಯದಲ್ಲಿ ಸದರಿ ಜಮೀನಿನ ಹದ್ದುಬಸ್ತು ಗಡಿ ಗುರುತಿಸಲು ಭೂಮಾವಕರನ್ನು ನಿಯೋಜಿಸಲು ಕೋರಿದೆ.
- 4) ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು, ಯಲಹಂಕ-1, ವ್ಯಕ್ತ ರವರಿಗೆ ರವಾನಿಸುತ್ತಾ, ಮೇಲ್ಕಂಡ ದಿನಾಂಕದಂದು ಅನಧಿಕೃತ ಬಡಾವಣೆ ತೆರವು ಕಾರ್ಯಾಚರಣೆ ಸಮಯದಲ್ಲಿ ಸಂಬಂಧಪಟ್ಟ ಗ್ರಾಮೀಣಾಧಿಕಾರಿಗಳೊಂದಿಗೆ ಮುದ್ದು ಸ್ಥಳ ಹಾಜರಿದ್ದು, ಸದರಿ ತೆರವು ಕಾರ್ಯಾಚರಣೆ ನಡೆಸಿ, ಈ ಕುರಿತು ಕಛೇರಿಗೆ ವರದಿ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

103

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ತಹಶೀಲ್ದಾರ್ ರವರ ಕಾರ್ಯಾಲಯ, ಮಿನಿವಿಧಾನಸೌಧ ಯಲಹಂಕ ಬೆಂಗಳೂರು 56-64

ಸಂಖ್ಯೆ: ಎಲ್‌ಎನ್(ವೈ)ಆರ್/10/2022-23

ದಿನಾಂಕ:05/07/2024

- 1) ಮಾನ್ಯ ಜಂಟಿ ಆಯುಕ್ತರು
ಯಲಹಂಕ ವಲಯ, ಬ್ಯಾಟರಾಯನಪುರ
- 2) ಆರಕ್ಷಕ ವೃತ್ತ ನಿರೀಕ್ಷಕರು
ಯಲಹಂಕ ಪೊಲೀಸ್ ಠಾಣೆ
- 3) ಕಾರ್ಯಪಾಲಕ ಅಭಿಯಂತರರು
ಬೆಸ್ಕಾಂ ಇಂಧನ ಇಲಾಖೆ,
ಯಲಹಂಕ ತಾಲ್ಲೂಕು

ಮಾನ್ಯರೇ,

ವಿಷಯ: ಯಲಹಂಕ ತಾಲ್ಲೂಕು, ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ
ಗ್ರಾಮದ ಸರ್ವೆ ನಂ 33/1, 33/3 ರಲ್ಲಿ 2-00 ಎಕರೆ, ಸರ್ವೆ ನಂ
33/5 ರಲ್ಲಿ 1-33 ಎ/ಗುಂಟೆ, ಸರ್ವೆ ನಂ 34/2 ರಲ್ಲಿ 3-32
ಎ/ಗುಂಟೆ, ಸರ್ವೆ ನಂ 34/3 ರಲ್ಲಿ 0-08 ಗುಂಟೆ ಅನಧಿಕೃತವಾಗಿ
ಬಡಾವಣೆ ನಿರ್ಮಿಸಿರುವುದನ್ನು ತೆರವು ಕಾರ್ಯಚರಣೆ ನಡೆಸಲು
ಸೂಕ್ತ ಪೊಲೀಸ್ ಬಂದೋಬಸ್ತ ವ್ಯವಸ್ಥೆ ಕಲ್ಪಿಸುವ ಬಗ್ಗೆ

ಉಲ್ಲೇಖ: ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು, ಯಲಹಂಕ ರವರ ವರದಿ ಸಂಖ್ಯೆ: ರಾ ನಿ
(ಯ-1) ಸಿಆರ್-311/2022-23, ದಿನಾಂಕ:10/11/2022

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಯಲಹಂಕ ತಾಲ್ಲೂಕು,
ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 33/1, 33/3 ರಲ್ಲಿ
2-00 ಎಕರೆ, ಸರ್ವೆ ನಂ 33/5 ರಲ್ಲಿ 1-33 ಎ/ಗುಂಟೆ, ಸರ್ವೆ ನಂ 34/2 ರಲ್ಲಿ
3-32 ಎ/ಗುಂಟೆ, ಸರ್ವೆ ನಂ 34/3 ರಲ್ಲಿ 0-08 ಗುಂಟೆ ಜಮೀನುಗಳಲ್ಲಿ
ಅನಧಿಕೃತ ಬಡಾವಣೆ ನಿರ್ಮಾಣ ಮಾಡುತ್ತಿರುವುದಾಗಿ ಶ್ರೀ ಅಜ್ಜುತುಲ್ಲಾಖಾನ್
ಎಂಬುವವರು ಸರ್ಕಾರಕ್ಕೆ ದೂರು ಸಲ್ಲಿಸಿದ್ದು, ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ: ಆರ್
ಡಿ/06/2021 ಜಿ ಬಿ/2021 ದಿನಾಂಕ 04/10/2021 ಮತ್ತು ಮಾನ್ಯ

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಪತ್ರ ಸಂಖ್ಯೆ: ಎಎಲ್‌ಎನ್/ವೈ/ಸಿಆರ್/12/20-21 ಪತ್ರದಲ್ಲಿ
ದಿನಾಂಕ 04/01/2022 ಇವರ ದೂರಿನ ಬಗ್ಗೆ ನಿಯಮಾನುಸಾರ ಪರಿಶೀಲಿಸಿ
ಅಗತ್ಯಕ್ರಮ ವಹಿಸುವಂತೆ ಸೂಚಿಸಲಾಗಿರುತ್ತದೆ.

ತತ್ಸಂಬಂಧವಾಗಿ ಉಲ್ಲೇಖದಂತೆ ವರದಿ ಸಲ್ಲಿಸಿರುವಂತೆ ಈ ಕಛೇರಿ
ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಪ್ರಕರಣ ದಾಖಲಿಸಿಕೊಂಡ ಪ್ರಸ್ತಾಪಿತ ಯಲಹಂಕ ತಾಲ್ಲೂಕು,
ಯಲಹಂಕ ಹೋಬಳಿ, ಕೆಂಚೇನಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ 33/1, 33/3 ರಲ್ಲಿ
2-00 ಎಕರೆ, ಸರ್ವೆ ನಂ 33/5 ರಲ್ಲಿ 1-33 ಎ/ಗುಂಟೆ, ಸರ್ವೆ ನಂ 34/2 ರಲ್ಲಿ
3-32 ಎ/ಗುಂಟೆ, ಸರ್ವೆ ನಂ 34/3 ರಲ್ಲಿ 0-08 ಗುಂಟೆ ಜಮೀನುಗಳಲ್ಲಿ
ಬಡಾವಣೆಯಾಗಿದ್ದು ವ್ಯವಸಾಯೇತರ ಉದ್ದೇಶಕ್ಕೆ ನಯಮ ಬಾಹಿರವಾಗಿ
ಬಳಸಿಕೊಂಡಿರುವುದು ಕಂಡು ಬಂದಿರುವುದರಿಂದ ಸದರಿ ಬಡಾವಣೆಯನ್ನು
ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ 1964 ರ ಕಲಂ 192-ಎ ರಂತೆ ಕಾನೂನು
ಕ್ರಮ ಜರುಗಿಸುವುದು ಮತ್ತು ಸದರಿ ಅಕ್ರಮ ಬಡಾವಣೆಯನ್ನು
ತೆರವುಗೊಳಿಸುವದ ಸೂಕ್ತ ಎಂದು ಕಂಡು ಬಂದಿರುವುದರಿಂದ ಉಲ್ಲೇಖ (2)
ರಂತೆ ಅಕ್ರಮದಾರರಿಗೆ ವಿಚಾರಣೆ ನಡೆಸಿ, ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿ ಅಕ್ರಮ
ಬಡಾವಣೆ ತೆರವಿಗೆ ಆದೇಶಿಸಲಾಗಿರುತ್ತದೆ.

ಆದ್ದರಿಂದ ಮೇಲ್ಕಂಡ ಸರ್ವೆ ಸಂಬಂಧಗಳ ಜಮೀನಿನಲ್ಲಿನ ಅಕ್ರಮ
ಬಡಾವಣೆಯನ್ನು ತೆರವುಗೊಳಿಸಲು ದಿನಾಂಕ: 10/07/24 ರಂದು
ನಿಗದಿಪಡಿಸಲಾಗಿರುತ್ತದೆ. ಸದರಿ ಅನಧಿಕೃತ ಬಡಾವಣೆ ತೆರವು ಕಾರ್ಯಚರಣೆ
ಮಾಡುವ ವೇಳೆ ಯಾವುದೇ ರೀತಿಯ ಅಹಿತಕರ ಘಟನೆ ನಡೆಯದಂತೆ
ಕಂದಾಯ ಇಲಾಖಾ ಸಿಬ್ಬಂದಿಯವರಿಗೆ ಮೊಲೀಸ್ ಇಲಾಖೆಯಿಂದ ಸೂಕ್ತ
ಮೊಲೀಸ್ ಬಂದೋಬಸ್ತ ವ್ಯವಸ್ಥೆ ಕಲ್ಪಿಸಲು ಹಾಗೂ ಸದರಿ ದಿನಾಂಕದಂದು
ಬಿ.ಬಿ.ಎಂ.ಸಿ ಇಲಾಖೆಯವರು ತಮ್ಮ ಸಿಬ್ಬಂದಿಯವರೊಂದಿಗೆ ಹಾಗೂ ಬೆಸ್ಕಾಂ

ಇಲಾಖೆಯವರು ತಮ್ಮ ಸಿಬ್ಬಂದಿಯವರೊಂದಿಗೆ ಸ್ಥಳದಲ್ಲಿ ಖುದ್ದು ಹಾಜರಿರಲು ಕೋರಿದೆ.

ತಮ್ಮ ವಿಶ್ವಾಸಿ
ಸಹಿ/-
ತಹಸೀಲ್ದಾರ್
ಯಲಹಂಕ ತಾಲ್ಲೂಕು
ಯಲಹಂಕ

ಪ್ರತಿಯನ್ನು:

- 1) ಮಾನ್ಯ ಉಪ ಪೊಲೀಸ್ ಆಯುಕ್ತರು, ಈಶಾನ್ಯ ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ
- 2) ಮಾನ್ಯ ಸಹಾಯಕ ಪೊಲೀಸ್ ಆಯುಕ್ತರು, ಯಲಹಂಕ ಉಪವಿಭಾಗ
- 3) ಭೂದಾಖಲೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರು, ಯಲಹಂಕ ರವರಿಗೆ ರವಾನಿಸುತ್ತಾ ಮೇಲ್ಕಂಡ ದಿನಾಂಕದಂದು ಅನಧಿಕೃತ ಬಡಾವಣೆ ತೆರವು ಕಾರ್ಯಚರಣೆ ಸಮಯದಲ್ಲಿ ಸದರಿ ಜಮೀನಿನ ಹದ್ದುಬಸ್ತು ಗಡಿ ಗುರ್ತಿಸಲು ಭೂಮಾವಕರನ್ನು ನಿಯೋಜಿಸಲು ಕೋರಿದೆ.
- 4) ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರು, ಯಲಹಂಕ-1 ವೃತ್ತ ರವರಿಗೆ ರವಾನಿಸುತ್ತಾ, ಮೇಲ್ಕಂಡ ದಿನಾಂಕದಂದು ಅನಧಿಕೃತ ಬಡಾವಣೆ ತೆರವು ಕಾರ್ಯಚರಣೆ ಸಮಯದಲ್ಲಿ ಸಂಬಂಧಪಟ್ಟ ಗ್ರಾಮಲೆಕ್ಕಾಧಿಕಾರಿಗಳೊಂದಿಗೆ ಖುದ್ದು ಸ್ಥಳ ಹಾಜರಿದ್ದು, ಸದರಿ ತೆರವು ಕಾರ್ಯಚರಣೆ ನಡೆಸಿ, ಈ ಕುರಿತು ಕಛೇರಿಗೆ ವರದಿ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

106

Annexure - M



107

Annexure - M1



108

Annexes - H2



109

Annexus M3



110

Annexure H4



(11)

Annex 15



118

Annex 116



113

Annexable H7



114

Annexelle M8



115

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No.18606/2024

Between:

Mr. Sohanlal Joshi Petitioner

And:

The State of Karnataka & Others Respondents

STATEMENT OF OBJECTIONS FILED ON BEHALF OF THE
4th RESPONDENT

The 4th Respondent respectfully submits as follows:

1. The Writ Petition filed by the Petitioner challenging the order dated 10.01.2023 at Annexure - 'H' and seeking a direction to the 2nd Respondent not to evict/demolish the existing building in the Schedule Property is not sustainable both in law as well as on facts and the same is required to be rejected.
2. The Writ Petition is completely misconceived. As a preliminary objection, the Writ Petition is not maintainable having regard to an alternative and efficacious remedy by way of the statutory appeal. The order under challenge is passed by the Tahsildar and every order passed by the Tahsildar is amenable to challenge under section 49 of the Karnataka Land Revenue Act, 1964 ("**KLR Act**"). The Petitioner has made a false and misleading averment in the Petition to the effect that there is no other alternative or efficacious remedy. On this ground alone, the Writ Petition is required to be dismissed.

3. The Petitioner has approached this Hon'ble Court claiming that he has purchased Site Nos.123 & 124 formed in Sy. No.33 of Kenchenahalli Village, Yelahanka Hobli, measuring East to West: 60 ft. and North to South: 40 ft. It is necessary to state that one Mr. Ramlal Sharma had filed a suit in O.S.No.653/2007 claiming that he was the owner and in possession of the adjoining site bearing site No.122 assessed to Gantiganahalli Village Panchayath (Khata No.33/34). It was further pleaded that the lands in Sy. Nos.33 & 34 of Kenchenahalli Village, Yelahanka Hobli, originally belonged to one Sri. S.K. Mariyappa who purchased the said lands from one Sri. Gopal Rao and Sri. T.S. Venkata Rao under Sale Deeds dated 17.10.1993 and 31.10.1995. The said Sri. S.K. Mariyappa died intestate leaving his wife Smt. Gowri and Sri. Manoj who is stated to have sold the sites in favour of the aforesaid Sri. Ramlal Sharma. It was further claimed that one Mr. Mohammed Saleem had formed a residential layout and the sites including the site claimed by the Petitioners herein are in the said alleged layout. The suit was contested. O.S. No.665/2007 was clubbed with various other suits. The Trial Court after considering the documentary and oral evidence on record, proceeded to dismiss all the suits by a Judgment and Decree dated 31.07.2021. The copy of the Judgment and Decree dated 31.07.2021 is herewith produced as Annexure - 'R1'.

4. It is relevant to mention here that one Mr. Tararam had initiated proceedings in O.S. No.653/2007 in relation to alleged

Site Nos.11 & 12 which suit was dismissed on 07.10.2007. It is also necessary to state that in respect of what is claimed as the neighbouring site, though there is no such site in existence, another suit in O.S.No.656/2007 was filed claiming ownership of Site No.10 which was dismissed on 04.09.2018. It is relevant to mention here that the competent Civil Court has held on perusal of the material evidence that there is no material to show physical existence of the various properties in relation to which the suits were filed. The competent Civil Court has further held that there is no material produced to correlate the site numbers. Admittedly, there is no approved layout or sanctioned plan given by any competent authority. Therefore, the so called sites claimed apart from not being in existence, the said sites also cannot be traced to Sy. Nos.33 & 34 of Kenchenahalli Village, Yelahnaka Hobli. As could be seen, the civil suits having already been dismissed and having attained finality, there is no question of the Petitioner claiming that he has any right over the property to file a Writ Petition. In substance, the Petitioner has no locus standi to file the instant Writ Petition in as much as in respect of the very same properties, there were litigations initiated and the same are already dismissed and the question of entertaining the Petition at the instance of the present Petitioner does not arise at all.

5. This Respondent further submits that all the alleged site owners including the Petitioner herein claims that the Sale Deeds are executed by one Mr. Mohammed Saleem as a Power of Attorney Holder. The Power of Attorney which is stated to

(118)

have been executed in relation to the alleged sites, has not seen the light of the day. If Mr. Mohammed Saleem is claimed as the Power of Attorney Holder, he has a history in as much as he is the son of the infamous Mr. Mohammed Fakruddin of M/s. Malleshwaram Tailoring Cooperative Society which has committed all possible frauds in and around the city and the legacy of Mr. Mohammed Fakruddin is continued by Mr. Mohammed Saleem. It is necessary to state that there are criminal cases which are already filed and in which charge sheets are also filed for offences of forgery and cheating against Mr. Mohammed Saleem pertaining to the alleged Power of Attorney. In light of the aforesaid aspect when the claim of existence of there being a layout and sites has been negatives by a competent Court and the very identity of the sites has not been established before the competent Court, the present Petition is completely unsustainable in the eyes of law, that too as the owner of an alleged site. The Petitioner has no locus standi of whatsoever nature to maintain the present Petition seeking various prayers. On that ground itself, the Petition is required to be rejected.

6. The Writ Petition is also barred by delay and latches, as the challenge is to the order dated 10.01.2023 (Annexure - 'H'). The said order is passed by exercise of powers under Section 192-A of the Karnataka Land Revenue Act. The said order was challenged through Sainik Vihar Site/House Owners' Welfare Association before this Hon'ble Court in W.P. No.2074/2023 which Writ Petition came to be dismissed by an

order dated 23.06.2023. The said order is at Annexure - 'K'. The Petitioner had therefore the knowledge of the said order and the challenge in W.P. No.2074/2023 has been negative. The very same issue cannot be voiced or challenged in an indirect manner by filing the present Petition. It is well settled that the concept and the bar of resjudicata is applicable to writ proceedings as well. The petitioner cannot commence a second innings after the Association had challenged the order and the same was negative by this Hon'ble Court. The present proceedings is therefore an abuse of the process of this Hon'ble Court. The present Petition is filed after 18 months and the belated approach to the Court without any proper explanation, would disable the Petitioner from claiming any relief even on the grounds of equity.

7. The Petitioner has not placed the facts before this Court and has suppressed the filing of the civil suits and also the dismissal of Writ Petition filed by the Association on the ground of locus standi. This suppression is deliberate. The Petitioner intends to deliberately mislead this Court by withholding vital information and particularly, the Judgment and Decree in the civil suits and the dismissal of the earlier Writ Petition. The writ jurisdiction is not only a discretionary jurisdiction but is also equitable. The Courts have repeatedly declined to entertain any Petition where there is suppression of material facts or where the Petitioner has not approached the Court with clean hands. On this ground alone, the Petition is required to be summarily rejected.

(190)

8. Even otherwise, the Petitioner in an endeavor to gain some kind of sympathy has deliberately suppressed material facts and circumstances before this Court. It is necessary to state that the lands comprised in Sy.No.33 (New No.33/1 measuring 2 Acres, 10 Guntas, 33/3 measuring 2 Acres and 33/5 measuring 1 Acre, 33 Guntas) of Kenchenahalli Village, Yelahanka Hobli originally belonged to one Smt. Indira Bai and Smt. Ratnaji Rao who are wife and daughter respectively of Late Sri. P.S. Ramachandra Rao. They had jointly sold the above mentioned property in favour of Sri. S.K. Mariyappa under two different Sale Deeds both dated 09.08.1995 (Document Nos.5948/1995 & 5949/1995). The said Sri. S.K. Mariyappa thus became the absolute owner in possession and enjoyment of the aforesaid lands. Sri. S.K. Mariyappa sold the aforesaid properties in favour of Sri. Shamsunder R. Bhatija under three registered Sale Deeds, all dated 20.01.1996 (Document Nos.6990, 6991 & 6992/95-96) and physical possession of the Schedule Property were also handed over to the said purchaser Sri. Shamsunder R. Bhatija. The copies of the three Sale Deeds dated 20.01.1996 are all produced as Annexures - 'R2' to 'R4'.

9. Sri. Shamsunder R. Bhatija having become the absolute owner in possession and enjoyment of the aforesaid land, made an application to the revenue authority to effect revenue entries and accordingly, all the revenue documents were mutated in the name of the said purchaser. Sri. Shamsunder R. Bhatija has sold the same to Respondent No.4 - Mr.

Azmathulla Khan under three registered Sale Deeds dated 23.11.2016 (Document No.5309/2016-17, 5312/2016-17 and 5313/2016-17). The revenue entries were mutated in the name of Mr. Azmathulla Khan. The copy of the Sale Deed dated 23.11.2016 is produced as **Annexure - 'R5' to 'R7'**. The RTC in relation to the same is produced as **Annexure - 'R8'**.

10. In so far as lands comprised in Sy. No.34 of Kenchenahalli Village, Yelahanka Hobli are concerned, the same originally belonged to one Sri. T.S. Santoji Rao who had executed a WILL on 01.09.1984 bequeathing 2 acres each in favour of Sri. T.S. Narayan Rao and Sri. T.S. Krishnoji Rao. After the demise of the said Sri. T.S. Santoji Rao, the legatees, Sri. T.S. Narayan Rao and Sri. T.S. Krishnoji Rao, have sold, in all 4 acres in favour of Mr. Abdul Rafeekh under two registered Sale Deeds dated 29.06.1995 (Document No.2519/95-96 & 2520/95-96). The copies of the Sale Deeds dated 29.06.1995 are produced as **Annexures - 'R9' & 'R10'**. Mr. Mohammed Rafeekh had in turn, sold the lands in Sy.No.34 measuring 4 Acres acquired in terms of the above two Sale Deeds in favour of Ms. Anju Ahuja under three registered Sale Deed dated 14.07.1997 to an extent of 2 Acres, 1 Acre and 32 Guntas. The copies of the said Sale Deeds dated 14.07.1997 are produced as **Annexures - 'R11' & 'R12'**. The revenue entries are continuously maintained as per the said Sale Deeds and Ms. Anju Ahuja has sold the property in favour of the 4th Respondent on 31.12.2019. The copy of the Sale Deed dated 31.12.2019 is produced as **Annexure - 'R13'** The revenue

entries were mutated in the name of Mr. Azmathulla Khan, the 4th Respondent and subsequently, Mr. Azmathulla Khan has sold the property in favour of Sri. G. Venkataramana and Smt. Uma Venkat under the registered Sale Deed dated 20.11.2023. The copy of the Sale Deed dated 20.11.2023 is produced as **Annexure - 'R14'**. Pursuant to the Sale Deed dated 20.11.2023, the RTC is also made out in their names and the RTC extracts pertaining to the property bearing Sy.No.34 is produced as **Annexures - 'R15'**.

11. It is therefore seen that much prior to the purchase of the alleged sites, the entire extent of land has been sold and alienated in the manner stated above and therefore, on the very face of it, the family members of Sri. S.K. Mariyappa never had any manner of right in relation to the lands in the year 2005-06. If that be so, the question of the family members of Sri. S.K. Mariyappa executing a Sale Deed through their alleged Power of Attorney Holder Mr. Mohammed Saleem would also not arise at all. The Petitioner therefore has no semblance of right in relation to the so called sites in relation to which, the Petitioner intends to exercise rights and filed the present Petition.

12. It is well settled that the Writ Court will not entertain or get into disputed questions of facts. This is more so when there are disputed questions pertaining to rights in relation to immovable properties are concerned. The Petitioner cannot claim any semblance of right over the property in question and the filing of this Petition is the handy work of Mr. Mohammed

Fakruddin's son namely Mr. Mohammed Saleem who has created this fictitious documents and people. In that view of the matter, there is nothing which the Petitioner can come and contend before this Court, more particularly in the teeth of the civil suits having already been dismissed in relation to the very same properties and claiming under the said Mr. Mohammed Saleem and the flow of title. In that view of the matter, there is no merits in the present Petition and the same deserves to be dismissed.

13. The order under challenge is passed in respect of an alleged layout which is found to be illegal and which was made when the area was not within BBMP limits, squarely coming within the mischief of section 96 of the Karnataka Land Revenue Act. Even in the Writ Petition, it is not stated whether there was any sanction plan, an order of conversion and whether for the purpose of putting up any construction, there has been any sanction plan by the competent authority and what is produced is a 'B' extract ('B' extract khata) which essentially means that the property is yet to be identified as a property capable of being managed under the BBMP. It is necessary at this juncture to rely upon the endorsement which clearly indicates that the property in question i.e., Sy.Nos.33 & 34 of Kenchenahalli Village, Yelahanka Hobli has not been handed over to BBMP even as on today.

14. There is no infirmity with the nature of proceedings that has been undertaken. The contention that the Petitioner is in possession of the property and that he should have been

heard, etc., or due process of law has to be followed, are all untenable contentions in the light of the principles laid down by the Hon'ble Supreme Court as followed by this Hon'ble Court which is held that once a litigation is initiated and rights are decided against a party concerned, there is no further requirement of due process of law and he can be thrown out at any stage. In that view of the matter, there is nothing which emanates from out of the Writ Petition and the nature of relief sought for, can never be granted at the instance of the Petitioner.

15. All other averments which are not specifically traversed or met by necessary implication are denied as false and the Petitioner is put to strict proof of the same.

WHEREFORE, the 4th Respondent most humbly prays that this Hon'ble Court be pleased to dismiss the Writ Petition by imposing exemplary costs, in the ends of justice and equity.

Bengaluru
Date: 09.09.2024.

(ABHINAV R.)
Advocate for 4th Respondent

195

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. 18606 /2024

BETWEEN:

Mr. Sohanlal Joshi

Petitioners

AND:

State of Karnatka and others

Respondents

AFFIDAVIT

I, Azmath Ullah Khan, Aged about 48 years, S/o. Late Ibrahim Khan, No.17/A, 'H' Cross Road, Bismillah Nagar, Bengaluru 560 029, do hereby solemnly affirm and state on oath as follows:

1. I am the 4th Respodent in the above case. I am conversant with the facts and circumstances of the case. Accordingly I am swearing to this affidavit on behalf of other Petitioners also.
2. The averments made in paragraphs 1 to 15 of the Statement of objections to Writ Petition this affidavit are all true and correct to the best of my knowledge, belief and information.
3. Annexures "R" to " 15" are true copies of the originals.

Amal

196

I, the Deponent herein, do hereby verify and declare that this is my name and signature and that the contents of this affidavit are all true and correct to the best of my knowledge, belief and information.

Identified by me

M. M. M.

Deponent

Sworn to before me

Advocate

Bengaluru

Date: 9/9/12

No. of corrections

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
BENGALURU RURAL DISTRICT, AT BENGALURU.

PRESENT: SRI CHANDRAIAH B.P., B.A.L.L.B.,
Prl. Civil Judge, Bengaluru Rural District, Bengaluru.

Dated this the 31ST day of July 2021

O. S. No. 665/2007 Clubbed with O. S. Nos. 648/2007,
650/2007, 651/2007, 652/2007, 654/2007, 658/2007,
660/2007, 795/2007, 796/2007, 797/2007, 798/2007
800/2007, 801/2007 and 803/2007.

PLAINTIFF in O. S. No. 665/2007

Ramlal Sharma S/o late. Pannala Sharma, Aged about 53 years, R/at No.22, Kodan Ramaiah Building, IV Block, Doddabommasandra, Bengaluru - 560097.

PLAINTIFF in O. S. No. 648/2007

Madhu Shree W/o Gautham Chand, Aged about 34 years, R/at No.102, Blue Bell Residence, Mariyappa Block, Dinnur Main Road, Bengaluru - 560032.

PLAINTIFF in O. S. No. 650/2007

Bhagyawanti Devi W/o Kaluram Parihar, Aged about 36 years, R/at No. 3/4, 23rd Cross, 3rd Floor, Cubban Pet, Bengaluru - 560 002.

PLAINTIFF in O. S. No. 651/2007

Kamala Devi W/o Chandraprakash, Aged about 35 years, R/at No.06/A1, 1st Lane, Rajaji Street, Dankanikota-635 107, Tamil Nadu.

PLAINTIFF in O. S. No. 652/2007

Nemi Chand Borana S/o Gama Ramji Borana, Aged about 59 years, R/at No.52, Devatha Market, Chickpet, Bengaluru - 560 053.

PLAINTIFF in O. S. No. 654/2007

Mohanlal Malviya S/o Anna Ramji, Aged about 29 years, R/at No.10, 28th Cross, Bagulgunte Main Road, Nagasandra Post, Bengaluru - 560 073.

(198)

PLAINTIFF in O. S. No. 658/2007

Sukiya Devi W/o Mehtap Ram, Aged about 38 years,
R/at No. 209, 4th Main, Chamarajpet, Bengaluru -
560 018.

PLAINTIFF in O. S. No. 660/2007

Lalitha Bai W/o Uttam Chand, Aged about 38 years,
R/at No. 8, MICO Layout, Geleyara Balaga Main
Road, Bengaluru - 560 086.

PLAINTIFF in O. S. No. 795/2007

Mishrilal S/o late. Kaluramji, Aged about 70 years,
R/at No.1947/65, 2nd main, 8th Cross, M.C. Layout,
Vijayanagar, Bengaluru - 560 040.

PLAINTIFF in O. S. No. 796/2007

Mangilal Parihar S/o Chena Ramji, Aged about 42
years, R/at No.25, Sanjeeva Naik Lane, K.R.S. Pet,
Cubbonpet Cross, Bengaluru - 560 002.

PLAINTIFF in O. S. No. 797/2007

T. Raksha W/o Tanukhlal, Aged about 26 years, R/at
No.1947/65, 2nd Main, 8th Cross, MC Layout,
Vijayanagar, Bengaluru - 560040.

PLAINTIFF in O. S. No. 798/2007

N. Prakash Chand S/o Nathulalji, Aged about 33
years, R/at No.18, 6th Main Road, Padarayanapura,
Bengaluru-560 026.

PLAINTIFF in O. S. No. 800/2007

Hiralal S/o Lachha Ramji, Aged about 28 years, R/at
No. 65/76, Pagariya Market, Mamulpet, Bengaluru -
560 053.

PLAINTIFF in O. S. No. 801/2007

Kailash Soni S/o Mohanlal Soni, Aged about 37
years, R/at No.564/17, 3rd Cross, 4th Main, 2nd block,
I Stage, BSK, Bengaluru - 560 050.

PLAINTIFF in O. S. No. 803/2007

Kamlesh M. Jain, S/o Mishri Lal, Aged about 32 years, R/at No.9, 1st Main, Club Road, RPC Layout, Vijayanagar, Bengaluru - 560040.

(By Sri. K. Jayaprakash and Y. G. Narasimhan, Advocates)

-Versus-

DEFENDANT/s:

Abdul Rafeeq S/o Abdul Rahim Sab, Aged about 56 years, R/at No. 85, Spences Road, Bengaluru-560005.

(By Sri. Vital Prasad. B, Advocate)

Date of institution of suit in O.S.No. 665/2007	27-03-2007
Date of institution of suit in O.S.No.648/2007, 650/2007, 651/2007, 652/2007, 654/2007, 658/2007 and 660/2007	26-03-2007.
in O. S. No.s 795/2007, 796/2007, 797/2007, 798/2007, 800/2007, 801/2007, 803/2007	09-04-2007.
Nature of Suit	Perpetual Injunction.
Date of evidence commenced	27-10-2009.
Date of evidence is closed	18.09.2019.
Date Judgment pronounced	31-07-2021
Total Duration	Years Months days.
in O. S. No. 665/2007	14 04 04
in O. S. No.648/2007, 650/2007, 651/2007, 652/2007,654/2007, 658/2007 and 660/2007	14 04 05
O.S.No. 795/2007, 796/2007, 797/2007, 798/2007, 800/2007, 801/2007 and 803/2007	14 03 22

Sd/-

PRI. CIVIL JUDGE,
BENGALURU RURAL DISTRICT,
BENGALURU.

(130)

COMMON JUDGMENT

These Plaintiffs are filed these separate suits for Permanent Injunction against the Defendant, their legal heirs, agents, workers, servants or any other person or persons from interfering with the Plaintiff's peaceful possession and enjoyment of the suits schedule properties in any manner whatsoever, cost, expenses of these suits and any other reliefs in the interest of justice and equity.

2. The subject matters in all these suits are vacant sites and pertains in the same survey numbers and Defendant in all these suits. Therefore, as per the order of this court in O. S. No. 665/2007, dated 22-01-2010 all these suits have been clubbed together and common evidence has been lead.

Brief facts of the Plaintiff's case in O. S. No. 665/2007 is as under:

3. It is the case of the Plaintiff that, One S.K. Mariyappa was the absolute owner of the land bearing Sy. No.33 and 34 of Kenchanahalli village, Yelahanka Hobli, Bengaluru North Taluk, Bengaluru. Further, said S.K. Mariyappa, during his life time developed the said land and formed residential layout and carved

several sites in the said land through his General Power of Attorney Holder Mohammed Salem and had also alienated some of the sites to the different persons, by executing sale deed, through Power of Attorney Holder Mohammed Saleem.

4. Further pleaded that, said S. K. Mariyappa purchased the said lands under Registered Sale Deed from one Gopal Rao and T. S. Venkata Rao vide sale deed dated 17/10/1993 and 31/10/1995. The said S. K. Mariyappa died intestate leaving behind his wife Gowri and son Manoj. The said Gowri and Manoj sold one of the site in favour of the Plaintiff through their Power of Attorney Holder Mohammed Saleem bearing Site No.122 of Gantiganahalli Village in Katha No. 33/34 of Kenchanahalli, Yelahanka Hobli, Bengaluru North Taluk, Bengaluru to an extent of East-West 56+38/2 feet, North-South 40 feet, measuring 1880 square feet, acquired under Registered Sale Deed dated 06/12/2004, registered as document No.17490/2004-05, stored in CD No.96, registered in the office of the Sub-Registrar, Yalahanka, Bangalore. Thereafter, khata was transferred in the name of the Plaintiff and he paying property tax.

5. The Plaintiff further Pleaded that, after acquiring the schedule property, he has put residential building to the entire extent of the schedule property and Plaintiff is in peaceful possession and enjoyment of the same. The Plaintiff alleged that, the Defendant in collusion with local developers and real estate agents on 02/03/2007 at about 01-00 PM trespassed and tried to gain possession of the suit schedule property by demolishing the structure put up by the Plaintiff. So, Plaintiff lodged criminal complaint against the Defendant and other before the jurisdictional police. The Plaintiff apprehends the danger to the schedule property in the hand of the Defendant. The Plaintiff further alleged that, the Defendant has no manner of right, title or interest of the schedule property in any manner whatsoever. At any time the Defendant may interference with the Plaintiff's peaceful possession of his property. Hence, the present suit.

Brief facts of the Plaintiffs case in O. S. No. 648/2007, 660/2007 and 651/2007 are as follows:

6. It is the case of the Plaintiff in O. S. No.648/2007, the vendor of the Plaintiff Prakash Chand S/o Nathulalki has acquired the site property bearing Gantiganahalli Village Panchyath Katha No. 33

and 34 to an extent of East-West 40 feet and North-South 120 feet, situated at Kenchanahalli Village, Yelahanka Hobli, Bengaluru North Taluk, under Registered Sale Deed dated 29.03.2006, registered as document No. 18821/05-06, registered in the office of the Sub-Registrar, Yelahanka.

7. Further pleaded that, said sites has been purchased by the vendor of the Plaintiff from one Saleem Pasha, who is the General Power of Attorney of the land lord S.K. Mariyappa, who formed the residential sites in the land bearing Sy. No.33 and 34 of Kenchenahalli Villge, Yelahanka Hobli, Bengaluru North Taluk. Further Pleased that, Plaintiff has purchased the said site No.4, old Khata No.33 and 34 New No.451/451 to an extent of East-West 30 feet and North-South 30 feet from his vender N. Prakash Chand under registered sale deed No.23765/06-07, stored in CD No.258, registered In the office of Sub-Registered, Yalahanka, Bangalore. Thereafter, khata was transfered in the name of the Plaintiff. Thereafter, Plaintiff has put up compound wall to the entire extent of the schedule property and the Plaintiff is in peaceful possession and enjoyment of the same.

8. It is the case of the Plaintiff in O. S. No. 651/2007, the vendor of the Plaintiff Prakash Chand, S/o Nathulalki, acquired the site property bearing Gantiganahalli Village Panchyath Katha No. 33 and 34 to an extent of East-West 40 feet and North-South 120 feet, situated at Kenchanahalli Village under Registered Sale Deed dated 29.03.2006, registered as document No. 18821/05-06. The said sites has been purchased by the vendor of the Plaintiff from one Saleem Pasha, who is the General Power of Attorney of the land lord S.K. Mariyappa.

9. The Plaintiff further pleaded that, he purchases the above said site bearing No.1 old katha No. 33 and 34 of Gantiganahalli Village Panchyath of Kenchenahalli Village from his vendor N. Prakash Chand to the extent of East-West 40 feet and North-South 30 feet, under Registered Sale Deed dated 15.04.2006, registered as document no. 00942/06-07, store in CD No.187. After purchase khata was transferred in the name of Plaintiff and his name was registered in the Demand Registered Extract. Thereafter, the Plaintiff has put up compound wall to the entire extent of the

compound wall to the entire extent of the schedule property and the Plaintiff is in peaceful possession and enjoyment of the same.

12. Further the all Plaintiffs pleaded that, the Defendant is in owner of the adjoining land has also formed residential layout in the adjoining lands and he in collusion with local developers and real estate agents on 02/03/2007 trespassed and tried to gain possession of the suit schedule property by demolishing the compound wall put up by the Plaintiff. The Plaintiff was lodged the criminal complaint against the Defendant and other before the jurisdictional police. The Plaintiff apprehends the danger to the schedule property in the hand of the Defendant and his agents. Hence, the present suit.

Brief facts of the Plaintiffs case in O. S. No. 650/2007, O. S. No. 652/2007, 654/2007, 658/2007, 795/2007, 796/2007, 797/2007, 801/2007 and 803/2007 is as follows:

13. It is the case of the Plaintiffs that, the Defendant who was the absolute owner of the dry land bearing Sy. No's 33 and 34 of Kenchanahalli Village, one Mohammed Saleem, S/o M.S. Mohammed Facruddin has develop the above land by forming residential layout and also authorized to sell to prospective purchaser and in this connection General Power of Attorney was

schedule property and the Plaintiff is in peaceful possession and enjoyment of the same.

10. It is the case of the Plaintiff in O.S. No.660/2007, the vendor of the Plaintiff Prakash Chand, S/o Nathulalki acquired the site property bearing Gantiganahalli Village Panchyath Katha No. 33 and 34 to an extent of East-West 40 feet and North-South 120 feet, situated at Kenchanahalli Village under Registered Sale Deed dated 29.03.2006, registered as document No. 18821/05-06, registered in the office of the Sub-Registrar, Yelahanka, Bengaluru. The said sites property has been purchased by the vendor of the Plaintiff from one Saleem Pasha, who is the General Power of Attorney of the land lord S.K. Mariyappa.

11. The Plaintiff further that, he purchased the site bearing No.3 old katha No. 33 and 34, new No. 451/451 of Gantiganahalli Village Panchyath of Kenchenahalli Village to an extent of East-West 40 feet and North-South 30 feet from his vendor N. Prakash Chand under Registered Sale Deed dated 06.12.2006, registered as document No. 23759/06-07, store in CD No.258. Thereafter, khata was transferred in the name of Plaintiff and he has put up



138

Attorney Holder namely Mohammed Saleem, S/o Mohammed Facruddin, under the Registered Sale Deed dated 18.09.2006, registered as document No. YAND-1-15458/2006-07 stored in C.D. No.YAND 231 in O. S. No.650/2007, further the Plaintiff in O.S. No. 652/2007 registered the property under the Registered Sale Deed dated 24.08.2006, registered as document No. YAN-1-12663/2006-07 stored in C. D. No. YAND 223, the Plaintiff in O. S. No. 654/2007 registered the property under the Registered Sale Deed dated 18.09.2006, registered as document No. 15446/2006-07 stored in C. D. No. YAND 231, the Plaintiff in O.S. No. 658/2007 registered the property under the Registered Sale Deed dated 18.09.2006, registered as document No. 15462/2006-7 stored in C.D.No.YAND 231, the Plaintiff in O. S. No.795/2007 registered the property under the Registered Sale Deed dated 13.02.2006, registered as document No. YANK/13415/2005-06 stored in C.D. No.YAND 168, the Plaintiff is O.S. No.796/2007 registered the property under the Registered Sale Deed dated 30.08.2006, registered as document No. 13386/2006-07 stored in C.D. No.YAND 225, the Plaintiff in O.S. No. 797/2007 registered the property under the Registered Sale Deed dated 13.02.2006, registered as

given in his name by the Defendant. The Plaintiffs further pleaded that, the Defendant was the absolute owner in respect of the vacant sites bearing No.19, measuring East-West 30 feet and North-South 40 feet vacant site property, bearing No.13, measuring East-West 40 feet and North-South 40 feet, vacant site property, bearing No.21, measuring East to West 40 feet and North to South 30 feet, vacant site property bearing No.26, measuring East-West 40 feet and North-South 30 feet, vacant site property, bearing No.197, measuring East-West 30 feet and North-South 40 feet, vacant site property bearing No.18, measuring East-West 30 feet and North-South 40 feet and vacant site property bearing No.195, measuring East-West 30 feet and North-South 40 feet, vacant site property, bearing site No.41, measuring East to West $47 + 49/2$ feet and North to South 30 feet, vacant site property bearing No.196, measuring East-West 30 feet and North-South 40 feet situated at Kenchenahalli Village.

14. The Plaintiffs further pleaded that, the Defendant who was in need of funds for maintenance of family and other legal necessities, sold the schedule property to the Plaintiff through their Power of

document No. YANK/13401/2005-06 stored in C.D. No.YAND 168, the Plaintiff in O.S. No.801/2007 registered the property under the Registered Sale Deed dated 11.12.2006, registered as document No. 24282/2006-07 stored in C.D. No. YAND 260, the Plaintiff in O.S. No.803/2007 registered the property under the Registered Sale Deed dated 13.02.2006, registered as document No. YANK/13405/2005-06 stored in C.D. No.YAND 168. Further, khata was transfer in their respective name from the name of Defendant. Thereafter, Plaintiffs have put up compound wall to the entire extent of the schedule property and the Plaintiffs are in peaceful possession and enjoyment of the same.

15. Further the Plaintiffs pleaded that, the Defendant in collusion with his Power of Attorney Holder and also with the local persons on 02/03/2007 and trespassed and tried to gain possession of the suit schedule property by demolishing the compound wall put up by the Plaintiffs. The Plaintiffs apprehends the danger to the schedule property in the hand of the Defendant. Hence, the present suit.

Brief facts of the Plaintiff in O. S. No. 798/2007 is as follows:

16. It is the case of the Plaintiff that, the vendor of the Plaintiff Mr. Mariyappa S/o Late. Karigowda was the absolute owner of the land bearing Sy. No.33 and 34 situated at Kenchanahalli Village, The said S. K. Mariyappa have issued General Power of Attorney in favour of one Saleem Pasha, authorizing him to develop the said land by forming residential sites and to sell to the prospective purchasers. Accordingly, the said Saleem pasha, formed the layout and sold one of the site, in favour of the Plaintiff, i.e., property bearing Gantiganahalli Village Panchayath Katha No.33 and 34 to an extent of East to West 40 feet and North to South 150 feet of Kenchanahalli Village, under Registered Sale Deed dated 29.03.2006 registered as document No.1882/05-06, stored in CD No.184.

17. The Plaintiff after acquiring the schedule property khata was transferred and he has put up compound wall to the entire extent of the schedule property and Plaintiff is in peaceful possession and enjoyment of the same. Further the plaintiff submits that, out of the total extent of East-West 40 feet and North-South 150 feet, the Plaintiff has sold the portion of the said land in favour of



Madhusree, to an extent of East-West 30 feet and North-South 40 feet, Lalitha Bai to an extent of 30 x 40, Kamala Devi to an extent of 30 x 40 and Anil Kumar to an extent of 30 x 40. The Plaintiff has only retained to an extent of East-West 40 feet and North-South 30 feet, out of total extent.

18. Further the Plaintiff alleged that, the Defendant in collusion with local developers and real estate agents on 02/03/2007 trespassed and tried to gain possession of the suit schedule property by demolishing the structure put up by the Plaintiff. The Plaintiff apprehends the danger to the schedule property in the hand of the Defendant and his agents at any time. Hence, the present suit.

Brief facts of the Plaintiff in O. S. No. 800/2007 is as follows:

19. It is the case of the Plaintiff that, the vendor of the Plaintiff V. Vasudev S/o M. M. Venkataswamy acquired the site property bearing No. 131, Gantiganahalli Village Panchayath, Katha No. 33 and 34 to an extent of East-West 30 feet and North-South 40 feet situated at Kenchanahalli Village, under Registered Sale Deed dated 25.01.2006, registered as document No. 11205/05-06. The said site property has been purchased by the vendor of the Plaintiff from one

149

Saleem Pasha, who is the General Power of Attorney of the land lord S.K. Mariyappa.

20. Further the Plaintiff submitted that, he purchased the site bearing No. 131 Katha No. 33 and 34, of Gantiganahalli Village Panchayath of Kenchenahalli Village to an extent of East-West 30 feet and North-South 40 feet from his vendor V. Vasudev S/o M.M. Venkataswamy, under Registered Sale Deed dated 19.06.2006, registered as document No. 6370/06-07 stored in CD No. 203.

21. The Plaintiff after acquiring the schedule property khata was changed in his name and he has put compound wall to the entire extent of schedule property and and Plaintiff is in peaceful possession and enjoyment of the same. The Plaintiff further alleged that, the Defendant is the owner of the adjoining land. The Defendant collusion with local persons on 02/03/2007 trespassed and tried to gain possession of the suit schedule property by demolishing the structure put up by the Plaintiff. The Plaintiff apprehends the danger to the schedule property in the hand of the Defendant and his agents at any time. Hence, the present suit.

22. After registration of these suits, suit summon were issued and served to Defendant. The Defendant appeared through their counsel and filed separate written statement in all the suits and taking common defence in all the suits.

THE GIST OF THE WRITTEN STATEMENT OF THE DEFENDANT IN ALL THE SUITS:

23. The Defendant has denied the entire case of the Plaintiffs in all the suits regarding the right, title and interest of the Plaintiffs over the suit schedule properties in all the suits. Further, the Defendant admitted that, one S. K. Mariyappa was the absolute owner of the land in Sy. No.33 and 34, having purchased the same from Gopal Rao and T. S. Venkata Rao are true and correct but denied that, said Mariyappa had executed the Power of Attorney in favour of the Mohammed Saleem. Further, the Defendant denied that, said Mariyappa died intestate leaving behind his wife Gowri and son Manoj.

24. Further, the Defendant specifically contended that, the land bearing Sy. No.34 of Kenchenahalli Village was 05 acres and 35 guntas and the said land originally belonged to one T. R. Saroji Rao. Out of the said extent, he has executed a Registered Will dated

01.09.1984 bequeathing 02 acres of land each in favour of his sons T.S. Narayana Rao and T.S. Krishnoji Rao. The said T. R. Santoji Rao was died on 16.09.1984. Pursuant of his death T. S. Narayana Rao and Krishnoji Rao having acquired 02 acres of land in Sy. No.34 of kenchenahally village and sold the said extent of land in favour of the Defendant under a registered Sale Deeds dated 29.6.1995. The Defendant got changed the Khata in his name to the extent of 04 acres land in Sy. No.34 of Kenchenahally village and has paid the kadayam before the revenue authorities.

25. The Defendant further contended that, one Mohammed Saleem S/o Mahammed Fakruddin has forged the General Power of Attorney said to have been executed/sworn by the Defendant on 20-06-1998 in favour of said Mohammed Saleem in respect of 04 acres and 1 guntas of land in Sy. No. 34 by receiving in all a sum of Rs.8.00,000/-. The said documents is, forged and fabricated by Mohammed Saleem for the purpose of making wrongful gain, Further contended that, the Defendant does not know writing Urdu language and always sings in English language and he has not at all executed the alleged General Power of Attorney and the affidavit.

(145)

Immediately, after coming to know the forged Power of Attorney and affidavit, the Defendant has lodged a complaint with jurisdictional Police Station on 07-02-2007 against the Mohammed Saleem and said police have registered the case against the said Mohammed Saleem and criminal case is under investigation. Hence, prayed to dismiss the suit.

26. Upon considering the rival contention and pleadings raised by the parties my predecessor has framed the following issues to determine the rights of the parties as well as to disposal of the case;

ISSUES IN O. S. No. 665/2007

1. *Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property ?*
2. *Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property ?*
3. *What order or decree ?*

ISSUES IN O. S. No. 648/2007

1. *Whether the Plaintiff proves that, she is in possession and enjoyment of the schedule property ?*

(146)

2. Whether the Plaintiff proves that, Defendant is interfering with her peaceful possession and enjoyment over the suit schedule property?
3. What order or decree?

ISSUES IN O. S. No. 650/2007

1. Whether the Plaintiff proves that, she is in possession and enjoyment of the schedule property?
2. Whether the Plaintiff proves that, Defendant is interfering with her peaceful possession and enjoyment over the suit schedule property?
3. What order or decree?

ISSUES IN O. S. No. 651/2007

1. Whether the Plaintiff proves that, she is in possession and enjoyment of the schedule property?
2. Whether the Plaintiff proves that, Defendant is interfering with her peaceful possession and enjoyment over the suit schedule property?
3. What order or decree?

ISSUES IN O. S. No. 652/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and

enjoyment over the suit schedule property ?

3. What order or decree ?

ISSUES IN O. S. No. 654/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property ?
3. What order or decree ?

ISSUES IN O. S. No. 658/2007

1. Whether the Plaintiff proves that, she is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with her peaceful possession and enjoyment over the suit schedule property ?
3. What order or decree ?

ISSUES IN O. S. No. 660/2007

1. Whether the Plaintiff proves that, she is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with her peaceful possession

148
and enjoyment over the suit schedule property?

3. What order or decree?

ISSUES IN O. S. No. 795/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property?
3. What order or decree?

ISSUES IN O. S. No. 796/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property?
3. What order or decree?

ISSUES IN O. S. No. 797/2007

1. Whether the Plaintiff proves that, she is in possession and enjoyment of the schedule property?
2. Whether the Plaintiff proves that, Defendant is interfering with her peaceful possession

and enjoyment over the suit schedule property ?

3. What order or decree ?

ISSUES IN O. S. No. 798/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property ?
3. What order or decree ?

ISSUES IN O. S. No. 800/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property ?
3. What order or decree ?

ISSUES IN O. S. No. 801/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and

enjoyment over the suit schedule
property ?

3. What order or decree ?

ISSUES IN O. S. No. 803/2007

1. Whether the Plaintiff proves that, he is in possession and enjoyment of the schedule property ?
2. Whether the Plaintiff proves that, Defendant is interfering with his peaceful possession and enjoyment over the suit schedule property ?
3. What order or decree ?

27. In order to prove the contention, the Plaintiff in O. S. No.665/2007 himself examined as Pw.1, the Special Power of Attorney Holder of the Plaintiff in O. S. No.650/2007 is examined as Pw.9, the Special Power of Attorney Holder of the Plaintiff in O. S. No.658/2007 is examined as Pw.8 and totally 115 documents are got marked as Ex.P1 to 115.

28. It is pertinent mentioned here that, after clubbing the suits as per order dated 22-01-2010 common evidence is recorded through one Ramalal Sharma as Special Power of Attorney Holder

(151)

of the all Plaintiffs. Further it is pertinent to mentioned here that, During the cross-examination of the Dw.1, Ex.P92 to 94 are again marked. On the other hand the Defendant himself examined as Dw.1 and got marked 09 documents as Ex.D1 to Ex.D9 and closed his side.

29. Heard the arguments and perused the materials available on record. Counsel for the Plaintiffs has filed the written arguments also.

30. My findings on the above issues are as under:-

ISSUE No.1 IN ALL THE SUITS : In the Negative.

ISSUE No.2 IN ALL THE SUITS : In the Negative.

ISSUE No.3 IN ALL THE SUITS : As per final order
for the following,

REASONS

31. ISSUES No.1 AND 2 IN ALL THE SUITS :For the sake of convenience all these issues are taken up together for common discussion to avoid repetition of facts. It is the specific case of the each Plaintiff is that, they are the absolute owners and they are in possession over the suit schedule their respective properties by

virtue of registered sale deeds. The Defendant is no way concerned to suit schedule properties, but Defendant is trying to distrubing the possession of the Plaintiffs over the suit schedule properties in collusion with local developers and real estate agents.

32. To substantiate their contention, the Plaintiff in O. S. No.665/2007 himself examined as Pw.1, the Special Power of Attorney Holder of the Plaintiff in O. S. No.650/2007 is examined as Pw.9, the Special Power of Attorney Holder of the Plaintiff in O. S. No.658/2007 is examined as Pw.8. Further, it is pertinents mentioned here that, subject matters in all these suits are vacant sites and pertains in the same survey numbers. Therefore, as per the order of this court in O. S. No. 665/2007, dated 22-01-2010 all these suits have been clubbed together and common evidence is recorded through one Ramalal Sharma as Special Power of Attorney Holder of the all Plaintiffs. The Pw.1, Pw.8 and Pw.9 are in their examination in chief, they deposed to the facts asserted in the plaints. In order to avoid repetition, I will not discuss the evidence of the Pw.1, Pw.8 and Pw.9 as the affidavit is nothing but replica of the all plaint.

33. Further, in support of oral evidence, the Plaintiffs got marked as many as 115 documents, which are marked as Ex.P1 to 115. Further it is pertinent to mention here that, during the evidence of Pw.1 to 9 recorded in O. S. No. 665/2007, O. S. No. 653/2007, O. S. No. 659/2007, O. S. No. 655/2007, O. S. No. 656/2007, O. S. No. 799/2007, O. S. No. 658/2007 and O. S. No. 650/2007 Ex.P1 to 31 are marked. After clubbing of the suits common evidence is recorded through one Ramalal Sharma as Special Power of Attorney Holder of the all Plaintiffs and the Special Power of Attorney's are marked as Ex.P32 to 35 and other suit documents are marked as Ex.P33 to 91, color photographs with C. D. are marked as Ex.P92 to 115. Further, during the cross-examination of Dw.1, the Ex.P92 to 94 are marked through confrontation again.

34. Now, let us go to see the documentary evidence first, Ex.P1 is the Original Registered Sale Deed document No. 17490/2004-05, dated 06.12.2004 executed by one Gowri W/o late. S.K. Mariyappa and Manoj S/o late. S. K. Mariyappa through GPA Holder namely Mohammed Saleem in favour of the Plaintiff in O. S. No. 665/2007 in respect of the suit schedule property in O. S. No. 665/2007.

Ex.P2 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 665/2007 it stands in the name of the Plaintiff in O. S. No.665/2007. Ex.P3 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 665/2007.

35. Ex.P25 is the Original Registered Sale Deed document No. 15462/2006-07, dated 18.09.2006 executed by Abdul Rafeeq S/o Abdul Rahim Sab i.e., Defendant through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 658/2007 in respect of the suit schedule property in O. S. No. 658/2007. Ex.P27 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 658/2007 it stands in the name of the Plaintiff in O. S. No.658/2007. Ex.P26 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 658/2007.

36. Ex.P29 is the Original Registered Sale Deed document No. 15458/2006-07, dated 18.09.2006 executed by Abdul Rafeeq S/o

Abdul Rahim Sab i.e., Defendant through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 650/2007 in respect of the suit schedule property in O. S. No. 650/2007. Ex.P30 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 650/2007 it stands in the name of the Plaintiff in O. S. No.650/2007. Ex.P31 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 650/2007.

37. Ex.P46 is the Original Registered Sale Deed document No. 23765/2006-07, dated 06.12.2006 executed by one N. Prakash Chand S/o Nathulalji infavour of the Plaintiff in O. S. No. 648/2007 in respect of the suit schedule property in O. S. No. 648/2007. Ex.P48 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 648/2007 it stands in the name of the Plaintiff in O. S. No.648/2007. Ex.P47 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 648/2007.

38. Ex.P49 is the Original Registered Sale Deed document No.

942/2006-07, dated 12.04.2006 executed by one Prakash Chand S/o Nathulalji infavour of the Plaintiff in O. S. No. 651/2007 in respect of the suit schedule property in O. S. No. 651/2007. Ex.P51 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 651/2007 it stands in the name of the Plaintiff in O. S. No.651/2007. Ex.P50 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 651/2007.

39. Ex.P52 is the Original Registered Sale Deed document No. 12663/2006-07, dated 24.08.2006 executed by Abdul Rafeeq S/o Abdul Rahim Sab i.e., Defendant through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 652/2007 in respect of the suit schedule property in O. S. No. 652/2007. Ex.P55 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 652/2007 it stands in the name of the Plaintiff in O. S. No.652/2007. Ex.P54 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 652/2007.

(157)

40. Ex.P55 is the Original Registered Sale Deed document No. 15446/2006-07, dated 18.09.2006 executed by Abdul Rafeeq S/o Abdul Rahim Sab i.e., Defendant through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 654/2007 in respect of the suit schedule property in O. S. No. 654/2007. Ex.P57 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 654/2007 it stands in the name of the Plaintiff in O. S. No.654/2007. Ex.P56 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 650/2007.

41. Ex.P61 is the Original Registered Sale Deed document No. 23759/2006-07, dated 18.09.2006 executed by one N.Prakash Chand S/o Nathulalji infavour of the Plaintiff in O. S. No. 660/2007 in respect of the suit schedule property in O. S. No. 660/2007. Ex.P63 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 660/2007 it stands in the name of the Plaintiff in O. S. No.660/2007. Ex.P62 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 660/2007.

42. Ex.P73 is the Original Registered Sale Deed document No. 13415/2005-06, dated 13.02.2006 executed by S.K. Mariyappa S/o late. Karigouda through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 795/2007 in respect of the suit schedule property in O. S. No. 795/2007. Ex.P76 and 77 are Tax Demand Register extracts for the year 2005-06 and 2006-07 in respect of the suit schedule property in O. S. No. 795/2007 it stands in the name of the Plaintiff in O. S. No. 795/2007. Ex.P74 and 75 are the Tax paid receipts, paid by the Plaintiff with respect of suit schedule in O. S. No. 795/2007.

43. Ex.P78 is the Original Registered Sale Deed document No. 13386/2006-07, dated 30.08.2006 executed by Abdul Rafeeq S/o Abdul Rahim Sab i.e., Defendant through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 796/2007 in respect of the suit schedule property in O. S. No. 796/2007.

44. Ex.P79 is the Original Registered Sale Deed document No. 13401/2005-06, dated 13.02.2006 executed by S.K. Mariyappa S/o

late. Karigowda through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 797/2007 in respect of the suit schedule property in O. S. No. 797/2007. Ex.P81 is Tax Demand Register extract for the year 2005-06 in respect of the suit schedule property in O. S. No. 797/2007 it stands in the name of the Plaintiff in O. S. No.797/2007. Ex.P80 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 797/2007.

45. Ex.P82 is the Original Registered Sale Deed document No. 18821/2005-06, dated 29.03.2006 executed by S.K. Mariyappa S/o late. Karigowda through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 798/2007 in respect of the suit schedule property in O. S. No. 798/2007. Ex.P83 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 798/2007.

46. Ex.P84 is the Original Registered Sale Deed document No. 6370/2006-07, dated 19.06.2006 executed by one V.Vasudev S/o M.M.Venkataswamy infavour of the Plaintiff in O. S. No. 800/2007 in respect of the suit schedule property in O. S. No. 800/2007.

(160)

Ex.P86 is Tax Demand Register extract for the year 2006-07 in respect of the suit schedule property in O. S. No. 800/2007 it stands in the name of the Plaintiff in O. S. No.800/2007. Ex.P85 is the Tax paid receipt, paid by the Plaintiff with respect of suit schedule in O. S. No. 800/2007.

47. Ex.P87 is the Original Registered Sale Deed document No. 24282/2006-07, dated 11.12.2006 executed by Abdul Rafeeq S/o Abdul Rahim Sab i.e., Defendant through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 801/2007 in respect of the suit schedule property in O. S. No. 801/2007.

48. Ex.P91 is the Original Registered Sale Deed document No. 13405/2005-06, dated 13.02.2006 executed by S.K.Mariyappa S/o late. Karigowda through GPA Holder namely Mohammed Saleem infavour of the Plaintiff in O. S. No. 803/2007 in respect of the suit schedule property in O. S. No. 803/2007. Ex.P93 is the certified copy of General Power of Attorney.

49. Per contra, Defendant has denied the entire case of the

Plaintiffs in all the suits regarding the right, title, interest and possession of the Plaintiffs over the suit schedule properties in all the suits. Further, contention of the Defendant that, sons of T. R. Santhoji Rao i.e., T. S. Narayana Rao and Krishnoji Rao sold the 04 acres of land in favour of the Defendant under a registered Sale Deeds dated 29.6.1995. On the basis of the said sale deed Defendant is in peaceful possession over the suit schedule properties and sold in favour of Anju Ahuja and Nirmaladevi Motilal through his Power of Attorney Holder namely Suraj B. Chhabria as per Ex.D-4, Ex.D-5 and Ex.D-6.

50. The Defendant in order to substantiate his contention, he himself examined as Dw.1, in his examination in chief, he deposed to the facts asserted in the written statement. In order to avoid repetition, I will not discuss the evidence of the Dw.1, as the affidavit is nothing but replica of the written statement. Further, in support of oral evidence, the Defendant got marked as many as 9 documents, which are marked as Ex.D1 to 9.

51. On going through the entire case of the Plaintiffs it clears

that, the Plaintiffs in all the suits are filed these suit for the relief of injunction simpliciter. The suit schedule properties are admittedly vacant property. In order to ascertain the possession of the vacant property, the title over the same has to be incidentally looked into though there cannot be any declaration of title thereof.

52. According to the Plaintiff one Mr. S. K. Mariyappa was the absolute owner of the land bearing Sy. No.33 and 34 of the Kenchenahally. But, as per the Ex.D4, Ex.D5 and Ex.D6 the Defendant has sold the land Sy. No.34 of Kenchenahally village on 14-07-1997 and 22-05-1998 to the extent of 04 acres 08 guntas through registered sale deeds through his Power of Attorney Holder namely Suraj B. Chhabria in favour of Anju Ahuja and Nirmaladevi Motilal. Therefore, pleadings of the Plaintiffs and oral evidence of the Plaintiffs and documents produced by the Defendants are contradictory in respect of the title over the land bearing Sy. No.34 in which the suit schedule properties has been allegedly formed.

53. Further, on going through the entire sale deeds produced by the Plaintiffs in all the suits, no where mentioned, that, the vacant/residential properties has been carved out of land Sy. No.33

(167)

and 34 of Kenchenahally village. Further none of the Plaintiffs has not produced any materials to show that, suit schedule properties has been carved out of the land in Sy. No.33 and 34 of Kenchenahally village.

54. The sale deeds which the Plaintiffs relies are in the year 2006. But, as per the Ex.D4, Ex.D5 and Ex.D6 the Defendant has sold the land Sy. No.34 of Kenchenahally village on 14-07-1997 and 22-05-1998 to the extent of 04 acres 08 guntas to others through registered sale deeds through his Power of Attorney Holder namely Suraj B. Chhabria in favour of Anju Ahuja and Nirmaladevi Motilal. So it clears that, Defendant has alienated land Sy. No.34 of Kenchenahalli village to the extent of 04 acres 08 guntas of land to others, which were executed much prior to the execution of the sale deeds in favour of the Plaintiffs. Further, the Pw.1 clearly admitted in his cross-examination as *"At the time of purchase, I was not aware that the defendant had already purchased the entire Sy. No. on 29/6/95 from T.S. Narayana Rao and T.S. Krishnoji Rao"*. It clears that without enquiry Plaintiffs are purchased the suit sites. Therefore, this court opinion that, there are serious complicated

50 164
questions of fact and law with regard to the issues of title to the Plaintiffs over the suit sites. Where the issue of title involves complicated and complex questions of fact and law, the court should not decide the issues of title in a suit for injunction.

55. Further, on going through the entire materials produced by the both the parties, it appears that there are many litigations are pending in respect of land Sy. No.33 and 34 of Kenchenahally village. Therefore, it appears that, there is serious dispute with regard to the very title of the larger extent of the land Sy. No.33 and 34 of Kenchenahally village and also that there have been execution of contradictory documents in respect of the Sy. No.33 and 34. Therefore, title of the properties in dispute is serious and complicated under such circumstances, the present suit for injunction simpliciter is not maintainable. The only remedy is available to the Plaintiffs to file suit for declaration and consequential relief of injunction.

56. Where there is merely an interference with the Plaintiff's lawful possession or there is a threat of dispossession, it is sufficient

to sue for injunction simpliciter. The prayer for injunction will be decided with reference to possession. But, where de jure possession has to be decided on the basis of title as in the case of vacant sites, it may not be possible to decide the issue without a finding on title. In this contention it is relevant to refer the decision of the Hon'ble Supreme Court reported in AIR 2008 SC 2033 in *Anathula Sudhakar V/s P. Buchi Reddy (dead) by Lrs and others*, where in para No.14 and 17 (b) it held as under;

14. But what if the property is a vacant site, which is not physically possessed, used or enjoyed? In such cases the principle is that possession follows title. If two persons claim to be in possession of a vacant site, one who is able to establish title thereto will be considered to be in possession, as against the person who is not able to establish title. This means that even though a suit relating to a vacant site is for a mere injunction and the issue is one of possession, it will be necessary to examine and determine the title as a prelude for deciding the de jure possession. In such a situation, where the title is clear and simple, the court may venture a decision on the issue of title, so as to decide the question of de jure possession even though the suit is for a mere injunction. But where the issue of title involves complicated or complex questions of fact and law, or where court feels that parties had not proceeded on the basis that title was at issue, the court should not decide the issue of title in a suit for

injunction. The proper course is to relegate the plaintiff to the remedy of a full-fledged suit for declaration and consequential reliefs.

17(b) *As a suit for injunction simpliciter is concerned only with possession, normally the issue of title will not be directly and substantially in issue. The prayer for injunction will be decided with reference to the finding on possession. But in cases where de jure possession has to be established on the basis of title to the property, as in the case of vacant sites, the issue of title may directly and substantially arise for consideration, as without a finding thereon, it will not be possible to decide the issue of possession.*

57. In the present case also suit schedule properties are admittedly vacant properties. Therefore, in order to ascertain the possession of the vacant property the title over the same has to be incidentally looked into. On going through the materials available on records, it appears that, there are serious and complicated questions of facts and law with regard to the issues of title to the Plaintiffs over the suit schedule properties. Under such circumstances the present suit for injunction simplicitor is not maintainable.

58. Regarding the possession, the Plaintiffs are contended that,

(167)



they are in possession over the suit schedule property on the strength of sale deeds and since purchase Plaintiffs are in possession over the suit schedule properties. As per the case of the Plaintiffs, the Defendant was the owner of the land Sy. No.33 and 34 of Kenchenahally village and he has executed the General Power of Attorney in favour of one Mohammed Saleem and said Mohammed Saleem formed residential layout in the said land and sold the sites to Plaintiffs. But, the Defendant is denied the execution of the General Power of Attorney infavour of the Mohammed Saleem.

59. Further, the Plaintiffs has not produced any piece of materials to show the physical existence of the suit schedule property as on the date of filing suit. Though, there is a mention of property number in the documents relied upon by the Plaintiffs are not sufficient to hold the possession over the suit schedule properties as on the date of filing these suits. No doubt, all the Plaintiffs are produce the Original sale deeds of their respective sites and clearly mentioned in the said sale deed regarding handing over the suit sites to Plaintiffs. But, sale deed executed by the Defendant to

others in that documents also mention the handover the possession to the purchaser. Therefore, on considering the entire materials placed on records, the Plaintiffs has failed to prove their possession over the suit schedule property. When the Plaintiffs failed to prove their possession over the suit schedule properties, then they are not entitled for the relief of permanent injunction.

60. In this contention it is relevant to refer the decision of the Hon'ble High Court of Karnataka, in the case of *Narayan Mukund Shet V/s Narayan Nagesh Shetty*, reported in *ILR 1988 (4) Kar 3035*, wherein the Hon'ble apex court held that, Injunction cannot be granted infavour of the Plaintiff, who is not in actual possession of the property. Thus, in the absence of proof of possession, injunction cannot be granted infavour of the Plaintiff against the Defendant.

61. Regarding the interference, when the Plaintiffs has failed to prove their possession over the suit schedule properties, then the aspect of determining the allegations of interference does not arise. Hence, Plaintiff is not entitled for the relief of Permanent Injunction.



For all these reasons, I answer issues No.1 and 2 in all suits in the Negative.

62. ISSUES NO.3 IN ALL THE SUITS: In view of my answer to Issues No.1 and 2 in all the suits, I, proceed to pass the following;

ORDER

The suit filed by the Plaintiffs in O.S. No. 665/2007, O.S. No. 648/2007, 650/2007, 651/2007, 652/2007, 654/2007, 658/2007, 660/2007, 795/2007, 796/2007, 797/2007, 798/2007, 800/2007, 801/2007 and 803/2007 are dismissed without costs.

Draw decree accordingly.

The Original of the Judgment is kept in the file of O.S. No.665/2007. The Copies thereof to be kept in O.S. No. 648/2007, 650/2007, 651/2007, 652/2007, 654/2007, 658/2007, 660/2007, 795/2007, 796/2007, 797/2007, 798/2007, 800/2007, 801/2007 and 803/2007 for record.

(Dictated to the stenographer transcribed by her corrected and then pronounced by me in the open court on this the 31st July 2021)

Sd/-

(SRI. CHANDRAIAH B.P)
PRL. CIVIL JUDGE,
BENGALURU RURAL DISTRICT,

(16)

(170)

BENGALURU.
ANNEXURE

1. List of witness examined on behalf of Plaintiffs:

- Pw.1 : Ramlal Sharma.
- Pw.8 : Sukiya Devi.
- Pw.9 : Bhagyawanthi Devi.
- Pw.10: Anirudh Yadav

2. List of documents marked on behalf of Plaintiffs:

- Ex.P.1: Original sale deed dated 06/12/2004
- Ex.P-2: Tax Demand Register Extract
- Ex.P-3: Tax paid receipt
- Ex.P-24: Special Power of Attorney executed
by the plaintiff in O.S.No.658/2007
- Ex.P-25: Original sale deed dated 18/09/2006
- Ex.P-26: Tax paid receipt
- Ex.P-27: Tax Demand Register Extract
- Ex.P-28: Special Power of Attorney executed
by the plaintiff in O.S.No. 650/2007
- Ex.P-29: Original sale deed dated 18/09/2006
- Ex.P-30: Tax Demand Register Extract
- Ex.P-31: Tax paid receipt
- Ex.P-32: Special Power of Attorney executed
by the plaintiff in O.S.No's. 652/2007
660/2007, 651/2007, 648/2007,
657/2007, 798/2007 and 605/2007
- Ex.P-33: Special Power of Attorney executed by
the plaintiff in O.S.No. 801/2007,
796/2007, 795/2007 and 797/2007

(171)

(172)

Ex.P-34: Special Power of Attorney executed by
the plaintiff in O.S.No.654/2007

Ex.P-35: Special Power of Attorney executed by
the plaintiff in O.S.No.800/2007

Ex.P-46: Sale deed executed by the plaintiff in
O.S.No.648/2007

Ex.P-47: Tax paid receipt

Ex.P-48: Tax Demand Register Extract

Ex.P-49: Sale deed executed by the plaintiff is
O.S.No.651/2007

Ex.P-50: Tax paid receipt

Ex.P-51: Tax Demand Register Extract

Ex.P-52: Sale deed dated 28.08.2006

Ex.P-53: Tax Demand Register Extract

Ex.P-54: Tax paid receipt

Ex.P-55: Sale deed dated 18-09-2006

Ex.P-56: Tax paid receipt

Ex.P-57: Tax Demand Register Extract

Ex.P-61: Sale deed dated 06.12.2006

Ex.P-62: Tax paid receipt

Ex.P-63: Tax Demand Register Extract

Ex.P-73: Sale deed dated 13.02.2006

Ex.P-74 and Ex.P-75: Tax paid receipts

Ex.P-76 and Ex.P-77: Tax Demand Register Extracts

Ex.P-78: Sale deed dated 30.08.2006

Ex.P-79: Sale deed dated 13.02.2006

Ex.P-80: Tax paid receipt

Ex.P-81: Tax Demand Register Extract

Ex.P-82: Sale deed dated 29.03.2006

Ex.P-83: Tax paid receipt
 Ex.P-84: Sale deed dated 19.06.2006
 Ex.P-85: Tax paid receipt
 Ex.P-86: Tax Demand Register Extract
 Ex.P-87: Sale deed dated 11.12.2006
 Ex.P-88: Sale deed dated 23.26.2006
 Ex.P-89: Tax paid receipt
 Ex.P-90: Tax Demand Register Extract
 Ex.P-91: Sale deed dated 13.02.2006
 Ex.P-92: Tax paid receipt
 Ex.P-93: Tax Demand Register Extract
 Ex.P-94 to Ex.P-114: Photos
 Ex.P-115: C.D.

3. List of witness examined on behalf of Defendant:

Dw.1 : Abdul Rafceeq

4. List of documents marked on behalf of Defendant.

Ex.D.1: Certified copy of the judgment dated
 31.05.2019 in O.S.No. 1897/2007
 clubbed with O.S.No. 181/2009, 182/2009,
 183/2009, 184/2009 and 423/2009

Ex.D-2 and Ex.D-3: Certified copies of the Judgment
 and Decree dated 07-01-2013 in
 O.S.No. 2074/2007

Ex.D-4: Certified copy of the sale deed dated
 14.07.1997

Ex.D-5: Certified copy of the sale deed dated
 14.07.1997

Ex.D-6: Certified copy of the sale deed dated
 22.05.1998

(173)



Ex.D-7: Certified copy of the Mutation Register No.
9/2005-2006

Ex.D-8: Certified copy of the RTC

Ex.D-9: Certified copy of FSL report

Sd/-
PRL. CIVIL JUDGE,
BENGALURU RURAL DISTRICT,
BENGALURU.

16990

174

ANNEXURE- R2
5000RS.



ಈ ದಸ್ತಾವೇಜು ೨೫/೧/೯೬ ರಲ್ಲಿ
ಹೊಂದಿರುತ್ತದೆ 1ನೇ ಪಾರ್ಶ್ವದ ದಸ್ತಾವೇಜು
ಕಂಖಿ 6990/95-96 ನೇ ಸಂಖ್ಯೆ

INDENTURE OF ABSOLUTE SALE

THIS INDENTURE OF ABSOLUTE SALE MADE AND EXECUTED ON THIS THE 20TH DAY OF JANUARY ONE THOUSAND NINE HUNDRED NINETY SIX (20/01/1996).

B Y

SRI. S.K. MARIYAPPA, AGED ABOUT 47 YEARS, SON OF LATE SRI. KARI GONDA AND RESIDING AT SANABA VILLAGE, AMRUTHUR HOBLI, KUNIGAL TALUK, TUMKUR DISTRICT AND HEREINAFTER REFERRED TO AS THE "VENDOR" OF THE ONE PART (WHICH TERM SHALL MEAN AND INCLUDE HIS LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATOR, ASSIGNS, ETC.,)

[Signature]



ATTESTED BY ME

AMBUJAKSHI
ADVOCATE & NOTARY
2, 1st A Main, Prashanthnagar
BANGALORE - 560 079.
KAR - 148 / 84

TRUE COPY



(175)

147846-50 re Smot
Name S K Maviyappa

Date 16-1-96 Stamp Vendor
The Bangalore Advocate
Co-operative Society Ltd.

For Want of Rs 30500 Papers of Rs 30000
of Rs of Rs of Rs
of Rs of Rs of Rs

16-1-96 (SRIDHAR N)
Stamp Vendor
The Bangalore Advocate's
Co-operative Society Ltd.,

ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿ ಮೇಲಾಧಿಕಾರಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ 89/1/196 ರಿಂದ ಹಾಗೂ 4-05
30000 ರಿಂದ ಹಾಗೂ 4-05
ಈ ಸಂದರ್ಭದಲ್ಲಿ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ

ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
1) ಮೊದಲನೆಯ 45000
2) ಮೊದಲನೆಯ 18000
3) ಮೊದಲನೆಯ 18000
4) ಮೊದಲನೆಯ 18000
5) ಮೊದಲನೆಯ 18000
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ 45000

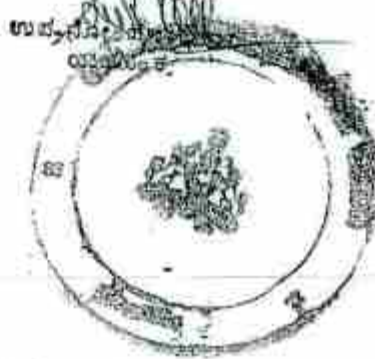
ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ

ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ

ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
C. Malappa
No. 2, 17th Cross,
Cubbon Pet,
BANGALORE-560 002

I ಸೇ 44-49 ಸೇ 856 ಸೇ 80000
6990 ಸೇ 1995-96 ಸೇ 1995-96
ಸೇ 1995-96 ಸೇ 1995-96 ಸೇ 1995-96

ದಿನಾಂಕ 24/3/97



ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ
ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ ಮಾನ್ಯರಾದ ಶ್ರೀಮತಿಗಳಿಗೆ

176

5000Rs



IN FAVOUR OF

SRI. SHASHIDHAR R. BATHIJA, AGED ABOUT 35 YEARS, SON OF SRI. R.K. BATHIJA, RESIDING AT NO. 45/E, FAIRFIELD LAYOUT, RACE COURSE ROAD, BANGALORE - 560 001 AND IS HEREINAFTER REFERRED TO AS THE "PURCHASER" ON THE OTHER PART (WHICH TERM SHALL MEAN AND INCLUDE HIS LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATORS, ASSIGNS, ETC.,)

[Signature]



TRUE COPY



- 6948
वसुच 6
- A. WHEREAS THE VENDOR HEREIN IS THE FULL AND ABSOLUTE OWNER AND IN POSSESSION OF 2 ACRES OF LAND SITUATED IN SURVEY NO. 33 OF KENCHANNAHALLI VILLAGE, YELAHANKA HOBLI, BANGALORE, WHICH IS MOREFULLY DESCRIBED IN THE SCHEDULE GIVEN HEREUNDER AND HEREINAFTER REFERRED TO AS THE SCHEDULE PROPERTY: AND
- B. WHEREAS THE VENDOR ACQUIRED THE SCHEDULE PROPERTY BY WAY OF A REGISTERED SALE DEED EXECUTED IN HIS FAVOUR BY SRI. T.S. RADHINATH RAO AND THE SAME WAS DULY REGISTERED AS DOCUMENT NO. 8901, BOOK - 1, VOLUME 576 IN PAGES 233 TO 239 ON 31/10/1995 IN THE OFFICE OF THE SUB-REGISTRAR, YELAHANKA, BANGALORE.
- C. WHEREAS THE VENDOR HAS OBTAINED THE MUTATION OF LAND RECORDS VIDE ENDORSEMENT DATED 6/10/1995 AND NUMBERED AS 17/94-95 AND HAS PAID UPTO DATE TAXES.
- D. WHEREAS, THE VENDOR HEREIN FOR HIS LEGAL AND OTHER NECESSITIES HAS DECIDED AND AGREED TO SELL TO THE PURCHASER THE SCHEDULE PROPERTY FREE FROM ALL ENCUMBRANCES FOR A VALUABLE SALE CONSIDERATION OF RS. 2,25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY) FREE OF ALL ENCUMBRANCES.



Handwritten signature

TRUE COPY

178

5000Rs.



NOW, THEREFORE, THIS INDENTURE OF ABSOLUTE SALE, WITNESSETH AS FOLLOWS:

1. THAT PURSUANT TO THE ABOVE SAID AGREEMENT AND IN CONSIDERATION OF RS. 2.25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY) PAID BY THE PURCHASER TO THE VENDOR BY CHEQUES, WHICH AMOUNT THE VENDOR DOTH HEREBY ACKNOWLEDGE, ADQUIT AND RELEASE THE PURCHASER FROM THE SAME, IN CONSIDERATION OF THE AMOUNT PAID BY THE PURCHASER TO THE VENDOR AND IN CONSIDERATION OF THE TERMS AND COVENANTS HEREIN APPEARING, THE VENDOR DOTH HEREBY SELL, CONVEY, GRANT, TRANSFER AND ASSIGN UNTO THE USE OF THE PURCHASER, THE SCHEDULE PROPERTY AND ALL THE RIGHTS, TITLE, INTEREST, PROPERTY CLAIMS AND DEMANDS WHATSOEVER TOGETHER WITH ALL RIGHTS, HEREDITAMENTS, EASEMENTS AND ADVANTAGES APPURTENANCES TO THE SAID VENDOR UNTO OR UPON THE SCHEDULE PROPERTY, TO HAVE AND TO HOLD AND TO ENJOY THE SCHEDULE PROPERTY AND EVERY PART THEREOF BELONGING TO THE SCHEDULE PROPERTY HEREBY CONVEYED UNTO THE SAID PURCHASER ABSOLUTELY FOREVER FREE FROM ALL ENCUMBRANCES.
2. THE PURCHASER HEREIN HAS ALREADY PAID A SUM OF RS. 2.25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY) BEING THE FULL AGREED SALE CONSIDERATION, THE RECEIPT OF WHICH THE VENDOR HEREIN DO HEREBY ACKNOWLEDGES IN FULL QUITTANCE OF THE AGREED SALE CONSIDERATION.



TRUE COPY



3. THE VENDOR HEREBY COVENANTS WITH THE PURCHASER THAT HE HAS GOOD RIGHT AND VALID MARKETABLE TITLE TO THE SCHEDULE PROPERTY AND THAT HE HAS GOT GOOD RIGHT TO CONVEY AND SELL THE SAME HEREBY CONVEYED AND SOLD OR EXPRESSED TO BE SOLD UNTO THE SAID PURCHASER IN THE MANNER AFORESAID.
4. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY SHALL AT ALL TIMES HEREINAFTER BE PEACEFULLY AND QUIETLY POSSESSED AND ENJOYED BY THE SAID PURCHASER AND THAT THE RENTS AND PROFITS THEREOF BE RECEIVED AND TAKEN TO THE ABSOLUTE USE OF THE SAID PURCHASER, WITHOUT ANY MANNER OF LET OR HINDRANCE BY OR FROM THE SAID VENDOR OR ANY PERSON CLAIMING LAWFULLY OR EQUITABLY OR IN TRUST FOR HIM.
5. THE VENDOR COVENANTS WITH THE PURCHASER THAT HE HAS PAID ALL THE TAXES AND CESSSES DUE AND PAYABLE IN RESPECT OF THE SCHEDULE PROPERTY UPTO DATE AND THAT HE UNDERTAKES TO INTIMATE THE CONCERNED AUTHORITY AND ARRANGE FOR THE TRANSFER OF THE KATHA OF THE SCHEDULE PROPERTY TO THE NAME OF THE PURCHASER HEREIN.
6. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE VENDOR, SHALL AND WILL FROM TIME TO TIME AND UPON THE REQUEST OF THE PURCHASER DO AND EXECUTE OR CAUSE TO BE DONE AND EXECUTED ALL SUCH DEEDS, ACTS AND THINGS FOR FURTHER AND MORE PERFECTLY ASSURING THE SCHEDULE PROPERTY TO THE PURCHASER AND PLACING HIM IN POSSESSION OF THE SAME ACCORDING TO THE TRUE AND CORRECT INTENT OF THESE PRESENTS.



TRUE COPY

180

5000Rs.



6990
95-96

12

7. THE VENDOR ALSO COVENANTS WITH THE PURCHASER THAT THE VENDOR HAS NOT ALIENATED THE SCHEDULE PROPERTY OR ANY PART THEREOF TO ANY PERSON IN ANY MANNER WHATSOEVER HEREBEFORE.
8. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY IS FREE FROM ALL ENCUMBRANCES. ALL TYPES OF CLAIMS, CHARGES OR ATTACHEMENTS FROM ANY COURT OR LIEN AND THAT HE HAS THE SOLE AND ABSOLUTE RIGHT TO SELL AND CONVEY THE SAME.
9. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE VENDOR WILL INDEMNIFY THE PURCHASER AGAINST ANY LOSS OR DAMAGE WHICH THE PURCHASER MAY SUSTAIN ON ACCOUNT OF BREACH OF THE ABOVE COVENANTS OR ANY ONE OR MORE OF THEM.
10. THE VENDOR HAS ALREADY DELIVERED ACTUAL, VACANT POSSESSION OF THE SCHEDULE PROPERTY TO THE PURCHASER AND THE PURCHASER CONFIRMS BEING IN PEACEFUL POSSESSION OF THE SAME.
11. THE VENDOR HAS DELIVERED THE R.T.C. EXTRACT, ORIGINAL TITLE DEED TO THE SCHEDULE PROPERTY, ASSESSMENT PAID RECEIPTS, COPY OF THE MUTATION REGISTER EXTRACT AND OTHER RELEVANT REVENUE RECORDS TO THE PURCHASER.

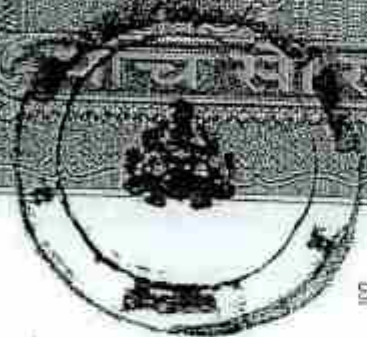
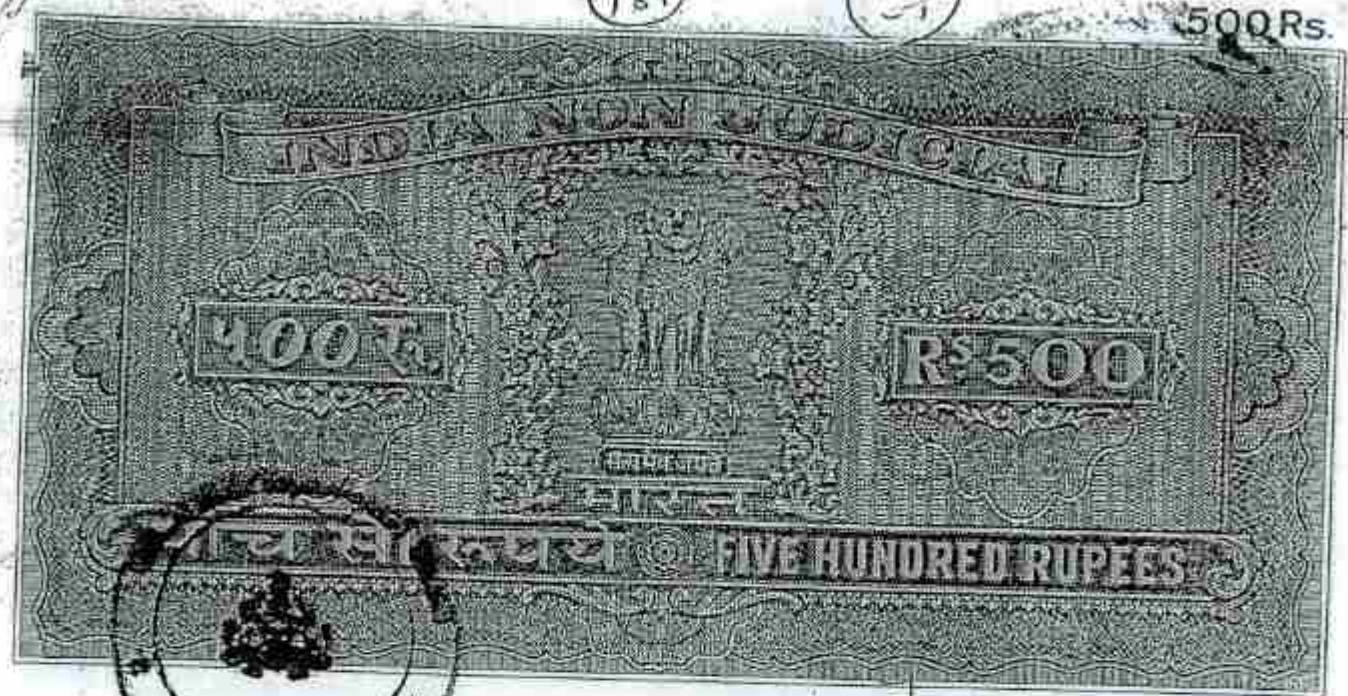
Shreed



TRUE COPY

181

500Rs.



SCHEDULE

6990
95-96 Id

ALL THAT PART AND PARCEL OF AGRICULTURAL LAND MEASURING 2 ACRES SITUATED IN SURVEY NO. 33 OF KENCHENAHALLI VILLAGE, YELAHANAH HOBLI, BANGALORE NORTH TALUK AND BOUNDED ON THE :

EAST BY :	ABDUL RAFEED'S PROPERTY
WEST BY :	40 FEET ROAD
NORTH BY :	PROPERTY BELONGING TO THE VENDOR
SOUTH BY :	T.S. JAGANNATH RAO'S PROPERTY

THE MARKET VALUE OF THE SCHEDULE PROPERTY IS RS. 2,25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY)

IN WITNESS WHEREOF, THE VENDOR HEREUNTO HAS AFFIXED HIS SIGNATURE TO THIS INDENTURE OF ABSOLUTE SALE ON THE DAY, MONTH AND YEAR FIRST ABOVE WRITTEN, AT BANGALORE, IN THE PRESENCE OF THE FOLLOWING WITNESSES:

ATTESTED BY ME

WITNESSES

1. *[Signature]* **AMBUJAKSHI**
 ADVOCATE & NOTARY N D O R I
 No. 20/65 N. 20th, Prashanthnagar
 BANGALORE - 560 079
 KARN - 148 / 84

2. *[Signature]*
DR. KUMAR
 No. 72, 6th cross
 Branganahalli Bldg



TRUE COPY

Drafted by i
[Signature]
M. N. Sreekanthiah
 D W. L. No. 135
 Deed W. L.

189

Annexure R3

5000Rs

URE R3



INDENTURE OF ABSOLUTE SALE

THIS INDENTURE OF ABSOLUTE SALE MADE AND EXECUTED BY THIS DEED
20TH DAY OF JANUARY ONE THOUSAND NINE HUNDRED NINETY SIX
(20/01/1996)

BY

SRI. S.K. HARIYARAS, AGED ABOUT 47 YEARS, SON OF LATE SRI. PARI
SOMDA AND RESIDING AT SANABA VILLAGE, AMRUTHUR HOSELI, TUMKUR
TALUK, TUMKUR DISTRICT AND HEREINAFTER REFERRED TO AS THE
"VENDOR" ON THE ONE PART (WHICH TERM SHALL MEAN AND INCLUDE HIS
LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATOR,
ASSIGNS, ETC.,)

[Signature]
SRI. S.K. HARIYARAS

Witnessed by _____
Witnessed by _____
Witnessed by _____

Witnessed by _____
Witnessed by _____

Subscribed



183

No. 147237-43 No. Swat
Name S. K. Navilappa

Date 16-1-96 Stamp Vendor
The Bangalore Advocates
Co-operative Society Ltd.

For Want of Rs. 305/- Papers of Rs. 500/-
of Rs. of Rs. of Rs.
of Rs. of Rs. of Rs.

(SRIDHAR N)

16-1-96 Stamp Vendor
The Bangalore Advocates
Co-operative Society Ltd.

22/1/96
Sridhar N. Navilappa
ಬಾ. ಮ.ಕ. ಹಾಕರ್ ಮುದ್ರಣಶಾಲೆ

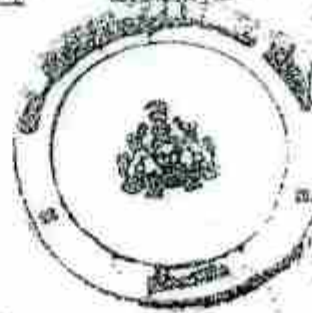
- 1) ಮೊದಲಿನ 4500/-
 - 2) ಮೊದಲಿನ ಮೊದಲಿನ 4500/-
 - 3) ಮೊದಲಿನ 4500/-
 - 4) ಮೊದಲಿನ 4500/-
 - 5) ಮೊದಲಿನ 4500/-
- ಮೊದಲಿನ 4500/-

ಪಾಲೆ
ಬಾ. ಮ.ಕ. ಹಾಕರ್ ಮುದ್ರಣಶಾಲೆ

ಪಾಲೆ

7 ಪೇ ಪುಟ 856 ಪೇ ಪುಟ
50-55 ಪೇ ಪುಟ 19.95-96 ಪೇ ಪುಟ
6991 ಪೇ ಪುಟ ಪುಟ ಪುಟ

24/3/97



ಬಾ. ಮ.ಕ. ಹಾಕರ್ ಮುದ್ರಣಶಾಲೆ

C. Navilappa
No. 2, 17th
Cubbon Pk.
BANGALORE-560

ಪಾಲೆ
ಬಾ. ಮ.ಕ. ಹಾಕರ್ ಮುದ್ರಣಶಾಲೆ
2/1/96

184

5000RS



IN FAVOUR OF

2
6991

95-96

DR. SHANMUGA R. BATHIA, AGED ABOUT 55 YEARS, SON OF THE LATE BATHIA AND RESIDING AT NO. 44/E, FAIRFIELD LAYOUT, RACE COURSE ROAD, BANGALORE - 560 001 AND IS HEREAFTER REFERRED TO AS THE "PURCHASER" ON THE OTHER PART (WHICH TERM SHALL MEAN AND INCLUDE HIS LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATORS, ASSIGNS, ETC.)

[Signature]

185

5000Rs



6991 96 10

WHEREAS THE VENDOR HEREIN IS THE FULL AND ABSOLUTE OWNER AND POSSESSOR OF 1 ACRES OF LAND SITUATED IN SURVEY NO. 22 OF KENCHENHALLI VILLAGE, T. MURTHA HOBLI, DARGALORE, WHICH IS HEREOFULLY DESCRIBED IN THE SCHEDULE GIVEN HEREUNDER AND HERETOFTER REFERRED TO AS THE SCHEDULE PROPERTY; AND

- B. WHEREAS THE VENDOR ACQUIRED THE SCHEDULE PROPERTY BY WAY OF A REGISTERED SALE DEED EXECUTED IN HIS FAVOUR BY SRI. T.S. RANGJI RAO AND THE SAME WAS DULY REGISTERED AS DOCUMENT NO. 6040, BOOK - 1, VOLUME 61 IN PAGES 95 TO 104 ON 12/11/1995 IN THE OFFICE OF THE SUB-REGISTRAR, YELAHNKA, DARGALORE.
- C. WHEREAS THE VENDOR HAS OBTAINED THE MUTATION OF LAND RECORDS VIDE ENDORSEMENT DATED 6/10/1995 AND NUMBERED AS 15/94-95 AND HAS PAID UP TO DATE TAXES.
- D. WHEREAS, THE VENDOR HEREIN FOR HIS LEGAL AND OTHER NECESSITIES HAS DECIDED AND AGREED TO SELL TO THE PURCHASER THE SCHEDULE PROPERTY FREE FROM ALL ENCUMBRANCES FOR A VALUABLE SALE CONSIDERATION OF RS. 2,25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY) FREE OF ALL ENCUMBRANCES.

Handwritten signature

186

5000Rs.



NOW, THEREFORE, THIS INDENTURE OF ABSOLUTE SALE, WITNESSETH AS FOLLOWS:

1. THAT PURSUANT TO THE ABOVE SAID AGREEMENT AND IN CONSIDERATION OF RS. 2,25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY) PAID BY THE PURCHASER TO THE VENDOR BY CHEQUES, WHICH AMOUNT THE VENDOR DOth HEREBY ACKNOWLEDGE, ACQUIT AND RELEASE THE PURCHASER FROM THE SAME, IN CONSIDERATION OF THE AMOUNT PAID BY THE PURCHASER TO THE VENDOR AND IN CONSIDERATION OF THE TERMS AND COVENANTS HEREIN APPEARING, THE VENDOR DOth HEREBY SELL, CONVEY, GRANT, TRANSFER AND ASSIGN UNTO THE USE OF THE PURCHASER, THE SCHEDULE PROPERTY AND ALL THE RIGHTS, TITLE, INTEREST, PROPERTY CLAIMS AND DEMANDS WHATSOEVER TOGETHER WITH ALL RIGHTS, HEREDITAMENTS, EASEMENTS AND ADVANTAGES APPURTENANCES TO THE SAID VENDOR HINTO OR UPON THE SCHEDULE PROPERTY, TO HAVE AND TO HOLD AND TO ENJOY THE SCHEDULE PROPERTY AND EVERY PART THEREOF BELONGING TO THE SCHEDULE PROPERTY HEREBY CONVEYED UNTO THE SAID PURCHASER ABSOLUTELY FOREVER FREE FROM ALL ENCUMBRANCES.
2. THE PURCHASER HEREIN HAS ALREADY PAID A SUM OF RS. 2,25,000/- (RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY) BEING THE FULLY AGREED SALE CONSIDERATION, THE RECEIPT OF WHICH THE VENDOR HEREIN DO HEREBY ACKNOWLEDGES IN FULL QUIITTANCE OF THE HEREBY SALE CONSIDERATION.

Signature

187

5

5000Rs.



69/1/15-16

THE VENDOR HEREBY COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY SHALL AT ALL TIMES HEREINAFTER BE PEACEFULLY AND QUIETLY POSSESSED AND ENJOYED BY THE SAID PURCHASER AND THAT THE RENTS AND PROFITS THEREOF BE RECEIVED AND TAKEN TO THE ABSOLUTE USE OF THE SAID PURCHASER, WITHOUT ANY HINDERANCE OR INTERFERENCE BY OR FROM THE SAID VENDOR OR ANY PERSON CLAIMING LAWFULLY OR EQUITABLY OR IN TRUST FOR HIM.

4. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY SHALL AT ALL TIMES HEREINAFTER BE PEACEFULLY AND QUIETLY POSSESSED AND ENJOYED BY THE SAID PURCHASER AND THAT THE RENTS AND PROFITS THEREOF BE RECEIVED AND TAKEN TO THE ABSOLUTE USE OF THE SAID PURCHASER, WITHOUT ANY HINDERANCE OR INTERFERENCE BY OR FROM THE SAID VENDOR OR ANY PERSON CLAIMING LAWFULLY OR EQUITABLY OR IN TRUST FOR HIM.
5. THE VENDOR COVENANTS WITH THE PURCHASER THAT HE HAS PAID ALL THE TAXES AND CESSSES DUE AND PAYABLE IN RESPECT OF THE SCHEDULE PROPERTY UP TO DATE AND THAT HE UNDERTAKES TO INTIMATE THE CONCERNED AUTHORITY AND ARRANGE FOR THE TRANSFER OF THE PATNA OF THE SCHEDULE PROPERTY TO THE NAME OF THE PURCHASER HEREIN.
6. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE VENDOR, SHALL AND WILL FROM TIME TO TIME AND UPON THE REQUEST OF THE PURCHASER DO AND EXECUTE OR CAUSE TO BE DONE AND EXECUTED ALL SUCH DEEDS, ACTS AND THINGS FOR FURTHER AND MORE PERFECTLY ASSURING THE SCHEDULE PROPERTY TO THE PURCHASER AND PLACING HIM IN POSSESSION OF THE SAME ACCORDING TO THE TRUE AND CORRECT INTENT OF THESE PRESENTS.
7. THE VENDOR ALSO COVENANTS WITH THE PURCHASER THAT THE VENDOR HAS NOT ALIENATED THE SCHEDULE PROPERTY OR ANY PART THEREOF TO ANY PERSON IN ANY MANNER WHATSOEVER HEREIN.

Handwritten signature

188

5000Rs.



8. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY IS FREE FROM ALL ENCUMBRANCES, TAXES, LIENS OR CLAIMS, CHARGES OR ATTACHMENTS FROM ANY COURT OR LIEN AND THAT HE HAS THE SOLE AND ABSOLUTE RIGHT TO SELL AND CONVEY THE SAME.
9. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE VENDOR WILL INDEMNIFY THE PURCHASER AGAINST ANY LOSS OR DAMAGE WHICH THE PURCHASER MAY SUSTAIN ON ACCOUNT OF BREACH OF THE ABOVE COVENANTS OR ANY ONE OR MORE OF THEM.
10. THE VENDOR HAS ALREADY DELIVERED ACTUAL, VACANT POSSESSION OF THE SCHEDULE PROPERTY TO THE PURCHASER AND THE PURCHASER CONFIRMS BEING IN PEACEFUL POSSESSION OF THE SAME.
11. THE VENDOR HAS DELIVERED THE R.T.C. EXTRACT, ORIGINAL TITLE DEED TO THE SCHEDULE PROPERTY, ASSESSMENT PAID RECEIPTS, COPY OF THE MUTATION REGISTER EXTRACT AND OTHER RELEVANT REVENUE RECORDS TO THE PURCHASER.

Shankar

189

500Rs.



SCHEDULE

7. 6991
95-96

THAT A CERTAIN PARCEL OF AGRICULTURAL LAND MEASURING 1 ACRE - 31 guntas
SITUATED IN SURVEY NO. 33 OF KENCHENAHALLI VILLAGE, YELAHANUR
HOBLI, BANGALORE NORTH TALUK AND BOUNDED ON THE
Left by the Road for the Government of India

- EAST BY : PRIVATE LIMITED
- WEST BY : GOVERNMENT ROAD
- NORTH BY : PROPERTY OF SRI. Y. S. VENKAT RAO
- SOUTH BY : PROPERTY BELONGING TO THE VENDOR.

THE MARKET VALUE OF THE SCHEDULE PROPERTY IS RS. 2,25,000/-
(RUPEES TWO LAKHS TWENTY FIVE THOUSAND ONLY).

IN WITNESS WHEREOF, THE VENDOR HEREUNTO HAS AFFIXED HIS SIGNATURE
TO THIS INDENTURE OF ABSOLUTE SALE ON THE DAY, MONTH AND YEAR
FIRST ABOVE WRITTEN, AT BANGALORE, IN THE PRESENCE OF THE
FOLLOWING WITNESSES:

WITNESSES:

1.
(Sagathurishna)
no. 242/2, Jagalahalli,
Billore
2.
JMS. Kumar
No 722 6th Main
Greenapal, Billore RD

(V. E. R. D. R.)

Drafted by
M. N. Seekantiah
D. W. L. No. 135
Deed Writer, Bangalore.

190

Annexure R4

T. 6992

ANNEXURE-R4

5000RS



INDENTURE OF ABSOLUTE SALE

6992/95-96

INDENTURE OF ABSOLUTE SALE MADE AND EXECUTED ON THIS THE 25TH DAY OF JANUARY ONE THOUSAND NINE HUNDRED NINETY SIX

B.Y.

SRI. S.K. MARIYAPPA, AGED ABOUT 47 YEARS, SON OF LATE SRI. KARI GOWDA AND RESIDING AT SANGRA VILLAGE, ANANTHUR HOBLI, MUMBAI TALUK, TUMKUR DISTRICT AND HEREINAFTER REFERRED TO AS THE "VENDOR" OF THE ONE PART (WHICH TERM SHALL MEAN AND INCLUDE HIS LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATOR, ASSIGNS, ETC.,)

[Signature]

.....
.....
.....

.....

.....



191

147230-34 Smok
Name S. K. Narayappa

Date 15-1-96 Stamp Vendor
The Bangalore Advocates
Co-operative Society Ltd.

Net Weight of Rs. 30500 of Rs. 50000
of Rs. 10000 of Rs. 10000
of Rs. 10000 of Rs. 10000

(SPRIDHAR N)
16-1-96
The Bangalore Advocates
Co-operative Society Ltd

Stamp Vendor R. K. Narayappa
15-1-96
Net Weight of Rs. 30500 of Rs. 50000

1) 1000000
2) 1000000
3) 1000000
4) 1000000
5) 1000000
6) 1000000
7) 1000000
8) 1000000
9) 1000000
10) 1000000



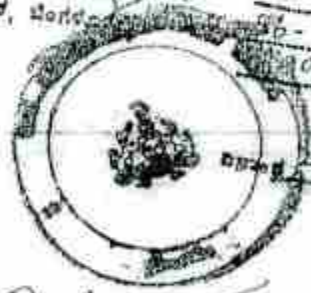
Signature
ಬಿ.ಎಸ್. ಶಿವರಾಜೇಂದ್ರಪ್ಪ
ಯಶವಂತ, ಬೆಂಗಳೂರು



Signature

ಬಿ.ಎಸ್. ಶಿವರಾಜೇಂದ್ರಪ್ಪ
ಯಶವಂತ, ಬೆಂಗಳೂರು

ಬೆಂಗಳೂರು
C. K. K.
No. 2, 17th
Cubbon Pk.
BANGALORE-560



1-61
2-61
3-61
4-61
5-61
6-61
7-61
8-61
9-61
10-61

ಬಿ.ಎಸ್. ಶಿವರಾಜೇಂದ್ರಪ್ಪ
ಯಶವಂತ, ಬೆಂಗಳೂರು

199

5000Rs.

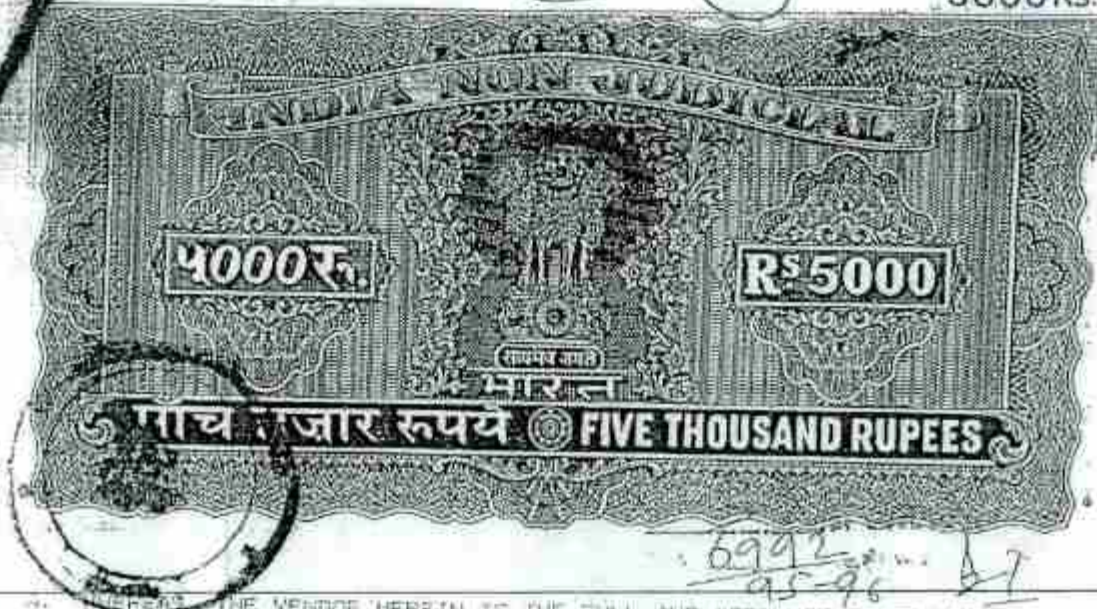


IN FAVOUR OF

2
6992
95-96

SRI. SHANTANU R. BATHIA, AGED ABOUT 35 YEARS, SON OF SRI. R.L. BATHIA AND RESIDING AT NO. 46/E, FAIRFIELD LAYOUT, RACE COURSE ROAD, BANGALORE - 560 001 AND IS HEREINAFTER REFERRED TO AS THE "PURCHASER". ON THE OTHER PART (WHICH TERM SHALL MEAN AND INCLUDE HIS LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATORS, ASSIGNS, ETC.,)

Shant



- WHEREAS THE VENDOR HEREIN IS THE FULL AND ABSOLUTE OWNER AND IN POSSESSION OF 2 ACRES 11 GUNTAS OF LAND SITUATED IN SURVEY NO. 33 OF KENCHENAHALLI VILLAGE, YELAHANNA HOBLI, BANGALORE, WHICH IS MOREFULLY DESCRIBED IN THE SCHEDULE GIVEN HEREUNDER AND HEREINAFTER REFERRED TO AS THE SCHEDULE PROPERTY; AND
- B. WHEREAS THE VENDOR ACQUIRED THE SCHEDULE PROPERTY BY WAY OF TWO SEPARATE REGISTERED SALE DEEDS EXECUTED BY 1) SMT. INDIRA BAI AND SMT. RATNA S. RAO AND THE SAME WAS REGISTERED AS DOCUMENT NO. 5949 ON 28-11-1995 AND 1) SMT. INDIRA BAI AND SMT. RATNA G. RAO AND THE SAME WAS REGISTERED AS DOCUMENT NO. 5948 ON 28-11-1995 AND BOTH THE SALE DEEDS REGISTERED IN THE OFFICE OF THE SUB-REGISTRAR, YELAHANNA, BANGALORE.
- C. WHEREAS THE VENDOR HEREIN FOR HIS LEGAL AND OTHER NECESSITIES HAS DECIDED AND AGREED TO SELL TO THE PURCHASER THE SCHEDULE PROPERTY FOR A VALUABLE SALE CONSIDERATION OF RS. 3,50,000/- (RUPEES THREE LAKHS FIFTY THOUSAND ONLY) FREE OF ALL ENCUMBRANCES.

Shankar



NOW, THEREFORE THIS INDENTURE OF ABSOLUTE SALE, WITNESSETH AS FOLLOWS:

1. THAT PURSUANT TO THE ABOVE SAID AGREEMENT AND IN CONSIDERATION OF RS. 3,50,000/- (RUPEES THREE LAKHS FIFTY THOUSAND ONLY) PAID BY THE PURCHASER TO THE VENDOR BY CHECKS, WHICH AMOUNT THE VENDOR DOTH HEREBY ACKNOWLEDGE, ACQUIT AND RELEASE THE PURCHASER FROM THE SAME. IN CONSIDERATION OF THE AMOUNT PAID BY THE PURCHASER TO THE VENDOR AND IN CONSIDERATION OF THE TERMS AND COVENANTS HEREIN APPEARING THE VENDOR DOTH HEREBY SELL, CONVEY, GRANT, TRANSFER AND ASSIGN UNTO THE USE OF THE PURCHASER, THE SCHEDULE PROPERTY AND ALL THE RIGHTS, TITLE, INTEREST, PROPERTY CLAIMS AND DEMANDS WHATSOEVER TOGETHER WITH ALL RIGHTS, HEREDITAMENTS, EASEMENTS AND ADVANTAGES APPURTENANCES TO THE SAID VENDOR UNTO OR UPON THE SCHEDULE PROPERTY, TO HAVE AND TO HOLD AND TO ENJOY THE SCHEDULE PROPERTY AND EVERY PART THEREOF BELONGING TO THE SCHEDULE PROPERTY HEREBY CONVEYED UNTO THE SAID PURCHASER ABSOLUTELY FOREVER FREE FROM ALL ENCUMBRANCES.
2. THE PURCHASER HEREIN HAS ALREADY PAID A SUM OF RS. 3,50,000/- (RUPEES THREE LAKHS FIFTY THOUSAND ONLY) BEING THE FULL AGREED SALE CONSIDERATION, THE RECEIPT OF WHICH THE VENDOR HEREIN DO HEREBY ACKNOWLEDGES IN FULL QUITTANCE OF THE AGREED SALE CONSIDERATION.
3. THE VENDOR HEREBY COVENANTS WITH THE PURCHASER THAT HE HAS GOOD RIGHT AND VALID MARKETABLE TITLE TO THE SCHEDULE PROPERTY AND THAT HE HAS GOT GOOD RIGHT TO CONVEY AND SELL THE SAME HEREBY CONVEYED AND SOLD OR EXPRESSED TO BE SOLD UNTO THE SAID PURCHASER IN THE MANNER PROPOSED.

Handwritten signature

(195)

5000Rs



- 21) 6992-96
8. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY IS FREE FROM ALL ENCUMBRANCES, ALL TYPES OF CLAIMS, CHARGES OR ATTACHMENTS FROM ANY COURT OR LIEN AND THAT HE HAS THE SOLE AND ABSOLUTE RIGHT TO SELL AND CONVEY THE SAME.
 9. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE VENDOR WILL INDEMNIFY THE PURCHASER AGAINST ANY LOSS OR DAMAGE WHICH THE PURCHASER MAY SUSTAIN ON ACCOUNT OF BREACH OF THE ABOVE COVENANTS OR ANY ONE OR MORE OF THEM.
 10. THE VENDOR HAS ALREADY DELIVERED ACTUAL, VACANT POSSESSION OF THE SCHEDULE PROPERTY TO THE PURCHASER AND THE PURCHASER CONFIRMS BEING IN PEACEFUL POSSESSION OF THE SAME.
 11. THE VENDOR HAS DELIVERED THE R.T.C. EXTRACT, ORIGINAL TITLE DEED TO THE SCHEDULE PROPERTY ASSESSMENT PAID RECEIPTS, COPY OF THE MUTATION REGISTER EXTRACT AND OTHER RELEVANT REVENUE RECORDS TO THE PURCHASER.
- Shamsh*

196

500 Rs.



SCHEDULE

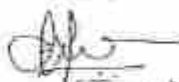
ALL THAT PIECE AND PART OF AGRICULTURAL LAND MEASURING 2 ACRES
13 GUNTS, SITUATED IN SURVEY NO. 33 OF KENCHENAHALLI VILLAGE,
YELAHANKE TALUK, BANGALORE NORTH TALUK, AND BOUNDED ON THE

EAST BY	:	PROPERTY BELONGING TO SRI. ABDUL RAHEEM
WEST BY	:	VILLAGE ROAD MARCHALLI
NORTH BY	:	PROPERTY BELONGING TO THE VENDOR SOLD TO SRI. SHAMSUNDAR TODAY
SOUTH BY	:	T.S. JAGANNATH RAO'S PROPERTY

(THE MARKET VALUE OF THE SCHEDULE PROPERTY IS RS. 3,50,000/-
(RUPEES THREE LAKHS FIFTY THOUSAND ONLY)

IN WITNESS WHEREOF, THE VENDOR HEREUNTO HAS AFFIXED HIS SIGNATURE
TO THIS INDENTURE OF ABSOLUTE SALE ON THE DAY, MONTH AND YEAR
FIRST ABOVE WRITTEN, AT BANGALORE, IN THE PRESENCE OF THE
FOLLOWING WITNESSES:

WITNESSES:

1. 
(S. Jagannath Rao)
no: 242/2, Salahalli
8/10/96


(VENDOR)

2. 
S. R. R. Rao
No. 722 A.M. Road
Srinagar
15/10/96

Drafted by:


D. W. L. No. 133
Deed Writer, Bangalore.

Annexure R5

33/3 200

(197)

23-A P 3936/16-17

BULK 5309

2003



SALE DEED

ANNEXURE R5

This ABSOLUTE DEED OF SALE is made and executed on this 23rd Day of November TWO THOUSAND SIXTEEN (23.11.2016) at BANGALORE;

BY:

MR. SHAMSUNDER R BATHIJA,
S/o. Mr. R. K. Bathija,
Aged about 75 years,
Residing at No. 46/E, Fairfield Layout,
Race Course Road,
Bangalore - 560001.
PAN. ADSPB5627R.

Hereinafter collectively called the "VENDOR" of the FIRST PART.

IN FAVOUR OF:

MR. AZMATH ULLAH KHAN,
S/o. Ibrahim Khan,
Aged about 39 years,
Residing at: No. 17/A, H Cross Road,
Bismillah Nagar,
Bangalore-560029.
PAN. CGZPK3446D.

Hereinafter called as the "PURCHASER" of the OTHER PART.

(The term "VENDOR" & "PURCHASER" whenever and wherever the context so demands shall mean and include their heirs, legal representatives, administrators, executors, nominees and assigns).

[Signature]

[Signature]

198

2ನೇ ಪ್ರತಿರ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5309
16-17
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರ ಕರ್ನಾಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ ಅಶ್ವತ್ಥ ಉಲ್ಲಾ ಪಾನ್ ದಿನ್, ಇಬ್ರಾಹಿಂ ಪಾನ್, ಇವರು 1208575.00 ರೂಪಾಯಿಗಳನ್ನು ನಿಗದಿತ ಮುದ್ರಾಂಕ ಕುಲುವಾಗಿ ಪಾವತಿಸಿರುವುದನ್ನು ದೃಢೀಕರಿಸಲಾಗಿದೆ

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಸಂಬಂಧ ಪಾವತಿಯ ವಿವರ
ವಸೂಲು ರೂಪ	40.00	Affidavit of Rs. 40/- Paid in Cash
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	957900.00	DD No. 408728, dt 22/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	143685.00	DD No. 408752, dt 23/11/2016, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	93000.00	DD No. 408724, dt 22/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	13950.00	DD No. 408753, dt 22/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಒಟ್ಟು:	1208575.00	

ಶ್ರೀ : ಗಾಂಧಿಸೇತರ.

ದಿನಾಂಕ: 23/11/2016

ಉಪ ನೋಂದಣಿ ಪ್ರತಿರ ದಸ್ತಾವೇಜು
ಕರಣ್ ನೋಂದಣಿ ಪ್ರತಿರ ದಸ್ತಾವೇಜು
18001400, ಬೆಂಗಳೂರು.

Print Date & Time : 23-11-2016 04:57:10 PM

86

200

...ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5309
16-17

ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5309

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

ಗಾಂಧಿವಗರ ರಲ್ಲಿರುವ ಉಪನೋಂದಣಾಧಿಕಾರಿ ಗಾಂಧಿವಗರ ರವರ ಹೆಸರಿನಲ್ಲಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:20:22 PM ಗಳಿಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ
ಕುಲ್ಕದೊಂದಿಗೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ಪೈ
1	ನೋಂದಣಿ ಕುಲ್ಕ	213900.00
2	ಪ್ಯಾನ್ ಕಾರ್ಡ್ ಶುಲ್ಕ	420.00
3	ವರದಿ ಸೇವಾ ಕುಲ್ಕ	100.00
	ಒಟ್ಟು:	214420.00

ಶ್ರೀ ಬಾಬ್ಬಾತ್ ಉಲ್ಲಾ ಖಾನ್ ದಿನಾ. ಇಸ್ಲಾಮ್ ಖಾನ್ ಇವರಿಂದ ಹಾಜರ ಮಾಡಲ್ಪಟ್ಟಿದೆ

ಹೆಸರು	ಫೋಟೋ	ಹಸ್ತಚಿಹ್ನೆ ಗುರುತು	ಸಹಿ
ಶ್ರೀ ಬಾಬ್ಬಾತ್ ಉಲ್ಲಾ ಖಾನ್ ದಿನಾ. ಇಸ್ಲಾಮ್ ಖಾನ್			

23/11
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿವಗರ, ಬೆಂಗಳೂರು.

ಅರೆಮನೆಯಲ್ಲಿರುವ ಒಟ್ಟು ಕುಲ್ಕ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಫೋಟೋ	ಹಸ್ತಚಿಹ್ನೆ ಗುರುತು	ಸಹಿ
1	ಬಾಬ್ಬಾತ್ ಉಲ್ಲಾ ಖಾನ್ ದಿನಾ. ಇಸ್ಲಾಮ್ ಖಾನ್ (ಅರೆಮನೆಯವರು)			
2	ಪ್ಯಾನ್ ಕಾರ್ಡ್ ಶುಲ್ಕ (ಅರೆಮನೆಯವರು)			

23/11
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿವಗರ, ಬೆಂಗಳೂರು.

201

5

5 ಸೇವಕದ ದಾಖಲೆ ಸಂಖ್ಯೆ: 5309



3

WHEREAS Vendor in order to fulfill his immediate financial commitments and also to acquire alternate suitable premises offered to sell the schedule property for valuable sale consideration of Rs. 2,13,90,000/- (Rupees Two Crores Thirteen Lakhs Ninety Thousand Only) The purchaser MR.AZMATH ULLAH KHAN, who is an agriculturist by profession, holding agricultural lands, in need of the premises in the said locality agrees to purchase the Schedule property for the said sum of Rs. 2,13,90,000/- (Rupees Two Crores Thirteen Lakhs Ninety Thousand Only)

In pursuant of said Agreement, the PURCHASER has paid the sale consideration of Rs. 2,13,90,000/- (Rupees Two Crores Thirteen Lakhs Ninety Thousand Only) as detailed hereunder:

1. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 17-12-2015 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 108401, drawn on Karnataka Bank, KH Road, Bangalore Branch realization of cheque has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
2. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 28-12-2015 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 108403, drawn on Karnataka Bank, KH Road, Bangalore Branch realization of cheque has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
3. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 12-01-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 108404, drawn on Karnataka Bank, KH Road, Bangalore Branch realization of cheque has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
4. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 24-02-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 108412, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH1603411944 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

[Signature]

[Signature]

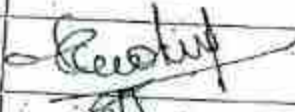
ಗುರುಕಿರಣವೇರು

6

ಸೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5309

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

16-17

ಕ್ರಮ ಸಂಖ್ಯೆ	ತೆರಿಕೆ ಮಾನ್ಯ ನಾಮ	ವಹಿ
1	K.C. Chandrashekar New Bazaar Street, K.R. Puram, Bangalore	
2	Sunil No. 32, SNS Chambers, 23rd, Sankey Road, Bangalore-80	

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

Kept pending for 45A Undervaluation.

Designed and Developed by C. OAC, ACTS, Pune

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

203

7ನೇ ಫಲಿತ ದಾಖಲೆ ಸಂಖ್ಯೆ: 5309



5. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 29-02-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 103413, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16060456130 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

6. Rs. 21,00,000/- (Rupees Twenty one lakh only) paid on 08-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498501, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16068544517 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

7. Rs. 20,00,000/- (Rupees Twenty lakh only) paid on 15-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498503, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16075628474 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

8. Rs. 6,00,000/- (Rupees Six lakh only) paid on 09-08-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 996071, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16222196735 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

9. The balance sale consideration of Rs. 41,90,000/- (Rupees Forty one lakh ninety only) will be paid on 23-11-2016 to vendor by way of Cheque bearing No. 997904 drawn on Karnataka Bank, KH Road Branch, Bangalore.

The vendor thus confirm that he has received the entire sale consideration of Rs. 2,13,90,000/- (Rupees Two Crores Thirteen Lakhs Ninety Thousand Only)

ಶಾಹು
ಮೆಲ್ಲೆ

ಶಾಹು
ಮೆಲ್ಲೆ

ಶಾಹು

ಮೆಲ್ಲೆ

10ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5309
16-17
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

As per the order of District Registrar, Gandhinagar, Bangalore, vide order No. 45-A(1)/G/63/2016-17, dt 27-03-2017, vide pending No. P-3936/2016-17, dt 23/11/2016. The Market Value is assessed at Rs. 3,60,00,000/- for the difference in Market Value, the Registration Fee of Rs. 146100/- paid by DO No. 409599, dt 30-03-2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore.

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.



1 ಸಿ ಪ್ಲಾಟ್‌ನ ದಾಖಲೆಗಳು
ವಿಷಯ GAN-1-05309-2016-17 ಆಗಿ
ಒ.ಡಿ. ವಿಷಯ GAND286 ಸಿ ಪ್ಲಾಟ್‌ನಲ್ಲಿ
ದಿನಾಂಕ 31-03-2017 ರಂದು ನೋಂದಾಯಿಸಲಾಗಿದೆ



ಉಪನೋಂದಣಾಧಿಕಾರಿ (ಗಾಂಧಿನಗರ)

ಪ್ರ. ಹೆಚ್. ಸರೋಜ

Designed and Developed by C.A.C. A.C.B. Pono

ಸಿಬಿ-ರಜಿಸ್ಟ್ರಾರ್
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು



4. The VENDOR assures and covenants with the PURCHASER that, there are no encumbrances or any settlements, WILL, charge, lien, mortgage, attachment, either by agreement or decree pending or threatened legal proceedings or acquisition proceedings of any kind or any other security claims on the Schedule Property that may in any manner derogate from full and absolute ownership of the property hereby conveyed. The VENDOR has no objection for transfer of Khata in favour of the PURCHASER. The VENDOR has paid the land tax, and other taxes and charges in respect of the Schedule Property to the concerned authorities up to this date and in any case any tax or charges are still due, unpaid in respect of the Schedule Properties, the same shall be paid by the VENDOR.
5. The VENDOR has this day delivered the possession of the Schedule Property to the PURCHASER and the PURCHASER acknowledges the receipt of possession of the Schedule Property. The VENDOR has delivered the original title deeds of the Schedule Property to the PURCHASER and PURCHASER hereby acknowledges receipt of the same.
6. The purchaser is an agriculturist and owning agricultural property at Raghunathapura Village, Kasaba Hobli, Doddabailapura Taluk, Bangalore Rural District in Sy No. 135 & 136. Hence there is no restrictions for him to purchase the Schedule property.

SCHEDULE OF PROPERTY

All that piece and parcel of agricultural Land bearing Old Survey No. 33, New Survey No. 33/3, measuring 2 acres SITUATED AT KENCHENAHALLI VILLAGE YELAHANKA HOBLI, BANGALORE NORTH TALUK BANGALORE and bounded on

East by : Sy. No. 34,

West by : Road,

North by : Sy. No. 33/5 this day sold to Mr. Ajmath Ullah Khan.

South by : Sy. No. 33/2 belongs to T. S. Jagannath Rao.

There is no valuable trees, structures, well in the Schedule property.

[Signature]

[Signature]

5309



IN WITNESS WHEREOF the VENDOR & PURCHASER have affixed their signatures to this Sale Deed on the day, date and year mentioned above at Bangalore.

3.

VENDOR

PURCHASER

Drafted by

NARENDRA P
DWL No. 34/2011
No. 6. K. R. Puram.
Bangalore. 36

೨೬೭

ಈ ನಶಲು ಪ್ರತಿಯು ತ್ರೈಮಾಸಿಕವಾಗಿ

ಕರ್ನಾಟಕ ಮಹಾಶಿಕ್ಷಣ ಅಧಿನಿಯಮ 1957ರ ಪ್ರಕಾರ 410 ಪ್ರಕಾರ

ಪ್ರಮಾಣ ಪತ್ರ

CANo 6147/19-20

ಪ್ರಮಾಣ ಪತ್ರ

Azamathulla Khan

ನಿರ್ದೇಶನ: 10-12-19
ನಿರ್ದೇಶನ: 9/12/19
ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19



ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

True copy

hip

ನಿರ್ದೇಶನ: 10/12/19

ನಿರ್ದೇಶನ: 10/12/19

K-5757/16-17

(208)

Annexure R6

BK-I-5312/2016-17



SALE DEED

ANNEXURE-R6

This ABSOLUTE DEED OF SALE is made and executed on this 23rd Day- of November TWO THOUSAND SIXTEEN (23.11.2016) at BANGALORE;

BY:
MR. SHAMSUNDER R BATHIJA,
S/o. Mr. R. K. Bathija,
Aged about 75 years,
Residing at No. 46/E, Fairfield Layout,
Race Course Road,
Bangalore - 560001.
PAN - ADS2PB5627R.

Hereinafter collectively called the "VENDOR" of the FIRST PART.

IN FAVOUR OF:

MR. AZMATH ULLAH KHAN
S/o. Ibrahim Khan,
Aged about 39 years,
Residing at: No. 17/A, H Cross Road,
Bismillah Nagar,
Bangalore-560029.
PAN - CG2PK3446D.

Hereinafter called as the "PURCHASER" of the OTHER PART.

(The term "VENDOR" & "PURCHASER" whenever and wherever the context so demands shall mean and include their heirs, legal representatives, administrators, executors, nominees and assigns).

[Signature]

[Signature]

209

ನೀವೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ 5312

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

16-17



ಕೋಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರ ಕೋಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ ಅಶ್ವತ್ಥ ಉಲ್ಲಾಖಾನ್ ಬಿ.ಎ. ಆಪ್ತಾಂಕ ಭಾನ್ . ಇವರು 1361080.00 ರೂಪಾಯಿಗಳನ್ನು ನಿಗದಿತ ಮುದ್ರಾಂಕ ಕುಲ್ಕವಾಗಿ ಪಾವತಿಯಾಗುವುದನ್ನು ದೃಢೀಕರಿಸಲಾಗಿದೆ.

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಹೇಳಾ ಪಾವತಿಯ ವಿವರ
ನಗದು ರೂಪ	40.00	Affidavit of Rs. 40/- Paid In Cash
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	1077640.00	DD No. 044895, dt 22/11/16, drawn on Karnataka Bank Ltd., K.H.Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	162950.00	DD No. 408751, dt 23/11/16, drawn on Karnataka Bank Ltd., K.H.Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	104630.00	DD No. 408729, dt 22/11/16, drawn on Karnataka Bank Ltd., K.H.Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	15820.00	DD No. 408749, dt 23/11/16, drawn on Karnataka Bank Ltd., K.H.Road, Bangalore
ಒಟ್ಟು :	1361080.00	

ಸ್ಥಳ : ಕಾಂಧಿನಗರ

ದಿನಾಂಕ : 23/11/2016

ಉಪ ನೋಂದಣಿ ಅಧಿಕಾರಿ
ಉಪ ನಗರ, ಕಾಂಧಿನಗರ

(216)

ನೋ ಪುಟದ ದಾಖಲೆ ಸಂಖ್ಯೆ: ೨೩/೨



2

WITNESSTH AS FOLLOWS:

WHEREAS the vendor is the absolute owner the Land bearing Old Survey No. 33, New Survey No.33/1 measuring 2 acre 10 Guntas Situated at Kenchenahalli Village Yelahanka Hobli Bangalore North Taluk Bangalore which is morefully described in the Schedule hereunder and herein after called Schedule property.

WHEREAS the Schedule property originally belonged to Mrs.Indira Bai and Mrs.Rathna G. Rao both are D/o. Santoji Rao they jointly sold the said property by executing two separate registered sale deeds in favour of Mr.S.K.Mariyappa and put him in possession of the same. The details of said sale deeds are as under:-

- a. 09.08.1995 Sy.No.33 measuring 1 acre 6 Guntas under Sale deed bearing registration No.5948/1995-96 Book No.1 Vol.No.828 pages 170 to 176 registered in the Office of Sub Registrar Yelahanka Bangalore.
- b. 09.08.1995 Sy.No.33 measuring 1 acre 7 Guntas under Sale deed bearing registration No.5949/1995-96 Book No.1 Vol.No.828 pages 176 to 182 registered in the Office of Sub Registrar Yelahanka Bangalore.

WHEREAS Mr.S.K.Mariyappa was in possession and enjoyment of the schedule property as absolute owner thereof. On 20.01.1996 Mr.S.K.Mariyappa sold the schedule property in favour of Mr.Shamsundar R.Bhatija, the VENDOR herein and put him in possession of the schedule property. The said sale deed was registered as document No.6990/1995-96 Book No.1 Vol.No.856 at pages 44 to 49 registered in the Office of Sub Registrar Yelahanka Bangalore.

WHEREAS the jurisdictional revenue authorities based upon the above mentioned sale deed dated 20.01.1996 transferred the Mutation of the property in favour of Vendor and Vendor assures that all the revenue documents pertaining to the Schedule property are standing in his name and he has paid upto date property tax to the concerned department. The Vendor further assures that he is exercising the absolute ownership over the Schedule property. The property is free from encumbrance, acquisition

[Signature]

[Signature]

Print Date & Time : 23-11-2016 05:06:40 PM

...ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 53/2
 16-17
 ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ (1-3937) BK-5312
 16-17

ಗಾಂಧಿವಗರ ದಲ್ಲಿರುವ ಉಪನೋಂದಣಾಧಿಕಾರಿ ಗಾಂಧಿವಗರ ಕವರ ಕಛೇರಿಯಲ್ಲಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:30:25 PM ಗಳಲ್ಲಿ ಈ ಕೆಳಗೆ ವವರಿಸಿದ
 ಮಾಹಿತಿಗಳು

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ಪೈ
1	ನೋಂದಣಿ ಶುಲ್ಕ	240890.00
2	ಪಾಸ್‌ಪೋರ್ಟ್ ಶುಲ್ಕ	455.00
3	ವಿವರಿಸಿದ ಮಾಹಿತಿ	100.00
	ಒಟ್ಟು:	241445.00

ಶ್ರೀ ಅಶ್ವತ್ಥಾ ಉಲ್ಲಾ ಖಾನ್ ದಿನ್, ಇಸ್ಲಾಮಾಬಾದ್ ಇವರಿಂದ ಹಾಜರಾದ ಮಾಹಿತಿಗಳು

ಹೆಸರು	ಚಿತ್ರ	ಹೆಚ್ಚುವರಿ ಗುರುತು	ಸಹಿ
ಶ್ರೀ ಅಶ್ವತ್ಥಾ ಉಲ್ಲಾ ಖಾನ್ ದಿನ್, ಇಸ್ಲಾಮಾಬಾದ್			

ಬರೆದುಕೊಟ್ಟಿದ್ದಾರೆ ಒತ್ತಿರುತ್ತಾರೆ

ಶ್ರೀ 23/11
 ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
 ಗಾಂಧಿವಗರ, ಬೆಂಗಳೂರು

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಚಿತ್ರ	ಹೆಚ್ಚುವರಿ ಗುರುತು	ಸಹಿ
1	ಅಶ್ವತ್ಥಾ ಉಲ್ಲಾ ಖಾನ್ ದಿನ್, ಇಸ್ಲಾಮಾಬಾದ್ (ಬರೆದುಕೊಂಡಿದ್ದಾರೆ)			
2	ಪ್ರಮೋದ್ ಕರ್ನಾಡ್, ಬೆಂಗಳೂರು (ಬರೆದುಕೊಂಡಿದ್ದಾರೆ)			

ಶ್ರೀ 23/11
 ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
 ಗಾಂಧಿವಗರ, ಬೆಂಗಳೂರು



3

WHEREAS Vendor in order to ful fill his immediate financial commitments and also to acquire alternate suitable premises offered to sell the schedule property for valuable sale consideration of Rs.2,40,63,750/- (Rupees Two Crores Forty Lakhs Sixty Three Thousand Seven hundred and Fifty only). The purchaser MR.AZMATH ULLAH KHAN who is an agriculturist by profession holding agricultural lands, in need of the premises in the said locality agrees to purchase the Schedule property for the said sum of Rs.2,40,63,750/- (Rupees Two Crores Forty Lakhs Sixty Three Thousand Seven hundred and Fifty only).

In pursuant of said Agreement, the PURCHASER has paid the sale consideration of Rs.2,40,63,750/- (Rupees Two Crores Forty Lakhs Sixty Three Thousand Seven hundred and Fifty only) as detailed hereunder:

1. Rs. 30,00,000/- (Rupees Thirty lakh only) paid on 16-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498515, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16137287311 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
2. Rs. 30,00,000/- (Rupees Thirty lakh only) paid on 23-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 996051, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16144357943 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
3. Rs. 4,00,000/- (Rupees Four lakh only) paid on 11-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498502, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16071598060 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

[Signature]

[Signature]

ಗುರುಕಿವಿವರು

100

೨೧೩
...ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: ೨೩/೨

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

16-17

ಕ್ರಮ ಸಂಖ್ಯೆ	ಫಿಲಿರು ಮತ್ತು ವಿವರ	ಹಿ
1	K.C. Chandrashekar New Bazaar Street, K.R. Puram, Bangalore	
2	Sunil No. 32, SNS Chambers, 239, Sankey Road, Bangalore-80	

೨೩/೨
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

Kept pending for 45A Undervaluation.

Designed and Developed by C-DAC, ACTS, Pune

೨೩/೨
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.



4. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 27-05-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498519, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH148407507 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
5. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 13-06-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 996057, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16165575597 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
6. Rs. 20,00,000/- (Rupees Twenty lakh only) paid on 29-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498506, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16089770448 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
7. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 08-08-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 996069, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16221176299 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
8. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 12-08-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 996074 drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16225238973 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

[Signature]

[Signature]

ಕರ್ನಾಟಕ ಸ್ಟಾಂಪ್ ಮತ್ತು ನೋಂದಣಿ ಇಲಾಖೆ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಶ ಇಲಾಖೆ
Department of Stamps and Registration
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

Certificate

Certificate under Section 4T of the Karnataka Stamp Act, 1957 for the purpose of Section 34,39,40 of
Karnataka Stamp Act, 1957

Certified that a sum of Rs. 928700 being the deficit / proper stamp duty has been remitted as follows :

Type	Amount (Rs.)	Description
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	846510.00	DD No. 409603, dt 30/03/2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರೆ ಬ್ಯಾಂಕ್ ಡಿ.ಡಿ.	82190.00	DD No. 409595, dt 30/03/2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
Total	928700.00	

by Mr. ಅಪ್ಪಾಜಿ ಶಾಸ್ತ್ರಿ ಪಾಟೀಲ, ಇವರ ನಿವಾಸ : ಬಿರ್ಲಾ ನಗರ, ಬೆಂಗಳೂರು

Signature of Deputy Commissioner and Sub-
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
Registry, Gandhinagar
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

Place : Gandhinagar

Date : 31-03-2017

Designed and Developed by C-DAC, ACTS,Pune

(216)

9. ಸೇ ಪ್ರಬರ ದಾಖಲೆ ಸಂಖ್ಯೆ: 5312



5

9. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 15.09.2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 997830 drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

d. The balance sale consideration of A sum of Rs. 31,63,750/- (Rupees Thirty One Lakhs Sixty Three Thousand Seven hundred and Fifty only) dated 23-11-2016 by way of Cheque bearing No. 997902 drawn on Karnataka Bank, KH Road, Bangalore Branch.

The vendor thus confirm that he has received the entire sale consideration of Rs. 2,40,63,750/- (Rupees Two Crores Forty Lakhs Sixty Three Thousand Seven hundred and Fifty only).

NOW THIS DEED OF ABSOLUTE SALE WITNESSETH AS FOLLOWS:

1. That, in consideration of the said sum of Rs. 2,40,63,750/- (Rupees Two Crores Forty Lakhs Sixty Three Thousand Seven hundred and Fifty only) paid by the PURCHASER to the VENDOR as aforesaid, the VENDOR hereby admit and acknowledge receipt of the same and in consideration thereof the VENDOR hereby grant, convey, transfer, assign and assure UNTO AND TO THE USE OF THE PURCHASER all that piece and parcel of Schedule Property free from all encumbrances, court attachments, litigations, maintenance charges, claims and demands, whatsoever together with all rights of way, easements of necessity, water, water courses, drains, privileges, appertains, advantages whatsoever pertaining to or belong to the Schedule Property who shall hold, possess, use and enjoy all the rights, title and interest, claims, payments of the VENDORS and all other rights, privileges belonging thereto TO HAVE AND HOLD the Schedule Properties and every part thereof to and unto the use of the PURCHASER absolutely and forever.

[Signature]

[Signature]

217

1.0.ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 12

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

16-17

As per the order of District Registrar, Gandhinagar, Bangalore, vide order No. 45-A(1)/G/64/2016-17, dt 27-03-2017, vide pending No. P-3937/2016-17, dt 23/11/2016, The Market Value is assessed at Rs. 4,05,00,000/-, for the difference in Market Value, the Registration Fee of Rs. 164370/- paid by DD No. 409576, dt 30-03-2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು



1 ನೇ ಪುಟದ ದಸ್ತಾವೇಜು
ಸಂಖ್ಯೆ GAN-1-05312-2016-17 ನಲ್ಲಿ
ಒ.ಬಿ. ನಂಬರ್ GAND288 ನೇ ರೀತಿ
ದಿನಾಂಕ 31-03-2017 ರಂದು ನೋಂದಾಯಿಸಲಾಗಿದೆ



ಉಪನೋಂದಣಾಧಿಕಾರಿ (ಉಪನೋಂದಣಾಧಿಕಾರಿ)
ವೈ.ಬಿ.ಎಚ್. ಸುರೇಶ್
ಸಹ-ರಜಿಸ್ಟ್ರಾರ್
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು

(218)

11 ನೇ ಮೂಲ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5319



6

- The VENDOR hereby covenant with the PURCHASER that, notwithstanding any act, deed or thing thereto done, executed or knowingly suffered, the VENDOR has full power and absolute authority and indefeasible title to sell the Schedule Property and the said property is free from all encumbrances like maintenance charges and obligations whatsoever and the PURCHASER shall hereafter peacefully and actually HOLD, POSSESS AND ENJOY the Schedule Property without any claims or demand, disturbances or interruption whatsoever from the VENDOR. The PURCHASER shall be entitled to all the benefits accrued and to be accrued from the Schedule Property hereafter:
2. The VENDOR further covenant that, he shall, at the cost of the PURCHASER do or execute or cause to be done and executed all such Lawful acts, deeds and things and execute deeds of further assurances, confirmation deeds, rectification deeds and all other things whatsoever for further and more perfectly and more fully conveying and assuring the ownership and possession of Schedule Property and every part thereof in the manner aforesaid according to the true intent and meaning of this deed.
 3. The VENDOR assures that, apart from him, there are no other claimants over the Schedule Property. The VENDOR shall indemnify and keep indemnified the PURCHASER from or against any losses, the PURCHASER may suffer consequent to the breach of the terms of this sale.
 4. The VENDOR assures and covenants with the PURCHASER that, there are no encumbrances or any settlements, WILL, charge, lien, mortgage, attachment, either by agreement or decree pending or threatened legal proceedings or acquisition proceedings of any kind or any other security claims on the Schedule Property that may in any manner derogate from full and absolute ownership of the property hereby conveyed. The VENDOR has no objection for transfer of Kheta in favour of the PURCHASER. The VENDOR has paid the land tax, and other taxes and charges in respect of the Schedule Property to the concerned authorities up to this date and in any case any tax or charges are still due, unpaid in respect of the Schedule Properties, the same shall be paid by the VENDOR.

[Signature]

[Signature]

219

12ನೇ ತುರ್ತು ಸಭೆ ಸಂಖ್ಯೆ: 5312
16/12



5. The VENDOR has this day delivered the possession of the Schedule Property to the PURCHASER and the PURCHASER acknowledges the receipt of possession of the Schedule Property. The VENDOR has delivered the original title deeds of the Schedule Property to the PURCHASER and PURCHASER hereby acknowledges receipt of the same.
6. The purchaser is an agriculturist and owning agricultural property at Raghunathapura Village, Kasaba Hobli, Doddaballapura Taluk, Bangalore Rural District in Sy No. 135 & 136. Hence there is no restrictions for him to purchase the Schedule property.

SCHEDULE OF PROPERTY

All that piece and parcel of agricultural Land bearing Cid Survey No. 33, New Survey No.33/1, measuring 2 acre 10 Guntas SITUATED AT KENCHENAHALLI VILLAGE YELAHANKA HOBLI BANGALORE NORTH TALUK BANGALORE and bounded on:

East by : Property bearing Sy.No.34.
West by : Road.
North by : Sy.No.33/2 belongs to T.S. Jagannath Rao,
South by : Sy.No.19.

There is no valuable trees, structures, well in the Schedule property.

The present market value of Schedule Property is Rs.2,40,63,750/- (Rupees Two Crores Forty Lakhs Sixty Three Thousand Seven hundred and Fifty only).

[Signature]

[Signature]

220

13

13



IN WITNESS WHEREOF the VENDOR & PURCHASER have affixed their signatures to this Sale Deed on the day, date and year mentioned above at Bangalore.

WITNESSES:

1.

SUNIL B.
32 SHS CHAMBERS
239 SHANKY ROAD
BANGALORE - 80.

VENDOR

PURCHASER

2.

NO. 54, K. C. Chandra Shekhar
NEW G. K. P. P. Road
Bangalore - 560026.

Drafted by

NARENDRA P.

DWL No. 34/2011
No. G. K. P. P. Road.
Bangalore - 36

(991)

MP-3938/16-17). Bk-I 5313/16-17

Annexure-R7



SALE DEED

ANNEXURE-R7

THIS ABSOLUTE DEED OF SALE is made and executed on this 23rd Day of November TWO THOUSAND SIXTEEN (23.11.2016) at BANGALORE;

BY:
MR. SHAMSUNDER R BATHIJA,
S/o. Mr. R. K. Bathija,
Aged about 75 years,
Residing at No. 46/E, Fairfield Layout,
Race Course Road,
Bangalore -560001
PAN : ADSPB5627R.

Hereinafter collectively called the "VENDOR" of the FIRST PART.

IN FAVOUR OF:

MR. AZMATH ULLAH KHAN,
S/o. Ibrahim Khan,
Aged about 39 years,
Residing at: No. 17/A, H Cross Road,
Bismillah Nagar,
Bangalore-560029.
PAN : CGZPK3446D.

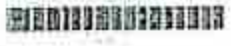
Hereinafter called as the "PURCHASER" of the OTHER PART.

(The term "VENDOR" & "PURCHASER" whenever and wherever the context so demands shall mean and include their heirs, legal representatives, administrators, executors, nominees and assigns.)

M. K. K.

222

೨ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5313
16-17



ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರ ಕರ್ನಾಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ ಅಚ್ಯುತ್ ಉಡ್ಡಾ ಪಾನ್ ಬಿನ್, ಇಬ್ರಾಹಿಂ ಪಾನ್, ಇವರು 1102870.00 ರೂಪಾಯಿಗಳನ್ನು ಪಿಗಡಿತ ಮುದ್ರಾಂಕ ಶುಲ್ಕವಾಗಿ ಪಾವತಿಸಿರುವುದನ್ನು ದೃಢೀಕರಿಸಲಾಗಿದೆ

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಹೇಗೆ ಪಾವತಿಯ ನೆಪ
ಪಿಗಡಿತ ಶುಲ್ಕ	40.00	Affidavit of Rs. 40/- Paid in Cash
ಇತರ ಮುದ್ರಾಂಕ ಡಿ.ಡಿ.	874110.00	DD No. 408727, dt 22/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರ ಮುದ್ರಾಂಕ ಡಿ.ಡಿ.	131120.00	DD No. 408746, dt 23/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರ ಮುದ್ರಾಂಕ ಡಿ.ಡಿ.	84870.00	DD No. 408723, dt 22/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರ ಮುದ್ರಾಂಕ ಡಿ.ಡಿ.	12730.00	DD No. 408745, dt 23/11/16, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಒಟ್ಟು	1102870.00	

ಪ್ರತಿ : ನಂದಿಪೇಟೆ
ದಿನಾಂಕ: 25/11/2016

ಹಿರಿಯ ನೋಂದಣಿ ಅಧಿಕಾರಿ
ನಂದಿಪೇಟೆ, ಅರಸೀಕೆರೆ

993



2

WITNESSTH AS FOLLOWS:

WHEREAS the vendor is the absolute owner of the Land bearing old survey No. 33, New Survey No.33/5 measuring 1 acre 33 Guntas of land SITUATED AT KENCHENAHALLI VILLAGE YELAHANKA HOBLI BANGALORE NORTH TALUK which is morefully described in the Schedule hereunder and herein after called Schedule property.

WHEREAS the Schedule property originally belonged to one Mr.T.S.Ranoji Rao S/o. Santoji Rao he sold the schedule property on 02.03.1995 in favour of Mr.S.K.Mariyappa son of Late Kari Gowda through sale deed bearing Registration No.8508/1995-96, Book No.1, Vol.No.681 in pages 95 to 104 registered in the office of Sub Registrar Yelahanka Bangalore and put him in possession of the schedule property. Mr.S.K.Mariyappa was in possession and enjoyment of the schedule property as absolute owner thereof.

WHEREAS on 20.01.1996 Mr.S.K.Mariyappa sold the schedule property in favour of Mr.Shamsundar R Bhatija, the VENDOR herein and put him in possession of the schedule property. The said sale deed was registered as document No.6992/1995-96 Book No.1 Vol.No.856 at pages 56 to 61 registered in the Office of Sub Registrar Yelahanka Bangalore.

WHEREAS the jurisdictional revenue authorities based upon the above mentioned sale deed dated 20.01.1996 transferred the Mutation of the property in favour of Vendor and Vendor assures that all the revenue documents pertaining to the Schedule property are standing in his name and he has paid upto date property tax to the concerned department. The Vendor further assures that he is exercising the absolute ownership over the Schedule property. The property is free from encumbrance, acquisitions.

WHEREAS Vendor in order to ful fill his immediate financial commitments and also to acquire alternate suitable premises offered to sell the schedule property for valuable sale consideration of (Rupees one crore and fifty one lakhs seventy-three thousand only). The purchaser MR AZMATH ULLAH KHAN who is an agriculturist by profession holding agricultural lands, in need of the premises in the said locality agrees to purchase the Schedule property for the said sum of Rs.1,95,18,950/- (RUPEES ONE CRORE NINETY FIVE LAKHS EIGHTEEN THOUSAND NINE HUNDRED AND FIFTY ONLY)

Shankar

Amel

224

14ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5313
16-17

Print Date & Time : 23-11-2016 05:01:37 PM

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 3938 5313
16-17

ಗಾಂಧಿನಗರ ದಲ್ಲಿರುವ ಉಪನೋಂದಣಾಧಿಕಾರಿ ಗಾಂಧಿನಗರ ರವರ ಕಛೇರಿಯಲ್ಲಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:37:42 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ
ಮಾಹಿತಿ ನೀಡಲಾಗಿದೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ಪೈ
1	ಮೊದಲನೇ ಮೂಲ	195190.00
2	ಸ್ವಾಮಿಗಳಿಗೆ ಪೇ	455.00
3	ಪ್ರಥಮಿಕಾ ಮೂಲ	100.00
	ಒಟ್ಟು	195745.00

ಪ್ರೀತಿಯಿಂದ ಉಪನೋಂದಣಾಧಿಕಾರಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:37:42 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ

ಹೆಸರು	ಫೋಟೋ	ಹಸ್ತಚಿಹ್ನೆ	ಮು
ಪ್ರೀತಿಯಿಂದ ಉಪನೋಂದಣಾಧಿಕಾರಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:37:42 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ			

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

ಪ್ರತಿಯೊಂದರೂ ಒಮ್ಮೆಯಾದರೂ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಫೋಟೋ	ಹಸ್ತಚಿಹ್ನೆ	ಮು
1	ಉಪನೋಂದಣಾಧಿಕಾರಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:37:42 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ			
2	ಉಪನೋಂದಣಾಧಿಕಾರಿ ದಿನಾಂಕ 23-11-2016 ರಂದು 04:37:42 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ			

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

925

118

5 ನೇ ಸುಟ್ಟರ ದಸಾವೇಜು ಸಂಖ್ಯೆ: 5313



3

In pursuant of said Agreement, the PURCHASER has paid the sale consideration of Rs.1,95,18,950/- (RUPEES ONE CRORE NINETY FIVE LAKHS EIGHTEEN THOUSAND NINE HUNDRED AND FIFTY ONLY)

as detailed hereunder:

1. Rs. 30,00,000/- (Rupees Thirty lakh only) paid on 20-01-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 108408, drawn on Karnataka Bank, KH Road, Bangalore Branch realization of cheque has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
2. Rs. 20,00,000/- (Rupees Twenty lakh only) paid on 09-02-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 108410, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16040253347 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
3. Rs. 30,00,000/- (Rupees Thirty lakh only) paid on 18-03-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498504, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16078668935 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
4. Rs. 25,00,000/- (Rupees Twenty five lakh only) paid on 13-04-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498508, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16104948542 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.
5. Rs. 30,00,000/- (Rupees Thirty lakh only) paid on 20-04-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498509, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH1611016066 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

Shankar

Amal

ಸಿರಿತುಂಬುವುದು

...೬...ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5313
16-17

ಉಪ ಮೇಲಂದಣಾಧಿಕಾರಿ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು ಮತ್ತು ವಿಳಾಸ	ಹಿ
1	K.C. Chandrashekar New Bazaar Street, K.R. Puram, Bangalore	
2	Sunil No. 32, SNS Chambers, 239, Sonkey Road, Bangalore-60	


ಉಪ ಮೇಲಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

Kept pending for 45A Undervaluation.

Designed and Developed by C-DAC, ACTE Pune


ಉಪ ಮೇಲಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.



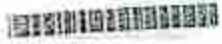
6. Rs. 25,00,000/- (Rupees Twenty Five lakh only) paid on 28-04-2016 to vendor account with Vijaya Bank, NR Road, Bangalore Branch by way of Cheque bearing No. 498314, drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16119098515 has been confirmed by the vendor by signing and executing this sale deed in favour of purchaser.

7. The balance sale consideration of Rs.35,18,950/- (Rupees Thirty five lakhs Eighteen thousand Nine hundred and fifty only) will be paid at the time of registration of this sale deed through cheque bearing No. 997901, dated 23-11-2016 drawn on Karnataka Bank, KH Road Branch, Bangalore.

The vendor thus confirm that he has received the entire sale consideration of Rs.1,95,18,950/- (RUPEES ONE CRORE NINETY FIVE LAKHS EIGHTEEN THOUSAND NINE HUNDRED AND FIFTY ONLY.)

NOW THIS DEED OF ABSOLUTE SALE WITNESSETH AS FOLLOWS:

1. That, in consideration of the said sum of Rs.1,95,18,950/- (RUPEES ONE CRORE NINETY FIVE LAKHS EIGHTEEN THOUSAND NINE HUNDRED AND FIFTY ONLY) paid by the PURCHASER to the VENDOR as aforesaid, the VENDOR hereby admit and acknowledge receipt of the same and in consideration thereof the VENDOR hereby grant, convey, transfer, assign and assure UNTO AND TO THE USE OF THE PURCHASER all that piece and parcel of Schedule Property free from all encumbrances, court attachments, litigations, maintenance charges, claims and demands, whatsoever together with all rights of way, easements of necessity, water, water courses, drains, privileges, appertains, advantages whatsoever pertaining to or belong to the Schedule Property who shall hold, possess, use and enjoy all the rights, title and interest, claims, payments of the VENDORS and all other rights, privileges belonging thereto TO HAVE AND HOLD the Schedule Properties and every part thereof to and unto the use of the PURCHASER absolutely and forever.



113

228

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
 ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
 Department of Stamps and Registration

Certificate

Certificate under Section 41 of the Karnataka Stamp Act, 1957 for the purpose of Section 34,39,40 of
 Karnataka Stamp Act, 1957

Certified that a sum of Rs. 753260 being the deficit / proper stamp duty has been remitted as follows :

Type	Amount (Rs.)	Description
ಇತರೆ ಟ್ರಾಂಕ್ ರಿ.ಡಿ.	686600.00	DD No. 409600, dt 30/03/2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
ಇತರೆ ಟ್ರಾಂಕ್ ರಿ.ಡಿ.	66660.00	DD No. 409601, dt 30/03/2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore
Total	753260.00	

by Mr. ಅಪ್ಪಾಣ್ ರಾಜ್ ರಾಜ್ ಬಿ.ಎಸ್. ಅಪ್ಪಾಣ್ ರಾಜ್, residing at Barnala Nagar, Bangalore

Signature of Deputy Registrar and Sub-Registrar, Gandhinagar
 ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
 ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

Place : Gandhinagar

Date : 31-03-2017

8...ನೇ ಪುಟದ ಟ್ರಾಂಕ್ ದಾಖಲೆ ಸಂಖ್ಯೆ: 5363
 16-17
 ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

929

100

9ನೇ ಪುಟದ ದಾಖಲೆ ಸಂಖ್ಯೆ: 5313



5

The VENDOR hereby covenant with the PURCHASER that, notwithstanding any act, deed or thing thereto done, executed or knowingly suffered, the VENDOR has full power and absolute authority and indefeasible title to sell the Schedule Property and the said property is free from all encumbrances like maintenance charges and obligations whatsoever and the PURCHASER shall hereafter peacefully and actually HOLD, POSSESS AND ENJOY the Schedule Property without any claims or demand, disturbances or interruption whatsoever from the VENDOR. The PURCHASER shall be entitled to all the benefits accrued and to be accrued from the Schedule Property hereafter.

2. The VENDOR further covenant that, he shall, at the cost of the PURCHASER, do or execute or cause to be done and executed all such Lawful acts, deeds and things and execute deeds of further assurances, confirmation deeds, rectification deeds and all other things whatsoever for further and more perfectly and more fully conveying and assuring the ownership and possession of Schedule Property and every part thereof in the manner aforesaid according to the true intent and meaning of this deed.

3. The VENDOR assures that, apart from him, there are no other claimants over the Schedule Property. The VENDOR shall indemnify and keep indemnified the PURCHASER from or against any losses, the PURCHASER may suffer consequent to the breach of the terms of this sale.

4. The VENDOR assures and covenants with the PURCHASER that, there are no encumbrances or any settlements, WILL, charge, lien, mortgage, attachment, either by agreement or decree pending or threatened legal proceedings or acquisition proceedings of any kind or any other security claims on the Schedule Property that may in any manner derogate from full and absolute ownership of the property hereby conveyed. The VENDOR has no objection for transfer of Khata in favour of the PURCHASER. The VENDOR has paid the land tax, and other taxes and charges in respect of the Schedule Property to the concerned authorities up to this date and in any case any tax or charges are still due, unpaid in respect of the Schedule Properties, the same shall be paid by the VENDOR.

Signature

Signature

230

10ನೇ ಪುಟದ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ: 5313
16-17

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ

As per the order of District Registrar, Gandhinagar, Bangalore, vide order No. 45-A(1)/G/65/2016-17, dt 27-03-2017, vide pending No. P-3938/2016-17, dt 23/11/2016, The Market Value is assessed at Rs. 3,28,50,000/-, for the difference in Market Value, the Registration Fee of Rs. 133320/- paid by DO No. 409602, dt 30-03-2017, drawn on The Karnataka Bank Ltd., K.H. Road, Bangalore

ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು.

 1 ನೇ ಪ್ರಕಟಿತ ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ GAN-1-05313-2016-17 ಆಗಿ ಕ.ರ. ಸಂಖ್ಯೆ GANID286 ನೇ ಮೇರೆಗೆ ದಿನಾಂಕ 31-03-2017 ರಂದು ನೋಂದಾಯಿಸಲಾಗಿದೆ  ಉಪ ನೋಂದಣಾಧಿಕಾರಿ ಗಾಂಧಿನಗರ, ಬೆಂಗಳೂರು

(231)

...ನೇ ಪುಟದ ದಸಾವೇಷ ಸಂಖ್ಯೆ: 5213



5. The VENDOR has this day delivered the possession of the Schedule Property to the PURCHASER and the PURCHASER acknowledges the receipt of possession of the Schedule Property. The VENDOR has delivered the original title deeds of the Schedule Property to the PURCHASER and PURCHASER hereby acknowledges receipt of the same.
6. The purchaser is an agriculturist and owning agricultural property at Raghunathapura Village, Kasaba Hobli, Doddaballapura Taluk, Bangalore Rural District in Sy No. 135 & 136. Hence there is no restrictions for him to purchase the Schedule property.

SCHEDULE OF PROPERTY

All that piece and parcel of agricultural Land bearing old survey No. 33, New Survey No.33/5, measuring 1 acre 33 Guntas of land SITUATED AT KENCHENAHALLI VILLAGE YELAHANKA HOBLI BANGALORE NORTH TALUK Bangalore and bounded on:

East by : Private property bearing Sy.No.34
West by : Road
North by : Property bearing Sy.No.33/4
South by : Property bearing Sy.No.33/3 this day sold to
Mr. Asmath ullah Khan

There is no valuable trees, structures, well in the Schedule property.

The present market value of Schedule Property is Rs.1,95,18,950/- (RUPEES ONE CRORE NINETY FIVE LAKHS EIGHTEEN THOUSAND NINE HUNDRED AND FIFTY ONLY)

[Signature]

[Signature]

932

12ನೇ ಫೆಬ್ರವರಿ 2011 ರ ದಿನಾಂಕದ ದಾಖಲೆ ಸಂಖ್ಯೆ: 313



IN WITNESS WHEREOF the VENDOR & PURCHASER have affixed their signatures to this Sale Deed on the day, date and year mentioned above at Bangalore.

WITNESSES

1.

[Signature]

SUNIL B.
32 SRS CHAMBERS
239 SANKEY RD
B'KORE - 80.

2.

[Signature]

K.C. Chandra Sekhara
No. 54, New Bazaar Street
K.R. Puram
B'lore - 560036

VENDOR

[Signature]
PURCHASER

Drafted by

[Signature]
NARENDRA P

DWL No. 34/2011

#6, K.R. Puram

Bangalore 36.

(10)

(233)

ಈ ನಕಲು ಪ್ರತಿಯು ತುಳುಕುಕೊಳ್ಳುವುದು

ಕರ್ನಾಟಕ ಮುಖ್ಯಾಂಗ ಅಧಿನಿಯಮ 1957ರ ಪ್ರಕಾರಣ 41ರ ಪ್ರಮಾಣ ಪತ್ರ

ಚೀಗಕರ್ CANO 6149/19-20
Azamathulla Khan

ಅನುಮತಿಸಿದ ಮೊದಲನೆಯ ದಿನಾಂಕ 10-12-19
ಅನುಮತಿಸಿದ ಮೊದಲನೆಯ ದಿನಾಂಕ 9/12/19
ಅನುಮತಿಸಿದ ಮೊದಲನೆಯ ದಿನಾಂಕ 9/12/19
ಅನುಮತಿಸಿದ ಮೊದಲನೆಯ ದಿನಾಂಕ 9/12/19

ದಿನಾಂಕ: 10/12/19
ಕೆ: ಗಾಂಧಿನಗರ

ಮುಖ್ಯಾಂಗ
ಕಮಿಷನರ, ಗಾಂಧಿನಗರ
Barkat

ನಕಲು ಲೇಖಕನಿಗೆ Azamathulla Khan
ನಕಲು ತಯಾರಿಸಿದ ದಿನಾಂಕ 10/12/19
ನಕಲು ತಯಾರಿಸಿದವರು
ನಕಲು ಮೋದಿಸಿದವರು
ನಕಲು ವಿಲೇವಾರಿ ದಿನಾಂಕ 10/12/19



True copy

he

ಉಪಮೋದಿತಾಂಗ
ಗಾಂಧಿನಗರ ಬೆಂಗಳೂರು

75265582514

234

ANNEXURE-28

ರೇಷನ್ ಕಾರ್ಡ್, ಗಣಿ ಮತ್ತು ಪಾಲಿಮರ್ (RAC) ಕಾರ್ಡ್ ನಂ. ೦೬

Print Page: 11
Viewed from 21/05/2019 13:28:03 To Top Data
Close Print Page

[illegible]

NTC DIGITALLY SIGNED BY: PRADEEP ON 05-07-2019
ATC Unique Number: 37379553229
evalue version number 1908 build 40.43.18 2019-07-05
© 1997-2019 NTC. All rights reserved.

Downloaded from www.ascp.com on 12-20-19 17:33:15 Wed. 11

ಮೈಸೂರು ಎಲೆಕ್ಟ್ರಿಕ್ ಸ್ಟ್ರಾಂಟ್ ಸಂಸ್ಥೆ

<http://landproducts.biz/data/000/identification.htm>
 Claims may require that AADHSA's number and mobile number at www.landproducts.biz - the.gov.in to get full details about regulations on agricultural lands
 AIC Unique Number: 371A5552243
 Various Custom Number: 40, 42, 44, 46

71FA7555AEE2

TEAUSOARE

ಕರ್ನಾಟಕ ರಾಜ್ಯ ರಸ್ತೆ ಮತ್ತು ಹವಣ ವ್ಯವಸ್ಥೆ (RTC) ಕಾರ್ಯನಿರ್ವಹಣಾಧಿಕಾರಿಗಳು

Print Page No. 11
Valid from 21/05/2019 13:28:00 To Till Date
08/06/2019 13:28:00

[illegible]

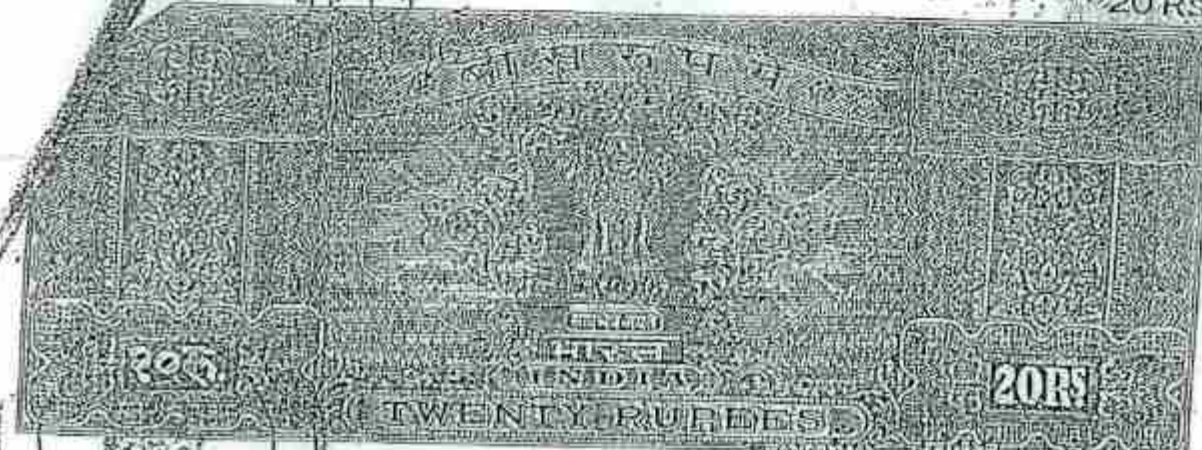
24, 1998 and 2000, respectively.
 submitted to the court. <http://landrecords.karnataka.gov.in/infocollection.php>
 Citizens may register their AECN/AAR number and AAR file number at www.landrecords.karnataka.gov.in to get daily alerts about mutations and application trends.

237

25/11/95
29-6-95

ANNEXURE-19

20 RS.



INDENTURE OF ABSOLUTE SALE
25/11/95

INDENTURE OF ABSOLUTE SALE MADE AND EXECUTED ON THIS
19 DAY JUNE ONE THOUSAND NINE HUNDRED NINETY FIVE
(29/05/1995).

R Y

SRI. T.S. NARAYANA RAO, SON OF LATE SRI. T.R. SANTOJI RAO, AGED ABOUT 63 YEARS, RESIDING AT NO.829, MUNICIPAL OFFICE ROAD, YELAHANKA, BANGALORE. WHO, IS HEREINAFTER REFERRED TO AS THE "VENDOR" OF THE ONE PART (WHICH TERM SHALL MEAN AND INCLUDE HIS RESPECTIVE LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATOR, ASSIGNS, ETC.,)

IN FAVOUR OF

SRI. A. ABDUL RAFEED SON OF SRI. ABDUL RAHIM SAHAB AND AGED ABOUT 42 YEARS AND RESIDING AT NO.83, SPENCER ROAD, BANGALORE - 560 005 AND, IS HEREINAFTER REFERRED TO AS THE "PURCHASER" OF THE OTHER PART (WHICH TERM SHALL MEAN AND INCLUDE HIS RESPECTIVE LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATORS, ASSIGNS, ETC.,)

NOW THIS INDENTURE OF ABSOLUTE SALE WITNESSETH AS FOLLOWS:

A. WHEREAS, THE VENDOR HEREIN IS THE FULL AND ABSOLUTE OWNER AND IN POSSESSION OF 2 ACRES OF LAND SITUATED IN SURVEY NO.34 OF KENCHANWALDI VILLAGE, YELAHANKA HOBLI, BANGALORE, WHICH IS MOREFULLY DESCRIBED IN THE SCHEDULE GIVEN HEREUNDER AND HEREINAFTER REFERRED TO AS THE SCHEDULE PROPERTY. THE VENDOR HEREIN ACQUIRED THE ABOVE SAID LAND UNDER A WILL EXECUTED BY HIS FATHER LATE SRI. T.R. SANTOJI RAO AND THE SAID WILL WAS EXECUTED ON 1-7-1984, WHICH DOCUMENT IS REGISTERED AS DOCUMENT NO.47/1984-85, VOLUME 30, PAGES 32-44 OF BOOK III, BEFORE THE SUB-REGISTRAR, BANGALORE NORTH TALUK, AND

B. WHEREAS, & ORIGINALLY, THE LAND BEARING SURVEY NO.33, WERE PURCHASED BY LATE SRI. T.R. SANTOJI RAO, THE FATHER OF THE VENDOR HEREIN IN THE NAME OF LATE SRI. RAMACHANDRA RAO, THE ELDEST SON

ಶಾಸನ ಸೂಚಕವಾಗಿ
ಯಶವಂತ

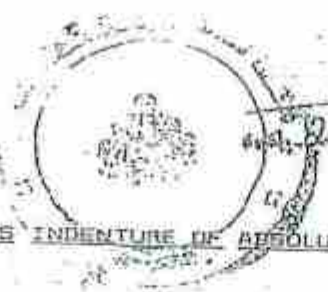


OF LATE SRI. T.R. SANTOJI RAO AND THE ELDER BROTHER OF THE VENDOR AND SURVEY NO. 158 PURCHASED BY T.R. SANTOJI RAO IN HIS NAME. THOUGH ONE OF THE SALE DEED WAS STANDING IN THE NAME OF SRI. RAMACHANDRA RAO, IT WAS THE PROPERTY OF THE JOINT FAMILY CONSISTING OF SRI. T.R. SANTOJI RAO AND HIS CHILDREN. IN THE ABOVE SAID WILL SRI. SANTOJI RAO DIVIDED ALL THE JOINT FAMILY PROPERTIES BY HEATHS AND BOUNDS AND BEQUEATHED THE SAME IN FAVOUR OF ALL HIS 6 CONS. THE PROPERTIES DESCRIBED IN 'B' SCHEDULE TO THE SAID WILL WERE BEQUEATHED IN FAVOUR OF THE VENDOR HEREIN, AND

C. WHEREAS, T.R. SANTOJI RAO DIED ON 16-7-1984 AND AFTER THE DEATH OF T.R. SANTOJI RAO ALL HIS CHILDREN AS PER THE WILL GOT THE KATHA TRANSFERRED TO THEIR RESPECTIVE NAMES IN RESPECT OF THE PROPERTIES BEQUEATHED IN THEIR FAVOUR AND SIMILARLY ALL THE ENTRY IN THE REVENUE RECORDS WAS CHANGED TO THE RESPECTIVE LEGATEES UNDER THE WILL AND ACCORDINGLY THE MUTATION ENTRY IN RESPECT OF THE SCHEDULE LAND HAS ALSO BEEN CHANGED TO THE NAME OF THE VENDOR AND VENDOR HAS ALSO PAID UPTO DATE ASSESSMENT PAYABLE TO THE GRAM PANCHAYATH, AND THE R.T.C. EXTRACTS IN RESPECT OF THE LAND ARE ALSO STANDING IN THE NAME OF THE VENDOR HEREIN, AND

D. WHEREAS, THE VENDOR HEREIN FOR HIS LEGAL NECESSITIES IN ORDER TO EDUCATE HIS CHILDREN AND FOR FAMILY NECESSITIES AND ALSO TO DISCHARGE THE LOAN RAISED BY HIM FOR THE FAMILY MAINTENANCE HAS DECIDED TO SELL THE SCHEDULE LAND FREE FROM ALL ENCUMBRANCES FOR A VALUABLE SALE CONSIDERATION OF RS. 1,90,000/- (RUPEES ONE LAKH NINETY THOUSAND ONLY).

240



RECEIVED 25/9/95

5

NOW, THEREFORE, THIS INDENTURE OF ABSOLUTE SALE, WITNESSETH AS FOLLOWS:

1. THAT PURSUANT TO THE ABOVE SAID DECISION AND IN CONSIDERATION OF RS. 1,20,000/- (ONE HUNDRED TWENTY THOUSAND ONLY) PAID BY THE PURCHASER TO THE VENDOR VIDE PAY ORDER BEARING NO. 001271 DATED 27 TH JUNE 1995 DRAWN BANK OF BARODA, PALACE ORCHARDS, BANGALORE, BEFORE THE ATTESTORS TO THIS DOCUMENT, WHICH AMOUNT THE VENDOR DOth HEREDY ACKNOWLEDGE AND ACQUIT AND RELEASE THE PURCHASER FROM THE SAME. IN CONSIDERATION OF THE AMOUNT PAID BY THE PURCHASER TO THE VENDOR AND IN CONSIDERATION OF THE TERMS AND COVENANTS HEREIN APPEARING, THE VENDOR DOth HEREDY SELL, CONVEY, GRANT, TRANSFER AND ASSIGN UNTO THE USE OF THE PURCHASER, THE SCHEDULE PROPERTY AND ALL THE RIGHTS, TITLE, INTEREST, PROPERTY CLAIMS AND DEMANDS WHATSOEVER TOGETHER WITH ALL LANDS, RIGHTS, HEREDITAMENTS, EASEMENTS AND ADVANTAGES APPURTAINING TO THE SAID VENDOR UNTO OR UPON THE SCHEDULE PROPERTY, TO HAVE AND TO HOLD AND TO ENJOY THE SCHEDULE PROPERTY AND EVERY PART THEREOF BELONGING TO THE SCHEDULE PROPERTY HEREDY CONVEYED UNTO THE SAID PURCHASER ABSOLUTELY FOREVER, FREE FROM ALL ENCUMBRANCES.

[Signature]

241

25/9/95

2. THE VENDOR HEREBY COVENANTS WITH THE PURCHASER THAT HE, THE VENDOR, HAS GOOD RIGHT AND VALID MARKETABLE TITLE TO THE SCHEDULE PROPERTY AND THAT HE HAS GOOD RIGHT TO CONVEY AND SELL THE SAME HEREBY CONVEYED AND SOLD OR EXPRESSED TO BE SOLD UNTO THE SAID PURCHASER IN THE MANNER AFORESAID.

3. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY SHALL AT ALL TIMES HEREINAFTER BE PEACEFULLY AND QUIETLY POSSESSED AND ENJOYED BY THE SAID PURCHASER AND THAT THE RENTS AND PROFITS THEREOF BE RECEIVED AND TAKEN TO THE ABSOLUTE USE OF THE SAID PURCHASER, WITHOUT ANY MANNER OF LET OR HINDRANCE BY OR FROM THE SAID VENDOR OR ANY PERSON CLAIMING LAWFULLY OR EQUITABLY OR IN TRUST FOR HIM.

4. THE VENDOR COVENANTS WITH THE PURCHASER THAT HE HAS PAID ALL THE TAXES AND DUES DUE AND PAYABLE IN RESPECT OF THE SCHEDULE PROPERTY, UPTO DATE AND THAT THE UNDERTAKES TO INTIMATE THE CONCERNED AUTHORITY AND ARRANGE FOR THE TRANSFER OF THE KATHA OF THE SCHEDULE PROPERTY TO THE NAME OF THE PURCHASER HEREIN.

28

242

5
25/9/95 16

6. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT HE, THE VENDOR, SHALL AND WILL FROM TIME TO TIME AND UPON THE REQUEST OF THE SAID PURCHASER DO AND EXECUTE OR CAUSE TO BE DONE AND EXECUTE ALL SUCH DEEDS, ACTS AND THINGS FOR FURTHER AND MORE PERFECTLY ASSURING THE PROPERTY TO THE PURCHASER AND PLACING HIM IN POSSESSION OF THE SAME ACCORDING TO THE TRUE AND CORRECT INTENT OF THESE PRESENTS.

6. THE VENDOR ALSO COVENANTS WITH THE PURCHASER THAT HE, THE VENDOR HAS NOT ALIENATED THE SCHEDULE PROPERTY OR ANY PART THEREOF TO ANY PERSON IN ANY MANNER WHATSOEVER HEREBEFORE.

7. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY IS FREE FROM ALL ENCUMBRANCES, ALL TYPES OF CLAIMS, CHARGES OR ATTACHEMENTS FROM THE COURT OR LIEN AND THAT HE HAS THE SOLE AND ABSOLUTE RIGHT TO SELL AND CONVEY THE SAME.

8. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE VENDOR WILL INDEMNIFY THE PURCHASER AGAINST ANY LOSS OR DAMAGE WHICH THE PURCHASER MAY SUSTAIN ON ACCOUNT OF BREACH OF THE ABOVE COVENANTS OR ANY ONE OR MORE OF THEM.

Top 28

243

6
25.19/19516

9. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY HAS BEEN ACQUIRED BY HIM UNDER THE WILL AND THAT HE HAS GOT ABSOLUTE RIGHT OF ALIENATION.

10. THE VENDOR HAS THIS DAY DELIVERED ACTUAL, VACANT POSSESSION OF THE SCHEDULE PROPERTY BY PUTTING THE PURCHASER IN POSSESSION OF THE SAME.

11. THE VENDOR HAS DELIVERED THE R.T.C. EXTRACT, ORIGINAL TITLE DEED TO THE SCHEDULE PROPERTY ASSESSMENT PAID RECEIPTS, COPY OF THE MUTATION REGISTER EXTRACT AND OTHER RELEVANT REVENUE RECORDS. THE VENDOR HIMSELF IS NOT IN A POSSESSION OF THE ORIGINAL WILL EXECUTED BY HIS FATHER AND THE WILL WAS IN THE CUSTODY OF HIS ELDER BROTHER OF THE VENDOR RAMACHANDRA RAO AND ONLY A XEROX COPY OF THE WILL HAS BEEN DELIVERED TO THE PURCHASER.

12. THE VENDOR COVENANTS WITH THE PURCHASER THAT AS THE SALE DEED WAS STANDING IN THE NAME OF LATE SRI RAMACHANDRA RAO, THE ELDEST BROTHER OF THE VENDOR HE HAS ALSO SECURED THE SIGNATURE OF THE WIFE OF SRI RAMACHANDRA RAO AND THAT OF HIS ONLY DAUGHTER AS CONSENTING WITNESSES TO THIS DOCUMENT TO CONFIRM THAT SURVEY NO. 33 OF KENCHENAHALLI VILLAGE WAS STANDING IN THE NAME OF SRI RAMACHANDRA RAO AND THAT HE WAS ONLY A NAME LENDER AND THAT THE SAME WAS THE JOINT FAMILY PROPERTY OF SRI T.R. SANTOJI RAO AND HIS CHILDREN AND THAT AFTER THE DEATH OF T.R. SANTOJI RAO THE PARTIES ARE ENJOYING AS PER THE PROPERTIES ALLOTTED BY LATE T.R. SANTOJI RAO AS PER HIS WILL DATED 1-7-1984.

[Signature]

944

35

7
25/9/15-16

5

13. THE VENDOR COVENANTS WITH THE PURCHASER THAT HE HAS ALSO GOT THE SIGNATURES OF HIS TWO SONS AS A CONSENTING WITNESSES TO THIS INDENTURE OF ABSOLUTE SALE.

SCHEDULE.

ALL THAT PART AND PARCEL OF AGRICULTURAL LAND MEASURING 2 ACRES SITUATED IN SURVEY NO. 34 OF KENCHENAHALLI VILLAGE, VELAHANKA HOBLI, BANGALORE NORTH TALUK, OUT OF AN EXTENT OF 5 ACRES 37 BUNTAS, AND BOUNDED ON THE :

EAST BY : PROPERTY OF KARANTH,
WEST BY : PROPERTY OF S.K. MARIAPPA,
NORTH BY : PROPERTY OF T.S. GOPAL RAO, AND
SOUTH BY : PROPERTY ORIGINALLY BELONGING TO KRISHNOJI RAO.

[Signature]

245

8
25/9/95

IN WITNESS WHEREOF, THE VENDOR HEREUNTO HAS AFFIXED HIS SIGNATURE TO THIS INDENTURE OF ABSOLUTE SALE ON THE DAY, MONTH AND YEAR FIRST ABOVE WRITTEN, AT BANGALORE, IN THE PRESENCE OF THE FOLLOWING WITNESSES:

~~CONSENTING WITNESSES:~~

~~INDENTURE~~

VENDOR

consenting witnesses:

~~CR~~

(T.N. VENKATESWARA RAO)

(T.N. NANDHAN RAO)

WITNESS:-

~~Signature~~

Sri Manappa

NO 10 Kajar Bonth

Rte 1st Wajur

Bk 40

Dr. Lakshmi
Attache

On 25/9/95
Polar

PROTEST CAN: THE FATHER OF THE VENDOR

946

ASSURE. R10

20 RS.

20 RS.



INDENTURE OF ABSOLUTE SALE

25/06/1995

THE 25TH DAY JUNE ONE THOUSAND NINE HUNDRED NINETY FIVE (29/06/1995).

E Y

SRI. T.S. KRISHNOIL-RAO, SON OF LATE SRI. T.R. SANTOJI RAO, AGED ABOUT 60 YEARS, RESIDING AT NO.629, MUNICIPAL OFFICE ROAD, YELAHANKA, BANGALORE. WHO IS HEREINAFTER REFERRED TO AS THE "VENDOR" OF THE ONE PART (WHICH TERM SHALL MEAN AND INCLUDE HIS RESPECTIVE LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATORS, ASSIGNS, ETC..)

IN FAVOUR OF

SRI. A. ABDUL RAHEEQ SON OF SRI. ABDUL RAHIM SANEB AND AGED ABOUT 42 YEARS AND RESIDING AT NO.85, SPENCER ROAD, BANGALORE - 560 005. AND IS HEREINAFTER REFERRED TO AS THE "PURCHASER" OF THE OTHER PART (WHICH TERM SHALL MEAN AND INCLUDE HIS RESPECTIVE LEGAL HEIRS, LEGAL REPRESENTATIVES, EXECUTORS, ADMINISTRATORS, ASSIGNS, ETC..)

NOW THIS INDENTURE OF ABSOLUTE SALE WITNESSETH AS FOLLOWS:

A. WHEREAS, THE VENDOR HEREIN IS THE FULL AND ABSOLUTE OWNER AND IN POSSESSION OF 2 ACRES OF LAND SITUATED IN SURVEY NO.34 OF KENCHANAHALLI VILLAGE, YELAHANKA HOBLI, BANGALORE, WHICH IS MOREFULLY DESCRIBED IN THE SCHEDULE GIVEN HEREUNDER AND HEREINAFTER REFERRED TO AS THE SCHEDULE PROPERTY. THE VENDOR HEREIN ACQUIRED THE ABOVE SAID LAND UNDER A WILL EXECUTED BY HIS FATHER LATE SRI. T.R. SANTOJI RAO AND THE SAID WILL WAS EXECUTED ON 1-9-1984, WHICH DOCUMENT IS REGISTERED AS DOCUMENT NO.47/1984-85, VOLUME 30, PAGES 32-44 OF BOOK III, BEFORE THE SUB-REGISTRAR, BANGALORE NORTH TALUK, AND

[Signature]

154

(9.47)

965210 22-
 AS.....Rs.....
 Name.....A- Akhbar Raza
 Date.....22-10-93
 Stamp Vendor
 (A. BHARAPPA)

ಇದರಲ್ಲಿ ಒಂದು ಸಾವಿರಕ್ಕೂ ಹೆಚ್ಚು ರೂಪಾಯಿ
ಮಾತ್ರವೇ ದಾನಕ್ಕೆ ಬಂದಿದೆ ಎಂದು ತಿಳಿದುಬಂದಿದೆ.
T.E. Srinivasan Rao-2000 - 1000-
ಎಸ್. ಎಲ್. ವಾರ್ಡರ್ ಮಹಾಲಕ್ಷ್ಮಿ

1) ಬೆಂಗಳೂರು	300-10
2) ಚರಣ್ 'ಪೂರಿಯಾ	30-10
3) ಹಿರಿಯರ	18-10
4) ಅಂತಿಮ ವೆಚ್ಚ	2-10
5) ಇತರೆ	20-10
	Con 30-10

ಪ್ರಮಾಣ ಸಂಖ್ಯೆ 3920-20

ಎರಡುಕೂಟ್ಟನ್ನು ಒಪ್ಪಿಕೊಂಡಿರುತ್ತಾರೆ

ಆಧಾರ್
ಕಾರ್ಯ-ನೋಂದಣಿ ಸಾಧಕನ
ಹೊರತು

Dr. J. S. Ray

Chen

P. K. Sathya

ಸೇ. ಪುಸ್ತಕದ ಸೇ. ಸಂಖ್ಯೆ
 ಸೇ. ಪುಟಗಳಲ್ಲಿ 19 ಸೇ. ಪುಟಗಳು
 ಸೇ. ಪರಿಚಯ ಸೇ. ಪರಿಚಯ

উপসংক্ষেপ

ಈ ಸಂದರ್ಭದಲ್ಲಿ
ಯಿಲ್ಲ.

Bob - J.K.

ಶಾಸನ-ಮೋಕ್ಷೋದಧಿಪತಿ

(248)

(54)

R.3-25-70
27-6-75



10 RS.

10 RS.

B. WHEREAS, ORIGINALLY THE LAND BEARING SURVEY NO. 34 PURCHASED BY LATE SRI. T.R. SANTOJI RAO, THE FATHER OF THE VENDOR HEREIN, IN THE NAME OF LATE SRI. RAMACHANDRA RAO, THE ELDEST SON OF LATE SRI. T.R. SANTOJI RAO AND THE ELDER BROTHER OF THE VENDOR AND SURVEY NO. 34 PURCHASED BY T.R. SANTOJI RAO IN HIS NAME. THOUGH ONE OF THE SALE DEED WAS STANDING IN THE NAME OF SRI. RAMACHANDRA RAO, IT WAS THE PROPERTY OF THE JOINT FAMILY CONSISTING OF SRI. T.R. SANTOJI RAO AND HIS CHILDREN. IN THE ABOVE SAID WILL SRI. SANTOJI RAO DIVIDED ALL THE JOINT FAMILY PROPERTIES BY MEATS AND BOUNDS AND BEQUEATHED THE SAME IN FAVOUR OF ALL HIS 8 SONS. THE PROPERTIES DESCRIBED IN 'C' SCHEDULE TO THE SAID WILL WERE BEQUEATHED IN FAVOUR OF THE VENDOR HEREIN, AND

C. WHEREAS, T.R. SANTOJI RAO DIED ON 16-9-1984 AND AFTER THE DEATH OF T.R. SANTOJI RAO ALL HIS CHILDREN AS PER THE WILL GOT THE KATHA TRANSFERRED TO THEIR RESPECTIVE NAMES IN RESPECT OF THE PROPERTIES BEQUEATHED IN THEIR FAVOUR AND SIMILARLY ALL THE ENTRY IN THE REVENUE RECORDS WAS CHANGED TO THE RESPECTIVE LEGATEES UNDER THE WILL AND ACCORDINGLY THE MUTATION ENTRY IN RESPECT OF THE SCHEDULE LAND HAS ALSO BEEN CHANGED TO THE NAME OF THE VENDOR AND VENDOR HAS ALSO PAID UPTO DATE ASSESSMENT PAYABLE TO THE GRAM PANCHAYATH, AND THE R.T.C. EXTRACTS IN RESPECT OF THE LAND ARE ALSO STANDING IN THE NAME OF THE VENDOR HEREIN, AND

D. WHEREAS, THE VENDOR HEREIN FOR HIS LEGAL NECESSITIES IN ORDER TO EDUCATE HIS CHILDREN AND FOR FAMILY NECESSITIES AND ALSO TO DISCHARGE THE LOAN RAISED BY HIM FOR THE FAMILY MAINTENANCE HAS DECIDED TO SELL THE SCHEDULE LAND FREE FROM ALL ENCUMBRANCES FOR A VALUABLE SALE CONSIDERATION OF RS. 1,50,000/- (RUPEES ONE LAKH NINETY THOUSAND ONLY).

Winkler

(138)

(949)



no. 465-66 no. 10-11
 Name: A. Abdul Rafeeq
 Date: 27/10/93
 Stamp Vendor: A. BHARATHA



Extenuation

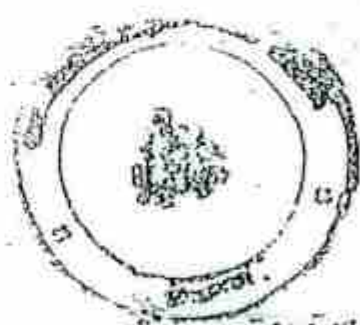
Original
 ಮಹಾ-ನೋಂದಣಾಧಿಕಾರಿ
 ಬುಲಬುಲ

ಮಹಾ-ನೋಂದಣಾಧಿಕಾರಿ

A. R. S.
 Cr. A. R. S. (copy)
 Rafeeq

Original
 ಮಹಾ-ನೋಂದಣಾಧಿಕಾರಿ
 ಬುಲಬುಲ

ಇದೇ ಪರಿಶೀಲನೆ 7.7.6 ರಿಂದ ಸಂಪೂರ್ಣ
 17.2.12 ರಿಂದ ಪರಿಶೀಲನೆ 19.12.12 ರಿಂದ ಪರಿಶೀಲನೆ
 4.2.20 ರಿಂದ ಪರಿಶೀಲನೆ ನೋಂದಣಾಧಿಕಾರಿ ಹಾಗೂ
 ದಿನಾಂಕ 20/2/20
 ಮಹಾ-ನೋಂದಣಾಧಿಕಾರಿ
 ಬುಲಬುಲ



Duplicate

Difference between the original & duplicate is nil. The original Stamp duty paid on 25650/- dated 29/6/95

Ready

A. R. S.
 Sub-Registrar
 20/2/20

250

125



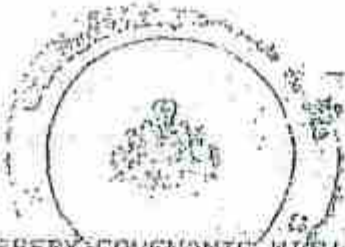
NOW, THEREFORE, THIS INDENTURE OF ABSOLUTE SALE, WITNESSETH AS FOLLOWS:

1. THAT PURSUANT TO THE ABOVE SAID DECISION AND IN CONSIDERATION OF RS. 1,90,000/- (RUPEES ONE LAKH NINETY THOUSAND ONLY) PAID BY THE PURCHASER TO THE VENDOR VIDE PAY ORDER BEARING NO. 001279 DATED 27 IN JUNE 1995 DRAWN BANK OF BARODA, PALACE ORCHARDS, BANGALORE, BEFORE THE ATTORNEYS TO THIS DOCUMENT, WHICH AMOUNT THE VENDOR BOTH HEREBY ACKNOWLEDGE AND ACQUIT AND RELEASE THE PURCHASER FROM THE SAME. IN CONSIDERATION OF THE AMOUNT PAID BY THE PURCHASER TO THE VENDOR AND IN CONSIDERATION OF THE TERMS AND COVENANTS HEREIN APPEARING, THE VENDOR BOTH HEREBY SELL, CONVEY, GRANT, TRANSFER AND ASSIGN UNTO THE USE OF THE PURCHASER, THE SCHEDULE PROPERTY AND ALL THE RIGHTS, TITLE, INTEREST, PROPERTY CLAIMS AND DEMANDS WHATSOEVER TOGETHER WITH ALL LANDS, RIGHTS, HEREDITAMENTS, EASEMENTS AND ADVANTAGES APPURTAINING TO THE SAID VENDOR UNTO OR UPON THE SCHEDULE PROPERTY, TO HAVE AND TO HOLD AND TO ENJOY THE SCHEDULE PROPERTY AND EVERY PART THEREOF BELONGING TO THE SCHEDULE PROPERTY HEREBY CONVEYED UNTO THE SAID PURCHASER ABSOLUTELY FOREVER FREE FROM ALL ENCUMBRANCES.

Signature

951

32



4/11/2018
22/04/2018

5/11

2. THE VENDOR HEREBY COVENANTS WITH THE PURCHASER THAT HE, THE VENDOR, HAS GOOD RIGHT AND VALID MARKETABLE TITLE TO THE SCHEDULE PROPERTY AND THAT HE HAS NOT GOOD RIGHT TO CONVEY AND SELL THE SAME HEREBY CONVEYED AND SOLD OR EXPRESSED TO BE SOLD UNTO THE SAID PURCHASER IN THE MANNER AFORESAID.

3. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY SHALL AT ALL TIMES HEREINAFTER BE PEACEFULLY AND QUIETLY POSSESSED AND ENJOYED BY THE SAID PURCHASER AND THAT THE RENTS AND PROFITS THEREOF BE RECEIVED AND TAKEN TO THE ABSOLUTE USE OF THE SAID PURCHASER, WITHOUT ANY MANNER OF LET OR HINDRANCE BY OR FROM THE SAID VENDOR OR ANY PERSON CLAIMING LAWFULLY OR EQUITABLY OR IN TRUST FOR HIM.

4. THE VENDOR COVENANTS WITH THE PURCHASER THAT HE HAS PAID ALL THE TAXES AND CESSSES DUE AND PAYABLE IN RESPECT OF THE SCHEDULE PROPERTY UPTO DATE AND THAT THE UNDERAKES TO INTIMATE THE CONCERNED AUTHORITY AND ARRANGE FOR THE TRANSFER OF THE KATHA OF THE SCHEDULE PROPERTY TO THE NAME OF THE PURCHASER HEREIN.

5. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT HE, THE VENDOR, SHALL AND WILL FROM TIME TO TIME AND UPON THE REQUEST OF THE SAID PURCHASER DO AND EXECUTE OR CAUSE TO BE DONE AND EXECUTED ALL SUCH DEEDS, ACTS AND THINGS FOR FURTHER AND MORE PERFECTLY ASSURING THE PROPERTY TO THE PURCHASER AND PLACING HIM IN POSSESSION OF THE SAME ACCORDING TO THE TRUE AND CORRECT INTENT OF THESE PRESENTS.

22/04/2018

259

12

5
25.20/95.96

6. THE VENDOR ALSO COVENANTS WITH THE PURCHASER THAT HE, THE VENDOR HAS NOT ALIENATED THE SCHEDULE PROPERTY OR ANY PART THEREOF TO ANY PERSON IN ANY MANNER WHATSOEVER HEREBEFORE.

7. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY IS FREE FROM ALL ENCUMBRANCES, ALL TYPES OF CLAIMS, CHARGES OR ATTACHEMENTS FROM THE COURT OR LIEN AND THAT HE HAS THE SOLE AND ABSOLUTE RIGHT TO SELL AND CONVEY THE SAME.

8. THE VENDOR COVENANTS WITH THE PURCHASER THAT THE VENDOR WILL INDEMNIFY THE PURCHASER AGAINST ANY LOSS OR DAMAGE WHICH THE PURCHASER MAY SUSTAIN ON ACCOUNT OF BREACH OF THE ABOVE COVENANTS OR ANY ONE OR MORE OF THEM.

9. THE VENDOR FURTHER COVENANTS WITH THE PURCHASER THAT THE SCHEDULE PROPERTY HAS BEEN ACQUIRED BY HIM UNDER THE WILL AND THAT HE HAS GOT ABSOLUTE RIGHT OF ALIENATION.

10. THE VENDOR HAS THIS DAY DELIVERED ACTUAL, VACANT POSSESSION OF THE SCHEDULE PROPERTY BY PUTTING THE PURCHASER IN POSSESSION OF THE SAME.

11. THE VENDOR HAS DELIVERED THE R.T.C. EXTRACT, ORIGINAL TITLE DEED TO THE SCHEDULE PROPERTY ASSESSMENT PAID RECEIPTS, COPY OF THE MUTATION REGISTER EXTRACT AND OTHER RELEVANT REVENUE RECORDS. THE VENDOR HIMSELF IS NOT IN A POSSESSION OF THE ORIGINAL WILL EXECUTED BY HIS FATHER AND THE WILL WAS IN THE CUSTODY OF HIS ELDER BROTHER OF THE VENDOR RAMACHANDRA RAO AND ONLY A XEROX COPY OF THE WILL HAS BEEN DELIVERED TO THE PURCHASER.

25.20/95.96

6

RECEIVED

[Signature]

[Signature]

12. THE VENDOR COVENANTS WITH THE PURCHASER THAT AS THE SALE DEED WAS STANDING IN THE NAME OF LATE SRI RAMACHANDRA RAO, THE SELLER'S BROTHER OF THE VENDOR HE HAS OBTAINED THE SIGNATURES OF THE WIFE OF SRI RAMACHANDRA RAO AND THAT HIS ONLY DAUGHTER AS CONSENTING WITNESSES TO THIS DOCUMENT AND FURTHER THAT SURVEY NO. 3 OF SANGHERA WATTE VILLAGE WAS STANDING IN THE NAME OF SRI RAMACHANDRA RAO AND THAT HE WAS ONLY A JOINT OWNER WITH AT THE SAME TIME THE JOINT FAMILY PROPERTY OF SRI RAMACHANDRA RAO AND HIS CHILDREN AND THAT AFTER THE DEATH OF SRI RAMACHANDRA RAO THE PARTIES HAVE DIVIDED AS PER THE PROCEEDINGS ORDERED BY LATE SRI RAMACHANDRA RAO UNDER HIS WILL DATED 1/1/1900.

13. THE VENDOR COVENANTS WITH THE PURCHASER THAT HE HAS ALSO GOT THE SIGNATURES OF HIS FIVE SONS AS A CONSENTING WITNESSES TO THIS INDENTURE OF ABSOLUTE SALE.

[Signature]

00

00

954

15

SCHEDULE

ALL THAT PART AND PARCEL OF AGRICULTURAL LAND, MEASURING 2 ACRES SITUATED IN SURVEY NO. 34 OF KENCHENAHALLI VILLAGE, YELAHANKA HOBLI, BANGALORE NORTH TALUK, OUT OF AN EXTENT OF 5 ACRES 37 GUNTAS, AND BOUNDED ON THE :

- EAST BY : OLD KENCHENAHALLI VILLAGE,
- WEST BY : PROPERTY OF S.K. MARIAPPA, JAGANATH RAO AND INDIRA BAI
- NORTH BY : PROPERTY ORIGINALLY BELONGING TO T.S. NARAYAN RAO,
- SOUTH BY : JANATHA HOUSING COLONY.

W. S. S. S.

8
28/11/15

IN WITNESS WHEREOF, THE VENDOR HEREUNTO HAS AFFIXED HIS SIGNATURE TO THIS INDENTURE OF ABSOLUTE SALE ON THE DAY, MONTH AND YEAR FIRST ABOVE WRITTEN, AT BANGALORE, IN THE PRESENCE OF THE FOLLOWING WITNESSES:

CONSENTING WITNESSES:

1.

(INDIRA RAO)

[Signature]
VENDOR

2.

(RATHNA RAO)

3.

[Signature]
(T.K. GOVINDA RAJU)

4.

[Signature]

5.

(T.K. PRAKASH)

6.

[Signature]
(T.K. SATISH)

7.

[Signature]
(T.K. GOPINATH)

8.

[Signature]
(T.K. CHANDRA SHEKAR)

9.

[Signature]
D. S. K. MARYAM

10. Kalyan Suresh
Kpe hys h Wrayne
Kalyan h.

Annexure R11
 ANNEXURE- R11

(256)



36
 2-00

ಈ ದಾಖಲೆಯು, ಸಾರ್ವಜನಿಕವಾಗಿ,
 ಮುಚ್ಚಲ್ಪಟ್ಟಿದೆ.

00BB 699667

DNG (U)-YLNK/34011/1997-97/1-102

DEED

THIS DEED OF ABSOLUTE SALE is made and executed on this the Fourteenth day of July, One Thousand Nine Hundred and Ninety Seven (19/07/1997), by :

Sri. A. Abdul Rafoeq, aged about 42 years, son of Sri. Abdul Kader Khan, residing at No. 81, Spencer Road, Bangalore - 560 036, and represented by his Power of Attorney Holder, Sri. Suraj K. Chhabria, aged about 24 years, and son of Sri. Bansilal K. Chhabria. Hereinafter referred to as the "Vendor" which expression wherever the context so admits shall mean and include his respective legal heirs, legal representatives, executors, administrators, and assigns, of the one part,

in Favour of :

Smt. Anju Anuja, aged about 14 years, daughter of Sri. M. S. Srinivasan, residing at No. 31, First Cross, Sriharish Layout, Sadashivan Road, Bangalore - 560 001. Hereinafter referred to as the "Purchaser" which expression wherever the context so admits shall mean and include her respective legal heirs, legal representatives, executors, administrators, and assigns, of the other part.

Suraj Chhabria

ಇದರಲ್ಲಿ, ಸಾರ್ವಜನಿಕವಾಗಿ,

Suraj Chhabria
 ಸಹಿ, ಸಾರ್ವಜನಿಕವಾಗಿ
 (ಮುಚ್ಚಲ್ಪಟ್ಟಿದೆ) ಮುಚ್ಚಲ್ಪಟ್ಟಿದೆ
 ಮುಚ್ಚಲ್ಪಟ್ಟಿದೆ, ಮುಚ್ಚಲ್ಪಟ್ಟಿದೆ

உய்யுதல் மூலம் 335000 ரூபாய், பங்குகள்
150000 ரூபாய் + 100000 ரூபாய் + 50000 ரூபாய்!
உய்யுதல் மூலம் ஏமாறாதவர்களுக்கு வரவேண்டியது.
இந்த உத்தேசம் 150000 ரூபாய்
மீட்டர் : திருமதி/திரு. அனில் அனல்
11-04-1994

Dina

ಶ್ರೀಮತಿ. ಎಸ್. ಎಂ. ಎಸ್. (ಎ)

ವಾಣಿಜ್ಯ ಕುರಿತು ಸಾರ್ವಜನಿಕ ವಿಚಾರಣೆ

(M. Amur Narayan Road)

ENG (U)-YLNK/-3624/1997-8 102-1024

ಮುಖಪುಟ ಉಪ-ನಿರ್ದೇಶಕರ ಕಛೇರಿ
 ನಿರಾಕರಣೆ 20-7-2019 ರಂದು ಮಾಡಿದ ಶಂಖ... 20-39
 ಸಿ.ಎಸ್.ಎಸ್. ಸಿ.ಎಸ್.ಎಸ್. ಸಿ.ಎಸ್.ಎಸ್. ಸಿ.ಎಸ್.ಎಸ್.
 ಸಿ.ಎಸ್.ಎಸ್. ಸಿ.ಎಸ್.ಎಸ್. ಸಿ.ಎಸ್.ಎಸ್. ಸಿ.ಎಸ್.ಎಸ್.

Angie Sherrill

ಬರದುಕೊಟ್ಟದ್ದನ್ನು ಮನ್ನಿಕೊಂಡಿರುತ್ತಾರೆ

Suraj Chhabria

(P. A. HOLDER FOR
A. ABDEL RAHMAN)

Signature: _____

గుర్తి గువవదు,

7/1/80
545. Kenna
no 21320-3143 floor
2nd chamber
no 249 floor
Sunderland
Rt Hon


 Robert J. M. Smith, Jr.
 501 7

958



under the seal of the

BNG (U)-YLNK/ 3424/1997/87/ 5-2/2

00BB 609668

A. WHEREAS, the Vendor herein is the sole and absolute owner and in possession of Two (2) Acres of land situated in Survey No. 34 of Kanchanahalli Village, Yelahanka Hobli, Bangalore North Taluk; which is morefully described in the Schedule herein below and hereinafter referred to as the 'Schedule Property'; and

B. WHEREAS, the Vendor herein acquired the above said land from Sri. T. S. Narayan Rao, son of Late Sri. T. R. Santoji Rao, by way of a Sale Deed dated June 29, 1995, which document is registered as No. 2519/1995-96 in Book - 1, Volume - 776, Pages 46-55, in the Office of the Sub-Registrar, Yelahanka, Bangalore North Taluk; and

C. WHEREAS, the Vendor herein is the sole and absolute owner and in peaceful possession and enjoyment of the Schedule Property and he has an exclusive and impeachable right of disposal over the Schedule Property in his own right as absolute owner thereof and that all the Revenue Records are standing in the name of the Vendor, and he has been paying the necessary taxes to the concerned authorities regularly; and

D. WHEREAS, the Vendor herein is in need of money for the maintenance of his family, and for other legal necessities, has decided to sell the Schedule Property for a valuable sale consideration of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only),

E. WHEREAS, the Vendor has offered to sell the Schedule Property and the Purchaser has agreed to purchase the same for a consideration of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only), on the following terms and conditions:

Singh Chhabra

(259)

1000Rs.



[Signature]
Sd/-

BNG (U)-YLNE/3424/1997-B/S-12
[Signature]

Now this deed of sale witnesseth as follows :

1. The Vendor hereby grants, sells, transfers, conveys, and assigns by way of absolute sale all his right, title, and interest over the Schedule Property sold by this deed of sale, together with right of ways, easement of necessaries, advantage, appurtenances, whatsoever pertaining to or belonging to the Schedule Property to the Purchaser herein for a total consideration amount of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only).
2. The Purchaser has paid to the Vendor a sum of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only) by a Cheque dated 12.07.1997, bearing No. 027312, drawn on Bank of Baroda, in the presence of the witnesses, and the Vendor, hereby acknowledges the receipt of the sale consideration in full.
3. The Vendor hereby also conveys to the Purchaser the right of passage to and from the Schedule Property to the public roads from the different roadways bounding the Schedule Property.
4. The Vendor assures the Purchaser that he has not entered into any other agreement of sale with any other person or institution or firm or company and that the Vendor has every right to dispose the Schedule Property in any manner she likes free from any encumbrances.
5. The Purchaser and her successors in title hereafter shall be entitled to enjoy the Schedule Property by virtue of this deed of sale absolutely from generation to generation without any impediments/hindrances from any person or persons.

[Signature]
Suj Chhabria



UNG (U)-YLNK/3404/1997/93/262

copy to be retained.

6. The Vendor assures the Purchaser that the Schedule Property is free from all encumbrances, charges, attachments, court decrees, minor claims, maintenance claims, and any other claims of whatever nature, and that the Schedule Property is not a subject matter of any proceedings, before any authority, like Income Tax, Wealth Tax, Gift Tax, Reserve Bank of India and any other statutory authorities, and the Vendor, further assures the Purchaser that the Schedule Property and every part thereof, is not a subject matter of acquisitions proceedings either under the State Act or under any Central Act.

7. The Vendor hereby assures the Purchaser that the sale of the Schedule Property is not in contravention of the provisions in the Urban Land (Ceiling & Regulation) Act of 1976 or in contravention of any other statute in force.

8. The Vendor hereby assures the Purchaser that he has paid all proper taxes, etc., in respect of the Schedule Property to the statutory authorities and the Purchaser hereby agrees to pay hereafter all such taxes from this day and in case of any arrears of taxes are due, the same shall be paid by the Vendor.

9. The Vendor hereby covenants and assures that he shall deliver to the Purchaser the requisite applications for the transfer of Khata of the Schedule Property in the name of the Purchaser in the office of the concerned authorities.

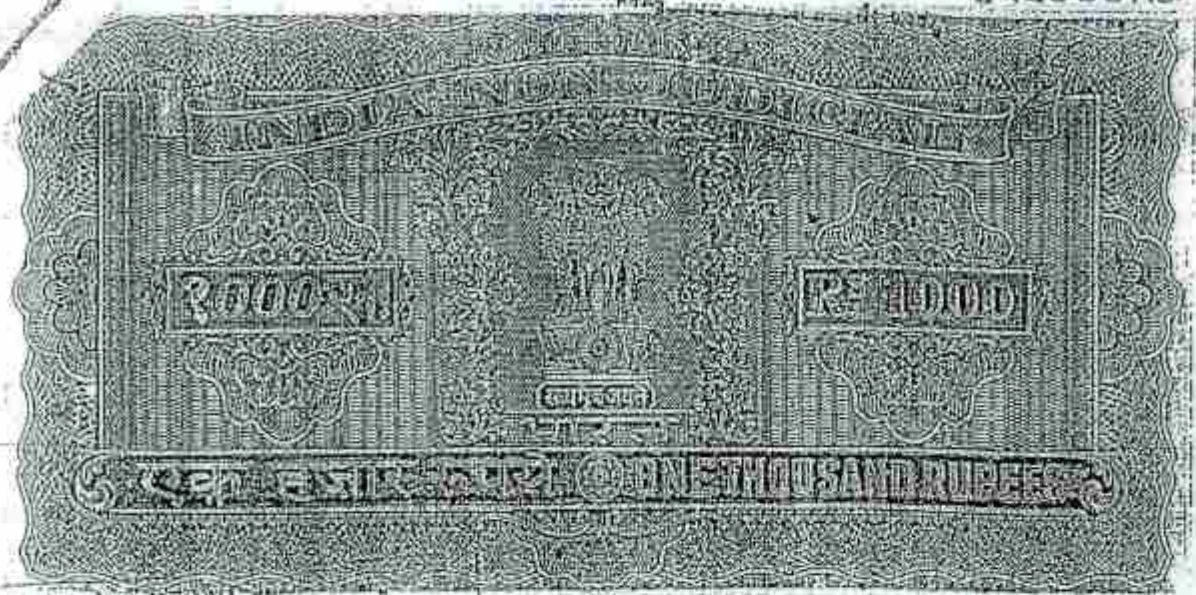
10. The Vendor hereby covenants that the Schedule Property is not included in the Notification as per RD 132 ERG 76 dated 14.03.1979 and 06.09.1979. The Schedule Property is not Service Inam Land and not in contravention of the provisions of the Karnataka Village Abolition Act, 1961 and not granted under the Karnataka Land Reforms Act, 1961 and 1974. There are no applications pending before the Land Tribunal, Bangalore North Taluk, under the Land Reforms Act.

Singh Chhabra

261

(145)

Rs. 4000



HNG (U)-YLNR/ 3424 /1997-98/ 12

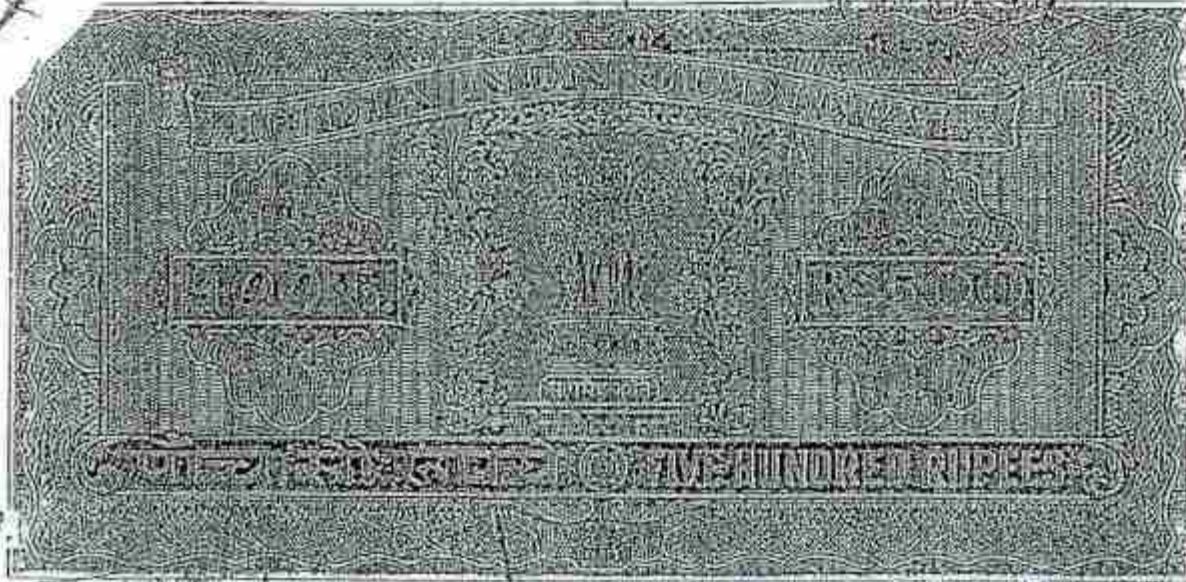
Vendor's Sub.

11. The Vendor covenants and assures hereby that the Purchaser shall hereafter peacefully hold, possess and enjoy the Schedule Property without any claims, disturbances or interruptions whatsoever from the Vendor or any person/s claiming through or under him.
12. The Vendor herein had earlier today handed over physical vacant possession of the Schedule Property and the purchaser herein confirms being in peaceful possession and enjoyment of the same.
13. The Vendor hereby declares and confirms that he has clear and marketable title to the Schedule Property and if, for any reason it is found that there is any defect in the title of the Vendor to the Schedule Property and the Purchaser is put to any loss or damage on account thereof the Vendor hereby agrees to indemnify the Purchaser against all such damages in respect of the Schedule Property together with all the losses that may be caused to the Purchaser as consequences thereof.
14. The Vendor covenants with the Purchaser that the Vendor will always at the Purchaser's cost and at the request of the Purchaser do and execute or cause to be done executed all such lawful acts, deeds, and things whatsoever for further and more perfectly conveying and assuring the Schedule Property and every part thereof to the Purchaser and placing it in possession of the Purchaser according to the true intent and meaning of this deed.
15. The Vendor has this day delivered all the relevant original documents pertaining to the Schedule Property to the Purchaser.

Singh Chhabra

969

500Rs.



BNG (U)-TLNK/ Surat /1997-98 fl-12

SCHEDULE PROPERTY

All that piece and parcel of agricultural land measuring 2 Acres, situated in Survey No. 34 of Kenchenahalli Village, Yelahanka Hobli, Bangalore North Taluk, and bounded on the :

- East by : Property belonging to Karanath.
West by : Property belonging to S. K. Mariappa.
North by : Property belonging to T. S. Gopal Rao, and on the
South by : Property originally belonging to Krishnaji Rao (sold to the Vendor).

IN WITNESS WHEREOF, the Vendor herein has affixed his signature to this deed of absolute sale on the Date, Month and Year first above written, at Bangalore.

WITNESSES

1. [Signature]
JAPANNAR

2. [Signature]
S. S. S. S. S.

[Signature]

Vendor
Represented by P. A. Holder

[Signature]
Dattatraya
Kumar
Dattatraya
Kumar

Ry



0088 699669

BNG (U)-YLNR/3925/153732/1-12

S A L E D E E D

THIS DEED OF ABSOLUTE SALE is made and executed on this the Fourteenth day of July, One Thousand Nine Hundred and Ninety Seven (1907/1997), by :

Sri. A. Abdul Rafiq, aged about 42 years, son of Sri. Abdul Rahim Khan, residing at No. 55, Spencer Road, Bangalore - 560 002, and represented by his Power of Attorney Holder, Sri. Suraj C. Chhabria, aged about 24 years, and son of Sri. Bansilal K. Chhabria. Hereinafter referred to as the "Vendor" which expression wherever the context so admits shall mean and include his respective legal heirs, legal representatives, executors, administrators, and assigns, of the one part,

In Favour of: 2

Smt. Anju Ahuja, aged about 24 years, daughter of Sri. Harindas Sodaran, residing at No. 35, First Cross, Silkmarket Layout, Crescent Road, Bangalore - 560 001. Hereinafter referred to as the 'Purchaser' (which expression wherever the context so admits 'he', 'she' and 'includes her respective legal heirs, legal representatives, executors, administrators, and assigns) of the other part.

Lucy Culbreth

(Handwritten signature)
ಶ್ರೀ ಮಂತ್ರಿ, ಸಚಿವರು
(ಮಾ.ಸ.ಸ.) ಮಾನ್ಯರ ಕಛೇರಿ
ಬೆಂಗಳೂರು, ಕರ್ನಾಟಕ

265

149



BNG (U)-YLNK/3425/1997-98/3-2 0088 699670

- A. WHEREAS, the Vendor herein is the sole and absolute owner and in possession of Two (2) Acres of land situated in Survey No. 34 of Konchanahalli Village, Yelahanka Hobli, Bangalore North Taluk; and
- B. WHEREAS, the Vendor herein acquired the above said land from Sri. T. S. Krishnaji Rao, son of Late Sri. T. R. Santoji Rao, by way of a Sale Deed dated June 29, 1995, which document is registered as No. 2520/1995-96 in Book - 1, Volume - 77A, Pages 171-172, in the Office of the Sub-Registrar, Yelahanka, Bangalore North Taluk; and
- C. WHEREAS, the Vendor herein has decided to sell a portion measuring to an extent of One (1) Acre and Thirty Two (32) Guntas, out of the Two Acres described above herein, which is more fully described in the Schedule herein below and hereinafter referred to as the "Schedule Property"; and
- D. WHEREAS, the Vendor herein is the sole and absolute owner and in peaceful possession and enjoyment of the Schedule Property and he has an exclusive and impeachable right of disposal over the Schedule Property in his own right as absolute owner thereof and that all the Revenue Records are standing in the name of the Vendor, and he has been paying the necessary taxes to the concerned authorities regularly; and
- E. WHEREAS, the Vendor herein is in need of money for the maintenance of his family, and for other legal necessities, has decided to sell the Schedule Property for a valuable sale consideration of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only); and
- F. WHEREAS, the Vendor has offered to sell the Schedule Property and the Purchaser has agreed to purchase the same for a consideration of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only), on the following terms and conditions:

Singh Chhabra

266

1000Rs.



BNG (U)-YLNR/ 3625 /1997-98/ 2-12

6. The Vendor assures the Purchaser that the Schedule Property is free from all encumbrances, charges, attachments, court decrees, minor claims, maintenance claims, and any other claims of whatever nature, and that the Schedule Property is not a subject matter of any proceedings, before any authority, like Income Tax, Wealth Tax, Gift Tax, Reserve Bank of India and any other statutory authorities, and the Vendor, further assures the Purchaser that the Schedule Property and every part thereof is not a subject matter of acquisitions proceedings either under the State Act or under any Central Act.

7. The Vendor hereby assures the Purchaser that the sale of the Schedule Property is not in contravention of the provisions in the Urban Land Ceiling & Regulation Act of 1978 or in contravention of any other statute in force.

8. The Vendor hereby assures the Purchaser that he has paid all proper taxes, etc., in respect of the Schedule Property to the statutory authorities and the Purchaser hereby agrees to pay hereafter all such taxes from this day and in case of any arrears of taxes are due, the same shall be paid by the Vendor.

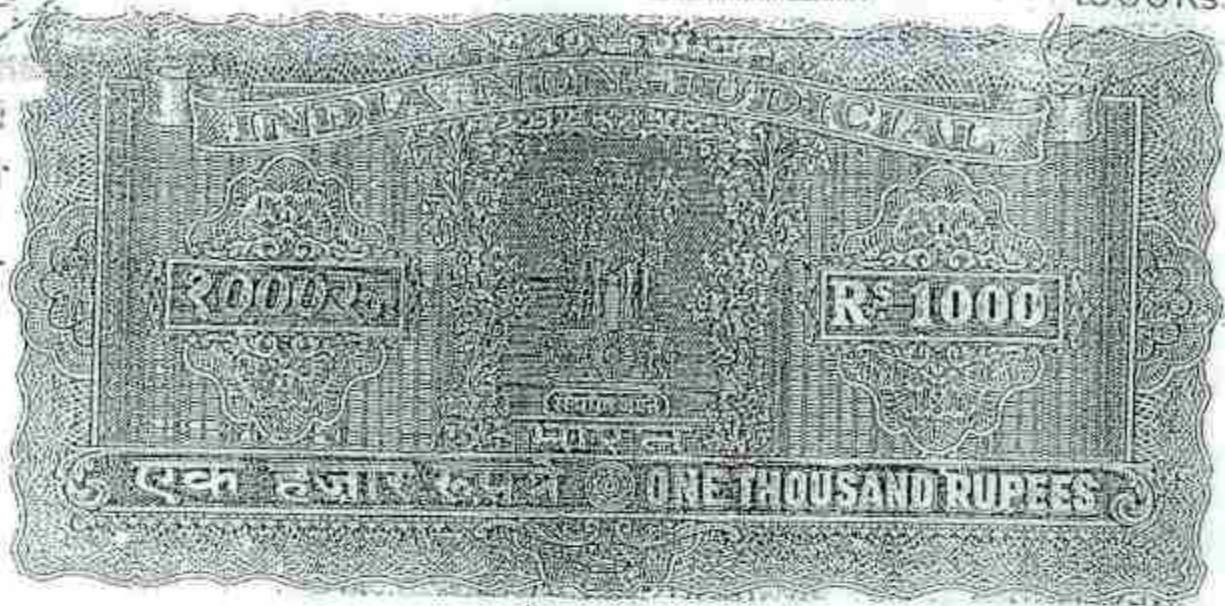
9. The Vendor hereby covenants and assured that he shall deliver to the Purchaser the requisite applications for the transfer of Khata of the Schedule Property in the name of the Purchaser in the office of the concerned authorities.

10. The Vendor hereby covenants that the Schedule Property is not included in the notification as per RD 132 ERG 75 dated 14.03.1975 and 06.09.1975. The Schedule Property is not Service land and not in contravention of the provisions of the Karnataka Village Abolition Act, 1961 and not granted under the Karnataka Land Reforms Act, 1961 and 1974. There are no applications pending before the Land Tribunal, Bangalore North Taluk, under the Land Reforms Act.

Surya Chhabria

267

1000Rs.



BNG (D)-YLNR/ SCW'S /1997-98/ 2-12

Now this deed of Sale witnesseth as follows:

1. The Vendor hereby grants, sells, transfers, conveys, and assigns by way of absolute sale all his right, title, and interest over the Schedule Property sold by this deed of sale, together with right of ways, easement of necessities, advantage, appurtenances, whatsoever pertaining to or belonging to the Schedule Property to the Purchaser herein for a total consideration amount of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only).
2. The Purchaser has paid to the Vendor a sum of Rs. 2,48,000/- (Rupees Two Lakh Forty Eight Thousand Only) by a Cheque dated 13.02.1997, bearing No. 627313, drawn on Bank of Baroda, in the presence of the witnesses, and the Vendor, hereby acknowledges receipt of the sale consideration in full.
3. The Vendor hereby also conveys to the Purchaser the right of passage to and from the Schedule Property to the public roads from the different roadways bounding the Schedule Property.
4. The Vendor assures the Purchaser that he has not entered into any other agreement of sale with any other person or institution of firm or company and that the Vendor has every right to dispose the Schedule Property in any manner and likes free from any encumbrances.
5. The Purchaser and her successors in title hereafter shall be entitled to enjoy the Schedule Property by virtue of this deed of sale absolutely from generation to generation without any impediments/hindrances from any person or persons.

Surgj Chhabria

268

1000Rs.



BNG (U)-YLR/3442/1957/9/12

11. The Vendor covenants and assures hereby that the Purchaser shall hereafter peacefully hold, possess and enjoy the Schedule Property without any claims, disturbances or interruptions whatsoever from the Vendor or any person's claiming through or under him.

12. The Vendor herein had earlier today handed over physical vacant possession of the Schedule Property and the purchaser herein confirms being in peaceful possession and enjoyment of the same.

13. The Vendor hereby declares and confirms that he has clear and marketable title to the Schedule Property and if, for any reason it is found that there is any defect in the title of the Vendor to the Schedule Property and the Purchaser is put to any loss or damage on account thereof the Vendor hereby agrees to indemnify the Purchaser against all such damages in respect of the Schedule Property together with all the losses that may be caused to the Purchaser as consequences thereof.

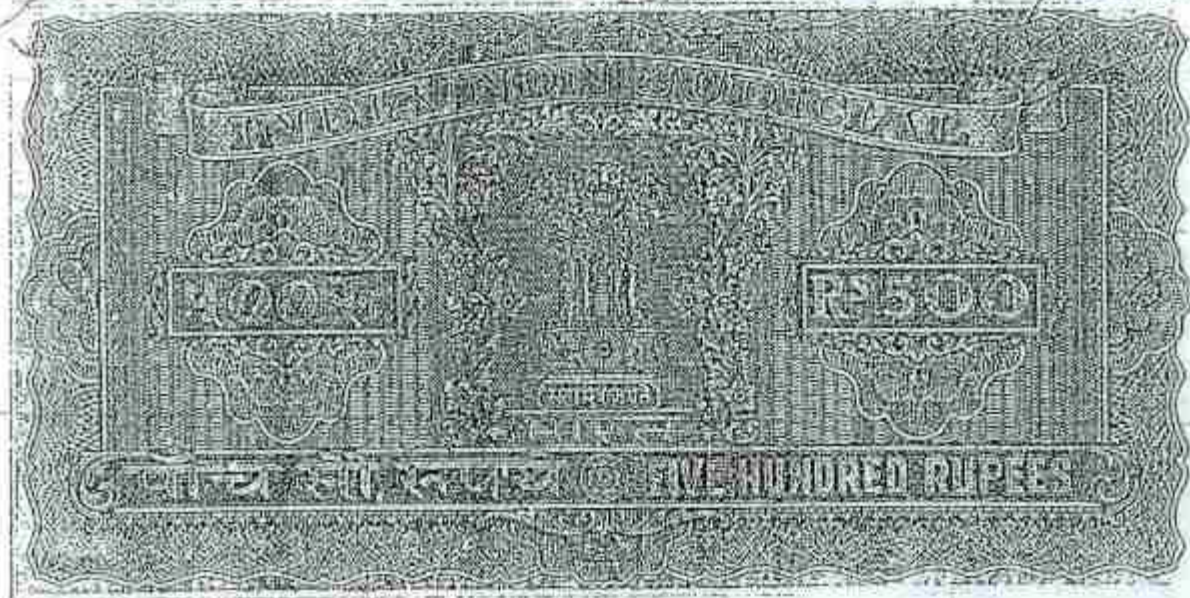
14. The Vendor covenants with the Purchaser that the Vendor will always at the Purchaser's cost and at the request of the Purchaser do and execute or cause to be done executed all such lawful acts, deeds, and things whatsoever for further and more perfectly conveying and assuring the Schedule Property and every part thereof to the Purchaser and placing it in possession of the Purchaser according to the true intent and meaning of this deed.

15. The Vendor has this day delivered all the relevant original documents pertaining to the Schedule Property to the Purchaser.

Singh Chhabra

(269)

500Rs.



BNG (U)-YLNK/ 2623 /199-97/11-12

SCHEDULE PROPERTY

All that piece and parcel of agricultural land measuring One (1) Acre and Thirty-Two (32) Guntas, situated in Survey No. 34 of Kanchanahalli Village, Yeshanka Hobli, Bangalore North Taluk, out of an extent of Two (2) Acres, and bounded on the :

East by : Old Kanchanahalli Village,

West by : Property belonging to S. K. Hariappa, Jagannath Rao and Indira Bai,

North by : Property originally belonging to T. S. Narayana Rao,

South by : Remaining portion (Eight Guntas) of the same Survey No. 34, belonging to the Vendor.

IN WITNESS WHEREOF, the Vendor herein has affixed his signature to this deed of absolute sale on the Date, Month and Year first above written, at Bangalore.

WITNESSES

Sungj Chhabria

Vendor

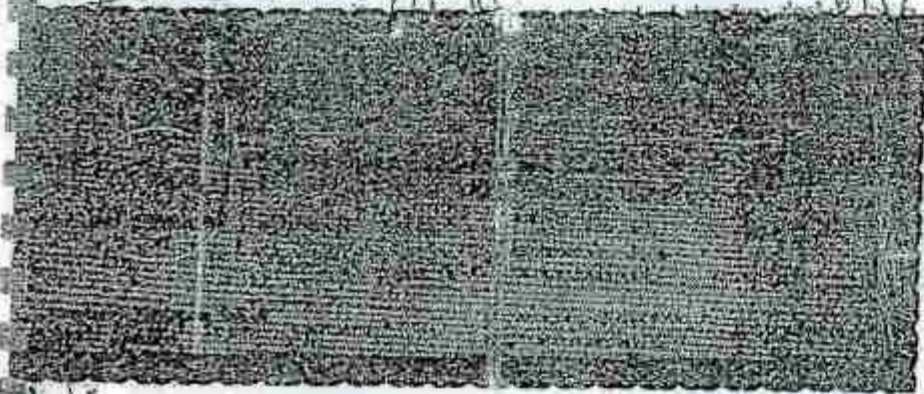
Represented by P. A. Holder

Dated this 12th day of 12/199

12/199

Annexe R13

ಈ ದೃಶ್ಯವನ್ನು ಪ್ರಭಾಕರ ಹೊಂದಿರುತ್ತದೆ



SALE DEED is made & executed on this 18th day of January 2013 at Bangalore, by and between:

I
ಈ ಸಗಟು... ಪುಟಗಳನ್ನು ಹೊಂದಿರುತ್ತದೆ
2003... ಸರಣಿ ಬಂದರೆ ಪುಟ
19-20

Represented by her registered Special power of attorney holder
Mr. Anmath Ulla Khan
Hereinafter referred to as a "VEN DOR" of the ONE PART-
IN FAVOUR OF

S/o. Ibrahim Khan
Aged about 41 years
Residing at: No.17A E. Cross Road,
Bismillah Nagar,
Bangalore-56 009

Hereinafter referred to as "PURCHASER" of the OTHER PART.

Small

1 | 192 + 52

2nd hand crystal body 6.158
-7-19

ಮಂಡಿ ಸರ್ಕಾರಿ ದಾಖಲಾತಿ
ಕಾರ್ಯಾಲಯ
ಮಂಡಿ ಸರ್ಕಾರಿ ದಾಖಲಾತಿ
Department of Stamps and Registration

संस्कृत-संज्ञा

1957 ರ ಮೇಸರಿನ ಮುಕ್ಯಾಂಶ ಇಂಗ್ಲಿಷಿನಿಂದ 10 ಎ ರೂಪಾಯಿಗಳ ಪ್ರಮಾಣಕ್ಕೆ

Dr. Asmath Ullah Khan S/o Ibrahim Khan - with 22975000 class certificate dated 20/05/2019
 Arjun singh singhania 25/06/2019

ವಿವರ	ರೂ. (Lakhs)	ಅನುಬಂಧಿತ ವಿವರ
ಕರ್ನಾಟಕ ರಾಜ್ಯ ಸರ್ಕಾರ	63050.00	UD No 355926 (Rs. 63050/-) dated 18/Jan/2019 drawn on KARNATAKA BANK LIMITED X H ROAD BANGALORE.
ಕರ್ನಾಟಕ ರಾಜ್ಯ ಸರ್ಕಾರ	176700.00	UD No 355929 (Rs. 176700/-) dated 18/Jan/2019 drawn on KARNATAKA BANK LIMITED X H ROAD BANGALORE.
ಒಟ್ಟು	229750.00	

DATE: 23/01/2019

mid, directed along this path.
to the middle of the line.
mid, directed along this path.

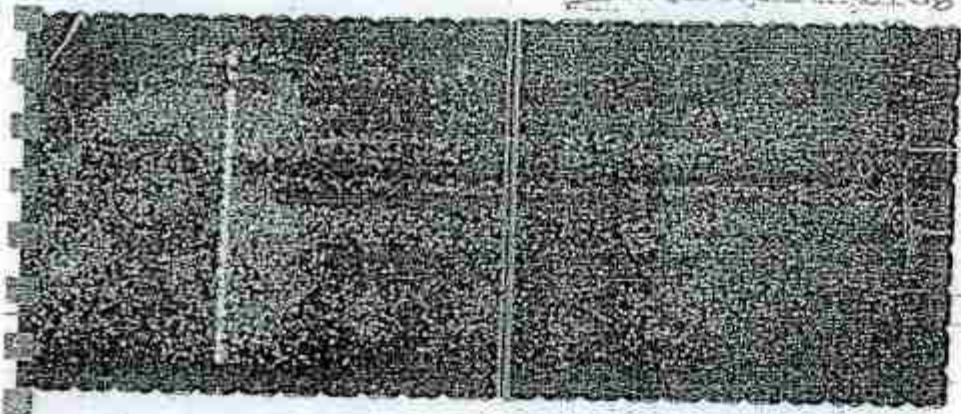
Designed and Developed by C. GAC, ACIS Pune

೨೦೦೩ ನವೆಂಬರ್ ೭ ನೇ ಭುಜ

272

150

3.42.56



(The term and expression the "VENDOR" and the "PURCHASER" whenever the context so permits or admits herein shall mean and include their respective heirs, executors, administrators, successors in interest, legal representatives and assigns. Etc.)

WITNESSETH AS FOLLOWS:

WHEREAS the property bearing Survey No.34 (new no.34/2) situated at Kenchenahalli Village, Yelahanka Hobli, Bangalore North Taluk, Bangalore urban District, measuring three acres thirty two guntas (3 acres 32 guntas) which is more fully described in the schedule hereunder and hereinafter referred as "SCHEDULE PROPERTY".

WHEREAS the said schedule property bearing Survey No.34 (new no.34/2) of Kenchenahalli Village, Yelahanka Hobli, Bangalore North Taluk, originally measuring 3 acres 36 guntas, belonged to one Mr. T.D.Venkoba Rao and others. Subsequently, on 10.3.1933, Sri. T.D.Venkoba Rao and others have executed sale deed in favour of T.R.Santoji Rao. The said sale deed registered as document no.2419 of book 1, volume 249 pages 414-419 dt.10.3.1933, registered in the office of sub-registrar, S.R. Bangalore. The said purchaser who was heading his HUF as Gartha was in possession of the schedule property and relevant revenue documents.

Amalt

Amalt 21/32

3008 ವಕೀಲರು 3008 ವಕೀಲರು
10.20

273

157

5158

Print Date & Time :

23-01-2019 05:05:55 PM

Page No. : 6158

Received of the amount of Rs. 253400.00 from Mr. Arunath Ulagh Khan S/o Ibrahim Khan on 23-01-2019 at 04:15:49 PM at the Sub-Registrar's Office, Bangalore.

Sl. No.	Particulars	Amount
1	Stamp Duty	253400.00
2	Reg. Fee	600.00
3	Sub-reg. Fee	200.00
	Total	254200.00

By Arunath Ulagh Khan S/o Ibrahim Khan subbed and dated 23-01-2019

Sl. No.	Particulars	Amount	Signature
1	By Arunath Ulagh Khan S/o Ibrahim Khan		<i>[Signature]</i>

Received of the amount of Rs. 254200.00 from Mr. Arunath Ulagh Khan S/o Ibrahim Khan on 23-01-2019 at 04:15:49 PM at the Sub-Registrar's Office, Bangalore.

Sl. No.	Particulars	Amount	Signature
1	By Arunath Ulagh Khan S/o Ibrahim Khan		<i>[Signature]</i>
2	By Arunath Ulagh Khan S/o Ibrahim Khan		<i>[Signature]</i>

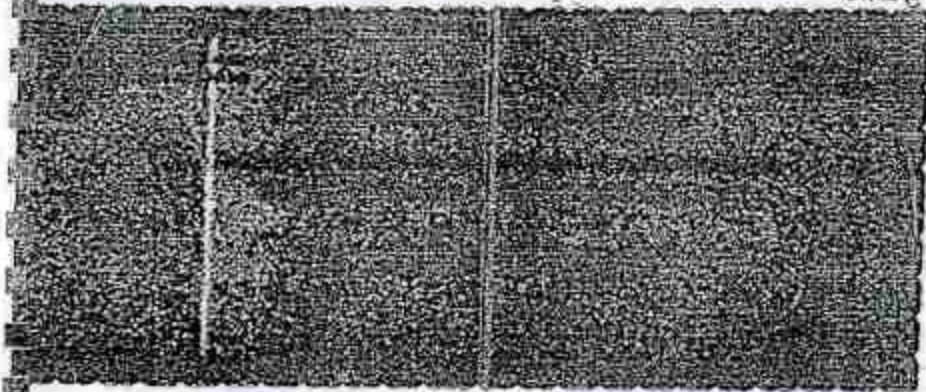


[Signature]
Sub-Registrar, Bangalore-9

19.20

274

6156



including mutation, etc have been transferred to his name by the concerned government departments.

WHEREAS Mr. T.R.Santoji Rao, by executing registered WILL, on 01.09.1984, bequeathed two acres of land (out of 5.36 acres in survey no.34) in favour of one of his son Mr. T.S.Narayana Rao (Schedule property 1) and another two acres of land in favour of another son Mr. T.S.Krishnasji Rao (Schedule property 2) and remaining one acre and thirty six guntas in favour of another son T.S.Gopal Rao.

WHEREAS Mr. T.R.Santoji Rao died on 16.09.1984. Hence, his WILL was acted upon and above said his sons became the absolute owners of their respective lands at Koochenahalli Village as mentioned in their father's WILL. Mutation and Pahanji records were suitably and respectively transferred to the names of beneficiaries of the deceased in accordance with the said registered WILL.

Muth

3003 ನಕಲು 5 ಸೇ ಪುಟ
19.20

275

6156

(159)

6



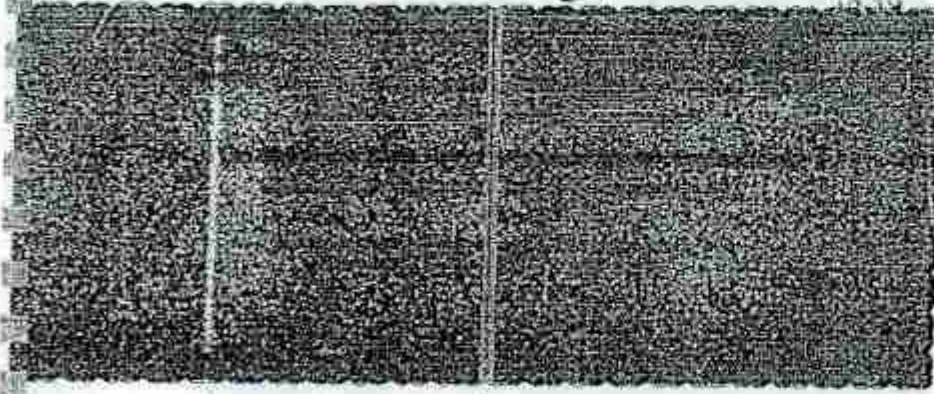
1	Dr. Rajesh No. 433, T. Narasimhaiah, Bangalore	
2	Dr. Dinesh No. 20, Nagardayanaiah, Bangalore-56	

I hereby certify that on production of the original Sale Agreement Vide Regd SPA No. 95/2017-18, dt 08-08-2017 of Book IV, regd in the office of SRO, Malleswaram, Bangalore, I have satisfied myself that the stamp duty of Rs. 17.67 (00/-) has been paid thereon.


$$\begin{array}{r} 0.261 \\ \hline 2.22 \end{array}$$
Endogenous and Exogenous C, DAC, ACTD, H₂O₂

276

6.56



WHEREAS Mr. T.S.Narayana Rao, on 29.06.1995 had sold his share of land in Survey No.34, (Schedule property-1) measuring 2 acres of Kenchenahalli Village, Bangalore in favour of Mr. A. Abdul Raffekh and put him in possession of the same. The said Sale Deed was registered as Document No.2519/1995-96, Volume 776 Book-I, Pages 48 to 55, registered in the Office of Sub-Registrar, Velahanka, Bangalore.

WHEREAS Mr. T.S.Krishnoji Rao, on 29.06.1995, had sold his share of land in Survey No.34, (Schedule property-2) measuring 2 acres in Kenchanahalli Village, Bangalore in favour of Mr. A. Abdul Raffekh and put him in possession of the same. The said Sale Deed was registered as Document No.2520/1995-96, Volume 774, Book-I, Pages 172 to 179, registered in the Office of Sub Registrar, Velahanka, Bangalore.

Thus, MR. A. ABDUL RAFFEKH became the absolute owner of four acres of land in Survey No.34 (Schedule property 1 & 2) carved out of said survey number which was measuring 5 acres 36 guntas of Kenchanahalli village, Bangalore north taluk, Bangalore. He was in possession of the schedule property and relevant revenue records like puthani, mutation, etc were transferred to his name. He was paying annual taxes to village panchayath, Kenchenahalli village, Bangalore north taluk.

Amr

Amr

4/18

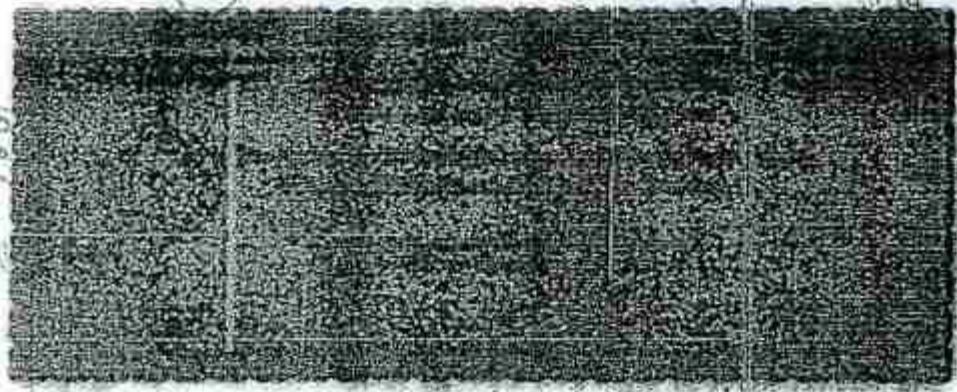
3003 ಸಕಲು 7 ನೇ ಪುಟ
19.20

277

601

Sub Registrar

6.158



WHEREAS Mr. A. Abdul Rafeeq, on 14.07.1997, out of said four acres of land in survey No.34 of Kanchanally village, Yelahanka hobli, Bangalore north taluk, had sold 3 acres and 32 guntas, schedule property-3, in favour of MRS. ANJU AHUJA daughter of Mr. Naniandas Bodaram, the "VENDOR" herein by executing two Sale Deeds bearing Registration Nos. 3424/97-98 for two acres of land and No. 3425/97-98 for one acre and thirty two guntas of land. Both the above Sale Deeds were registered in the Office of Sub-Registrar, Yelahanka, Bangalore.

She is paying the taxes in respect of schedule property to the jurisdictional revenue authority and is in possession and enjoyment of the same. RTC and other relevant revenue documents have been held in her name and department after Podi of said survey number, has allotted new number 34/2 for the said schedule property.

WHEREAS the Vendor, in order to fulfill her immediate financial commitments, offered to sell the Schedule 1 & 2 Property for valuable sale consideration of Rs. 3,53,40,000/- (Rupees Three Crores Fifty Three Lakhs Forty Thousand only) to MRAZMATH ULLAH KHAN, S/o. Ibrahim Khan, the Purchaser herein, who is an agriculturist. Thus Purchaser has agreed to purchase the said schedule property for an agreed sum of Rs. 3,53,40,000/- (Rupees Three crores fifty three lakhs forty thousand only) subject to the property is free from encumbrances, litigations and acquisitions etc.

Amrta

Amrta

5/12

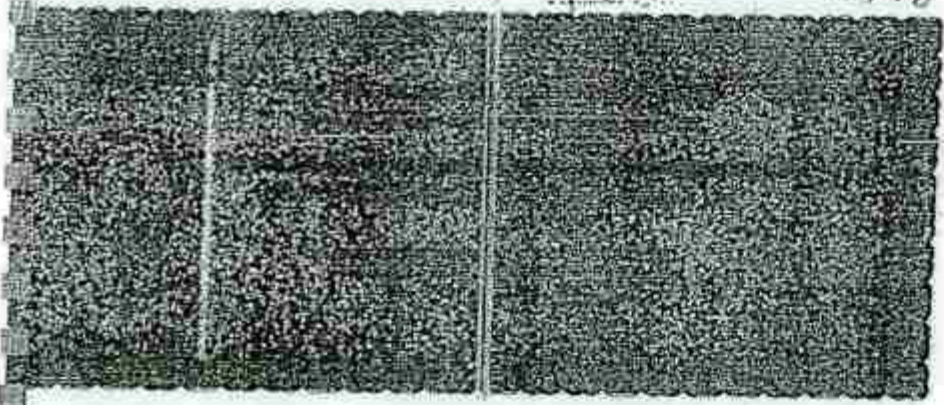
ಶ್ರೀಮತಿ ಅನು ಅಹುಜಾ
 19.20

978

161

9

6156



In pursuance of the above, the PURCHASER has paid the sale consideration of Rs. 3,53,40,000/- (Rupees Three crores fifty three lakhs forty thousand only) with following details:-

1. Cheque No. 140010 dt. 13-11-2014 for Rs. 31,00,000/- (Rupees Thirty One lakh only) issued in favour of the vendor and drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH14317499529 directly to the vendors account with Bank of Baroda, Orchid Palace road branch, Bangalore.
2. Cheque No. 108406 dt. 13-01-2016 for Rs. 18,00,000/- (Rupees Eighteen lakh only) issued in favour of the vendor and drawn on Karnataka Bank, KH Road Branch.
3. Cheque No. 498505 dt. 24-03-2016 for Rs. 50,00,000/- (Rupees Fifty lakhs only) issued in favour of the vendor and drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16084739291 directly to the vendors account with Bank of Baroda, Orchid Palace road branch, Bangalore.
4. Cheque No. 498507 dt. 11-04-2016 for Rs. 32,00,000/- (Rupees Thirty two lakhs only) issued in favour of the vendor and drawn on Karnataka Bank, KH Road Branch, Bangalore. The proceeds of cheque credited through RTGS bearing UTR No. KARBH16102024783 directly to the vendors account with Bank of Baroda, Orchid Palace road branch, Bangalore.

Ameth

Ameth

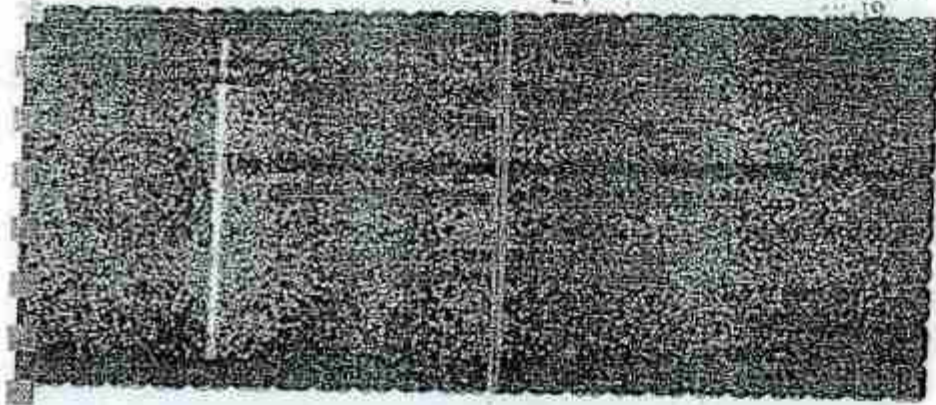
3003 ಸಕಲು 9 ನೇ ಪು
19.20

R

980

164

11-2-2013 6/118



11. Cheque No. 633858 for Rs. 20,00,000/- (Rupees Twenty lakh only) issued in favour of the vendor and drawn on Karnataka Bank Ltd, K.H. Road, Bangalore issued in favour of the vendor.
12. Cheque No. 633859 for Rs. 20,00,000/- (Rupees Twenty lakhs only) issued in favour of the vendor and drawn on Karnataka Bank, K.H. Road Branch, Bangalore.
13. Cheque No. 633853 for Rs. 12,40,000/- (Rupees Twelve lakh forth thousand only) issued in favour of the vendor and drawn on Karnataka Bank, K.H. Road Branch, Bangalore.
14. Cheque No. 633855 for Rs. Rs. 20,00,000/- (Rupees Twenty lakh only) issued in favour of the vendor and drawn on Karnataka Bank, K.H. Road Branch, Bangalore.
15. Cheque No. 633856 for Rs. Rs. 20,00,000/- (Rupees Twenty lakh only) issued in favour of the vendor and drawn on Karnataka Bank, K.H. Road Branch, Bangalore.

The vendor thus confirm that she has received the entire sale consideration of Rs. 3,53,40,000/- (Rupees Three crores fifty three lakhs forty thousand only) and has no claim whatsoever under the registered sale Agreement dt. 20.12.2012 and this ABSOLUTE SALE DEED.

[Signature]

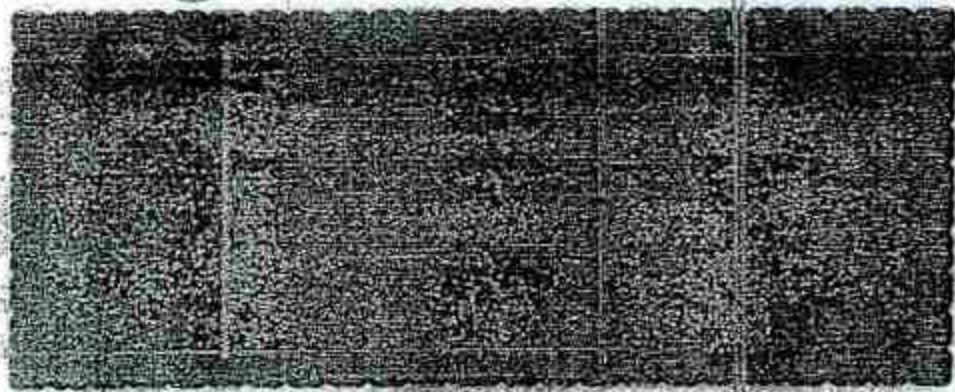
[Signature]

3003 ಸಕಲು 11 ನೇ ಪುಟ
19.20

281

12

6158



NOW THIS DEED OF ABSOLUTE SALE WITNESSETH AS FOLLOWS:-

1. That, in consideration of the said sum of Rs. 3,53,40,000/- (Rupees Three crores fifty three lakhs forty thousand only) paid by the PURCHASER to the VENDOR as aforesaid, the VENDOR hereby admit and acknowledge receipt of the same and in consideration thereof the VENDOR hereby grant, convey, transfer, assign and assure UNTO AND TO THE USE OF THE PURCHASER all that piece and parcel of Schedule Property free from all encumbrances, court attachments, litigations, maintenance charges, claims and demands, whatsoever together with all rights of way, easements of necessity, water, water courts, drains, privileges, appertains, advantages whatsoever pertaining to or belong to the Schedule Property who shall hold, possess, use and enjoy all the rights, title and interest, claims, payments of the VENDORS and all other rights, privileges belonging thereto TO HAVE AND HOLD the Schedule Properties and every part thereof to and unto the use of the PURCHASER absolutely and forever.

The VENDOR hereby covenant with the PURCHASER that, notwithstanding any act, deed or thing thereto done, executed or knowingly suffered, the VENDOR has full power and absolute authority and indefeasible title to sell the Schedule Property and the said property is free from all encumbrances like maintenance charges and obligations whatsoever and the PURCHASER shall hereafter peacefully and actually HOLD, POSSESS AND ENJOY the Schedule Property without any claims or demand, disturbances or interruption whatsoever from the VENDOR. The PURCHASER shall be entitled to all the benefits accrued and to be accrued from the Schedule Property hereafter.

2. The VENDOR further covenant that, she shall, at the cost of the PURCHASER do or execute or cause to be done and executed all such lawful acts, deeds and things and execute deeds of further assurance, confirmation deeds, rectification deeds and all other things whatsoever for further and more perfectly and more fully conveying and assuring the ownership and possession of Schedule Property and every part thereof in the manner aforesaid according to the true intent and meaning of this deed.

Amud

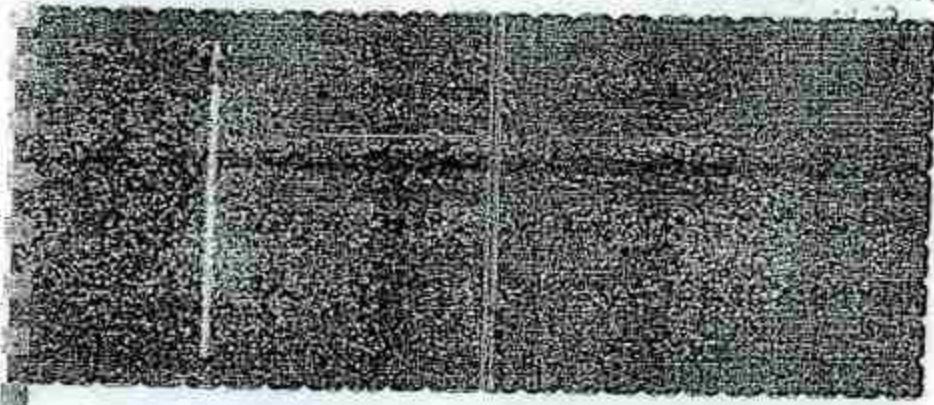
Amud

9/12

1920

989

13 6158



The VENDOR assures that, apart from her, there are no other claimants over the Schedule Property. The VENDOR shall indemnify and keep indemnified the PURCHASER from or against any losses the PURCHASER may suffer consequent to the breach of the terms of this sale.

The VENDOR assures and covenants with the PURCHASER that, there are no valid encumbrances or any settlements, WILL, charge, lien, mortgage, attachment, on the schedule properties created by her, either by agreement or decree pending or threatened legal proceedings or acquisition proceedings of any kind or any other security claims on the Schedule Property that may in any manner derogate from full and absolute ownership of the property hereby conveyed.

The VENDOR has no objection for transfer of Khata in favour of the PURCHASER. The VENDOR has paid the land tax, and other taxes and charges in respect of the Schedule Property to the concerned authorities up to this date and in any case any tax or charges are still due, unpaid in respect of the Schedule Properties, the same shall be paid by the VENDOR.

The VENDOR has this day delivered the physical possession of the Schedule Property to the PURCHASER and the PURCHASER acknowledges the receipt of possession of the Schedule Property. The VENDOR has delivered the original title deeds of the Schedule Property including mother documents to the PURCHASER and PURCHASER hereby acknowledges receipt of the same.

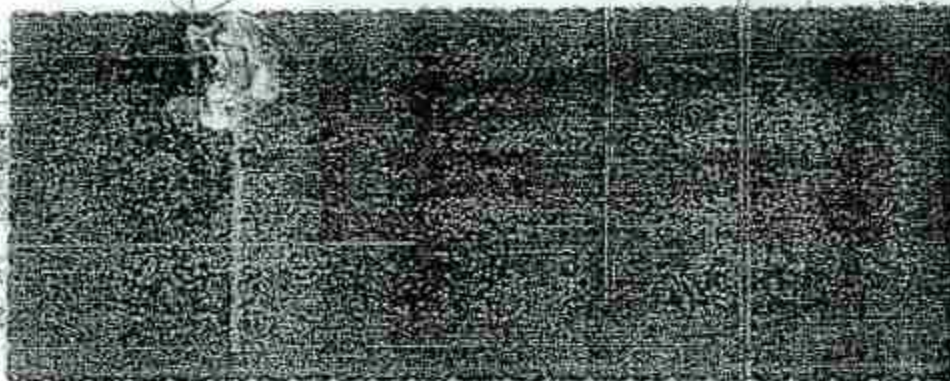
The purchaser is an agriculturist and owning agricultural property at Raghunathapura Village, Kasaba Hobli, Doddaballapura Taluk, Bangalore Rural District in Sy No. 135 & 136 and is in possession of Phani, RTU, etc for the same. Hence there are no restrictions for him to purchase the Schedule landed property.

Amrta

Amrta

3003 ನಕಲು 13 ನೇ ಪುಟ
19.20

983



SCHEDULE PROPERTY-1

All that piece and parcel of Agricultural land measuring 2 acres, situated in survey No. 34 (new no 34/2) of Kenchanahalli Village, Yelahanka Hobli, Bangalore North (Additional) Taluk and bounded on the:

East by : Remaining portion of S No. 34/1
West by : Sy No. 33/2, 33/3 and 33/5
North by : Sy No. 4
South by : Remaining portion of Sy No. 34/2

SCHEDULE PROPERTY-2

All that piece and parcel of Agricultural land measuring 1 acre and 32 guntas, situated in survey No. 34 (New no 34/2) of Kenchanahalli Village, Yelahanka Hobli, Bangalore North (Additional) Taluk and bounded on the:

East by : old Kenchanahalli Village boundary
West by : Sy No. 33/1 & 33/2
North by : Remaining portion of Sy No. 34/2
South by : Remaining portion of survey No. 34/2

Pruthi

Pruthi

984

1981

68

15th April 1981



SCHEDULE PROPERTY

All that piece and parcel of Agricultural land measuring 3 acres and 32 guntas, situated in survey No.34 (new number 34/2) of Kenchanahalli Village, Yelahanka Hobli, Bangalore North (Additional) Taluk and bounded on the:-

- East by : old Kenchanahalli Village boundary & sy .no: 34/1
- West by : Sy No. 33 (1 to 5)
- North by : Private property in Sy No.4
- South by : S.No.34/3 belonging to smt. Nirmala devi motilal.

IN WITNESS WHEREOF the VENDOR & PURCHASER affixed their respective signatures to this ABSOLUTE SALE DEED on the date mentioned above, at Bangalore.

WITNESSES:-

1. *(Signature)*
w-453, wanganahalli
08.04.81

2. *(Signature)*
w-2w, wanganahalli
08.04.81

(Signature)
Smt. Anju Ahuja
rep the regd. Special power of attorney holder
(M. Asmathulla Khan)

VENDOR

(Signature)
PURCHASER

(Signature)
12/12/81
P. Ratnayake
D/W 54/2011/12
Bangalore



3003 ನಂ. 15 ನೇ ಭಾಗ
19.20

—ఈ నాటి ప్రతిభలు, ప్రశంసలు
 రాజకీయ ముద్రాణం అధికారి, 1952

ಕರ್ನಾಟಕ ಮುದ್ರಾಂಶ ಅಧಿನಿಯಮ 1957ರ ಪ್ರಕಾರಣ 41ರ ಪ್ರಕಾರ

ಪ್ರವಾಸದ ಪತ್ರ

ಪ್ರಮಾಣ ಪತ್ರ
ಬೆಂಗಳೂರು ಮಹಾನಗರ ಪಾಲಿಕೆ ಸ್ಥಳೀಯ ಸ್ವಾಸ್ಥ್ಯ ಮತ್ತು ಸಂರಕ್ಷಣೆ ಇಲಾಖೆ
CANo 3003/19-20

Signature: A2matulla Khan

60-163,051
 A2m4

ಪರಿಶೋಧಕರು: Dr. K. S. Narayana
 ಸಹಾಯಕ ನಿರ್ದೇಶಕರು: Dr. K. S. Narayana
 ಸಹಾಯಕ ನಿರ್ದೇಶಕರು: Dr. K. S. Narayana

ಎಂಜಿ ಪ್ರಕಾರ, ವಿವರಣೆ: 31/7/19 ರಂದು ನಗರ ಮುಖವಂಡಿ ವಾಣಿಜ್ಯ
ಮಾಲೀಕರುಗಳಿಂದ ಈ ಮೂಲಕ ಸ್ವೀಕರಿಸಲ್ಪಟ್ಟಿದೆ.

ದಿನಾಂಕ: 31/7/19

திகதி: 31/7/19

ಇಲ್ಲ: ಗುಂಪೆನಗ

ಮುದ್ರಾಂಶಗಳು
ಕಮೀಷನಲ್, ಗಾಂಧಿಜೀ
ಬೆಂಗಳೂರು

ನಕಲು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು: Amrathulla Khan

ಸಹಲ ತಯಾರಾದ ದಿನಾಂಕ 31/7/19

ಸಹಜ ತಂಪಾಗಿರುವುದು.....

ನಕಲು ಹೊರಿಸಿದವರು.....

ಕಣಲು ಎಲೆಮಾರಿ ದಿನಾಂಕ..... 3/1/20



THEORY


 സാക്ഷികൾക്കിടയിൽ
 തിരിച്ചറിയപ്പെട്ടവർ

286

ANNEXURE-R 14

BKE-3H61

22



ABSOLUTE SALE DEED

This DEED OF ABSOLUTE SALE ['SALE DEED'] is made and executed on this the Twentieth Day of November, Two Thousand Twenty-Three [20-11-2023], at Bengaluru:

BY:

MR. AZMATH UJJAH KHAN [Aadhar: 6738 7905 7717; PAN: CGZPK3446D], aged about 46 years, son of Mr. Ibrahim Khan, residing at No. 17/A, H Cross, Bismilla Nagar, Bengaluru South, Bengaluru - 560 029, and hereinafter referred to as the "SELLER" (which expression shall, wherever the context so requires or admits, be deemed to mean and include his legal heirs, legal representatives, executors, administrators and permitted assigns), OF THE ONE PART;

TO AND IN FAVOUR OF:

- (1) MR. G. VENKATARAMANA [Aadhar: 7403 6565 8972; PAN: AAKPV2470M], aged about 58 years, son of Mr. G.C.K. Somayaji, and hereinafter referred to as the "PURCHASER NO. 1"; and
- (2) MRS. UMA VENKAT [Aadhar: 5411 3836 3066; PAN: ACGPV8934L], aged about 55 years, wife of Mr. G. Venkataramana, and hereinafter referred to as the "PURCHASER NO. 2".

Both the above parties are residing at No. 295, "Padmakamala", 1st Main Road, BSK 3rd Stage, Bengaluru - 560 085, and are hereinafter collectively referred to as the "PURCHASERS" (which expression shall, wherever the context so requires or admits, be deemed to mean and include their respective legal heirs, legal representatives, executors, administrators and permitted assigns), OF THE OTHER PART.

Small

Dr.
Uma

987

11/09/23, 12:53 PM

Kaveri Online Services

3461
23-24

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration
ವ್ಯವಹಾರ ಪತ್ರ

1957 ರ ಕರ್ನಾಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10-ಎ ಅಡಿಯಲ್ಲಿಯೂ ವ್ಯವಹಾರ ಪತ್ರ

Mr. G. Venkataramana S/o G.C.K. Somayaji ಇವರು ₹21,61,125.00 ರೂಪಾಯಿಗಳನ್ನು ನಿಗದಿತ ಮುದ್ರಾಂಕ
ಖರ್ಚುವಾಗಿ ಪಾವತಿಸಿರುವುದನ್ನು ದೃಢೀಕರಿಸಲಾಗಿದೆ.

ವರ್ಗ	ಮೊತ್ತ (ರೂ.)	ಯೋಜಿತ ಪಾವತಿಯ ವಿವರ
E-Payment	21,61,125.00	Online Challan Reference Number RG1123000004490490 Dated:18/11/2023
Total:	21,61,125.00	

ಸ್ಥಳ : ಮಲ್ಲೇಶ್ವರಂ

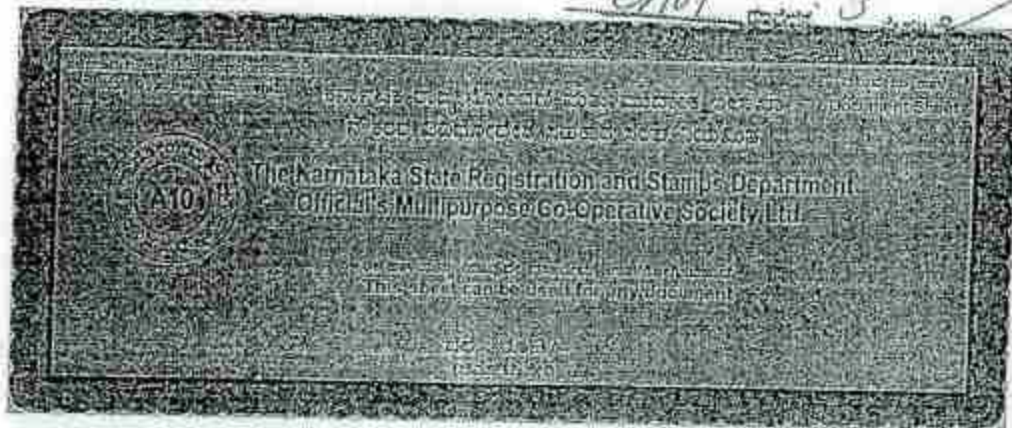
ದಿನಾಂಕ: 26/11/2023

ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಅಧಿಕಾರಿ
ಮಲ್ಲೇಶ್ವರಂ, ಬೆಂಗಳೂರು

288

171

3461



The Seller and the Purchasers shall hereinafter, wherever the context may so require, be referred to individually as "PARTY" and collectively as "PARTIES", as the case may be.

I. WHEREAS:

- A. The Seller represents to the Purchasers that the Seller is the sole and absolute owner or otherwise is well and sufficiently entitled to all that piece and parcel of immovable property being an agricultural land bearing Survey No. 33/5, measuring an extent of 1 Acre 33 Guntas (excluding 3 1/2 Guntas of 'B' Kharab land), situated at Kenchenahalli Village, Yelahanka Hobli, Yelahanka Taluk, Bengaluru Urban District, which is more fully described in the 'Schedule' hereto and hereinafter referred to as the "Schedule Property".
- B. The Seller has represented to the Purchasers that he acquired the absolute right, title and interest in respect of the Schedule Property, as follows:
 1. Originally, the Schedule Property formed part of a larger extent of land measuring an extent of 11 Acres (including 23 Guntas of 'B' Kharab land) comprised in the erstwhile Survey No. 33 of Kenchenahalli Village.
 2. The said larger extent of land measuring an extent of 11 Acres (including 23 Guntas of 'B' Kharab land) comprised in the erstwhile Survey No. 33 of Kenchenahalli Village was originally owned and held by one Mr. Y. Lakshmana Rao, son of Mr. Sheshagiri Rao, he having acquired the same under the Dhurkhashi Proceedings, vide Order bearing Reference No. GD31/1928-29 dated 08.05.1929.
 3. The aforesaid Mr. Y. Lakshmana Rao, son of Mr. Sheshagiri Rao, had sold and conveyed the said larger extent of land comprised in the erstwhile

Prasanna *U...* *...*

11/25/23, 12:55 PM

3461
23-24ಹಾಜರಿ
ಕೆ.ಎಚ್.ಎ.

Kaveri Online Services

ದಾಖಲೆ ಸಂಖ್ಯೆ :- MLS-1-03461-2023-24

ಮಲ್ಟಿಶ್ರೇಯ ಉಪ ನೋಂದಣಿ ಕಛೇರಿಯಲ್ಲಿ ದಿನಾಂಕ 20/11/2023 ರಂದು 12:44:42 ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ ಶುಲ್ಕದೊಂದಿಗೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	₹ ರೂ.ಪೈ
1	ನೋಂದಣಿ ಶುಲ್ಕ	3,82,500.00
2	ಸೇವಾ ಶುಲ್ಕ	735.00
3	ಪರಿವರ್ತನಾ ಶುಲ್ಕ	35.00
4	ಪ್ರಮಾಣ ಪತ್ರ ಮುದ್ರಾಂಕ ಶುಲ್ಕ	40.00
	ಒಟ್ಟು	3,83,310.00

Mr .G. Venkataramana S/o G.C.K. Somayaji ಇವರಿಂದ ಹಾಜರು ಮಾಡಲ್ಪಟ್ಟಿದೆ.

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಪ್ರಾಂಶು	ಹೆಚ್ಚಿನ ಗುರುತು	ಸಹಿ
1	Mr .G. Venkataramana S/o, G.C.K. Somayaji , 38, Resident of , No. 293, "Padmakumbla", 1st Main Road, BSK 3rd Stage, Bengaluru North, BENGALURU URBAN, KARNATAKA - 560085 (Vendor)		 Left Thumb	

ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಮಲ್ಟಿಶ್ರೇಯ, ಬೆಂಗಳೂರು

• ದಾಖಲೆ ಹಾಜರು ಕೊಟ್ಟಿರುವುದರಿಂದ ಪಿ.ಎಸ್.ಸಿ.ಎಂ.ಡಿ.ರಾಜ್

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಪ್ರಾಂಶು	ಹೆಚ್ಚಿನ ಗುರುತು	ಸಹಿ
1	Mr .G. Venkataramana S/o G.C.K. Somayaji , 58, Resident of , No. 293, "Padmakumbla", 1st Main Road, BSK 3rd Stage, Bengaluru North, BENGALURU URBAN, KARNATAKA - 560085 (Claimant)		 Left Thumb	

<https://narsn-dsp.karnataka.gov.in/document/endorsement>ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಮಲ್ಟಿಶ್ರೇಯ, ಬೆಂಗಳೂರು

(290)

(14)

3461 5



Survey No. 33 of Kenchenahalli Village, to and in favour of Mr. T.S. Ramachandra Rao, son of Mr. T.R. Santhoji Rao (for self and as a member of his father's HUF), under the Sale Deed dated 29.03.1953, registered on 10.04.1953, as Document No. 66/1953-54, in Book-1, Volume No. 1336, at Page Nos. 30 to 32, in the Office of the Sub-Registrar, Bengaluru Taluk. Pursuant thereto, the Khatha in respect of the said land was registered in the name of Mr. T.S. Ramachandra Rao, vide Entry bearing R.R. No. 149 made in the Records of Rights.

4. Thereafter, Mr. T.R. Santhoji Rao, son of Late Mr. Ranoji Rao, being Karta of his HUF had executed his Last Will and Testament dated 01.09.1984, bequeathing all his movable and immovable properties, to and in favour of his 8 (eight) children, namely: (1) Mr. T.S. Ramachandra Rao; (2) Mr. T.S. Narayana Rao; (3) Mr. T.S. Krishnoji Rao; (4) Mr. T.S. Venkata Rao; (5) Mr. T.S. Gopala Rao; (6) Mr. T.S. Jaganath Rao; (7) Mr. T.S. Raghunath Rao; and (8) Mr. T.S. Ranoji Rao. The said Last Will and Testament dated 01.09.1984 executed by Mr. T.R. Santhoji Rao was registered on 10.09.1984, as Document No. 47/1984-85, in Book-III, Volume No. 30, at Page Nos. 32 to 44, in the Office of the Sub-Registrar, Bengaluru North Taluk.

5. In terms of the aforementioned Last Will and Testament dated 01.09.1984, Mr. T.R. Santhoji Rao, had bequeathed *inter alia* the land comprised in Survey No. 33 as follows:

Mr. T.S. Venkata Rao	: 2 Acres
Mr. T.S. Jagannatha Rao	: 2 Acres
Mr. T.S. Raghunatha Rao	: 2 Acres
Mr. T.S. Ranoji Rao	: 2 Acres

Forwards *Uthappa* *Das*

291

11/25/23, 12:53 PM

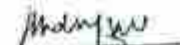
3461 23-24

Open Online Services

2	Mrs. J. J. Venkat W/o G. Venkataramana, 55, Resident of No. 295, "Podmakamala", 1st Main Road, BSK 3rd Stage, Bengaluru North, BENGALURU URBAN, KARNATAKA - 560085 (Claimant)			
3	Mr. J. J. Venkat W/o G. Venkataramana, 45, Resident of No. 171A, H Cross, Bismilla Nagar, Bengaluru South, BENGALURU URBAN, KARNATAKA - 560029 (Exccutant)			


J. J. Venkat
Bengaluru North, Bengaluru

ಕುಟುಂಬದವರು

ID No	Identifier Name	Address	Address
1	A. Abdul Raffeeq S/o Abdul Raheem Rahab (Identifier)	No. 02, A Block, Natasa Golf View Apartment, Dornur, Bengaluru East, BENGALURU URBAN, KARNATAKA - 560071	
2	L. Stanley S/o L. Srinivasan (Identifier)	No. 771, 4th Main, 15th Cross, S. R. Nagar, Wilson Garden, Bengaluru South, BENGALURU URBAN, KARNATAKA - 560027	


L. Stanley
Bengaluru South, Bengaluru

299

133

JH61

7



6. The remaining land measuring an extent of 2 Acres 17 Guntas was not mentioned in the schedule of Will and Testament dated 01.09.1984 and it was retained to the share of existing Khathadar Mr. T.S. Ramachandra Rao.
7. The aforesaid Mr. T.R. Santhoji Rao died on 16.09.1984 and pursuant to his death, his Last Will and Testament dated 01.09.1984 was given effect and the Khatha in respect of their respective portions of land comprised in the erstwhile Survey No. 33 of Kenchenahalli Village were registered as per the said Will and Testament dated 01.09.1984, vide Entry bearing M.R. No. 3/1984-85 made in the Mutation Register.
8. Mr. T.S. Ranoji Rao, son of Late Mr. T.R. Santhoji Rao (along with Mrs. Indira Bai, wife of Late Mr. T.S. Ramachandra Rao and Mrs. Rathna G. Rao, daughter of Late Mr. T.S. Ramachandra Rao, as Consenting Witnesses) had sold and conveyed the land measuring an extent of 2 Acres comprised in the erstwhile Survey No. 33 of Kenchenahalli Village, to and in favour of Mr. S. K. Mariyappa, son of Late Mr. Kari Gowda, under the Sale Deed dated 04.03.1995, registered on 18.10.1995, as Document No. 8508/1994-95, in Book-1, Volume No. 681, at Page Nos. 95 to 104, in the Office of the Sub-Registrar, Yelahanka. Pursuant thereto, the Khatha in respect of the said land measuring an extent of 2 Acres comprised in the erstwhile Survey No. 33 of Kenchenahalli Village was mutated to stand in the name of Mr. S. K. Mariyappa, son of Late Mr. Kari Gowda, vide Entry bearing M.R. No. 15/1994-95 made in the Mutation Register.
9. Thereafter, the aforesaid Mr. S.K. Mariyappa, son of Late Mr. Kari Gowda, had sold and conveyed the said land comprised in the Survey No. 33 of Kenchenahalli Village, to and in favour of Mr. Shamsunder R. Buthija, son of Mr. R.K. Buthija, under the Sale Deed dated 20.01.1996, and registered on 24.03.1997, as Document No. 6991/1995-96, in Book-1, Volume No. 856, at Page Nos. 50 to 55, in the Office of the Sub-Registrar, Yelahanka. Pursuant

Handwritten signature

Handwritten signature

(12)

3461 Chapter 8 James Orlino Services

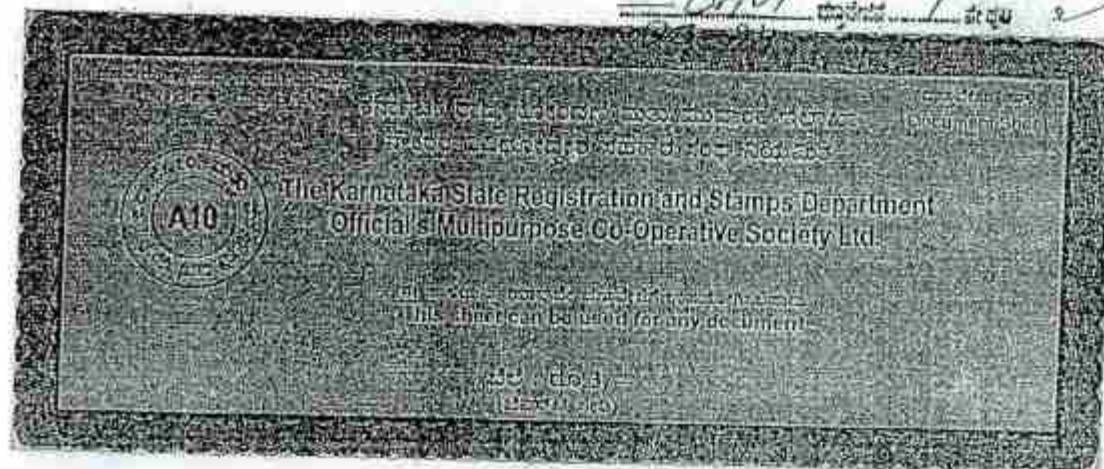
[illegible]

335

294

3461

9



thereto, the Khatha in respect of the said land was registered in the name of Mr. Shamsunder R. Bathija, vide Entry bearing M.R. No. 7/1995-96 made in the Mutation Register.

10. Thereafter, the larger extent of land comprised in Survey No. 33 of Kenchenahalli Village was sub-divided and an extent of land measuring 1 Acre 33 Guntas and 3/4 Guntas of 'B' Kharab land was assigned with new Survey No. 33/5 of Kenchenahalli Village viz., the Schedule Property. The said factum of sub-division of land was also recorded in the revenue records and the Khatha in respect of the land measuring 1 Acre 33 Guntas comprised in Survey No. 33/5 of Kenchenahalli Village viz., the Schedule Property was registered in the name of Mr. Shamsunder R. Bathija, vide Entry bearing M.R. No. 2/2009-10 made in the Mutation Register.
 11. Eventually, the aforesaid Mr. Shamsunder R. Bathija, son of Mr. R.K. Bathija, had sold and conveyed the Schedule Property to and in favour of Mr. Azmath Ullah Khan, son of Mr. Ibrahim Khan, under the Sale Deed dated 23.11.2016, registered on 31.03.2017, as Document No. GAN-1-05313/2016-17, in Book-I, stored in C.D. No. GAND-286, in the Office of the Sub-Registrar, Gandhinagar, Bengaluru. Pursuant thereto, the Khatha in respect of the Schedule Property was mutated to stand in the name of Mr. Azmath Ullah Khan, vide Entry bearing M.R. No. H12/2016-17 made in the Mutation Register.
 12. Thus, in the afore-stated manner, the Seller herein became the sole and absolute owner of the Schedule Property, i.e., the agricultural land bearing Survey No. 33/5, measuring an extent of 1 Acre 33 Guntas (excluding 3/4 Guntas of 'B' Kharab land), situated at Kenchenahalli Village.
- C. The Seller represents to the Purchasers that the revenue records and RTCs in the respect of the Schedule Property are duly standing in name of the Seller.

Handwritten signatures and initials.

295

38

3461 10



- D. The Seller has offered to sell and convey the Schedule Property, to and in favour of the Purchasers and has represented to the Purchasers that he is presently the sole and absolute owner of the Schedule Property, with uninhibited rights of alienation over the same; and that he has been and continues to be in uninterrupted use, occupation, peaceful possession and enjoyment of the Schedule Property, without any let, hindrance, claim or demand from any third party in any manner whatsoever.
- E. The Seller has further represented to the Purchasers that the Schedule Property is his self-acquired property and that other than the Seller, no one else has any right, title, interest or claim over and/ or in respect of the Schedule Property.
- F. The Seller has assured the Purchasers that the property taxes and all statutory and other dues in respect of the Schedule Property have been paid up to date.
- G. The Seller has represented that the sale and conveyance of the Schedule Property is for the purposes of his legal and family necessities and the Seller has undertaken that he will fulfill all legal requirements leaving behind no impediments in law for the absolute sale and conveyance of the Schedule Property to and in favour of the Purchasers herein.
- H. The Seller has represented that he has neither created any Wakf with respect to the Schedule Property nor he has made Hiba/ Gift with respect to the Schedule Property to any person.
- II. AND WHEREAS, the Seller being desirous of selling and alienating the Schedule Property have offered the same for sale to the Purchasers and represented and warranted to the Purchasers as under:

Dr. S. S. S. *U. S. S.* *D. S. S.*

996

104

3461 dated 11/12/20



- (i) That the Seller is the sole and absolute owner of the Schedule Property, having good, valid and marketable title and that the Seller has unincumbered rights of alienation over the Schedule Property.
- (ii) The Seller came to absolutely own and possess the Schedule Property in the manner stated in the recitals to this Sale Deed; and no person other than the Seller has any right, title, interest in or claim over the Schedule Property.
- (iii) The Seller has not done and will not do any acts, deeds or things, which are likely to curtail, restrict or prejudice his right to convey or prevent them from conveying the Schedule Property or any part thereof to the Purchasers in terms of this Sale Deed.
- (iv) The Seller has not entered into any arrangement and/ or agreement to sell or otherwise in respect of the Schedule Property in any manner whatsoever or by whatever name it may be called, to and in favour of any third party/ies.
- (v) There exists no distress, court or other attachment, charging order, garnishee order, recovery proceedings as arrears of land revenue, lien, mortgages, charges, *lis pendens*, clogs and hindrances, minor claims or otherwise, execution or other process which a court or recovery officer or a similar body or authority may use to prejudice the marketability and clear title of the Purchasers after the execution of this Sale Deed, or creating any restriction of any nature on the transfer of the Schedule Property or any part thereof in the manner contemplated herein, with regard to payment of any debt, tax, duty, cess or outstanding, of any nature whatsoever in respect of the Schedule Property.

Handwritten signatures and initials.

297

12

3461 12

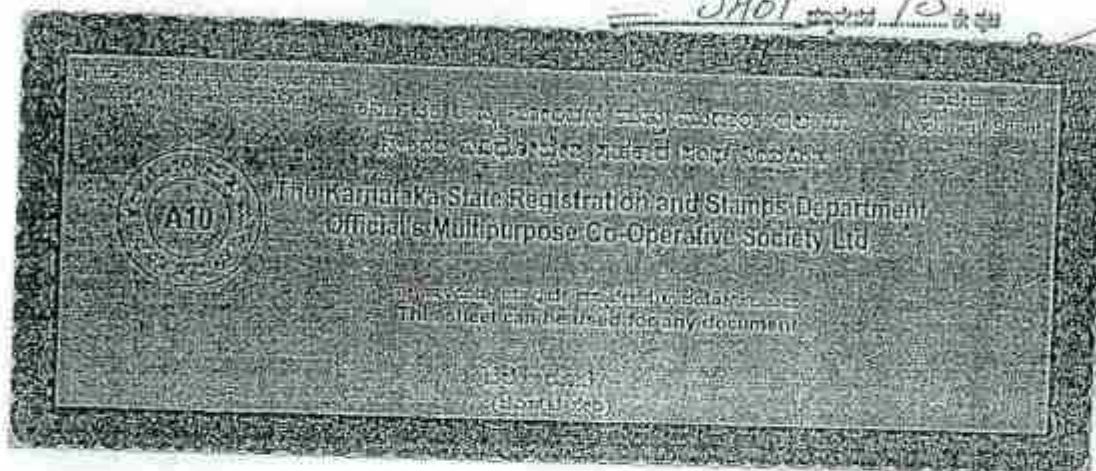


- (vi) There are no acquisition/ requisition proceedings in respect of the Schedule Property pending or concluded before any governmental/ statutory authority.
- (vii) The Schedule Property is not the subject matter of any legal proceedings in any Court of law or before any other government, statutory, local and/or other authority.
- (viii) There have been no applications made in Form 7 under Section 48A or in Form 7A under Section 77A of the Karnataka Land Reforms Act, 1961, in respect of the Schedule Property.
- (ix) No proceedings are pending in respect of the Schedule Property under the provisions of Section 79-A and 79-B of the Karnataka Land Reforms Act, 1961.
- (x) The Schedule Property does not come under the purview of the Karnataka Scheduled Castes & Scheduled Tribes (Prohibition of Transfer of Certain Lands) Act, 1978.
- (xi) There are no impediments, legal or otherwise, for the Seller to convey full and absolute title to the Schedule Property in favour of the Purchasers and further there are no restrictions whatsoever on the Seller for alienating the Schedule Property.
- (xii) There are no pending disputes, actions, claims or demands with any third parties, including adjoining or neighboring owners, with respect to the Schedule Property, or any boundary walls and fences, or with respect to any easement, right or means of access to the Schedule Property, or its use and occupation, or in relation to any neighboring properties.

Small *El...* *Dr.*

298

JH61 13



(ciii) There is no other matter of which the Seller is or ought to be aware of, which adversely affects the value or use of the Schedule Property or its user or enjoyment or casts any doubt on the Seller's rights over the Schedule Property, and which has not been disclosed to the Purchasers.

III. AND WHEREAS, the Seller and the Purchaser No. 1 had entered into a Joint Development Agreement dated 16.06.2022, registered on 21.06.2022 as Document No. GNR-1-01166/2022-23, in Book-I, Stored in C.D. No. GNRD-1026, in the Office of the Gandhinagar (Ganganagar), Bengaluru, providing for the joint development in respect of the land measuring an extent of 10 Acres 03 Guntas, situated at Kenchenahalli Village, including the Schedule Property. Subsequently, the Seller and the Purchaser No. 1 have decided to terminate the said Joint Development Agreement dated 16.06.2022 and certain portion of amount paid as security deposit by the Purchaser No. 1 to the Seller under the said Joint Development Agreement dated 16.06.2022 has been adjusted towards the Sale Consideration for sale of the Schedule Property under this Sale Deed.

IV. AND WHEREAS, the Seller had agreed to sell *inter alia* the Schedule Property to and in favour of the Purchaser No. 1 and Mr. Balachandra Bhat, under the Sale Agreement dated 03.10.2019, registered as Document No. GNR-1-02857/2019-20, in Book-I, stored in C.D. No. GNRD-150, in the Office of the Sub-Registrar, Gandhinagar (Ganganagar), Bengaluru. Subsequently, the Seller, the Purchaser No. 1 and Mr. Balachandra Bhat have decided to terminate the said Sale Agreement dated 03.10.2019 and certain portion of amount paid as advance by the Purchaser No. 1 to the Seller under the said Sale Agreement dated 03.10.2019 has been adjusted towards the Sale Consideration for sale of the Schedule Property under this Sale Deed.

V. AND WHEREAS, relying on the aforesaid representations made by the Seller, the Purchasers have accepted the offer of the Seller and have come forward

[Signatures]

(299)

(1272)

3461 dated 14.12.20



to purchase for valuable consideration, the Schedule Property and all other rights attached thereto; and the Seller and the Purchasers now wish to execute this Sale Deed to provide for the absolute sale and conveyance of the Schedule Property by the Seller to and unto the Purchasers.

NOW THEREFORE THIS SALE DEED WITNESSETH AND IN CONSIDERATION OF THE PREMISES, MUTUAL PROMISES, COVENANTS AND WARRANTIES SET FORTH HEREIN, IT IS MUTUALLY AGREED AND DECLARED BY AND BETWEEN THE PARTIES HERETO AS-HEREUNDER:

1. ABSOLUTE SALE AND CONVEYANCE OF THE SCHEDULE PROPERTY:

In consideration of a sum of ₹ 3,82,50,000/- (Rupees Three Crore Eighty Two Lakhs and Fifty Thousand Only) ("Sale Consideration") paid by the Purchasers to the Seller in the manner hereinafter set forth and the covenants contained herein, the Seller does hereby sell, grant, convey, transfer and assign the Schedule Property, viz., the immoveable property being agricultural land bearing Survey No. 33/5, measuring an extent of 1 Acre 33 Guntas (excluding 3 1/2 Guntas of 'B' Kharab land), situated at Kenchenahalli Village, Yelahanka Hobli, Yelahanka Taluk, Bengaluru Urban District, BY WAY OF ABSOLUTE SALE to and unto the Purchasers, together with all appurtenances, estate, right, title, interest and ownership whatsoever thereto belonging to the Schedule Property, free from all encumbrances, lien, attachments, acquisition, charges and any other claims whatsoever, and TO HAVE AND TO HOLD the Schedule Property hereby conveyed to and unto the Purchasers absolutely and forever.

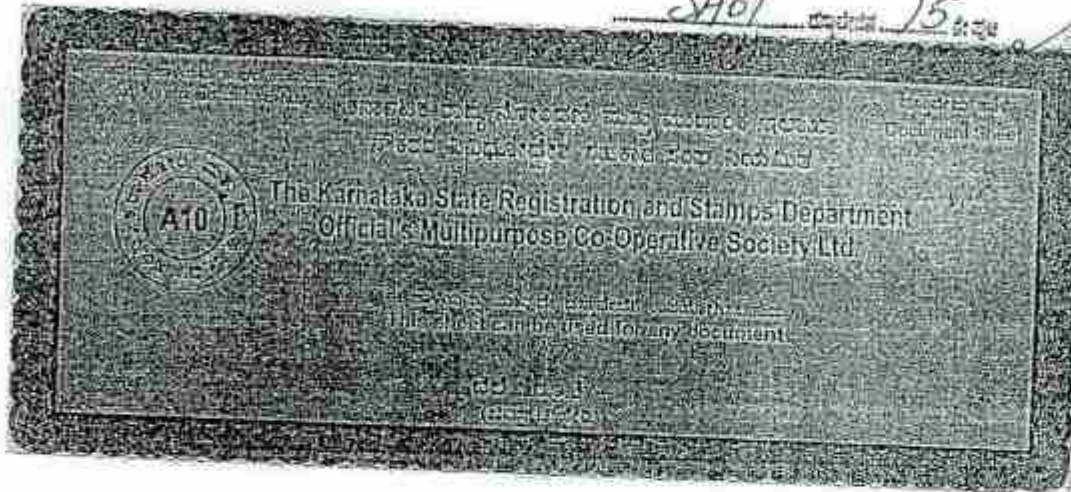
Amal *Uma* *Am*

300

18

3461

15

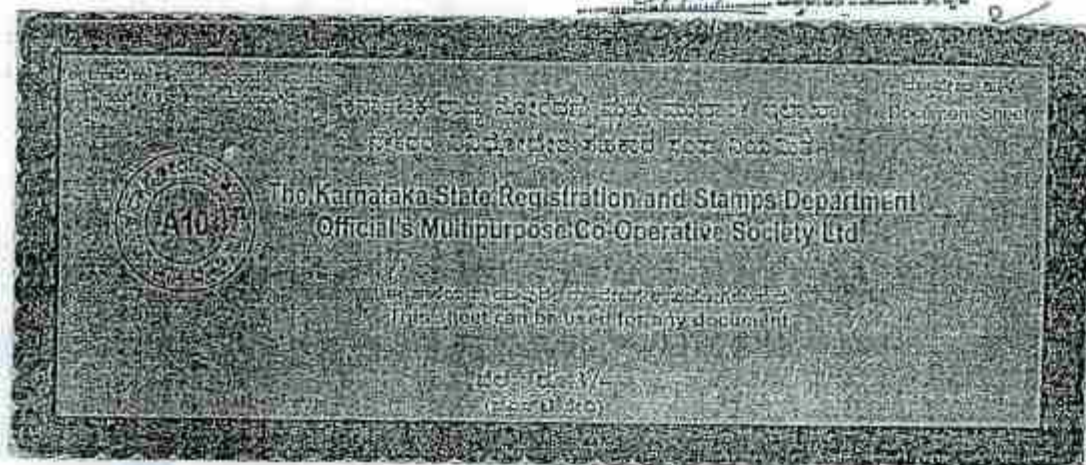


2. PAYMENT OF SALE CONSIDERATION:

2.1. The total Sale Consideration in a sum of ₹. 3,82,50,000/- (Rupees Three Crore Eighty Two Lakhs and Fifty Thousand Only) has been paid by the Purchasers to the Seller, as follows:

- (a) A sum of ₹. 1,40,00,000/- (Rupees One Crore Forty Lakhs Only), by way of Cheque bearing No. 909058, dated 01.10.2019, drawn on Karnataka Bank, KH Road Branch, Bengaluru;
- (b) A sum of ₹. 95,00,000/- (Rupees Ninety Five Lakhs Only), by way of Cheque bearing No. 45984, dated 20.10.2019, drawn on Karnataka Bank, KH Road Branch, Bengaluru;
- (c) A sum of ₹. 40,00,000/- (Rupees Forty Lakhs Only), by way of Cheque bearing No. 562618, dated 14.06.2022, drawn on Karnataka Bank, KH Road Branch, Bengaluru;
- (d) A sum of ₹. 47,50,000/- (Rupees Forty Seven Lakhs Fifty Thousand Only), by way of Cheque bearing No. 45981, dated 20.11.2023, drawn on Karnataka Bank, KH Road Branch, Bengaluru;
- (e) A sum of ₹. 30,00,000/- (Rupees Thirty Lakhs Only), by way of Cheque bearing No. 45983, dated 20.11.2023, drawn on Karnataka Bank, KH Road Branch, Bengaluru;
- (f) A sum of ₹. 26,17,500/- (Rupees Twenty Six Lakhs Seventeen Thousand Five Hundred Only), by way of Cheque bearing No. 45993, dated 20.11.2023, drawn on Karnataka Bank, KH Road Branch, Bengaluru;

Small *Elu* *Dr.*



- (g) A sum of ₹. 1,91,250/- (Rupees One Lakh Ninety One Thousand Two Hundred and Fifty Only), being 1% (One Percent) of the Sale Consideration remitted to the Department of Income Tax, towards Tax Deduction at Source (TDS), by way of E-Tax Acknowledgement No. AK13018316, Challan No. 08375, dated 18.11.2023; and
- (h) A sum of ₹. 1,91,250/- (Rupees One Lakh Ninety One Thousand Two Hundred and Fifty Only), being 1% (One Percent) of the Sale Consideration remitted to the Department of Income Tax, towards Tax Deduction at Source (TDS), by way of E-Tax Acknowledgement No. AK13017686, Challan No. 08213, dated 18.11.2023.
- 2.2. The Seller hereby acknowledges receipt of the entire Sale Consideration as hereinabove mentioned and the Seller hereby acquits and discharges the Purchasers in respect of payment of the same.
3. **DELIVERY OF POSSESSION:**
- 3.1. The Seller has on this day delivered vacant physical possession of the entire Schedule Property to and unto the Purchasers and the Purchasers hereby acknowledge having taken delivery of possession of the Schedule Property.
- 3.2. The Purchasers shall hereinafter be entitled to peacefully and quietly possess, enter into, retain, hold, use and enjoy the Schedule Property as the Purchasers' own and absolute property, without any let, hindrance, interruption, claim or demand by or from the Seller, or any other person claiming under or in trust for the Seller.
- 3.3. The Seller further confirms and acknowledges that pursuant to the execution of this Sale Deed, the Seller does not possess or hold any right, title, interest and/ or ownership rights whatsoever in respect of the Schedule Property.

[Signatures]



4. ORIGINAL TITLE DOCUMENTS:

- 4.1. The Seller has handed over all original documents of title, revenue records, tax paid receipts, etc. pertaining to the Schedule Property and which were in his custody as on date of execution of these presents, to the Purchasers.
- 4.2. The Seller further agrees to furnish such other copies or original documents pertaining to the Schedule Property that may be subsequently found to be in the possession and/ or in the custody of the Seller.

5. PROPERTY TAXES AND OTHER CESSES:

- 5.1. The Seller hereby declares and covenants that the property taxes/ land revenue and public dues, if any, in respect of the Schedule Property have been paid up to date and further agrees and undertakes to pay all such property taxes/ land revenue and public dues up to the date of execution and registration of this Sale Deed. Furthermore, the Seller agrees that if any property taxes/ land revenue and public dues are found to have remained unpaid in respect of a period prior to the date of execution and registration of this Sale Deed, the Seller shall be liable to discharge the same.
- 5.2. The Seller shall bear and pay all the taxes, rates, charges, dues and other arrears relating to the Schedule Property to the local authorities, State or Central Government up to the date of execution and registration of this Sale Deed; and thereafter, the Purchasers shall pay all such taxes and charges relating to the Schedule Property.

6. DECLARATIONS, COVENANTS AND WARRANTIES OF THE SELLER:

The Seller do hereby declares, covenants and warrants to the Purchasers that:

Imada *Elu* *Am*

703

3461 dated 18.2.20

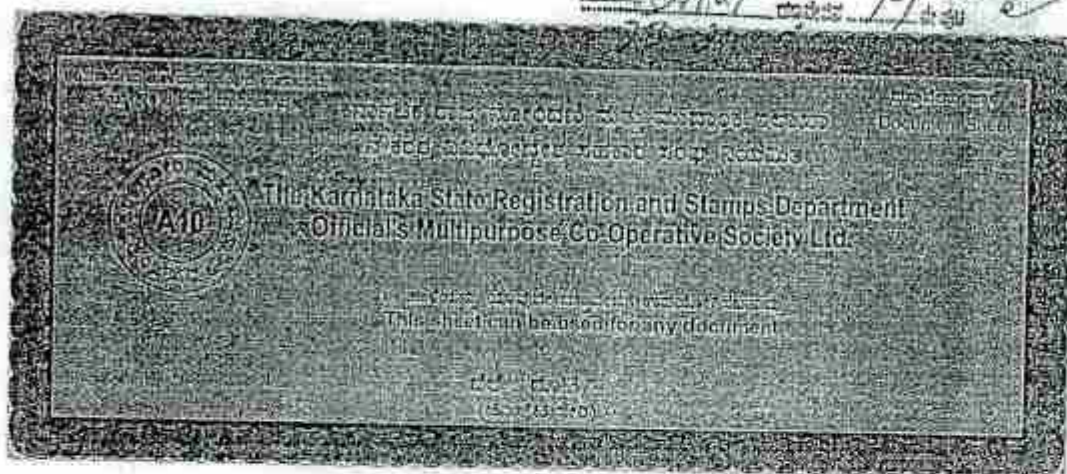


- (i) The Sale Consideration received from the Purchasers for the sale and conveyance of the Schedule Property is sufficiently provided for;
- (ii) The Purchasers shall be absolutely entitled to the Schedule Property and shall have the complete and absolute right and liberty to sell, mortgage, lease or otherwise alienate the Schedule Property or offer the same as collateral for any loans or financial assistance to be obtained from any bank or financial institutions, without any consent of, or reference whatsoever to the Seller;
- (iii) The Purchasers shall be entitled to deal with the Schedule Property in any manner whatsoever and howsoever the Purchasers may deem fit, necessary or appropriate;
- (iv) The Schedule Property can be utilized by the Purchasers without any let or hindrance or obstruction under law or by any person whatsoever claiming through the Seller and/ or on behalf of the Seller; and
- (v) The Seller hereby covenants and undertakes to execute such other document/s as may be legally and reasonably required by the Purchasers to more fully satisfy and assure that the Purchasers are the joint and absolute owners of the Schedule Property. The Seller further covenants and undertakes to do or cause to be done at all times all acts, deeds and things as may be necessary and that are reasonably and legally required for more fully and perfectly assuring the right, title, interest and peaceful and effective possession of the Schedule Property unto and in favour of the Purchasers.

Mulla

Elum

304



7. INDEMNITY:

- 7.1. The Seller hereby agrees and assures to keep the Purchasers and their legal representatives, legal heirs and successors-in-title fully indemnified and to hold harmless against any loss or liability, costs, claims, action or proceedings that may arise or be initiated against the Purchasers and/ or their legal representatives and successors-in-title, in respect of the Schedule Property, on account of any defect or deficiency in or want of title or in the event of any ban, injunction or stay order arising out of any defect in the title of the Seller to the Schedule Property.
- 7.2. The Seller hereby covenants to indemnify and hold harmless the Purchasers against any losses or damages, for reasons attributable to the Seller, which the Purchasers may sustain on account of: (i) the Purchasers' right to peaceful possession and enjoyment of the Schedule Property as the absolute owners thereof being disturbed in any manner whatsoever, for any default on part of the Seller; (ii) any defect or deficiency in the title of the Seller to the Schedule Property; and (iii) breach of any representation, undertaking or covenants herein by the Seller or on account of any misrepresentation by the Seller.
- 7.3. The Seller shall defend the right, title and interest of the Purchasers to the Schedule Property, as the case may be, against all claims, made under or through the Seller, and that all the expenses in this regard shall be borne and paid for by the Seller.

8. TRANSFER OF REVENUE RECORDS/RTCS/ KHATHA:

- 8.1. The Seller hereby gives his no-objection and further agrees to issue and sign form/s and No-Objection Certificate/s, if any, for the transfer of the Khatha

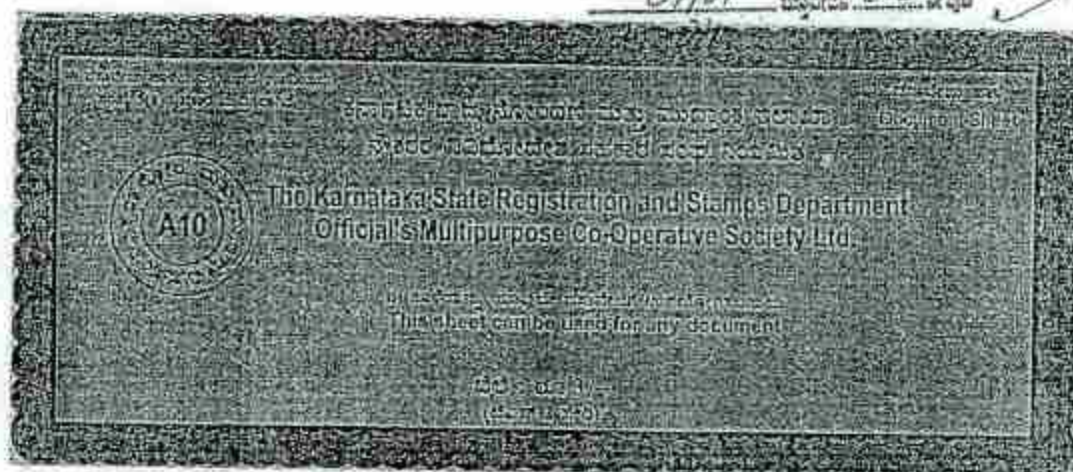
M. Mallik

Elumalai

Om

305

3461 20



and other Revenue Records/RTCs in respect of the Schedule Property to the names of the Purchasers herein.

- 8.2. The Seller further agrees to co-operate with the Purchasers and shall provide necessary support and assistance so as to enable the Purchasers to obtain Khatha and other Revenue Records/ RTCs in respect of the Schedule Property duly transferred to the names of the Purchasers and to reflect the names of the Purchasers as the joint and absolute owners of the Schedule Property in the revenue records and such other records.

9. STAMP DUTY AND REGISTRATION FEE:

The stamp duty and registration charges payable in accordance with law and all expenses incidental for execution and registration of this Sale Deed and all other related documents has been borne by the Purchasers.

<This space has been left blank intentionally>

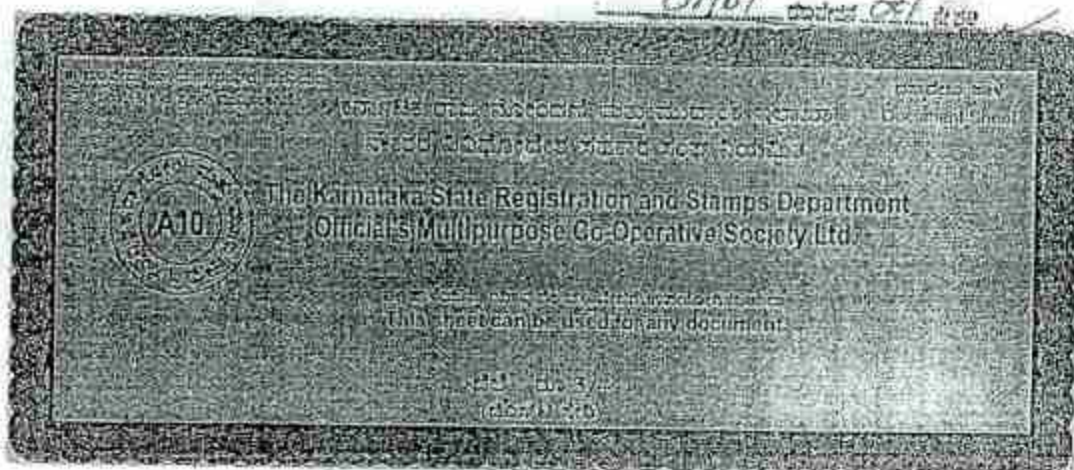
[Signature]

Final

306

3461

21



**SCHEDULE
SCHEDULE PROPERTY**

All that piece and parcel of immovable property being an agricultural land bearing Survey No. 33/5, measuring an extent of 1 Acre 33 Guntas (excluding 3½ Guntas of 'B' Kharab land), situated at Kenchenahalli Village, Yelahanka Hobli, Yelahanka Taluk, Bengaluru Urban District, and bounded as follows:

- On the East by : Land bearing Survey No. 34/2;
On the West by : Road;
On the North by : Land bearing Survey No. 33/4; and
On the South by : Land bearing Survey No. 33/3.

Together with all appurtenances, estate, right, title, interest, property, entitlement, claims and demands whatsoever thereto to and in relation to the aforesaid property.

<This space has been left blank intentionally>

Small

U. S. D.

307

3461 22-11-20



IN WITNESS WHEREOF THE PARTIES HERETO HAVE SIGNED AND EXECUTED THIS DEED OF ABSOLUTE SALE ON THE DAY, MONTH AND YEAR FIRST ABOVE WRITTEN IN THE PRESENCE OF THE FOLLOWING WITNESSES:

SELLER:	
<i>[Signature]</i>	
MR. AZMATH ULLAH KHAN	
PURCHASERS:	
<i>[Signature]</i>	<i>[Signature]</i>
MR. G. VENKATARAMANA	MRS. UMA VENKAT
WITNESSES:	
(1)	(2)
Signature: <i>[Signature]</i>	Signature: <i>[Signature]</i>
Name: Mr. A. Abdul Raffeeckh	Name: Mr. L. Stanely
Aadhaar: 6871 8057 3235	Aadhaar: 4336 0134 5191
Address: No. 02, A Block, Natasa Golf View Apartment, Domlur, Bengaluru - 560 071.	Address: No. 7/1, 4 th Main, 15th Cross, S. R. Nagar, Wilson Garden, Bengaluru - 560 027.

Drafted by:

[Signature]
Dus Associates

Advocates & Solicitors

No. 130/1, Ulsoor Road, Bangalore - 560 042.

308

ರೇಕಾರ್ಡ್ ಆಫ್ ಸ್ಕೋಲ್ಸ್, ಗಿರ್ಲ್ಸ್ ಮತ್ತು ಬುಡ್ಡೆ ಚಿಕ್ಕರಿಕೆ (RTC) ಭಾರಣ ಸಂ.೧೩

ANNEXURE-D 15

Valid from 1/1/2023 to TUE Date

[illegible][illegible]

சென்னை, 15 சூன் (ஐ.வி.என்) ஸ்டீல் பிளேட் உதவித் தொகை, ரூ.1000000.

Downloaded 12/26/2023 5:02:43 PM from: 192.168.1.1

RTG DIGITALLY SIGNED BY: USMA1 ON 13/11/2025
RTG Unique Number: T11D7H5802-3
RTG Date and Time: 13/11/2025 10:40:40.40.50 AM, 70

೦: ಬೆಳೆ ಸಮೀಕ್ಷೆ ಮಾಡುವ ಸ್ಥಳದ ವಿವರಗಳನ್ನು ಕೂಡಿಸಿ, ಬೆಳೆ ಮಾಹಿತಿ ಸಮೀಕ್ಷೆ...

**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(CIVIL APPELLATE JURISDICTION)**

**W.A.No. /2024
 IN
W.P.No.18606/2024**

BETWEEN

Sri.Sohanlal Joshi

APPELLANT

AND

State of Karnataka &Ors.

RESPONDENT

INDEX

SL.NO.	PARTICULARS	PAGE NO.
1.	MEMO	310

Bangalore
Dated;03.10.2024


Advocate for Appellant

310

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.A.No. /2024

IN

W.P.No.18606/2024

BETWEEN

Sri.Sohanlal Joshi

APPELLANT

AND

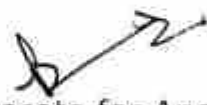
State of Karnataka &Ors.

RESPONDENT

MEMO

The Appellant council submit that the Respondent No 1 To 3 has not filed any statement of objections in W.P. No.18606/2024, in the interest of justice and equity.

Bangalore
Dated;03.10.2024


Advocate for Appellant

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(CIVIL APPELLATE JURISDICTION)

I.A.No.1/2024

IN

W.A.No. /2024

IN

W.P.No.18606/2024

BETWEEN

Sri.Sohanlal Joshi

APPELLANT

AND

State of Karnataka &Ors.

RESPONDENT

INDEX

Sl.No.	Particulars	Pg.No.
1.	I.A for Stay	311
2.	Affidavit	312-315

Place: Bengaluru

Date:03.10.2024


ADVOCATE FOR APPELLANT

311

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(CIVIL APPELLATE JURISDICTION)

I.A.No.1/2024

IN

W.A.No. /2024

IN

W.P.No.18606/2024

BETWEEN

Sri.Sohanlal Joshi

APPELLANT

AND

State of Karnataka &Ors.

RESPONDENT

**APPLICATION FOR STAY FILED BY APPELLANT UNDER
ORDER 41 RULE 5 OF THE CIVIL PROCEDURE CODE, 1908
READ WITH ARTICLE 226 OF THE CONSTITUTION OF
INDIA**

For the reasons stated in the accompanying affidavit, the Appellant herein respectfully prays that this Hon'ble Court may be pleased to stay the order dated 10.1.2023 passed by the respondent No.2 in ALN(Y)R/10/2022- 23 vide Annexure H in W.P 18606/2024, pending disposal of the present Writ Appeal, in the interest of justice.

Place: Bengaluru

Date:03.10.2024


ADVOCATE FOR APPELLANTS

(Shiva Shankar.C)

312

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(CIVIL APPELLATE JURISDICTION)

I.A.No.1/2024

IN

W.A.No. /2024

IN

W.P.No.18606/2024

BETWEEN

Sri.Sohanlal Joshi

APPELLANT

AND

State of Karnataka &Ors.

RESPONDENT

AFFIDAVIT

I, Mr.Sohanlal Joshi, Aged about 54 years, S/o. Late Dallaram Joshi, R/at No.123, 124, Sainik Vihar Layout, Kenchamahall, Yellahanika New Town Bengaluru 560064, do hereby solemnly affirm and state on oath as follows:

1. I state that I am the Appellant in the above case and am well conversant with facts of the case and as such authorized to depose this affidavit.
2. I state that the main averments from the memorandum of writ appeal be read as part and parcel of this affidavit in order to avoid repetition.
3. I state that having been aggrieved by the order dated 26.9.2024 passed by the learned single judge in W.P.No.18606/2024, the appellant have preferred the present writ appeal.
4. I state that the learned single judge vide order dated 26.9.2024 was pleased to dismiss the W.P.No.18606/2024; while confirming the order dated

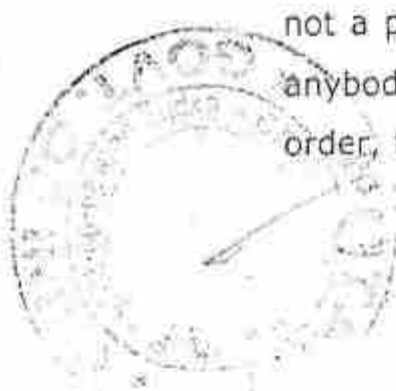
 Sohanlal Joshi



313

10.1.2023 passed by the respondent No.2 in ALN(Y)R/10/2022- 23 to remove the site owners of Sy No.33 and 34 of Kenchanahalli Village, Yelahanka New Town, Bangalore.

5. I state that the Sainik Vihar Site/House Owners Welfare Association approached this Hon'ble Court and filed W.P.No.2074/2023 to quash the order dated 10.1.2023 passed by 2nd respondent. This Hon'ble Court considering the urgency in the matter was pleased to stay the order dated 10.1.2023 passed by the 2nd respondent by order dated 30.1.2023. It is submitted that while passing the interim order this Hon'ble Court considered that the impugned order has been passed without issuing notice to the owners and grave injustice will be caused to each of the individual site owners. It is submitted that subsequently when the writ petition came up before this Hon'ble Court, this Hon'ble Court held that the association which filed the writ petition is not the owner of the property and if any person aggrieved by the said order are at liberty to challenge the same and also a submission was made by the HCGP representing the 2nd respondent herein that the impugned order will be implemented only against the persons who are party to the proceedings before the 2nd respondent and not against those who are not a party to the proceedings and also submitted that if anybody has to be evicted pursuant to the impugned order, the same will be done only after affording them an


Shan Lal Goshi

314

opportunity of hearing. Based on such submissions and undertaking given by HCGP, the writ petition was dismissed.

6. I state that the learned single judge in WP 17208/2024 filled by the respondent No.4 was allowed writ of mandamus is not issued to the respondent-Thasildar to implement the order dated 10.01.2023, and the respondent no.4 colluding with respondent No.2 is trying to dispossess the appellant herein.
7. I state that I am the owner of the schedule property and has been in possession and enjoyment from the year 2006. The 2nd respondent in collusion with the respondents 3 and 4 has passed the impugned order dated 10.1.2023. It is submitted that no notice was issued to me before passing the impugned order nor I was heard. In violation of the undertaking given before this Hon'ble Court, the 2nd respondent is again trying to implement the impugned order to harass me and other occupants with the help of the police. If the interim stay as prayed is not granted, I will be put to irreparable injury and hardship. On the other hand no prejudice will be caused to the respondents
8. I state that if the interim order as prayed for in the accompanying application is granted, no harm or loss would be caused to the Respondents. On the other hand, if the same is not granted, I would suffer irreparable loss and mental agony which cannot be compensated at a later



Sohant Joshi

315

stage. The balance of convenience also heavily weighs in favour of allowing the interim application as prayed for.

WHEREFORE, I humbly pray that this Hon'ble Court be pleased to allow the application as prayed for accompanying this affidavit in the interest of justice.

Place: Bengaluru

Date: 03.10.2024

Deponent

Shanlab Joshi

IDENTIFIED BY ME

ADVOCATE



SWORN TO BEFORE ME

CHANDRASHEKHARAIAH. S.

Notary
3rd Cross, Muthurayaswamy Extension
Sunkadakatte, Bangalore - 560 091.

Book No. 12 Page 67
Date 03/10/2024